

Equity and Law

Equity and Law

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*Dedicated to the memory of
Professor Fernando Garrido Falla*

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Prologue

To tell the truth, I was disconcerted by Professor María José Falcón y Tel-la's phone call asking me to write the prologue to this fine achievement of a book. I know, as she does, that associating my name with her work of thorough research will not bring it any more distinction than what it already possesses on its own. This is the case because, amongst other reasons, I cannot be credited with any achievements related to the subject (only with some gray monograph about "equity" or another about its history) other than a perceptible interest in the subject matter (better said, in reality, a certain apathy). I am aware, therefore, that by agreeing to write the prologue of such a detailed book, I am not really doing a favor, but rather I come out ahead from the endeavor. As such, I view Professor Falcón's proposal as a kind gesture to me personally (which I appreciate from the bottom of my heart) and, as a result, I interpret it more as an *invitation* (or offer) than as a *request*.

My relationship with María José Falcón, intermittent but always caring, dates back to the day when she presented her doctoral thesis.¹ I partook in the event as a member of the Examining Committee, which was presided over by the outstanding Professor Garrido Falla (to whose memory this book is dedicated). I remember that I was told of the academic success stories of the doctoral candidate, which could take one's breath away, if I may be permitted to use the expression, and that her winning of the National Prize for the Study of Law (*Premio Nacional de Terminación de Estudios en Derecho*) was well-deserved. That someone with such an overwhelming record of success in her studies of law as an undergraduate would opt for an academic specialty—the Philosophy of Law—with such low potential for economic, social, and political gain, told a great deal about the calling that drove María José and the earnestness of her choice (Professor José Iturmendi must have presented Legal Philosophy as a very attractive option!). Since intelligence gets along well with modesty, I still have not forgotten that the initial meeting with the doctoral candidate was moderate in tone and brief in content. Later, however, her answers to the battery of questions and observations formulated by the Tribunal were fast and hard and to the point. The years that

1 With the title *El argumento analógico en el Derecho*. Preface by JOSÉ ITURMENDI MORALES. Madrid. Civitas. 1991.

followed did not diminish my belief that behind her mild manner resided a distinct strength of character and judgment. Moreover, I must add, her level of expertise was made evident when she was honored with the Prize for Outstanding Doctoral Project (*Premio Extraordinario de Doctorado*), awarded by Complutense University's Law School.

Later, I fell out of touch with María José, and may have lost track completely of what she was doing, if not for my sporadic and brief visits to Complutense University's Law School (usually due to the presentation of a doctoral thesis), where I was always greeted with a warm welcome. Only a few short years later, however, Professor Falcón y Tella gave us the gift of a new book (*Concepto y fundamento de la validez del Derecho*, Civitas, 1994), that included a preface by the Belgian professor François Ost and was translated first into Portuguese² and later into English.³ And since time flies so rapidly, I do not remember the specific date when María José Falcón was named as the Director of the *Human Rights Institute* of Complutense University (a position which she continues to hold today and under which falls the responsibility of directing the *Anuario de Derechos Humanos* [Human Rights Journal], which is edited by the aforementioned Institute). I mention this because her third book, *La desobediencia civil* (with a prologue by Fernando Garrido Falla, Ed. Marcial Pons, 2000—also translated into English)⁴ seemed to me (in a judgment I made too quickly) to be a shift toward legal axiology—so kindly (and gratuitously) detested by many. As such, it seemed as if she wanted to match up her writing with her new mission. Later I saw that I was mistaken,

2 With the title *Conceito e fundamento da validade do Direito*. Preface by FRANÇOIS OST, translation by STEFANI BORBA DE ROSE TRUNFO. Brasil. Livraria do Advogado. 1st ed. 1998. 2nd ed. 2000.

3 *The Validity of Law: Concept and Foundation*. Preface by FRANÇOIS OST. Translation into English by PETER MUCKLEY. Brasil. Livraria do Advogado. 2000.

4 With the title *Civil Disobedience*. Preface to the English edition by MARTTI KOSKENNIEMI. Leiden-Boston. Martinus Nijhoff Publishers. 2004 –First Part-. And *A History of Civil Disobedience*. Genève. Editions Diversités. 2004 –Second Part-. More recently, we can mention her book, MARÍA JOSÉ FALCÓN Y TELLÁ – FERNANDO FALCÓN Y TELLÁ: *Fundamento y finalidad de la sanción: ¿un derecho a castigar?* Preface by ANTONIO GARCÍA-PABLOS. Madrid. Marcial Pons. 2005. Reviews by: MARÍA EUGENIA PÉREZ MONTERO, in *Anuario de Derechos Humanos. Nueva Época*, vol. 6. Instituto de Derechos Humanos. Facultad de Derecho. Universidad Complutense de Madrid. 2005, pp. 790-798; ANA VALERO FERNÁNDEZ DE PALENCIA, in *Foro. Revista de Ciencias Jurídicas y Sociales. Facultad de Derecho. Universidad Complutense de Madrid*. 2. 2005, pp. 461-463; and JOSÉ MARÍA CARABANTE MUNTADA, in *Archiv für Rechts-und Sozialphilosophie* (forthcoming); there is an English translation, *Punishment and Culture: A Right to Punish?*, by PETER MUCKLEY. Boston-Leiden. Martinus Nijhoff Publishers. 2006.

because many of the themes that María José dealt with, in what we'll call her "theoretical-methodological" phase, became recurring themes—even if now she has expanded and enriched the horizon of her personal and academic concerns. Something similar could be said of her recent book *El ciudadano frente a la ley* (The Citizen Before the Law) (Buenos Aires, Ed. Ciudad Argentina, 1st. ed. 2004; 2nd ed. 2006), whose marketing in Spain I hope to see soon, for the enjoyment of many readers and the benefit of even more. Each one of these prominent milestones (which are not the only ones) in the academic path of Professor Falcón has provided me with the opportunity to converse with her, to learn, to know her better, and to respect her more (with good reason, obviously).

Although the habits of the Academy often cause Text-books to encounter problems with fitting in to the category referred to by the pompous term "research," what is clear is that not all Text-books deserve to be put on the same level. I want to refer now to *Lecciones de Teoría del Derecho* (Lessons of Legal Theory) by María José Falcón y Tella (Servicio de Publicaciones de la Facultad de Derecho, Universidad Complutense, 2001), which is now available in its third edition and has an uncommon amount of depth and density (I would say, if it does not upset her, that it is even an excessive amount of both). Publications of this genre, regardless of the energy put in to their preparation, normally do a good job of reflecting their author. In this case, said publication by María José Falcón projects an image of a teacher who is very knowledgeable in her field, rigorous, and, despite all this, didactic (to the extent that it is possible to be so within textual limits).

The fact that I consider myself close with Dr. Falcón, as much so on a personal level as on a professional level, did not remove my apprehension about a subject of study, "equity," for which I have never felt a spark of interest. On the contrary, I have felt a certain prejudiced reticence toward the subject due to considering it obsolete (a vestige of worlds which have since died out) or foreign (more properly belonging to Anglo-Saxon law) or even, sometimes, residual. (I must embarrass myself by confessing that, although my teaching the topic of "equity" is unavoidable, it is limited to the presentation of three or four examples and a few *morceaux choisis*.) I thus began reading the manuscript of Professor Falcón's book with feelings somewhere between skeptical and expectant, with the secret fear of coming across one of those books that you can only stumble through for a limited amount of time, until you run out of patience. I must admit that I was completely wrong in my apprehensions. If, after reading the text, I had to describe my feelings about the book in just one word, it would be "amazing!". Honestly, I found myself absolutely overwhelmed. I will describe only a few succinct points about the book, so as not to write the longest prologue in the world.

First of all, there is one feature of clear prominence: the enormous amount of bibliographical sources which were consulted. Moreover, the sources entail a wide range of languages (Greek, Latin, English, French, Italian, and

German; excluding Spanish, of course) and the use of the many sources is not meant to expand the footnotes (although occasionally this is an inevitable result). I must stress here that, in any case, the diverse array of doctrinal and linguistic sources utilized by María José does not negatively affect the unity of tone and style that is successfully preserved throughout the entire book.

Also, the attention and care that the author puts in to defining the theoretical framework in her book is truly incredible. In this task she uses none other than the “three-dimensional” method, a term sprouting from *realiana* origins. Said method is not only a trend of thought used personally by Professor Falcón, but is a theoretical analysis that she also fervently promotes, as can be witnessed in a doctoral thesis directed by Professor Falcón that was recently defended and published in Madrid. I cannot overlook the fact that the three-dimensional method, in terms of an *ontological* approach to law, is far from appealing for some people. Nonetheless, it is a very useful approach, as a *methodological* option, for the purposes of this specific study. Otherwise, given the wealth of legal writings related to the concept, and the institutionalization of “equity”, one runs the risk of piling up a colossal quantity of arguments without anything in common except for the fact that they are all crammed into the same book. The three-dimensional methodology (to which María José adds nuance) facilitates a stratified focus (in agreement with the usual three levels: “fact,” “norm,” and “value”), or a *synchronic* analysis of equity, that needs to be complemented (as it is in this book) with the corresponding *diachronic*, or historical, vision.

Speaking of the history of equity, and its ups and downs, I must point out one other thing. I consider it highly recommendable in any analysis of equity that, keeping in mind its classical lineage, a reasonable description of the development of the concept through Greek and Roman antiquity, and perhaps the Middle Ages, is included. All of this is accomplished in María José Falcón’s book, and is done so with an attention to detail and deliberateness that is characteristic of a history-based text. The great part about this historical review is that it allows the author to continue exhibiting her wealth of knowledge. This knowledge applies just as much to successive forms of equity throughout time (beginning with the Roman-Germanic systems), as it applies to contexts and civilizations that are relatively foreign to us (Judaism, Islam, etc.), or to the unavoidable figure of equity in the Anglo-American tradition (a topic which takes up some twenty pages which are exemplary in their thoroughness and clarity).

Considering that every matter has a flipside, however, isn’t it possible that we run the risk of getting lost in the tremendous and diverse amount of historical analysis? Dr. Falcón y Tella takes great care to make sure that such a problem does not result. Instead, she puts the focus on, to the extent possible, relating past experiences to the “here and now” (which syncs up with the spatial-temporal dimension), the acceptance of the word “*equidad*” in current Spanish (which fits in with the lexicographical dimension), and the

“tension” between equity and law (which is done through a logical-scientific perspective—designated as such by the author). Despite the project’s seemingly limited look-out point, however (and going against what one would naturally assume), we continue to discern a very broad panorama.

A good example of this (and not the only one) can be found in the assortment of functions that Professor Falcón attributes to equity. Beginning with the *applicative* function of law (as a defining activity in judge made law), followed by the *interpretive* function (with the distinctive impact of equity on the “declarative” interpretation and on the “corrective” interpretation, respectively), proceeding to the *integrative* function (in which equity produces specific effects according to how “proper” or “improper” legal gaps are and, equally, adopts unique forms depending on the procedures—self-integrating or hetero-integrating—used to satisfy them), followed by the *moderating* function (the mitigation of the harshness of strict law), or by the *humanizing* function (equity as a virtue), and finishing with the *creative* function (equity not as a source of law, but rather as a guideline; as well as the relationship between equity and legal free will). For me, to whom the hidden mysteries of the judicial application of the law are very dear (in fact, I prefer it when my writings revolve around said subject matter), it was quite stimulating to find myself in the presence of equity in such unexpected places. The result was that I had to ask myself if up to this point it hadn’t been an unforgivable waste to have overlooked the theoretical reserve that María José Falcón opened in her work right before my eyes (and before the eyes of others as well, I imagine).

As I mentioned earlier, these are only a few specific aspects of the book that I have highlighted because of their significance for me. I must reiterate, however, that these are not the only significant aspects of the study. There are other characteristics of the book that will certainly also teach and bring enjoyment. For instance, the book will certainly be enjoyed by those who love classifications (an example of which is the section that Dr. Falcón devotes to creating a typology of equity), or by those who are interested in the niceties of legal semantics (who will appreciate the pages reserved for the close examination of the links between equity and a distinguished group of related concepts), or by those who gain satisfaction through the study of logic (which is brought into play with the notion of the “will of equity” as an “acephalous” syllogism), etc. In any case, I will not continue describing the themes that emerge, except to refer the reader to the highly detailed “table of contents” of the book, and to say that, as a practical whole, the book—in all its aspects—is a clear *succès d’estime*.

In what I have been able to catch a glimpse of, by what I saw of the sources which appear as much so in the footnotes as in the final bibliography, I do not think that the subject of “equity” has received, at least not in the Spanish language, as complete a treatment as it receives in the work you now hold in your hands. María José Falcón has sketched out, of course, a world map of

equity with its countless ramifications. But, if I may, I suspect that she sensed an even more exciting temptation: the temptation to suggest that in equity resides *in nuce* an authentic legal *Weltanschauung*.

I am reluctant to finish these notes without alluding to the uncommon chapter with which Dr. Falcón y Tella brings her work to a close. In said chapter, not only does she offer us (in an expected move) an excellent review of the figure of equity in current philosophical works, but also (and this, in reality, is quite unusual) the different modulations of equity in various *samplings* (forgive the trivial expression) of Spanish positive law (i.e. in civil law, in administrative law, in criminal law, in constitutional law... and so on, successively). With those aspects of Professor Falcón's work in mind, I must now definitively abandon the image of equity (which has been significantly expanded) as if it were that of a woman who must be photographed in weak light so that no one notices her wrinkles.

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Chapter 1

Introduction

1. The Three-Dimensional Method as the Focus of the Problem of Law in General and of Equity in Particular: Facts, Norms and Values

Broadly speaking, the three-dimensional theory of law is a conception that divides the legal world into three planes or levels: the what-is (the empirical or factual plane), the what-ought-to-be (the normative plane), and the values in play (the axiological or evaluative plane). The three-dimensionalism of the legal world, which we could call structural three-dimensionalism, has been accepted by the majority of legal systems, which can be seen if one peruses *Teoría tridimensional del Derecho* (The Three-Dimensional Theory of Law) by MIGUEL REALE. The existing dichotomy between the world that is and the world that ought to be is sometimes referred to by the Germanic terms that contrast the world of the “*Sein*” with that of the “*Sollen*.” The “*Sein*” designates the actual world while the “*Sollen*” refers to the normative world.

Thus, when speaking of law, it is necessary to distinguish between its “factuality,” its “normativeness,” and its “ideality”—according to where the analysis is centered, we deal with a “fact,” a “norm,” or a “value.” In the first case, we find ourselves in the world of “reality” in the strictest sense, in the second, we are in the world of “culture,” and in the third case, we deal with the world of the “spirit.” It is nothing more than the difference between, first of all, the sector of the physical, empirical, and practical; secondly, the plane of law as a cultural phenomenon; and, finally, the emotional and moral concerns. Culture in this ideological context is not something that falls squarely between the concepts of the spirit and nature, but rather it is the process of synthesis that the spirit achieves in nature.

The three-dimensional approach to law is by no means a new one. In fact, since this view was consolidated and consecrated in the work of MIGUEL REALE, the theory’s applicability in the legal world has become an accepted fact.

¹ We have used the three-dimensional perspective in various earlier studies. The method was used, for instance, when we worked with the subject of the

1 FERNANDO FALCÓN Y TELLA: *Tridimensionalismo y Derecho*. Madrid. Servicio de Publicaciones. Facultad de Derecho. Universidad Complutense de Madrid. 2004. Review by JUAN ANTONIO MARTÍNEZ MUÑOZ, in *Foro. Revista de*

validity of law. In analyzing the validity of law we distinguished between an axiological validity (legitimacy), a normative validity (validity strictly speaking), and a sociological validity (effectiveness), analyzed under the notions of legal naturalism, positivism, and realism, respectively.² In the same way, the use of the three-dimensional view was very helpful when analyzing the subject of civil disobedience, a topic which we have reflected on in some of our most recent works. For instance, justifying civil disobedience was done just as much at the axiological level as it was at the sociological, and even legal, level.³ We point out the aforementioned examples to clearly show that we think the three-dimensional perspective is especially useful in the study of law. As a result, we also used the said perspective when we systematically analyzed different themes of legal theory in a book containing classroom lectures, mainly intended for students.⁴

The issue before us is determining whether this three-dimensional focus will be equally productive and applicable regarding the subject that concerns us now: “equity and law.” We must admit that from the beginning, while searching for the type of exact symmetry and unity that is aspired to in scientific studies, we were tempted to use the three-dimensional method in this work. The said method seemed to be the mold or form that would give us a better systematic clarity in the analysis of equity. Ultimately, using the three-dimensional method is exactly what we did. Nonetheless, to the extent that we advanced and studied the matter in-depth, we kept in mind the fact that—if we applied the three-dimensional approach to every subject in our analysis of equity—it would end up being a hindrance. In such an approach, more than explaining the topic, the three-dimensional method would ob-

Ciencias Jurídicas y Sociales. Facultad de Derecho. Universidad Complutense. Madrid. o. 2004, pp. 317-320.

- 2 Cf. on the subject *Concepto y fundamento de la validez del Derecho*. Preface by FRANÇOIS OST. Madrid. Civitas. 1994, and our other articles on the subject contained in its bibliography.
- 3 Cf. on the subject *La desobediencia civil*. Prologue by FERNANDO GARRIDO FALLA. Madrid. Marcial Pons. 2000. Reviews by GUIDO SARACENI, in *Rivista Internazionale di Filosofia del Diritto*, 3, July-September 2001, pp. 424-426; by PAULA LÓPEZ ZAMORA, in *Revista de Estudios Políticos*, 111, pp. 312-315; by BEATRIZ CASTRO TOLEDO, in *Revista de la Facultad de Derecho de la Universidad Complutense de Madrid*, 2001, pp. 241-263; by OSCAR M^a PRIETO GARCÍA, in *Anuario de Derechos Humanos. Nueva Época*. Madrid. Instituto de Derechos Humanos. Facultad de Derecho. Universidad Complutense de Madrid. 2001. II, pp. 1026-1035; by JUAN ANTONIO MARTÍNEZ MUÑOZ, in *Veintiuno. Revista de Pensamiento y Cultura*, 53, Spring 2002, pp. 146-148. And by PEDRO RIVAS, in *Anales de la Cátedra Francisco Suárez*, 34, 2000, pp. 146-148.
- 4 MARÍA JOSÉ FALCÓN Y TELLA: *Lecciones de Teoría del Derecho*. Madrid. Servicio de Publicaciones. Facultad de Derecho. Universidad Complutense de Madrid. 1st ed. 2001. 2nd ed. 2003. 3rd. ed. 2006.

scure the issue by badly simplifying and confining reality, which should be free. That is the reason why we have opted for an intermediate approach. We use three-dimensionalism when it is useful, but without sacrificing, for the sake of regularity and symmetry (which in reality are more the virtues of a museum watchman than of a jurist), all of the complex multiplicity, heterogeneity, and richness of life. This does not, however, prevent three-dimensionalism from being utilized as a point of reference in some parts of the study where it is useful—especially in the book’s general table of contents.

For instance, among the historical types of equity which we will refer to in this work, when we analyze the different manifestations of the phenomenon of equity throughout time, we see that the concepts can fit into different categories. The Greek concept of “*epieikeia*,” as individualizing justice (the justice of a specific case), would fall upon the factual plane; the Roman-Christian notion of “*aequitas*,” as egalitarian or moderating justice (an exception to strict law), would fit more clearly in the normative sphere; the canonical idea of “*miser cordia*,” understood as “*humanitas*,” would be best placed on the values plane; and Medieval equity, as a type of interpretation that goes beyond the text of the norm to penetrate its spirit, would probably also be included on the axiological plane. But, what can be said of the Anglo-Saxon notion of equity? Perhaps, in the Anglo-Saxon case law culture, equity can be included on the factual plane? And equity in the Continental systems, of a legalist bent, would it not maybe fit on the normative plane? In terms of equity in other contexts, such as Judaism, Islamic law, or the Soviet legal system, could one speak of the values level? If in the interest of conceptual tidiness we were to simplify the entire phenomenon of equity into the aforementioned three categories, we would be sacrificing the richness of the reality of different existing legal systems—simplifying that reality, and, in a certain way, missing the truth. If we utilize the three-dimensional outline, however, as a focus that introduces a principle of clarity, like the rugby referee bringing order to the scrum, it can help us appreciate the control the game.

2. Domain and Plan of the Project. Equity as a Multi-Faceted Topic and the Maelstrom of Interrelated Concepts. A Horizontal and Vertical Reading of this Inquiry. The Necessity of an Interdisciplinary Approach to the Subject Matter

Equity is a multi-faceted subject, an authentic crossroads of problems. The study of equity is especially justified from a legal-philosophical perspective, but not only from the said perspective. Equity is an issue that should be studied just as much in the realm of legal theory, as it should be in the field of justice theory (we should not forget that equity deals with a type of justice), in the history of law (regarding the subject of equity throughout time and the dynamic study of different historical types of equity), or in comparative law (the treatment of equity in space, which is to say, in the major legal systems

of different countries. Of particular importance regarding this topic is the concept of Anglo-Saxon equity).

In this sense it is also of value in studying topics dealing with general legal theory, such as the distinction between equity and similar figures with which equity is normally related; or equity in the different branches of the Spanish legal order, amongst, of particular interest, for their special importance, are civil law and international law. Ultimately, the issue concerns other types of problems, such as the function of equity, or the architects of equity—not only the judge, but also the legislator, or the individual, amongst others. Thus, a concept of equity emerges—with the stipulation that we are not faced with a univocal notion, but rather with a multi-faceted idea, of much depth—and the most relevant content, limits, and classifications of the phenomenon of equity will be studied.

The perspective of this study is, as a result, a mix of focuses which includes: the philosophy of law, general legal theory (within the theory of legal arguments), justice theory, the history of law, comparative law, legal dogma, and so on. This interdisciplinary approach—which tries to organically coordinate different perspectives in an orderly fashion, overcoming a mere multidisciplinary juxtaposition of focuses—seems especially appropriate when analyzing equity.⁵

We point out here that this study can be read both vertically and horizontally. The vertical, or conventional, reading would be that which derives from the table of contents itself. In other words, the reading that results from analyzing the different topics and which, while involved in this analysis, also takes note of the three planes: the factual plane, the normative plane, and the values plane. The horizontal reading of the study would be that which would result from analyzing each one of the three aforementioned planes and, within the confines of the planes, analyzing the study's different themes. For instance, going by a horizontal reading of equity, within the factual plane we would examine equity's form in time (the Aristotelian "*epieikeia*"), in space (Anglo-American equity), its function (applicative, interpretive, and integrative), the subject who applies it, related concepts, and the like. The same could be done separately with the normative plane and the values plane. If we had chosen to have the table of contents follow what we now refer to as a horizontal reading, the focus would perhaps have been more forced. Thus, in our minds, the correct approach would be to leave open the possibility for a horizontal reading, not as a limit or a rigid mold, but rather as a systematic possibility that could be useful to the potential reader.

5 Cf. on the subject, JOSÉ ITURMENDI MORALES: "Presentación" to MICHEL VAN DE KERCHOVE - FRANÇOIS OST: *El sistema jurídico entre orden y desorden*. Madrid. Servicio de Publicaciones. Facultad de Derecho. Universidad Complutense de Madrid. 1997. Translated into Spanish by ISABEL HOYO SIERRA, pp. 11-33, esp. pp. 14 -15.

Much ink has already been spilt about equity as the topic of various studies.⁶ What's more, much of the literature on the subject can be found in the form of books and monographs, as opposed to other related subjects, such as the analogical argument in law, which are mostly written about in scattered articles found in specialized journals. To give one a better idea of previous studies of equity, we need look no further than two particular thinkers and jurists: JOSÉ

- 6 Cf. on the subject, N. VERHEYDEN-JEANMART: *Le souci d'équité et le droit*. Centre des Facultés Universitaires Catholiques pour le Recyclage en Droit. 1981; FRANCISCO PUY MUÑOZ: "Equidad", in *Gran Enciclopedia Rialp*, 8, pp. 708-710; VIAZZI: "Contributo alla determinazione del concetto di equità", in *Filangieri*, 1905; "Equità", in *Enciclopedia Giuridica Italiana*, V, II, 1906, pp. 29 ff.; "L'equità nella filosofia, nella storia e nella pratica del Diritto"; FERNANDO M. VIDAL: "De si es necesario o conveniente establecer el principio de equidad", in *Primer Congreso Jurídico Nacional (Trabajos y acuerdos)*. La Habana. 1918; RODOLFO VIGO: "La interpretación jurídica en Michel Villey", in *Anuario de Filosofía Jurídica y Social*, 1989, 9, pp. 171-194; JOSÉ LUIS VILLAR PALASÍ: *La interpretación y los apogemas jurídico-lógicos*. Madrid. Tecnos. 1975; CHARLES VINER: *General Abridgment of Law & Equity*. Aldershot. Worrall. 1746-1753; WILLIAM F. WALSH: *A Treatise on Equity*. Chicago. Callaghan and Co. 1930; E. WALTHER - W.G. WALSTER - E. BERSCHIED: *Equity: Theory and Research*. Boston. Allyn and Bacon. 1978; MARSHALL WOLFE: "The Prospect for Equity", in *CEPAL Review*, 44, 1991, pp. 21-34; H. PEYTON YOUNG: *Equity: in Theory and Practice*. Princeton. Princeton University Press. 1994; VARANO: "Aequità (Teoria generale)", in *Enciclopedia Giuridica Treccani*, XII. Torino. 1989, pp. 4 ff.; C. VATTIER: "Reapertura del debate en torno a la equidad", in *Documentación jurídica*, 7 and 8, July-December, 1975; ALBERT VAN OMMESLAGHE: "Le droit et l'équité", in *Journal des Tribunaux*, 4601, 1968, p. 37; JESÚS VALLEJO: *Ruda equidad, ley consumada: concepción de la potestad normativa (1250-1350)*. Madrid. Centro de Estudios Constitucionales. 1992; JUAN BERCHMANS VALLET DE GOYTISOLO: "Equidad y buena razón según el jurista gerundense del siglo XV Tomas Mieres", in *Anuario de Derecho Civil. Instituto Nacional de Estudios Jurídicos*. 1977, pp. 3 ff.; Id, *Metodología de la determinación del Derecho*. II. (Parte Sistemática). Madrid. Centro de Estudios Ramón Areces, 1996; Id, *La interpretación según el Título Preliminar del Código Civil, discurso leído en la sesión inaugural del curso académico 1996-1997*. Madrid. Real Academia de Jurisprudencia y Legislación. 1996; CARLOS ALBERTO URDANETA SANDOVAL: "Some Critical Considerations Regarding the Function of the Equity in the Law", in *Fronesis: Revista de Filosofía Jurídica, Social y Política*, 3, 1, 1996, pp. 49-69; ANDRÉ TUNC: "L'équité", in *Encyclopédie Universalis*, 1984, IV, pp. 601 ff.; Id, "Aux frontières du droit et du non-droit: l'équité", in *Jalons; dits et écrits d'André Tunc*. Société de Législation Comparée. 1991. And in *L'Hypothèse du non-Droit*. Liège. 1977, pp. 281-298; JEAN-MARC TRIGEAUD: "Aux limites du droit l'ontologie de l'équité", in *McGill Law Journal*, Montreal, McGill University, 34, 1989; Id, "équité", in *Les mots de la Philosophie*. Paris. Presses Universitaires de France. 1990; LUIGI TRIPICCIONE: "L'equità nel Diritto", in *Rivista Internazionale di Filosofia del Diritto*, 1925. Anno V, pp. 24-48; ANDRÉS OLLERO TASSARA: "Equidad, Derecho, ley", in *Anales de la Cátedra Francisco Suárez*. Universidad de Granada. 13, 2, 1973, pp. 163-178.

CASTÁN TOBEÑAS (in Spain)⁷ and FRANCESCO D'AGOSTINO (in Italy),⁸ each of whom has dedicated various books to the subject.

- 7 Cf. JOSÉ CASTÁN TOBEÑAS: "Orientaciones modernas en materia de fuentes del Derecho privado positivo", lecture delivered in the *Academia General de Jurisprudencia y Legislación* March the 7th 1936, and published in the *Libro-homenaje al profesor D. Felipe Clemente de Diego*. Madrid. 1940. Id, *Teoría de la aplicación e investigación del Derecho. (Metodología y técnica operatoria en Derecho privado positivo)*. Madrid. Reus. 1947. Id, *La idea de equidad en las letras españolas: discurso leído el día 23 de mayo de 1949 en su recepción pública por J. Castán Tobeñas y contestación de José Gascón y Marín*. Madrid. Real Academia de Jurisprudencia y Legislación. 1949. Id, *La equidad y sus tipos históricos en la cultura occidental europea. Discurso leído en el acto de recepción como académico de número en la Real Academia de Ciencias Morales y Políticas. Contestación de Eloy Montero Gutiérrez*. Madrid. Reus. 1950. Id, *La idea de equidad y su relación con otras ideas, morales y jurídicas, afines. Discurso leído en la solemne apertura de los tribunales celebrada el 15 de septiembre de 1950*. Madrid. Instituto Editorial Reus. 1950. In *Revista General de Legislación y Jurisprudencia*, 1950, 2nd semester. Id, *Poder judicial e independencia judicial*. Madrid. 1951; also in *Revista General de Legislación y jurisprudencia*, September 1951. Id, *La formulación judicial del Derecho: (jurisprudencia y arbitrio de equidad)*. Madrid. Reus. 1954. Id, "La formulación judicial del Derecho y el arbitrio de equidad. Discurso en la apertura de los tribunales del año 1953", in *Revista General de Legislación y Jurisprudencia*, 101, 1953, pp. 404 ff.
- 8 Cf. FRANCESCO D'AGOSTINO: "La dottrina dell'epicheia nel pensiero di S. Alberto Magno", in *Rivista Internazionale di Filosofia del Diritto*, 46, 1969, pp. 120-137. Id, "Un contributo alla storia dell'idea di equità: Jehan de Gerson e la lotta per il Concilio", in *Angelicum*, 48, 1971, pp. 448-489. Id, "Lex indita e lex scripta. La dottrina della legge divina positiva (lex nova) secondo S. Tommaso d'Aquino", in *Atti del Congresso Internazionale di Diritto Canonico "La Chiesa dopo il Concilio"*. Milano. 1972. II/1, pp. 403-415. Id, "Sulla fenomenologia della giustizia. Un parallelo tra Kierkegaard e Platone", in *Rivista Internazionale di Filosofia del Diritto*, 49, 1972, pp. 153-172. Id, *Epieikeia: il tema dell'equità nell'antichità greca*. Milano. Giuffrè. 1973. Id, "Appunti per una teoria dell'epikeia". Inedited. Partially reproduced in "Il tema dell'epikeia nella Sacra Scrittura", in *Rivista di Teologia Morale*, 5, 1973, pp. 385-406. Id, "L'equità come limite trascendentale del diritto", in *Rivista Internazionale di Filosofia del Diritto*, 51, 1974, pp. 413-433. Id, "È censurabile la motivazione delle sentenze d'equità". Also in *Foro Italiano*, 99, 1974, pp. 2760-2764. Id, "Equità e giustizia in una recente esperienza congressuale", in *Rivista Internazionale di Filosofia del Diritto*, 51, 1974, pp. 119-128. Review in *Rivista Trimestrale di Diritto Pubblico*, 1975, pp. 928-933. Id, "Equità e remissione dei peccati in Martin Lutero", in *Rivista Internazionale di Filosofia del Diritto*, 52, 1975, pp. 217-144. Id, "Situazione e libertà". Also with the title "L'etica della situazione", in *Nuova Antologia*, 2089, 1975, pp. 117-125. Id, *La tradizione dell'epieikeia nel medioevo latino: un contributo alla storia dell'idea di equità*. Milano. Giuffrè. 1976. Id, "Tra diritto e politica. In margine al Convegno leccese sull'equità". Cf. also FRANCESCO D'AGOSTINO (comp.): *Materiali sul neocontrattualismo*. Milano. Jaca Book. 1988.

Considering the broad range of literature about the subject that already exists in all languages, the doubt may arise that returning to the concept of equity, after all that has been recently written about the topic, would be, as it seems at first glance, superfluous. This is not the case, however, because, in the philosophical discipline, it can be said that the best studies are not those that resolve problems, but rather those that pose problems (thus reaffirming the perennial nature of philosophy)⁹ as the formal purpose or perspective of the study. Moreover, we are dealing with an inexhaustible subject, regarding which some very recent studies have been dedicated. We need look no further than to the work of JOHN RAWLS, who taught at Harvard University, which has received world-wide recognition not only in the Anglo-Saxon realm, but also in many other contexts, having been translated into various languages.¹⁰ Although the

- 9 Cf. ORAZIO CONDORELLI: "Lequità", in ORAZIO CONDORELLI: *Scritti sul diritto e sullo stato*. Milano. 1970, pp. 247-256. Also in *Rassegna Giudiziaria*, I, Catania, 1930.
- 10 JOHN RAWLS: *Justicia como equidad. Materiales para una teoría de la justicia*. Translation and Foreword by MIGUEL ÁNGEL RODILLA. 2nd ed. Madrid. Tecnos. 1999. Id, *La giustizia come equità: saggi 1951-1969*. A cura di GIAMPAOLO FERRANTI. Napoli. Liguori. 1995. A shorter versión was presented to the *American Philosophical Association. Eastern Division*, in December 1957, and published in the *Journal of Philosophy*, 54, 1957, pp. 653-662. Id, *Teoría de la Justicia*. There is a Spanish translation by MARÍA DOLORES GONZÁLEZ SOLER. 2nd reprint of the ed. of 1979. Madrid. Fondo de Cultura Económica. 1993. Cf. also, recently, JOHN RAWLS: *La justicia como equidad. Una reformulación*. Edited by ERIN KELLY. Barcelona. Paidós. 2002; Cf. in the Anglo-Saxon realm, also on the topic, RALPH ABRAHAM NEWMAN: *Equity and Law: A Comparative Study*. New York. Oceana Publications. 1961. Review by VITTORIO FROSINI, in *Rivista Internazionale di Filosofia del Diritto*, 1963, pp. 627-629; and by P. BONASSIES, in *Rev. Int. de Dr. Comp.* 4, 1962., pp. 822 ff.; Id, "Some Suggestions for a Course in Comparative Equity", in *Journal of Leg. Ed.*, 14, 1962, pp. 343 ff.; Id, *The Role of Equity in the Harmonization of Legal Systems*. s.l. 1963; Id, "La funzione della pura equità nel diritto moderno", in *Rivista Internazionale di Filosofia del Diritto*, 1963, pp. 647-654. There is an Italian translation by GIORGIO DEL VECCHIO, "The Place and Function of Pure Equity in the Structure of Law", in *The Hastings Law Journal*, 16, 1965, pp. 62 ff.; Id, "The Hidden Equity, an Analysis of the Moral Content of the Principles of Equity", in *The Hastings Law Journal*, 19, 1967, pp. 147-178; Id, "Equity and Law", in *Anales de la Cátedra Francisco Suárez*, 7-8, 1967-68; Id, "I due livelli della moralità nel diritto", in *Rivista Internazionale di Filosofia del Diritto*, I, 1968; Id, "Equity in Comparative Law", in *International & Comparative Law Quarterly*, 17, 1968, pp. 807 ff.; Id, "The Nature and Function of Equity in the Law of United States", in J. HAZARD - W. WAGNER (eds.): *Legal Thought in the United States of America under Contemporary Pressures*. Bruxelles. 1970, pp. 81-110; Id, "Derecho, moralidad y equidad", in *Ciencia Jurídica (Aspectos de su problemática iusfilosófica y científico-positiva actual)*. Simposio. Directed by ERNESTO EDUARDO BORG. Ed. Instituto de Filosofía del Derecho y Sociología. Facultad de Ciencias Jurídicas y Sociales de la Universidad Nacional de La Plata. 1970, II, pp. 3

topic of equity has been dealt with in almost all legal branches, as much in public law as in private law, of particular note on the subject are the philosophical studies (done by the scholars of legal philosophy). This is not to say, however, that those studies which focus more on the analysis of positive law are not worthwhile. But it is terms like “free law,” “natural law,” “just law,” or “ideal law,” that are the typical expressions used by legal philosophers.¹¹

This is the case because, no matter which side you agree with, there is no doubt that, if one looks beyond positivism and formalism, which were dominant in other times, it is evident that, besides pre-established law, formulated beforehand (ordained law), emanating from formal sources (mainly law and custom), there exists an unformulated law—call it natural law (as it is referred to in its classical Hispanic conception), discretionary law, non-official law, live law, social law, intuitive law, free law, of scientific law, as you will. This natural law is fundamentally characterized as being a type of extralegal law, which emerges from considerations separate from the official formal sources of law.¹²

Why, then, is it necessary to study the concept of equity? Equity is indispensable in the legal world because men and laws are fallible. If man were perfect, laws would not be necessary. If all laws were perfect, we would not need to turn to equity. Laws correct the errors of man. Equity corrects the errors of the law.¹³

Equity, just like justice, is a concept that enjoys prestige, but whose limits are not clearly defined. Scholars who deal with equity do so mainly in the context of equity’s relationship with law. Nonetheless, they consider equity’s highest function as that of playing a supplementary role to the legal norm, concerning which one must employ an endless amount of care. In fact, there is truth to the saying that a judge must “judge according to the law,” but not “judge the law.”¹⁴

ff.; Id, *The Unity of the Strict Law: a Comparative Study Dedicated to the Memory of Jean Dabin*. Brussels. Emile Bruylant. 1978; Id, “The General Principles of Equity”, in R. A. NEWMAN (ed.): *Equity in the World’s Legal Systems. A Comparative Study*. Hastings College of Law of the University of California. Bellagio, August 1972. Brussels. Établissements Émile Bruylant. 1973, pp. 589-649.

- 11 SALVATORE ROMANO: “Equità. Principio di equità (dir. priv.)”, in *Enciclopedia del Diritto*. XV. Milano. Giuffrè. 1966, pp. 83-107, esp. pp. 83-87. Id, “Principi di equità”, in SALVATORE ROMANO: *Scritti Minori*. III. Milano. 1980, pp. 1157-1210.
- 12 ARTURO GALLARDO RUEDA: “Equidad”, in *Nueva Enciclopedia Jurídica*. F. Seix Editor. VIII, p. 633.
- 13 MAGDI SAMI ZAKI: “Vocabulaire fondamental du droit. Équité”, in *Archives de Philosophie du Droit*, 35, 1990, p. 87.
- 14 PAUL ALAIN FORIERS: *Reflexions sur l’équité et la motivation des jugements*. Bruxelles. Bruylant. 1956. Also in PAUL ALAIN FORIERS: *La Pensée Juridique*. I. Bruxelles. 1982, pp. 225-242. And in *Revue Critique de Jurisprudence Belge*, 1956, p. 87. FRANCESCO D’AGOSTINO: *Dimensioni dell’equità*. Torino. Giappichelli. 1977, p. 191.

Regarding this idea, amongst others, we return to the subject of the function of equity, and to the debate about whether or not we can speak of an authentic creation of law in relation to equity. From this idea also arises the title of this work: "Equity and Law."

Chapter 2

Equity and “Time”. A Dynamic Study of the Different Types of Equity Throughout History

The idea of equity has revealed itself in many diverse guises throughout different periods of history. The temporal, chronological, or, should one prefer, the historical element, bears a special relevance as regards the concept of equity. If historical study, aimed at examining the evolution of an idea through time, always proves enriching, in the case of equity, something more than this occurs, making of the historical an indispensable, methodological approach. Thus, one might mark out a series of stages in the evolution of the idea: 1. – The Greek “*epieikeia*”—basically found in the conceptions of two of the most important philosophers of the time, PLATO and ARISTOTLE, as it is in one of the philosophical currents of their time, Stoicism—;¹ 2. – The Roman “*aequitas*”—in which, in turn, the idea underwent an important evolution, from what it had been in the classical period, to its later embodiment in Justinian law; 3. – Christian-Canonical “*aequitas*”; 4. – The equity of the Medieval Schools; 5. – The later unfolding of the concept. All these historical types of equity will be examined in detail in what follows.

In the main, it can be affirmed that, if in times of general, social stability direct recourse to equity tends to be hardly necessary, contrariwise, its function becomes most apparent in moments of crisis in the life of peoples or when—as while treating of law at its formation—gaps in the legal system are more abundant. On the other hand, it can be clearly seen that equity takes on an outstanding role in those cases where it would have proved impossible, or highly unjust, to rigorously apply the legal norm. Instances of this are where great disasters have overtaken certain countries, as occurred with many as a consequence of the two World Wars.²

While it is always difficult to carry out a classification of the distinct phases or different moments in the historical evolution of a specific legal concept, it has seemed right to us –and also since the conventional divisions

- 1 Cf. STEUDING: “*Epieikeia*”, in *Lexicon der griechischen und römischen Mythologie*. Leipzig. 1884. I. I, p. 1283; PAULUS STOFFELS: *Billijkheid in het oud-Griekse Recht*. Amsterdam. Academisch Proefschrift. 1954.
- 2 JOSÉ CASTÁN TOBEÑAS: *La formulación judicial del Derecho*, *op. cit.*, pp. 73-75. FRANCESCO D’AGOSTINO: *La tradizione dell’epieikeia nel Medioevo latino*, *op. cit.*, p. 3.

which follow are quite generally accepted in the field—to analyze the historical concepts or meanings of equity which we point out below.

1. Factual Plane: The Greek “*Epieikeia*,” as “Justice of a Specific Case,” with a Singularizing or Individualizing Function

It is very common to define equity as the “justice of a specific case.”³ This definition goes back to the Scholastics, who thus paraphrased a celebrated passage in ARISTOTLE’s *Nichomachean Ethics*. For FROSINI, this vision is a deformed vision of the Aristotelian concept. According to FROSINI, it remains unthinkable that a man of ARISTOTLE’s intellectual stature should have come up with that phrase. This is because, FROSINI goes on, if equity is the justice of a specific case, in what would justice *tout court* consist? Is it at all possible to be able to speak of any justice in an abstract case? For the Italian writer, that would be absurd. Justice is a practice and is only embodied in action. It finds no place at all outside the concrete case. What ARISTOTLE meant, according to FROSINI’s interpretation, is that equity is the law –and not the justice—of the concrete case, a non-written law, as against the written law, as that is normally conceived. Equity as non-written law would come close to Anglo-Saxon law, which is a law of legal precedents and of customs, or it would come close to Islamic law, which –although in theory it should be contained in its entirety in sacred texts, more specifically in the *Koran*—in effect is mainly found beyond that, dispersed throughout various traditions. However, what often happens is that the non-written law can be very rigid. This is what took place with English “*common law*”. Therefore, by equity, as “justice in a specific case”, we must understand more than a non-written law, we should understand a law of a casuistic nature, with a singularizing and individualizing function, seeking out a “species”, not a “generic”, solution.⁴

Nevertheless, it is fitting to make some distinction here. That the equitable solution should be that which is abided by, or subject to, the concrete case being treated of, does not necessarily mean nor imply that the equity judgment, in the first meaning of the term, might be more benign—understanding by “benignity”, humanity, mercy or benevolence—as we shall see occur with Roman-Justinian and Christian-Canonic equity. It does mean that the judge in Greece, when adapting himself to the concrete case, could resolve it as much with benignity as with severity, for good or evil, in a less or in a more rigorous fashion. From this it follows that the Greek concept of equity, understood as “*epieikeia*”;⁵ or, should one prefer, as singularized or individualized justice –the justice of a specific case, in brief—would be a

3 Cf., for instance, P. NOGUER: “Una justicia ‘sui generis’: la ‘epiqueya’”, in *Razón y Fe*, XCIX, 427, August 1932.

4 MAGDI SAMI ZAKI: “Définir l’équité”, *cit.*, note 5.

5 Cf. THOMAS ASHE: *Epieikeia*. London. Société of the Stationers. 1689.

"formal" theory of equity, one which does not enter into substantive or "material" matters, into the content which is to be given to a specific legal norm, one more benign, less rigorous, than the literal tenor of that norm. This is, perhaps, the meaning of the Greek interpretation of "*epieikeia*", that it does not lead in the direction of any material content whatever: sometimes, justice in a specific case—maybe in the majority of cases—is more benign, but that does not prevent it, at other times, from being less benign, stricter.⁶

The just, in its normal sense, expresses rectitude in a general, schematic, and rational fashion, it is the way in which laws are made. Equity, on the other hand, expresses the just in its specific, spontaneous, complete and living reality. Strictly, equity does not go against the law, against the legally just. It neither judges the law nor modifies it. It only judges the specific case, marginal with respect to the law. Equity does not indicate any defect in the law for the specific case. It limits itself to throwing into relief a limit to the law's field of application, pointing out that the specific case in need of judgment does not fall within the law's field of application. Hence, then, equity does not mitigate the rigour of the law, for, in a strict sense, such does not apply to it. What it does is to prevent someone from being rigorously and unjustly treated when the law is applied to that person in an overly strict and general manner, when the case falls outside what is generically foreseen for such a case.⁷

1.1. Etymology of the Term. Genre and Type

The word "equity" is an ambiguous term. In common parlance, it means equality, tranquility, fortitude, benignity, justice, moderation, flexibility. To this multitude of generic meanings, it is necessary to add another variety of technical meanings in the legal sphere, amongst which it is useful to underline those referred to below.⁸

In Greek, especially in the works of ARISTOTLE, the term designating equity is "*epieikeia*", so here, while tracing the etymology of the word "equity" we come to speak of equity in the Greece of ARISTOTLE, it is to this "*epieikeia*" that we shall refer.⁹ With respect to this, a series of considerations might be noted. For one thing, the original term "*epieikeia*" was not substituted by an equivalent Latin term. The Medieval Latin spelling of the word has always been uncertain: from "*epiikia*" to "*epieykeya*", from "*epyieikia*" to

6 AGUSTÍN SQUELLA NARDUCCI - ABEL GONZÁLEZ ROJAS: *Dos concepciones de la equidad*. Valparaíso. EDEVAL. 1981, p. 35.

7 FRANCISCO PUY MUÑOZ: "Equidad", in *Gran Enciclopedia Rialp*, 8, p. 709.

8 Cf. PAN J. ZEPOS: "Equity in Greek Law", in R. A. NEWMAN (ed.): *Equity in the World's Legal Systems*, op. cit., pp. 433-443.

9 Cf. PAOLO PINNA PARGAGLIA: *Aequitas romana ed epiqueya aristotelica nella dottrina romanistica*. Sassari. 1969.

“*epyieikya*”. Today, German speaks of “*epikie*”, English of “*epikeia*”, French of “*épikie*”, Italian of “*epicheia*”—though some prefer to talk of “*epikeia*—, and Spanish of “*epiqueya*”, in order to designate what, in Greece, was known as “*epieikeia*”.

In any case, the fact that the term “*epieikeia*” has not been substituted by any Latin term is significant since it shows the difficulty of any translation. Thus, we might note that ROBERTO GROSSATESTA—author of the Latin version of the *Nichomachean Ethics*, used by ALBERTUS MAGNUS and THOMAS AQUINAS, left untranslated, though Latinized, ARISTOTLE’s most technical terms, or those terms with the most diffuse meanings. This is true of such words as “*gnome*”, “*synesis*”, “*ironia*” (more properly “*eironeia*”) together with “*epieikeia*”. However, he translated with appropriate words “*frònesis*” (“*prudentia*”), “*eleutheriotes*” (“*liberalitas*”), “*dikaiosyne*” (“*iustitia*”), “*filia*” (“*amicitia*”), to cite but some examples.¹⁰

For another thing, it proves interesting to underline the fact that the Greek term “*epieikeia*” never disappeared, nor did it remain unused, vis-à-vis that other word—very close to it, and almost coinciding with it—“equity”. Thus, ALBERTUS MAGNUS never identified “*epieikeia*” with “equity”, nor did he translate the first word by the second,¹¹ although already clearly in the *Summa Theologiae*, his pupil, THOMAS AQUINAS, affirmed: “*epieikeia... apud nos dicitur aequitas*”.¹² Working along similar Aquinean lines, we might also situate FRANCISCO SUÁREZ, in his *De Legibus et Legislatore Deo*,¹³ together with various modern authors.¹⁴ Nevertheless, a great many current scholars do distinguish between the two notions.¹⁵

The root from which the Greek word “*epieikeia*” comes is “*eikòs*”, which means what one adds to a thing, and corresponds to the thing’s inmost na-

10 FRANCESCO D’AGOSTINO: “La dottrina dell’epicheia nel pensiero di S. Alberto Magno”, *cit.* pp. 120-137, the quote in p. 120.

11 FRANCESCO D’AGOSTINO: *La tradizione...*, *op. cit.*, p. 56.

12 THOMAS AQUINAS: *Summa Theologiae*, IIa-IIae, q. 120, art. I c.

13 FRANCISCO SUÁREZ: *De Legibus et Legislatore Deo*, VI, 6, 5: “*Posuit Aristoteles specialem virtutem, seu partem iustitiae, quam epieikeiam appellavit et a multis Latinis vocatur aequitas*”. Cf. also, of the same work, the Book I, 2, 10. Also HUGO GROCIUS: *De Iure Belli ac Pacis*, II, 16 and 26.

14 Thus, VITTORIO FROSINI: “Equità. Nozione di equità”, in *Enciclopedia del Diritto*, XV. Milano. Giuffrè. 1966, pp. 69-83, esp. p. 69.

15 E. HAMEL: “La vertu d’épikie”, in *Sciences Ecclésiastiques*, 13, 1961, pp. 35-56, esp. p. 40, n. 21. Id., “Fontes graeci doctrinae de epikeia”, in *Periodica de Re Morali, Canonica, Liturgica*, 53, 1964, pp. 169-185. Id., “L’usage de l’épikie”, in *Studia Moralia, de la Accademia Alfonsiana*, 3, 1965, pp. 48-81. Id., “Epicheia”, in *Dizionario Enciclopedico di Teologia Morale*, Roma, 1974, pp. 357-365. Also J. GIERS: “Epikie und Sittlichkeit. Gestalt und Gestaltwandel einer Tugend”, in *Der Mensch unter Gottes Anruf und Ordnung. Festgabe Müncker*. Düsseldorf. 1958, pp. 51-67, esp. p. 54.

ture.¹⁶ If we conduct an etymological study of the word "*epieikeia*", we see that all terms composed of that same root "*epieikes*" signify that which is reasonable, moderate, as opposed to the strict application of the law.¹⁷ HOMER, as much in the *Iliad*, as in the *Odyssey*, uses the term "*epieikeia*" in the sense of the appropriate, the fitting. HERODOTUS uses it in the sense of the specifically just, as opposed to abstract justice. SOPHOCLES, HESIOD, and philosophers like DEMOCRITUS, HIPPOCRATES, PLATO and ARISTOTLE (who will be treated of separately later), the orators ISOCRATES, LYSIAS and DEMOSTHENES, together with the Sophist GORGIAS and the historian THUCYDIDES, all employ the Greek word "*epieikeia*" in this manner.¹⁸

1.2. Principal Doctrinal Stances

1.2.1. Plato and Equity in the Negative Sense, as a Substitute for the Politically Just Man

In Greek philosophy, equity was the "correction of the generic law to suit the specific case", the adaptation of the law to the singularities of the case. This meaning of equity, as the "justice of a specific case", corresponds to the Greek term "*epiqueya*" ("*epieikeia*") and is shown in the thought of PLATO and, especially, in that of ARISTOTLE.

In the idea of equity in PLATO, an evolution may be seen. Thus, at first, in the *Republic* and the *Statesman*, he considers that, above the laws, in the forefront of public affairs, there would be the statesman, wise and honest. The reason for his superiority would be that, while the laws must necessarily remain on an abstract and general plane, where peculiarities of the specific case cannot be taken into account, the statesman, gifted with prudence and wisdom, can indeed appreciate what ought to be done in each specific case.

Over against this, later, in the *Laws*, when faced with the difficulty of finding the wise and upright statesman, PLATO awarded sovereignty to the laws, to which even the statesman must submit. However, laws are not the ideal system. The ideal continues to be the wise, prudent statesman. Laws are but a substitute and must be —insofar as possible— the more general, the better. For PLATO, in this second stage of thought, general ideas are what is important, the individual is only a limitation upon them. Hence, equity, in this scheme, would be considered a "deviation, an exception, or a weakness",

16 CARLO FADDA: *L'equità e il metodo nei giureconsulti romani*. Macerata. Bianchini. 1881, p. 20.

17 PREISKER: "Epieikeia-epieikés", in *Grande Lessico del Nuovo Testamento*, Italian translation, Brescia. 1967, p. 705.

18 MAX RADIN: "Early Greek Concepts of Equity", in *Mnemosyna Pappoulia*. Athenai. 1934, pp. 213-220.

a detour from the track of general justice. Equity, for this thinker, then comes with a negative emotive charge.

In PLATO, the subject of equity is related to the imperfection in the laws and in the art of politics. As noted, in theory, the best governor for this Greek philosopher and thinker would be an all-powerful and wise King whose authority would, in principle, be above that of the law. Still, in practice, the existence of such a governor is highly improbable, further, governors would be loathe to recognize this, and a power like theirs would be dangerous, since human nature is corruptible –as the old adage has it, if all power corrupts, absolute power corrupts absolutely. From hence, in what we might call his “second stage”, as regards equity, PLATO considered the rule of law to be preferable, it being respect for law, in the final analysis, which allows us, in most cases, to distinguish legitimate regimes from those which are not. Thus, the rule of law, though absurd and unnecessary in any state governed by the ideal statesman, nevertheless becomes the best political solution in concrete reality, by preventing the community’s running the risk of falling beneath the sway of incompetent tyrants. According to PLATO, laws are limits to the principles which the ideal governor would adopt, even so, within their limitations, they must be respected with an absolute rigour. Every deviation or exception, for reasons of “equity”, must be considered a weakness. The word itself comes accompanied with a pejorative emotional charge.¹⁹

The Platonic critique of law’s imperfection reveals three basic characteristic notes. These will allow us to counterpose the Aristotelian theory concerning the same:²⁰

- a) First, PLATO’s theory rests on a “monarchic” model, with a statesman who exercises authority which most of us today would consider despotic and tyrannical, closely resembling the ancient authority of the father of a family over the members of his household.
- b) Second, this Platonic Prince has his wisdom rest rather on a “speculative, intellectual, and intuitive” knowledge, than on anything “practical” (“*sôphrosinê*”).
- c) Finally, for PLATO, in reality, the law does not recognize exceptions, in the majority of cases, and the magistrates have no right to let their judgments prevail over legal norms.

1.2.2. Aristotle and Equity in the Positive Sense, as a Just Medium

It is, however, unquestionable that the final and (now) accepted definition of “*epieikeia*” does not belong to PLATO, but rather to his disciple, ARISTO-

19 F. D’AGOSTINO: *Epieikeia...*, *op. cit.*, pp. 51-63, esp. pp. 55-57.

20 THIERRY LAMBERT *et al.*: *Egalité et équité: Antagonisme ou complémentarité?* Paris. Economica. 1999, pp. 4-5.

TLE.²¹ In the *Nichomachean Ethics*, there are two chapters –besides passing references in other works, like the *Topics* or the *Rhetoric* (I, 1374 a-b)—where the Aristotelian theory of "*epieikeia*" is adumbrated. One comes in Chapter 5, Book X, 6. The other is in Chapter 10 of Book V, 8.²² When compared to PLATO, ARISTOTLE expounds a very different theory of equity.²³

One prime distinctive characteristic of equity in ARISTOTLE, unlike PLATO, is that equity does not appear as a deviation or exception to the law, rather, it is a "correction" of it, with a positive emotional charge. In the *Nichomachean Ethics*, ARISTOTLE says that the stones to build the walls of Lesbos are all unequal. Not for that reason can we measure whether the rule is not flexible. It is not the stones which should adapt themselves to the rule, rather, the rule should adapt to the stones. For ARISTOTLE, then, the law is just, but equity is still "more just", in the sense that it goes beyond the law, since it includes specific cases, a thing the law cannot do. While, for PLATO, equity "deviates from the law", for ARISTOTLE, equity is an expression of a "more profound and authentic" law than standard law, the which it corrects and completes.²⁴

On the other hand, it should be noted that, in the presentation ARISTOTLE makes of equity, the implicit political model is less that of the "governor" and more that of the "judge". Faced with PLATO's statesman—who could change the laws given by himself at any moment, based upon his own idea of justice—Aristotelian equity only suggests supplementing the insufficiencies of the law, though always being guided by it, and seeking to find what the historic legislator, who created the law, would have wanted were he present at the moment of applying the law, that is, had he known of the case in ques-

21 Cf. VITTORIO FROSINI: "Equità (nozione)", in *Enciclopedia del Diritto*, XV, pp. 69-72. ARISTOTLE: *Ética a Nicómaco*. Translation into Spanish by M. ARAUJO and J. MARÍAS. Madrid. Instituto de Estudios Políticos. 1970. Also in Madrid. Aguilar. 1986. Id, *Politica*. III., in ARISTOTLE, *Obras*, Translation, Preface and notes by FRANCISCO DE P. SAMARANCH. Madrid. Aguilar. 1986; P. TRUDE: *Der Begriff der Gerechtigkeit in der aristotelischen Rechts-und Staatsphilosophie*. Berlin. 1955; JOHN TRIANTAPHYLLOPOULOS: "Aristotle's Equity", in A. MORDECHAI RABELLO (ed.): *Aequitas and Equity...*, *op. cit.*, pp. 12-23; Id, "Aristotle's Equity and the Doctrine of the Mean", in *Syllecta Classica*, 1, 1989, pp. 49-53.

22 ARISTOTLE: *Retórica*. Translation into Spanish by ANTONIO TOVAR. Madrid. Instituto de Estudios Políticos. 1971; Cf. also MANUEL NUÑEZ ENCABO: "La equidad en relación con la justicia y el Derecho. Un estudio de la epiqueya aristotélica desde sus fuentes", in *Revista de Filosofía del Derecho de la Universidad Complutense*, 1972, XVI, 45.

23 F. D'AGOSTINO: *La tradizione dell'epieikeia...*, *op. cit.*, pp. 33-34. Cf. SPIRO PANAGIOTU (ed.): *Justice, Law and Method in Plato and Aristotle*. Edmonton Academic, 1987.

24 A. HORTELANO ALCÁZAR: "Epiqueya", in *GER*, *op. cit.*, pp. 697-698.

tion. Equity, then, does not prevent the law from remaining “irreproachable”, and it has its place in the “normal” ordering of the city.

Insofar as the intellectual virtue which equity provides is concerned, it is rather found in the “prudence” and “art” of judging, at that site where PLATO’s *Statesman* had placed speculative and intellectual knowledge. Hence, in ARISTOTLE, the “argumentative arts”, like rhetoric and dialectic, take on an important role in the “judging profession” and in the use of equity. Nevertheless, the judge must not take the place of the legislator, rather he must act as interpreter of what the said legislator would have wished if he had known of the specific case to which the law must be applied, at the time of actually making that law. This subordinate position of the judge is based on the fact that he is not invested with the power to dictate laws. He is only empowered to apply them in specific cases in litigation, his is the power to “re-establish legality”, via “corrective” justice, though without having any competency in “distributive” justice, for that corresponds to the governor.²⁵

Another difference between Platonic and Aristotelian ideas of equity is that, in ARISTOTLE, equity appears as a “virtue of man”, rather than as an expression of the superior statesman’s art of governing. For many, this is the true merit of ARISTOTLE. He had not only created the concept of “*epieikeia*” and, having done so, theoretically outlined it with the force and vigour with which it has been handed on to posterity, but, especially –and this as opposed to PLATO–, *he had understood such a concept as now not linked to a governor or to a political ideal, but rather linked to man himself*.²⁶

This same difference between the ideas of equity of PLATO and ARISTOTLE might be set out as the difference between the “technical” and the “ethical”, in “*epieikeia*”, being conceived—rather more than as having an applied, pragmatic function, in the service of the law—as a value or, should one prefer, as a “virtue”. One learns and may come to forget a technique, for instance, through lack of practice or exercise. Contrariwise, ethical knowledge cannot be learnt, nor taught, nor, still less, forgotten. A technique may be applied, when once possessed and mastered, but moral knowledge is something which cannot be “applied” for no-one possesses it *a priori*, that is, before its being specifically experienced. Certainly, in ethics, as in the technical, there exist models, images, to serve as guides. However, while the technical looks for reproduction with the greatest possible fidelity, in ethics models only serve to orient us, and must be viewed in the context of the specific situation. Hence, “*epieikeia*” may not be conceived on the technical model, as simply the application of a law to a specific case, rather, and especially, it must be seen as a moral virtue. The function of equity is, then, to come into being at a critical instance to prevent technique from forgetting the moral, in the application of the law.

25 TH. LAMBERT: *Égalité et équité...*, *op. cit.*, pp. 6-7.

26 F. D'AGOSTINO: *Epieikeia...*, *op. cit.*, pp. 65-97, esp. p. 72.

This does not, however, imply that ARISTOTLE—at least not in the *Nicomachean Ethics*—blends equity with a recourse to natural law. In effect, from his point of view, the appeal to non-written law, to natural law, is not essential. Natural, immutable and universal, law is more fitting for the Gods than for men, whose very nature is not immutable. It is here we find the famous example of the right hand—though by nature having more strength than the left, yet nothing prevents the strength of each from being reversed, through exercise. When ARISTOTLE speaks of natural law, he is rather referring to the “specific nature of things”, whose truth lies, for ARISTOTLE—as opposed to what PLATO thinks—, not in an ideal model, but rather in its coherence which comes to be perceived by the subject, via equity, at the very moment of the action’s taking place.²⁷ Positive law takes into consideration what happens in the majority of cases, but it cannot foresee all possibilities. That is why ARISTOTLE points out that it is necessary to use “*epieikeia*”. For him, this does not arise, as for PLATO, from the law’s mistakes, nor from the legislator’s fault, but from the very nature of things themselves.²⁸

The Aristotelian concept of “*epieikeia*”, in a moral sense, is embodied within the theory of “virtues” which ARISTOTLE calls ethics. In order to conceptually determine what each of the virtues consists in, ARISTOTLE introduces the famous idea of the “middle term” between two extremes or polar opposites, a just medium where the optimum is to be found, inherent in virtue. “For ARISTOTLE, the virtuous is always a middle term, a point equidistant from two extremes, both vicious. Thus, bravery (a virtue) is equidistant from the vicious extremes of cowardice, on the one side, and temerity, on the other. Similarly, liberality, which is also a virtue, is an intermediate point between the vices of prodigality and greed... Justice is in an intermediate position because it is proper to the mean, as opposed to injustice which is an extreme, and which consists in inflicting injustice or in suffering it.”²⁹

On the other hand, the notion of virtue is linked to that of “pleasure”. However, there exists a hierarchy of pleasures, intellectual pleasures being superior to sensual pleasures, for ARISTOTLE. As a conclusion to these observations, he considers that “*epieikeia*” would be “the pleasure obtained through virtuous activity”. For this thinker, out of all the ethical virtues, the most important is justice, which, in its most concrete and specific meaning, essentially consists in respect for equality and equity, as much in the distribution of public goods—distributive justice—as with regard to the rectifications necessary in private interchange—corrective justice.

27 F. D'AGOSTINO: *Dimensioni dell'equità*, *op. cit.*, pp. 72-76.

28 F. D'AGOSTINO: “La dottrina dell'*epieikeia* nel pensiero di S. Alberto Magno”, *cit.*, p. 121.

29 AGUSTÍN SQUELLA NARDUCCI: “La concepción de la equidad en Aristóteles”, in AGUSTÍN SQUELLA and ABEL GONZÁLEZ: *Dos concepciones de la equidad*, *op. cit.*, pp. 21-28, the quote in p. 22.

Justice and equity thus belong to the same genera, in one instance having an abstract and universal character, in the other, a specific overtone, referring to the concrete case. In a “technical” sense, by “*epieikeia*” we should have to understand respect for the justice of a specific case, as a rectification of legal and formal justice, the possibility of adapting an abstract and objective parameter to a concrete situation. In the “legal-moral” sense, “*epieikeia*” would be seen in relation to the crisis in the traditional and legalistic idea of justice, and to the ever more acute process of valuing individuality. This took decisive, historic shape towards the end of the fifth century, with the step from a justice attributed to the divinity to justice considered as a human virtue, with the transition from draconian legislation to the legislation of SOLON.³⁰ The foundation of the maritime Athenian Empire might be seen as the historical symbol of the passage from a static to a dynamic epoch, from a generalizing, cultural mentality to an individualizing one, from a closed economy to a commercial and open one. This process of exalting the individual, without a doubt, finds in “*epieikeia*” one of its most significant manifestations.³¹ In this sense, it corresponds to the translation of the term into English, which as VINOGRADOFF, amongst others, holds, might be rendered as “*fairness*”, in turn, corresponding to the Italian term “*imparzialità*”³²

According to Athens University professor JOHN TRIANTAPHYLLOPOULOS, from the legal viewpoint, equity, in ARISTOTLE, would be a “restrictive” interpretation of the law, never an extensive one. This is so because the law is based on the principle of generality, this being one of its essential characteristics. Laws must be universal and general and, in consequence, impersonal. As a rule, the legislator must take into consideration the “usual” or the “common” case, the middle term, as though he were treating of a strict duty. The law should be lacking in distinctions or exceptions. To remedy this generality, when faced with the specific case, ARISTOTLE employed equity—under the guise of justice in the concrete instance—and, in this sense, used a restrictive interpretation of the law. The Greeks, in contrast with the Romans, or with what happens today, preferred to commit an injustice, applying the law in a very ample fashion—“*dura lex sed lex*”—rather than distorting the law and so infringing its general character. In order to avoid, or

30 FRANCESCO D'AGOSTINO: *Epieikeia: il tema dell'equità nell'antichità greca*, *op. cit.*, pp. 1-20, the quote in p. 11.

31 FRANCESCO D'AGOSTINO: *Epieikeia. Il tema dell'equità nell'Antichità greca*, *op. cit.*, pp. 14-17.

32 ARNALDO BISCARDI: “On *aequitas* and *epieikeia*”, in ALFREDO MORDECHAI RABELLO (ed.): *Aequitas and Equity: Equity in Civil Law and Mixed Jurisdictions*. Jerusalem. The Harry and Michael Sacher Institute for Legislative Research and Comparative Law. The Hebrew University of Jerusalem. 1997. Second International Conference on *Aequitas* and *Equity*. 1993. (1st. 1990: *Equity and Contemporary Legal Developments*. 1992), pp. 1-12, esp. pp. 1-6.

remedy, the drawbacks this might imply in the case of legal gaps, due to an excess of generality in the norm, to correct the deficiencies in the law, in accord with the hypothetical or historical will of the legislator—in the case of these false, improper or fictitious gaps—the judge must act. ARISTOTLE gives three examples of these supposed, false, "loopholes" to be filled up, by using equity as justice in the specific case.

The first example is that of someone who raises his hand, bearing a "steel" ring upon it. Is this punishable? Yes it is—according to the abstract law, not according to an equitative interpretation of the law, which restricts punishable conduct to the concept of a "steel weapon". Though the law punishes the raising up of steel, this would have to be interpreted as referring to steel used in fighting, to steel weapons.

Another example is that of the foreigner who scales the walls of the city. According to Greek law, any foreigner who climbs the city walls is to be sentenced to death as an enemy or a traitor. This is what the law says in its universality. However, let us suppose that a foreigner climbs the city walls but that he does so neither as an enemy nor as a traitor, suppose he does so to save the city. Must he die for this? Yes, according to the law, no, according to equity. From whence it follows that the use of the word "foreigner", in the specific case, should be limited to punishing only the "foreign traitor".

A third example would be that of the soldier who throws down his "shield". Throwing down one's shield was punishable by death in Greece. Let us suppose that a soldier has thrown down his shield before his general, but it is shown that he did so to protect the general from enemy arrows, and not so as to desert. Should he die for that? Yes, according to the law applied in its generality, no, according to equity—justice in the specific case. Hence, the idea of throwing down one's shield as being liable to punishment should be restricted to those who do so in order to desert, not to those who have a legitimate motive for acting thus.³³

For such reasons, the Greeks spoke of the "will of the legislator" as of a person, as opposed to the Roman concept of the impersonal "*voluntas legis*". Equity does not repeal the law, it exists alongside the law, correcting and complementing it. Equity is not an infraction of the law, it is its fulfillment, because the law is not always the law alone. The mistake of formalism is, precisely, that it views the two ideas as identical. Though strict justice interprets the law literally, equity interprets it according to the "true" intention of the legislator.

ARISTOTLE wrote that equity calls on us to settle disputes through negotiation and not by way of force, to prefer arbitration to litigation—for an arbiter is moved by the equity of the case, and a judge by strict law. Equity leads us to be compassionate with the weakness of human nature, to think less of laws than of men, and less of what laws say than of what they mean.

33 A. MORDECHAI RABELLO (ed.): *Aequitas and Equity...*, *op. cit.*, pp. 12-21.

It leads us to consider not so much the actions of the accused as his intention, not the detail, but the whole, to ask not what a man is now, but rather what he always, or generally, is. Equity recommends us to remember benefits rather than affronts, and more those benefits received than those bestowed, to be patient when things go badly.³⁴ In the above Aristotelian texts, we see the double aspect of equity for him:

- a. Its functional, legal-technical aspect, as a correction of the general law for the specific case, a task for the judge, the one who applies the law.
- b. Its substantive, ethical aspect, as a human virtue, common to all men, an attribute of humanity.

1.2.3. Stoicism and its Rejection of "*Epieikeia*"

The ethic of the Stoic School carried with it a clear rejection of "*epieikeia*"—seen as a consideration of specific human cases, a mitigation of the law's prescriptions. It is, therefore, not inappropriate to define such an ethic—in this regard—as rigorous and legalistic. Naturally, the law to which the stoics referred is not the purely human "*nomos*", an outcome of social conventions, but the "*logos*" or the "*ratio*" intrinsic to human nature. Stoics, in their ethic, only recognized the general. Hence, the determination of the individual—a thing present in the entire preceding Greek tradition, a tradition which indeed might be considered as nothing but a road to individualization—in the Stoic Philosophy became somewhat irrelevant. For the Stoics, individualizing fell within the scattered field of the "affections". The reality of a generalizing vision of life is revealed in the Stoic doctrine of virtue, a doctrine which denied any difference amongst virtues. The doctrine of virtue does not constitute—at least in the most ancient Stoicism—a Trojan Horse which might infringe the basic principle of moral universality.³⁵

2. Normative Plane: The Roman "*Aequitas*"

2.1. Etymology of the Term, Which can be Traced back to the Sanskrit "*Aika*": "*Aequitas*" as "*Egalitarian*" or "*Balanced*" Justice

The term "*aequitas*", equity in the Roman world, comes from the Latin "*aequus-a-um*" (flat, equal, straight), in relation to "*aequor*" (the plane of the countryside and of the sea), and, in turn, has its origins in Greek and Sanskrit.

Indeed, the first etymological parenthood—which may be inferred, and which has been traditionally accepted—is that existing between "*aequitas*" and the Greek "*eikós*". The latter means suitable, corresponding to the true,

34 A. MORDECHAI RABELLO (ed.): *Aequitas and Equity...*, op. cit., pp. 67-87.

35 F. D'AGOSTINO: *Epieikeia. Il tema dell'equità nell'antichità greca*, op. cit., pp. 101-111.

the exact, the just. According to some authorized sources,³⁶ however, a nuanced difference should be made between the etymological meanings of equity and "epiqueya". The term "epiqueya" implies the idea of "suitability", while the term equity carries with it the sense of "rectitude". The modern idea of equity is the resulting grouping together of those two notions.

On the other side—and in the same way in which the Latin term "*ius*" is tied to the Vedic "*yós*", meaning "salvation", the well-being to which men tend with the help of the Gods—"*aequitas*" goes back to the Sanskrit "*aika*" (or "*aikya*", that is "one"), and "*aikatuan*" (unity, likeness), alluding to the idea of equality, equilibrium, proportion.

Etymologically, then, as its first meaning, "*aequitas*" seems to refer to equality, and in legal terms means that law has as an end the awarding of equal protection to equal interests and fellow beings who deserve it, in such a manner that the law must be the same for all individuals who make up society. It is in this way too that the English maxim "*equality is equity*" seems to understand it. Further, it is the same idea which lies at the heart of the traditional concept of justice, an idea so closely related to that of equity. The operation of justice is nothing but that of equalizing, of adjusting two things according to its rule, of measuring with its ruler so as to identify one thing with another, by means of equitative or egalitarian proportion. It is commonly asserted that "*ius*" tends to uphold the social order—and, hence, hierarchy, discipline—while "*aequitas*" tends to embody social equality—that is, equality of treatment, the reconciliation of contrasting interests.³⁷

From the Latin "*aequitas*" come the homonyms found in modern languages: Spanish "*equidad*"; Catalanian "*equitat*"; Portuguese "*equidade*"; French "*équité*"; Italian "*equità*"; English "*equity*", and so on.

36 P. NOGUER: "Una justicia 'sui generis'; la 'epiqueya'", in *Razón y Fe*, XCIX, 427, August 1932, p. 460.

37 JOSÉ CASTÁN TOBEÑAS: *La idea de equidad y su relación con otras ideas morales y jurídicas afines*, op. cit., pp. 10-13. ANTONIO GUARINO: "Equità. Diritto romano", in *Novissimo Digesto Italiano* (directed by ANTONIO AZARA and ERNESTO EULA. Torino. Unione Tipografico-Editrice Torinese), VI, p. 620. J. A. ZARZALEJOS: "Equidad", in *Gran Enciclopedia Universal*, 8, p. 3448. GIULIO M. CHIODI: *Equità: La categoria regolativa del diritto*. Napoli. Guida. 1989. Id, *La regola costitutiva del diritto*. Torino. Giappichelli. 2000, note 1. A. MORDECHAI RABELLO (ed.): *Aequitas and Equity: Equity in Civil Law and Mixed Jurisdictions*, op. cit., pp. 7-9. VITTORIO SCIALOJA: *Del Diritto positivo e dellequità: discorso inaugurale letto... il giorno 23 novembre 1879 nel solenne riaprimiento degli studi nell'Università di Camerino*. Camerino. Tipografia Savini. 1880. Reprint in *Studi Giuridici*, III, Roma. 1932, pp. 1-23, esp. p. 11. *Opuscoli di Dir. Commerciale (Bollaffio)*. III. 2.

2.2. Evolution of the Concept of "Aequitas" in Different Stages of Historical Roman Law

The idea of equity had diverse meanings in Rome, still, its practical importance—in one or other guise, and according to the times—was enormous in the legal life of Rome. The lasting value of Roman law, to a great extent, is due to this fact.³⁸

2.2.1. The Ancient Time Period. Its Formalism and Lack of Equity

Primitive Roman law, the "*ius civile*", was a mixture of custom and law. Its greatest legal expression, the *Law of the XII Tables*, promulgated in the middle of the Vth century B.C., was distinguished by its technicism and its rigidity. The need was felt for an outside criterion by which positive law could be evaluated in order to try to determine its correspondence, or the lack thereof, to the legal sentiment that had predominated in social life at a given moment.³⁹ One would have to wait a little for equity—as a criterion not yet converted into positive law—to crystallize, by way of the demands of the social conscience, in the creation, interpretation and transformation of law. As the circumstances of social life came to force a transformation in the legal conscience, the rules of positive law, which had remained petrified and immutable, began to merit the designation "*iniquas*". GAYO had already spo-

38 Cf. KARL AUGUST ALBRECHT: *Die Stellung der römischen Aequitas in der Theorie des Zivilrechts mit Rücksicht auf die zeitgemäße Frage der Codification*. Dresden. Arnold. 1834. Leipzig. Zentral. Antiquariat. 1969; BASTNAGEL: "De aequitate in iure romano", in *Bull. Ist. Dir. Rom.*, 1938, XLV, pp. 367 ff.; ERNST IMMANUEL BEKKER: *Über die römische und die moderne Aequitas*. Berlin. H. Bahr. 189?; MORITZ VOIGT: *Die Lehre vom ius naturale, aequum et bonum und ius gentium der Römer*. Leipzig. Voigt und Günther. 1856-1875. Lipsia. 1856. Id, *Das "ius naturale, aequum et bonum" und "ius gentium" der Römer*. Aalen Scientia. 1966; S. RICCOBONO: "Ius est ars boni et aequi", in *Ann. Catania*, 1947, IL-L, pp. 223 ff.; Id, "Aequitas", in *Nuovo Digesto Italiano*, Torino, Utet, t. I, 1937, pp. 210 ff.; Id, "Humanitas", in *Atti Congresso Internazionale di Diritto Romano e di Storia del Diritto (Verona, 27-29 November 1948)*, 1951, II, pp. 207 ff.; Id, "La definizione del 'ius' al tempo di Adriano". Ibid. 1948, LIII-LIV, 5 ff.; PRINGSHEIM: "'Ius aequum' und 'ius strictum'", in *Zeitschrift Savigny-Stift., R.A.*, 1922, XLII, pp. 643 ff.; Id, "Aequitas' und 'bona fides'", in *Conferenze per il XIV Centenario delle Pandette*. Milano. 1931, pp. 184 ff. Also in Pub. Università Cattolica, 33. 1961; Id, "Bonum et aequum", in *Zeitschrift Savigny-Stift.*, 1932, LII, pp. 78 ff.; Id, "Römische 'aequitas' der christlichen Kaiser", in *Acta Congressus Iuridici Internationalis 12-17 November 1934*. Rome, 1935, I, pp. 119-152; Id, "Legal State and Equitable Interest in Roman Law", in *Law Quarterly Review*, 59, 1943, pp. 244-249. Also in *Gesammelte Abhandlungen*, I, 1961, pp. 247-252.

39 ANTONIO GUARINO: "Aequitas (Diritto romano)", in *Novissimo Digesto Italiano*, VI, 1960, pp. 620-624, esp. p. 621.

ken of the "*iniquitates*" of the *XII Tables*.⁴⁰ A change was needed in that law, so inadequate to social reality. It was a change which would operate, from the Classical Period on, in great part, by way of the concept of equity.

2.2.2. "*Aequitas*" as an Exception to Strict Law in Classical Roman Law

In Rome, equity was mainly conceived of as an exception to strict law.⁴¹ CICERO already warned that the rigorous application of the law was the greatest source of injustice—"*summum ius, summa iniuria*".⁴² This contrast between strict law and equity law may be seen throughout the history of humanity and in all legal codes. It is the opposition we find in Greece between "*nomos*" and "*epieikeia*", in England, between "*common law*" and "*equity*", or, in the German world, between "*strenges Rechts*" and "*Billigkeit*".⁴³ This same opposition was in play, and strongly, in Rome. In effect, the whole history of Roman law might be written as a constant struggle to overcome "*ius strictum*" by "*ius aequum*", leading to the triumph of the equity of "*ius gentium*" as against the formalist conceptions of the ancient civil law. This comes about in two ways: the Praetor's edict, which gives rise to the "*ius praetorium*" or "*ius honorarium*", and the Roman Jurisconsuls' task, which was to assess the Praetor, creating thereby "*iurisprudentia*".

2.2.2.1. *The Praetor's Edict. The Contrast between "Ius Civile," as "Ius Quiritium" and "Ius Strictum," and "Ius Gentium," through "Ius Honorarium" and "Ius Praetorium." "Ius Naturale"*

Roman law came up against the problem of having encountered non-Romans, the same could be said of the Roman citizens. These non-Romans were the "*peregrini*". Roman law, "*ius civile*", was reserved for Roman citizens, the "*cives*". Foreigners—"*peregrini*"—never ceased to enlarge the Roman population as the Empire extended across the Mediterranean basin. A special magistrate, the "*praetor peregrinus*", had jurisdiction over cases in-

40 ARTURO GALLARDO RUEDA: "Equidad", in *Nueva Enciclopedia Jurídica*. F. Seix Editor. VIII, p. 631.

41 On this subject, cf. UNIVERSITÄT TÜBINGEN. RECHTS-UND WIRTSCHAFTSWISSENSCHAFTLICHE FAKULTÄT. RECHTSWISSENSCHAFTLICHE ABTEILUNG: *Summum ius summa iniuria: Individualgerechtigkeit und der Schutz allgemeiner Werte im Rechtsleben*. Tübingen. Mohr. 1963; VACCA: "Considerazioni sull'*aequitas* come elemento della giurisprudenza romana", in *Studi D'Amelio*. Milano. 1978.

42 Various Authors: *Aequitas und bona fides. Festgabe zum 70. Geburtstag von August Simonius*. Basel. Verlag Helbing & Lichtenhahn. 1955; JOHANNES STROUX: "Summum ius summa iniuria. Ein Kapitel aus der Geschichte des interpretatio iuris", in *Festschrift Paul Speiser-Sarasin zum 80 Geburtstag*. Leipzig-Berlin. B.G. Taubner. 1926. There is an Italian translation in *Annali del Seminario Giuridico della R. Università di Palermo*, XII, 1929, pp. 647 ff.

43 MAGDI SAMI ZAKI: "Définir l'équité", *cit.*, note 13.

volving “*peregrini*”, and it was through this jurisdiction in litigation concerning “*peregrini*” that there came to be introduced into Roman law, together with the “*ius civile*”, the “*ius gentium*”—the Law of Nations. “*Ius gentium*” was then understood as the conjunction of institutions established “*peregrinorum causa*”. It was simpler than the ancient “*ius civile*” and was founded rather on “*aequitas*” and on the “*fides*”, on parities rather than on solemn formalities. “*Ius gentium*” was defined by GAYO (I,1) as “*quasi quo omnes gentes utuntur*” and as “*quod naturalis ratio inter omnes homines constituit*”. The Law of Nations was much less formalist than Roman law. Such was the triumph of this law that it ended up being applied to Roman citizens as well. We are dealing here with a “levelling”, egalitarian law, one which was the same for Romans and Greeks, for citizens and foreigners, for freemen—“*ingenus*”—and for freed slaves, for patricians and for plebeians, for “*res mancipi*” and “*res nec mancipi*”, for those relations whose kinship was founded on the will of the “*agnatio*”, and for parents who were so because of blood ties, “*cognatio*”. This egalitarian operation—with its tendency to rule out segregation and discrimination, in brief, abstract distinctions—was known as “*aequitas*”. It is not in vain that the term “*aequitas*” should derive from the Sanskrit “*aika*” or “*aikya*”, which means “one”. “*Mi é tutt’uno*”, “*Alles ist mir Eins*”. All is equal, alike, the same.⁴⁴

The process was facilitated, towards the end of the II century B.C., when the flexible formula developed by the “*praetor peregrinus*”⁴⁵ was made to extend to cases where both parties to litigation were citizens. Such cases normally fell under the jurisdiction of his colleague, the “*praetor urbanus*”. The “*praetor peregrinus*”, who only acted at the petition of both parties, did not apply the “*ius civile*”, nor did he operate under the ancient procedure of “*legis actiones*”—one or other of these were exclusively applicable to “*cives romani*”. Rather, working via some procedural channels, much more flexible than those of the traditional civil code—a procedure which held “*per formulas, vel per concepta verba*”—, he regulated the new sort of cases and relations which were submitted to his decision, doing so guided by “*aequitas*” and “*bona fides*”. That is, he regulated cases on the basis of the principles of trust which were being asserted in Mediterranean trade. The “*praetor urbanus*” did likewise in “*inter cives*” relations, especially after the II century *Lex Aebutia*. This allowed Roman citizens to appeal to him instead of to the “*legis actiones*”, by way of a set procedure.

To begin with, the procedure was very rigid—the “*legis actio*”. The magistrate’s role was very limited by custom, and the only initiative open to him was to deny an action to anyone who, without just cause, tried to institute

44 MAGDI SAMI ZAKI: “Définir l’équité”, *cit.*, notes 3 and 4.

45 GIUSEPPE CHICCA: “*Ius: ars boni et aequi*”, in *Rivista Internazionale di Filosofia del Diritto*, 38, 3, 1961, pp. 457-473, esp. p. 461. MARCELIANO ISÁBAL: “Equidad”, *cit.*, p. 406. ANTONIO GUARINO: “Equità (diritto romano)”, *cit.*, p. 622.

one. He could refuse to cooperate in the exercise of the procedural forms—*"denegatio actionis"*. Contrary to this, the "formula" procedure conferred a wide, discretionary margin on the Praetor to provide remedies when he considered it appropriate to do so. In this way, the Praetor was transformed into an agent of equity. Thus, alongside the negative function of equity in the hands of the Roman Praetor—the *"vetus"*, which prevented the application of a legal norm in a specific case, by way of *"denegatio actionis"* or *"exceptiones"*, a power conceded to him against whoever might bring an action, according to civil law, so he could make it void—there now existed a *positive* function—*"novum"*—of equity. This allowed him to apply a civil law norm to similar cases, cases not strictly subject to it.

As occurred in the *"legis actio"* procedure, in the new set procedure the *"iter"* of each suit was divided into two stages, the first *"in iure"*, where the case is presented before the Praetor, and the second, *"apud iudicem"*, when the proof was set before a private citizen, chosen by both parties to the case in question. In the new procedure, once the parties had clarified what the question at litigation was about, the Praetor wrote out a document—the *"formula"*. This was a written instruction where the Praetor determined the points of law to which the judge should attend when issuing his sentence, after having understood the facts. It was addressed to the judge in hypothetical strains: "Should it turn out that..., condemn; otherwise..., absolve". The Praetor could offer such a formula even though no precedent law existed which might regulate the question in such a way. Normally, the Praetor sought the help of jurists, because, generally, he was not himself a jurist, and might be only associated with the administration of justice during the one-year period which his mandate lasted. That is, although it was the Praetor who officiated, in the end, his decisions could count on the support of jurists. In an *"edicto"*, the Praetor set out what solutions he would hand down during his year in office; in the majority of cases, these would be taken from the Edict of the previous Praetor.⁴⁶ Laws stemming from the Praetor's Edict were known as *"ius praetorium"* or *"ius honorarium"*, in contradistinction to *"ius civile"*, found in custom and law. The function of *"ius honorarium"* was to supplement or correct the *"ius civile"*.⁴⁷

From GAYO's definitions of *"ius gentium"*, especially the second—*"quod naturalis ratio inter omnes homines constituit"*—a doubt might arise as to whether, according to the Roman mentality, *"ius gentium"* was the same as *"ius naturale"*, or was this latter different from it, being a third category in the division of law—*"ius civile"*, *"ius gentium"*, *"ius naturale"*. This is a question often debated amongst Roman scholars.

46 MARCELIANO ISÁBAL: "Equidad", *cit.*, p. 406.

47 PETER STEIN: "Equitable Principles in Roman Law", in RALPH A. NEWMAN (ed.): *Equity in the World's Legal Systems. A Comparative Study*. Dedicated to RENÉ CASSIN. Bruxelles. Établissements Émile Bruylant. 1973, pp. 75–90.

The solution to the question is different in the Classical and in the Post-classical periods. In the former period, “*iurisprudentes*”, following the majority of contemporary Roman scholars, had a tendency to identify “*ius gentium*” with “*ius naturale*”. On the other hand, it is beyond doubt that, during Post-classical times and those of Justinian, a trichotomy was recognized. That is, there is a clear distinction between “*ius gentium*” and “*ius naturale*”, and both, in turn, are different from “*ius civile*”. However, if, as CICERO already maintained, equity is no stranger to “*ius civile*”—“*ius civile est aequitas constituta eis qui eiusdem civitatis sunt*” (Top., II, 9)—much less is it alien to “*ius gentium*” and to “*ius naturale*”. As PAULO says (D. I, 1, 11): “*Cum id quod semper aequum ac bonum est ius dicitur, ut est ius naturale*”.⁴⁸

2.2.2.2. “*Iuris Prudents*” and “*Roman Jurisprudence*”. The Fights between Sabinians and Proculians

The so-called Classical Era of Roman law—the decisive period as regards equity—shines out because of the work of the jurisconsults, rather than that of the legal commentarists, though these too deserve mention since, with their talents, they became the makers of technical jurisprudence.⁴⁹ The greatest achievement of the jurisconsults—the reason why they conquered, and still today preserve, an undeniable place in the history of human progress—was, through skill, to always find the “just”—or equitable, should you prefer—solution in doubtful cases. Two principal elements which culminated in Roman law are solely inspired by the dictates of equity. These two elements were the Praetor—by way of the Edict—and the jurisconsults—via “*iurisprudentia*”. This latter term is to be understood as the Science of Law—in the sense of what is currently called “jurisprudence” in the Anglo-Saxon world, that is legal rulings, as opposed to its meaning in Continental systems, as judicial rules, -that is, the channels, in the practical application of the law, which recognize a judge’s wide range of discretion when deciding disputes. Here we have, instead of “*stricti iuris*”, the appeal to “*actiones in bonum et aequum conceptae*”.⁵⁰

48 JESÚS DAZA: “*Aequitas et humanitas*”, in *Estudios en Homenaje a Juan Iglesias*, III, Madrid. 1988, pp. 1219-1221. JUAN IGLESIAS: *Derecho romano*, Barcelona, 1962, p. 92. About JUAN IGLESIAS, see JOSÉ ITURMENDI MORALES: “La dimensión complutense de Juan Iglesias Santos. Alumno, Profesor Auxiliar, Doctor, Catedrático, Decano en ejercicio, Decano honorario y Maestro Complutense de Derecho”, in *Seminarios Complutenses de Derecho Romano. Revista Complutense de Derecho Romano y Tradición Romanística*, 2001, XIII. Facultad de Derecho. Fundación Seminario de Derecho Romano “Ursicino Álvarez”, pp. 263-447.

49 CARLO FADDA: *L'equità e il metodo nei giureconsulti romani*. Macerata. Bianchini. 1881, pp. 14-19; MICHAEL SPEIDEL: *Die equites singulares Augusti: Begleittruppe der römischen Kaiser des zweiten und dritten Jahrhunderts*. Bonn. Habelt. 1965.

50 Among the “*actiones in aequum et bonum conceptae*” there are: “*Actio iniuriam aestimatoria*”, “*actio sepulchri violati*”, “*actio de effusis et deiectis*”, “*actio rei ux-*

Roman jurisconsuls were instruments of equity, through their opinions being endowed with authority—"ius respondendi"—, in the same way as the Praetors might issue Edicts, via "ius edicendi". These were not limited to a simple application of the law, but could supplement, develop or correct, the law, thus showing a true "imperium" of the magistracy.

Roman jurisconsuls gave great importance to a series of guiding concepts—such were: good faith, "bona fides"; the spirit of the law, "animus"; "utilitas"; and "honestas". These were all moral virtues, based on equity. Hence, CELSO defined the law as the art of the good and the just—"ars boni et aequi"⁵¹ ULP-PIAN handed on this definition in a text collected in the *Digest*, further indicating that jurists professed "ex boni et aequi scientia" (Dig. 1,1, 10, 2). For these men, there existed a correlation between "aequitas" and "ius". Equity was not for this reason a distinct entity, one opposed to law, rather, it was law itself. Jurisprudence, understood as the Science of Law, was set on foot to adapt law to the circumstances of life. "Aequitas" was one means the jurist valued in carrying out this task.

POTHIER sets out his exposition of Roman jurisprudence—the task of the "prudentes"—in terms of the rivalry arising between two famous schools, the "Sabinians" and the "Proculians". A quick reading of the question gives the impression that equity was the principal issue in dispute between these two. It appears the "Sabinians" were the "champions" of equity, while the "Proculians" were more in favour of a strict observance of the law. The "Sabinians" appeared to be men open to a just interpretation, a flexible interpretation, of the "verba legis", and never hesitated to widen the field of the law's application, even though such an application was not expressly contained in the strict letter of the law. The "Proculians", for their part, were jurists whom we might class as excessively serious. They were extremely true to the meaning of terms, of words, of norms. They therefore opted for rigid positions—"stricta iuris ratio"—.

However, different interpretations of the rivalry of the schools are not lacking. In fact, some consider their struggle as much slighter than might be thought, and that both, "Sabinians" and "Proculians", were united in a common search for equity. What happened was that, when the "Proculians" employed equity, rather than betray the strict spirit of the law, what they were doing was

riae", "iudicium de moribus", "iudex qui litem suam facit", "actio aedilicia de feris", "actio funeraria", "actio negotiorum gestorum": GEORGES CIULEI: *L'équité chez Cicéron*, op. cit., pp. 9 ff. Cf. also ALFREDO MORDECHAI RABELLO: *Aequitas and Equity...*, op. cit., pp. 33-34. J. A. ZARZALEJOS: "Equidad", cit., p. 3448. VITTORIO FROSINI: "Equità. Nozione di equità", in *Enciclopedia del Diritto*, XV. Milano. Giuffrè. 1966, pp. 72-73. JOSÉ CASTÁN TOBEÑAS: *La formulación judicial del Derecho (Jurisprudencia y arbitrio de equidad)*, op. cit., pp. 35-42, esp. p. 37.

51 Cf. ANTONIO GUARINO: "Equità (diritto romano)", cit., p. 623.

going deeper into that spirit, reaching a more profound view of the law, one which lay below mere appearances.⁵²

2.2.3. The Influence of Christianity on Post-classical Roman Law. Equity as “*Humanitas*”, “*Benignitas*”, “*Pietas*” and “*Clementia*”

The “formula” procedure was applied throughout the classical period of Roman law. In the post-classical period, this procedure was superseded, by the “*cognitio*” procedure, in which a judge—who was a paid, Imperial civil servant—decided all litigation, both at the time of presenting proof and when dictating sentences. Further, though most resolutions which conformed to equity in Roman law were introduced via Praetorian Edict, some equity decisions were linked to Senate resolutions, during the Principate, or to Imperial Constitutions.⁵³ In this regard, and the advance they represented, we might cite the collection of norms, during this time—the VIth century—the JUSTINIAN *Corpus Iuris*, together with certain legal “standards”—as represented by “good faith” or “reasonableness”—which then governed Roman law.⁵⁴

Thus, during the second stage of the Roman Empire—which began about the year 300 A. D. with DIOCLETIAN—equity continued to play an important role in Roman law, though through various institutions: the Imperial legislator himself, following the same route which “*aequitas*” had taken in ancient law, and overcoming, once and for all, the clash between “*ius civile*” and “*ius honorarium*”, awarding—if not formerly, then at least materially—priority to the latter. In the Imperial period, the centre of attention passed from the judge to the Emperor—the “*princeps*”.⁵⁵

52 Cf. MICHEL HUMBERT: “The Concept of Equity in the ‘Corpus Iuris Civilis’ and its Interpretation by Pothier”, in A. MORDECHAI RABELLO (ed.): *Aequitas and Equity* ..., *op. cit.*, pp. 35-38.

53 CORRADO PERRIS: “Equità”, in *Nuovo Digesto Italiano*, V, 1938, p. 447.

54 Cf. on the subject BIONDO BIONDI: “‘Humanitas’ nelle leggi degli imperatori romano-cristiani”, in *Fontes Ambrosiani*. XXVI. Milano. Biblioteca Ambrosiana. 1951; Id, *Diritto romano cristiano*, II, *La Giustizia - Le persone*. Milano. Vita e Pensiero. 1952, pp. 28 ff.; Id, “Equità e bona fide”, in BIONDO BIONDI: *Scritti Giuridici*. I. Milano. Giuffrè. 1965, pp. 93-98. ARNALDO BISCARDI: “Riflessioni minime sul concetto di aequitas”, in *Studi Donaduti*, I, Milano, 1973; Id, “On aequitas and epieikeia”, in A. MORDECHAI RABELLO (ed.): *Aequitas and Equity*..., *op. cit.*, pp. 1-12; PAOLO SILLI: *Mito e realtà dell'aequitas christiana. Contributo alla determinazione del concetto di 'aequitas' negli atti degli 'scrinia' costantiniani*. Milano. Giuffrè. 1980. Review by FRANCESCO D'AGOSTINO, in *Iura*, XXXII, 1981, pp. 189-191; Id, “Aequitas romana ed epieikeia nella legislazione giustiniana”, in *SDHI*, 50, 1984, pp. 281-340; Id, “equità (storia del diritto)”, in *Digesto Italiano (dott. Disc.)*, VII, Torino, 1991.

55 IOLANDA PICCININI: *Equità e diritto del lavoro*. Padova. CEDAM. 1997, pp. 6-7.

We have seen, then, how Roman "*aequitas*" is the sweetening or the mitigation of the law's rigours, humanizing it for ethical, political, or general, culturally contingent, reasons to prevent absolute law from becoming injustice—"*summum ius, summa iniuria*". Equity in the Byzantine and Justinian Roman law period plays the role of natural justice—"*aequitatis naturalis*", "*naturalis ratio*"—apart from its being a more flexible application of the law—"ius aequum" as opposed to "*asperitas*", "*acerbitas*", "*austeritas*", "*duritia*" and the "*severitas*" of the "*ius strictum*". Later—because of Christian influence, the next stage of equity's unraveling in time—it would also become the benign and humane application of the law—"humanitas", "*benignitas*", "*benevolentia*", "*pietas*", "*charitas*"⁵⁶

The appeal to "*humanitas*" is not a mere attempt to mitigate the rigour of positive law, as happened in the classical period, but rather implies the introduction of a basically new concept, the new idea of man of Christian anthropology, which is opposed to the old, naturalistic, cosmological metaphysics, based on necessary and immanent "emanation" or "generation". The Christian view places a Personal Being as the absolute principle of all that exists, stemming from the idea of "Creation", and rescues the human being's singularity, as a free spirit which cannot be reduced to any interpretation taken from categories common to any other beings or natural things. Spirit thus becomes an absolutely original and irreducible category at the beginning of nature, as nature is detached from the characteristics of subjectivity, interiority, self-consciousness and freedom. As distinct from other ancient ideas and philosophies which tended to submerge man beneath his external surroundings—be it in the universe, the species or the social group—the essence of man, of the person, now becomes his self-consciousness of the outer world. This same concept may be transferred to the idea of history, where, for progress and novelty to exist, it is also necessary to assert the individuals' creative freedom and the possibility of an active participation in the framing of the future, hence, overcoming deterministic or mythic notions of temporality.

In the legal sphere, the term "*humanitas*" was only taken up by Roman jurists—together with "*humanus*", and its derivatives, after the classical period—with a meaning and a practical function identical to that of "*aequitas*".⁵⁷ "*Humanitas*" then came to be the name assumed by "*aequitas*"—as an expression of "*benignitas*", "*pietas*" and "*charitas*"—through the influence of Christi-

56 NARCISO ANDRADA HERRERO: *La equidad como elemento catalizador entre la norma jurídica y la justicia*, Thesis directed by JOSÉ ITURMENDI MORALES, in the *Departamento de Filosofía del Derecho, Moral y Política I* of the *Facultad de Derecho, Universidad Complutense de Madrid*. Editorial de la Universidad Complutense. Madrid. 1988, pp. 296; 59-62.

57 Cf. on "*humanitas*", FRANCESCO D'AGOSTINO: *Epieikeia...*, *op. cit.*, pp. 134-136.

anity.⁵⁸ However, though a certain continuity between Roman and Christian “*humanitas*” must be admitted, there still exist profound differences between the concepts, in the sense that, in Christianity, “*humanitas*” is something more than a philosophical speculation; it is a religious concept. Moreover, Christian “*charitas*” extends to the Christian religion’s key precept and commandment which is *love* and, like this latter, has an all-encompassing general character, covering the whole of a man’s life and relations with others, in society and in the State. “*Humanitas*” is also tied in with the idea of respect for life and for human dignity. Thus we might conclude by affirming that “*humanitas*”—already one of the elements to be taken into account by legislator and judge made law, in Classical times—took on a central and overwhelming importance, even going beyond the idea of justice, in the post-classical period.⁵⁹

2.3. Major Doctrinal Positions: The Teachings of Cicero

There exist many texts in CICERO’s works where we find the expression “*aequum et bonum*”.⁶⁰ From an analysis of these texts, we may draw out the following conclusions: First, it should be noted that he employs the word “*aequum*” before the word “*bonum*”, as for instance when he speaks of the so-called actions “*in aequum et bonum conceptae*”. This reveals how the expression “*aequum*” had gained a predominant role vis-à-vis the concept “*bonum*”. On the other

58 C. SPICQ: “Bénignité, mansuétude, douceur, clémence”, in *Revue Biblique*, 54, 1947, pp. 321-339.

59 JESÚS DAZA: “Aequitas et humanitas”, *cit.*, pp. 1226-1231. In this sense there are some texts by CONSTANTINO: “*Causa novae miserationis debet inquiri, ut, si citra despectionem fiat, postulata humanitas praebeatur*” (C. Th. IX, 37,1); “*humanitatis consideratione, si tempora suffragantur, interponendae provocationis copiam non negamus*” (C. Th. I,12,5, a. 396); “*quibus humanitatis et letationis intuitu extra praefinita loca mercandi copiam non negamus*” (C. 1,4,3,4); “*quamvis eos, qui tertio edicto vocati..., legum severitas obnoxios daci coetibus curiarum, tamen humaniorem placuit sequi viam*” (C.Th. XII, 1,3).

60 Cf. *De partitione oratoria* 28, *Tópica* 17, *Oratio pro Q. Roscio Comoedo* IV, and *Rhetorica ad C. Herennium*, II, 13. Cf. on equity in CICERO: ZAMBONI: “Laequitas in Cicerone”, in *Archivio Giuridico*, CLXX, 1966, I; ALAN WATSON: “Equity in the Time of Cicero”, in A. MORDECHAI RABELLO (ed.): *Aequitas and Equity...*, *op. cit.*, pp. 23-29; DEON HURTER VAN ZYL: *Justice and Equity in Cicero: a Critical Evaluation in Contextual Perspective*. Pretoria Academica. 1991; Id, *Justice and Equity in Greek and Roman Legal Thought*. Pretoria. Academica. 1991. Cf. also VELDHUYS: *De misericordiae et clementiae apud Senecam philosophum usu atque ratione*. Groningen. 1935; OLYSIUS ROBLEDA: “Laequitas en Ciceron”, in *Humanidades*, 1950, pp. 13-57; Id, “La ‘aequitas’ en Aristóteles, Cicerón, Santo Tomás y Suárez. Estudio comparativo”, in *Miscelanea Comillas*, 15, 1951, pp. 239-279; Id, “Lequità in diritto romano”, in *Atti del Coll. Canonistico*. Roma. Pontificia Università Lateranense. 1979; V. RAGUSA: “Diritto ed equità (da Cicerone ai giureconsulti classici)”, in *Archivio Giuridico*, 1930, CIII, pp. 87 ff.; 224 ff.

hand, though we do not find the expression "*aequum et bonum*" here identified with the notion of equity, in this author's later works we do indeed encounter such an identification.⁶¹

CICERO distinguished between divine and human law. Human law had equity as its source, while the source of divine law was religion. Having singled out equity as the source of human law, CICERO goes on to analyze the concept of equity.

In some of his texts, CICERO makes a "two-part" division of equity, depending on whether the powers from which it proceeds be law's "reason"—more precisely the "*aequum et bonum*"—or whether it be the principle of reciprocity. This is CICERO's own, or genuine, position.

However, we can also discern a "three-part" division of equity in CICERO, stemming from Platonic influences. There, he makes a distinction between: an equity related to the Gods, "*pietas*"; an equity linked to the Manes, "*sanctitas*"; and an equity connected with men, so-called "*iustitia*" or "*aequitas*". This three-part division is a faithful reproduction of a Platonic text, which has not been preserved. The Greek influence may be appreciated in CICERO's idea of equity also when he considers equity as a virtue of the same kind as justice.⁶² In general, in CICERO's work, a chronological evolution can be seen as regards the relationship between equity, justice and law. From his youth, until when he was sixty or so, there was a time in which he viewed equity as having a separate sphere from that of law and justice. From that time, and as a consequence of his philosophical ideas—he came to consider philosophy preeminent over all other sciences—as also because of the death of his daughter, he now came to identify law, justice and equity as one. If there exist certain works—the *Topica*, *De officiis*, *De partitione oratoria* or *De oratore*—which, in spite of having been written when he was around sixty, that still separate out the concepts of justice, law and equity, this is rather due to the fact that, in such works, CICERO is expounding ideas foreign to his own, rather than expressing his own true ideas.

CICERO uses two expressions, "*aequitas*" and "*aequabilitas*", which, though they have certain affinities, nevertheless, do not have the same meaning. In the proper sense, "*aequabilitas*" means equality, the constancy of a thing, in the way of its constantly being such and such a thing. We might hold that "*aequabilitas iuris*" is one of the most vital demands of "*aequitas*", still, "*aequitas*" is not completely exhausted by the term "*aequabilitas*". Equity is equality, in the Roman sense of the expression, but it is more than just that. Equity is, in a certain way, confused with justice, understood as a universal virtue. Ciceronian equity does not hide from us the fact that its has the meaning of equality, giving equal treatment to equals, protecting in the same way what is the same, but that is not all that equity means, similarly, that is not the whole of what justice means. Equity is identified with an ethical principle, with justice, with the "*ae-*

61 GEORGES CIULEI: *L'équité chez Cicéron*, op. cit., pp. 14-19.

62 GEORGES CIULEI: *L'équité chez Cicéron*, op. cit., pp. 27-61.

quum et bonum”, with “*aequare*”, as the act of giving to each his due—“*quae paribus in causis paria iura desiderat*”.⁶³

3. Values Plane

3.1. Christian and Canonical “Misericordia”, as “Humanitarian Virtue” and “Benevolent” and “Moderating” Justice

3.1.1. General Considerations

In the dark period which runs from the Fall of the Roman Empire to the Renaissance, in what is commonly known as the Middle Ages, culture was retained in the monasteries, in the hands of the Church, since the other social estates were occupied in either making war—the nobility—or in cultivating the earth—the common people. It was a society characterized by Feudal relations. It is in this medieval period that Christianity—with the Pope, as Supreme Pontiff, at the head—spread throughout Europe. In the very bosom of the Church, there sprang up basic, doctrinal schools, such as the Patristic School, with Saint AUGUSTINE as its clearest exponent, and the Scholastic School, with THOMAS AQUINAS in the forefront.

It is only logical that, law and culture being in the hands of the Church, the idea of equity proper to the Middle Ages should be embodied on the plane most suitable to religion, the plane of values. This is as true for any other religion as it is for Christianity. It is for this reason that the basic concept of this time should be a concept that—though already glimpsed in ARISTOTLE and crystallized in Justinian’s Roman law, under the influence of Christianity—now comes to the fore. It is a concept at odds with the Greek “*epieikeia*”, “justice in the specific case”.⁶⁴ It is equity as humanitarian virtue, more specifically, as “*mi-*

63 ORAZIO CONDORELLI: *Scritti sul diritto e sullo stato*, *op. cit.*, pp. 330-344. VITTORIO SCIALOJA: *Del Diritto positivo e dell’equità*, *op. cit.*, p. 15. NARCISO ANDRADA HERRERO: *La equidad como elemento...*, *op. cit.*, pp. 63-65 and 294-296. KARL-HEINZ ZIEGLER: “*Aequitas in Roman International Law*”, in A. MORDECHAI RABELLO (ed.): *Aequitas and Equity...*, *op. cit.*, pp. 48-63, esp. pp. 50-59.

64 PIER GIOVANNI CARON: “*Aequitas*” romana, “*misericordia*” patristica, ed “*epieikeia*” aristotelica nella dottrina dell’“*aequitas*” canonica (Dalle origini al Rinascimento). Milano. Giuffrè. 1971, pp. 6-69. Review by FRANCESCO D’AGOSTINO, in *Rivista Internazionale di Filosofia del Diritto*, 48, 1972, pp. 123-124. FRANCESCO D’AGOSTINO: *La tradizione...*, *op. cit.*, pp. 41-75. EUGEN WOHLHAUPT: *Aequitas canonica. Eine Studie aus dem Kanonischem Recht*. Paderborn. 1931. Review by RIAZA, in *Anuario de Historia del Derecho Español*, VIII. Id, “*Aequitas canonica*”, in *Görres-Gesellschaft zur Pflege der Wissenschaft im Katholischen Deutschland Veröffentlichungen der Sektion für Rechts- und Staatswissenschaft*, 56 Heft, 1931, pp. 59 ff. Id, “Der Einfluss naturrechtlicher und Kanonistischer Gedanken auf die Entwicklung der englischen Equity”, in *Acta Congressus Iuridici*

sericordia", what in post-classical Roman law times was known as "*humanitas*", "*benignitas*", "*pietas*" or "*charitas*". Equity is now conceived of as a benevolent and moderate justice and, what is more important, justice with a religious content—not only moral, in general, as common to all men, but rather as Christian, proper to the man of faith. The religious content of the idea acquires a central role, making it impossible to understand equity here without reference to the dogmas and beliefs of the Christian religion.

Thus, in Christianity, equity takes the form of "a justice softened by the sweetness of misericordia"—"*iustitia dulcore misericordiae temperata*". That is to say, equity is viewed as an exception to the law for extra-legal reasons. The peculiar thing about Christian equity, as against Roman equity, is precisely its markedly religious content, equity as a reflection of God's majesty.

The word equity appears in Christian texts—in the *Bible*, for instance—to express the lordly behaviour of God, his gentleness and condescension towards mankind. From hence, it further comes to mean the condescension of the King for his subjects, also the condescension of the righteous, and all those who are close to God. Only God, as possessor of infinite power, is capable of true equity. Human beings, Christians, may have it as a type of participation in the person of Christ. Equity would be a sort of shining light of the Heavenly glory and majesty of Christ resurrected. Thus conceived, Christian equity, far from being a sentimental weakness, would be a sign for Christians of Christ's majesty.

Within the *Bible*, one must distinguish between the idea of equity latent in the *Old Testament*—taken from Holy Writ, based primarily on fear towards an omnipotent, powerful and remote God, who does not hesitate to send down plagues and punishments to protect the Israelites—and that present in the *New Testament*—which takes as its starting point the sending down of his Son, Jesus Christ, become man, by God the Father, to redeem the sins of Mankind, through his death on the cross, and where the commandments no longer be-

Internationalis, II, Romae. 1935, pp. 437-467; J. LECLEF : *La doctrine de l'équité au Moyen-Âge*. Diss. Jur. Université Catholique de Louvain. Bibliothèque de l'Université. Louvain. M. BOULET SAUTEL : "Équité, justice et droit chez les glossateurs du XIIe siècle", in *Recueil de Mémoires et Travaux publiés par la Société d'Histoire du droit et des Institutions des Anciens Pays de Droit Écrit*, 2, Montpelier, 1951, pp. 1-11. P. KIRN : "Über die angebliche Billigkeit des frankischen Königs", in *Zeitschrift der Savigny Stiftung für Rechtsgeschichte, Germanistische Abteilung*, LII, 1932, p. 63; CH. LEFÈVRE, H. F. JOLOWICZ and GUIDO KISCH : "Das Epieikeiaproblem bei Aegidius Romanus", in *Erasmus und die Jurisprudenz seiner Zeit*, pp. 407-433. Id., "Die Aequitaslehre des Marsilius von Padua", in *Festschrift für Hermann Renzfahrt*. Bern. 1958, pp. 413-422. Also in *Erasmus und die Jurisprudenz seiner Zeit*, pp. 434-446. Id., "Summum ius summa iniuria. Basler Humanisten und Juristen über Aequitas", in Various Authors : *Aequitas und bona fides*, op. cit., pp. 195-213; PETER LANDAU : "Aequitas' in the 'Corpus Iuris Canonici'", in A. MORDECHAI RABELLO (ed.): *Aequitas and Equity...*, op. cit., pp. 128-140, esp. pp. 132, 136 and 138.

gin with a “no”, by way of prohibiting a series of things one should not do, but rather synthesizes all into one single, positive precept: “Love God the Father and your fellow man as you love yourself”, a commandment of love and brotherly charity which has much to do with that Christian cosmic vision where equity is explained as a participation in love, virtue and benevolence. This goes against the strict letter of the Ancient Law, and may be summed up in the phrase “Saturday was made for man and not man for Saturday”, pronounced by Jesus Christ when the Pharisees wished to catch him out breaking the law. In the commandment to love is contained the essence of Christianity, whose repercussion might be compared to—or even be seen to go beyond—authentic revolutions, such as the 1789 French Revolution or Soviet Russia’s, even if we are dealing with a revolution of a peculiar kind; a revolution which is not of this world, a revolution indeed, but one which occurs in the hearts, in the minds, of people. The God of the *New Testament* is no longer a distant God but a fellow man, a servant who preaches humility. The *Old Testament*’s omnipotence-equity nexus, based on force, grandeur, splendour and power, is now replaced by a nearby God, strong in weakness, triumphant on the cross.

In the *Old Testament*, the use of “*misericordia*”—that is, Canonical equity—indicates the prevalence of God vis-à-vis men, being a clement and benevolent sovereign who chooses the People of Israel and protects them in the most dramatic of circumstances, as may be seen in “*Maccabees*”⁶⁵ We should not forget that the language originally used to translate the *Old Testament*, and to transcribe the *New Testament*, was Greek, which never ceases to be surprising, if we take into account that it is a language which only indirectly has anything to do with the cultural sphere in which Christianity grew up. In the Greek, by analogy, the term “*epieikeia*” is used with regard to earthly Kings, and not only when translating from the Hebrew, but also to characterize simple men when seen as Men of God. Earthly Kings, insofar as they are vicars of Christ—Kings “*por la gracia de Dios*”, as it is said in the Medieval doctrine defending the divine origin of power—had been given a mission, and their Charisma by God, and ought to carry it out with “*misericordia*” and with moderation, after the image of God, since their sovereignty does not rest on their own omnipotence, as with the heavenly sovereign, but rests rather on a mandate or a divine delegation.

In the *New Testament*, especially outstanding on the topic of equity is the “Second Letter of St. Paul to the Corinthians”, 10, 1—in the Latin version, this reads: “*Ipse autem ego Paulus obsecro vos per mansuetudinem (“prautes”) et modestiam Christi, qui in facie quidem humilis (“tapeinòs”) sum inter vos, absens autem confido in vobis*”—, and in Saint Matthew, 11, 29—“*Tollite iugum*

65 Translator’s Note: The books of *Maccabees* are not canonical for either Judaism nor Protestantism, and are found in the *Apocrypha*. They are canonical for Catholics.

meum super vos et discite a me, quia mitis sum et humilis corde". Paul shows clearly how the now canonical conceptual atmosphere surrounding equity transcends the legal, to acquire a moral significance of gentleness, of non-resistance to evil—"turn the other cheek". This is because evil is only wiped out by combating it with good, not by opposing it with another, contrary, evil. Here is the refusal to judge one's fellow man—"judge not lest you yourself be judged"—and the humility which characterize the Christian soul. Like Jesus Christ, such a soul will be compassionate and benevolent towards our sins. The true Christian should be like Christ with respect to his brothers, that is, to Mankind. Such benevolence one should show not just in imitation of Christ, but also because of a man's consciousness of himself as a sinner. Here we might observe the gap which exists between the Christian spirit and Greek thought: in the latter, the consciousness of sin—not to be confused with evil—does not exist, while, in the former, by contrast, this consciousness constitutes its essence. The novelty of Christianity is its substitution of the earlier Cosmo-centric mentality, proper to Greek speculation, by a new, anthropocentric outlook. In Greece, man was but one more being, not a being privileged with respect to the rest of matter and of things. With Christianity and its ontological anthropocentrism, via the new "covenant" with God, man becomes God's "*partner*"⁶⁶ In Christianity, canonical equity is nothing else but an attribute of God—"aequitas nihil aliud est quam Deus". As against the Greek Gods, which, apart from being many, form a group closed in upon itself, the one Christian God is a God who communicates—He is a "*dia-logos*", more than a "*logos*", to use RATZINGER's useful expression—, a God who is love, conceived of in the way of "*agape*", rather than of "*eros*" or of "*philia*".

Another basic concept is that of "freedom". Far from determinism and a future subject to destiny, Christianity proclaims that man is free and is the master of his fate. Man is only subject to love's commandment. When positive law goes contrary to this commandment, equity overrides law, just as man is more important than Saturday. The conflict which sets Jesus Christ against the Pharisees may be read, in the light of equity, as a conflict between the legalistic mentality—setting law before man—and an outlook where, by contrast, the primary value is man, to which every other value is subordinate. Theologically, canonical equity is not only related to the primacy of the spirit over the letter of the law, rather, much more radically, it refers to the primacy of "*agape*" over the norm—"nomos"—, of charity and love over positive law.⁶⁷

66 FRANCESCO D'AGOSTINO: *Epieikeia...*, *op. cit.*, pp. 139-167.

67 FRANCESCO D'AGOSTINO: *Dimensioni...*, *op. cit.*, pp. 76-105.

3.1.2. Main Theories

3.1.2.1. Thomas Aquinas

The Christian concept of equity is revealed in the idea of canonical equity, mainly in Patristic and Scholastic theories. Within Scholasticism, it is THOMAS AQUINAS' thought on equity which stands out.

AQUINAS' concept of equity agrees almost completely with ARISTOTLE's. Already in an early work, AQUINAS, in his *Commentaries on the Sentences of Peter Lombard*—his first synthesis of a theological nature, written while still a young university teacher—we find a definition of “*epieikeia*” which agrees with the Aristotelian: “*Epieikeia, per quam homo, praetermissa lege, legislatoris intentionem sequitur*”—3 Sent., d. 37, q.1, a.4. We may further appreciate the parallel with ARISTOTLE in AQUINAS' *Commentary on the “Nichomachian Ethics”*—Book V, 16—and in the Question in the *Summa Theologica* where he refers to the role of *epieikeia* as a part of the virtue of justice—2a-2ae, q.120. It is curious to see, as much in ARISTOTLE as in AQUINAS, that the reflections on *epieikeia* are to be found at the end of their developing the theme of justice.

In the *Summa Theologica*—2a-2ae, q.120—we find the Aristotelian idea of equity as justice in the specific case, when faced with the impossibility of the law's foreseeing all particulars of the concrete situations to which it should apply, given its general nature. Often, for this reason, following the literal tenor of the law in all its rigour may generate injustice, and common sense might advise us to forget the letter of the law in order to respect its spirit. To be able to do this requires we be in possession of virtue. “*Epieikeia*” itself is a virtue. What is the relation between equity and justice?⁶⁸ Both ARISTOTLE and AQUINAS consider equity and justice neither completely identical nor totally opposed to one another. AQUINAS, as ARISTOTLE had, regards the virtue, “*epieikeia*”, as a species of justice, though not just any species. Rather he considers it as the most important, the highest realization of justice. In this development of the idea, analogy plays a relevant role. Justice conceived thus is an analogical reality, in a synthesis worked out by AQUINAS, and already outlined in ARISTOTLE. We may resume the thinking in the following way: *Epieikeia's* virtue is a subjective part of justice's virtue, but it is its prime, and highest, modality. Legal justice is a participating in equity, the supreme rule of human conduct. Therefore, there exists a ranking in the concept of justice, a hierarchical structure, where “*epieikeia*” is the culminating, the highest peak. “*Epieikeia*” is better than legal justice, which is justice according to the strict letter of the law, though which is also no better than all other forms of justice. “*Epieikeia*” is the ally of legal justice, in which it is partly contained, but which it, in large part, transcends. It is contained within legal justice when this not only attends to the letter but also

68 FRANCESCO D'AGOSTINO: *La tradizione*, op. cit., pp. 77-110, the quote in pp. 80-81.

to the spirit of the law. It transcends legal justice when that justice is conceived of as strict legalism or formalism, as a pure, literal reading of the law.⁶⁹

Thus, AQUINAS defines equity—which he also calls "*gnome*"—as that virtue which, dispensing with the letter of the law, follows the dictates of justice and of the common good. This interpretation of law seems to him more perfect than the simple application of the text of the law—"iustitia legalis". Still, AQUINAS—revealing in this a certain Platonic influence, counteracting ARISTOTLE's contribution—demands the "certainty" that the case considered really does constitute an exception to the law's general norm. In case of doubt, he holds, one must seek advice from a higher authority, always in the service of the common good.

Amongst the commentators on AQUINAS, perhaps the most important—in matters of equity—would be FRANCISCO SUÁREZ. Like other commentators on AQUINAS, SUÁREZ applies the doctrine of equity in a more liberal way than AQUINAS himself. SUÁREZ admits equity not only in those cases where it is absolutely "necessary" to avoid some evil, but also in others when its application proves more or less "suitable". This entails some innovations with regard to AQUINAS' idea of equity. While for AQUINAS equity is a sort of super-justice in the service of the "common good", for SUÁREZ equity is at the service of the "good of the specific person". We thus pass from a type of "universalistic" equity to a "personalist" one.

3.1.2.2. *The "Schism of the West" and the Invocation of Equity*

While, in the first half of the XIVth century, the crisis facing the Church was mainly the old question of the relation between Church and State, in the second half, the crisis spread to the very bosom of the Church itself. This culminated in the events of 1378 which gave rise to what has come to be known as the Schism of the West. It represented a true upheaval for Christianity, since it was much more than a crisis in ecclesiastical structure. As far as the social order was concerned, it was a real crisis in the faith the Church professed. It was a crisis in the system of values and, even, in the law. How could two different legal codes pretend to validity—both with pretensions to universality—as "*societas perfecta*", and yet, in many respects, be contradictory and irreconcilable? The individual had to have recourse to his own subjective conscience in order to determine which of the two he should choose. Europe was divided in two: France, Scotland, Aragon, Castile and Navarre were partisans of the Pope of Avignon; Italy, Germany, Hungary, England, Poland, and the Scandinavian Countries followed the Pope of Rome. To all this was added a crisis of trust in the law, with hopes pinned on a Concilium to save the situation.

69 MARCEL DUBOIS: "The Virtue of Aequitas in the Moral Philosophy of Thomas Aquinas", in A. MORECHAI RABELLO (ed.): *Aequitas and Equity...*, op. cit., pp. 140-151, esp. pp. 141-146.

At such a time, it is understandable that people should revert to equity, in its traditional Aristotelian-Thomist form as “*epieikeia*”. This appeared the only way of adapting the law to the new, historical reality, as against any sterile formalism. WILLIAM OF OCKHAM held that neither the Pope nor the Concilium were infallible. Infallibility is only an attribute of Holy Writ. Thus was prepared the road to LUTHER and Protestant Reform, with the theory of the free interpretation of the *Bible*.

The Schism of the West was a major crisis which, at the theological level, questioned the indisputable nature of PETER’s delegate and all his successors. At the legal level, the crisis showed itself as a desperate attempt to save the law by falling back on some such legal technique as “*epieikeia*” was.⁷⁰

3.2. Medieval Equity as a Type of Non-literal “Interpretation”

3.2.1. General Considerations

In the Middle Ages, the Glossators considered that “*ius*” looked to the spirit, and that “*aequitas*” looked to the concrete thing, its being an adaption to the specific. Although, in general, they found an obstacle to the equitable interpretation which ran contrary to what was written in the law—“*contra legem*”—, nevertheless they would use it where law was lacking—“*praeter legem*”—or to select the most satisfactory legal text from amongst various such texts.⁷¹

Drawing from Roman law, Canonical law and the influence of ARISTOTLE, “*aequitas*” gained new strength, going far beyond the narrow reach which the Glossators gave it in legal interpretation. It is in this way that equity came to be used—by Post-glossators or Commentarists—as a medium to confer unity on different kinds of laws: natural law, divine law, human law.

However, what truly characterized equity already in the Middle Ages—and later, especially in the Modern Era, after SUÁREZ, and with few exceptions—is that it ceased to be considered a moral virtue. It became “a legal interpretation going against the literal tenor of the law”. Equity then appears as a “restrictive interpretation” of the law, according to the benign “presumed will” of the legislator. It is presumed that, had the legislator had to hand the specific circumstances in which the law should be applied, he would excuse one from its literal fulfillment. Equity is then considered an, at least probable, presumption that the legislator would not have meant to enforce parts of the law, in such and such circumstances. It is seen as a type of legal interpretation characterized by a maximum of freedom and flexibility.

70 FRANCESCO D’AGOSTINO: *La tradizione...*, *op. cit.*, pp. 193-216.

71 Cf. GINEVRA ZANETTI: “Iustitia, aequitas ed ius nell’allegoria delle ‘Quaestiones de iuris subtilitatibus’”. *Rendiconti Istituto Lombardo di Scienze e Lettere*. Milano. LXXXIII, 1950, pp. 85-123; Id, “Carattere canonico dell’*aequitas*” nella letteratura civilistica preirneriana”, in *Rivista di Storia del Diritto Italiano*, XXVI-XXVII, 1953-1954, pp. 227-245.

3.2.2. Main Theories: The Glossators and the Post-Glossators or Commentators

The Commentators or Post-glossators contributed enormously to the theory of equity as a mode of interpretation, and they did so in a way very different from their predecessors, the Glossators.⁷² The difference between these two Medieval schools—the Glossators and the Post-glossators—is shown in two regards: with respect to the material object to be interpreted, and with respect to the formal object, their method, their point of view or the focus through which they carried out their interpretation.

The Glossators—CINO DE PISTOIA, PLACENTINO, ACURSIO, AZÓN, and so on—had as their object of study Roman texts, especially JUSTINIAN's *Corpus Iuris*. During the Middle Ages, this was considered a sort of common law—as against the recently created statutory law of the growing cities. It was a kind of "Bible of Law", the closest thing to what would later be the Codification of the Modern Era. A comparison is often made between the *Corpus Iuris Civilis* and the Napoleonic *Code*, insofar as their similar importance for their respective historical epochs is concerned. On their side, the Post-glossators interpreted Roman law, though in an indirect fashion, by way of the analysis of the Glossa of their predecessors, the Glossators.⁷³

The Glossators gave priority to the letter of the law, in their interpretive method, limiting themselves to making annotations or marginal notes on legal texts. That is, they made Glossas, what, today, we would consider a literal or grammatical interpretation of texts. This emphasis on the "*corpus*" of the law—as opposed to its intention ("*animus*") or to its soul ("*anima*"), to its spirit, in a word—is turned upside down by the Post-glossators, who gave greater importance to the spiritual element over the material, thus carrying out—what in modern legal parlance what would be seen as—a logical or a teleological interpretation of the norm. The law's "*ratio*", its "*intentio*" or the "*mens legislatoris*", they put before the "*littera*" or the "*mens legis*". Should there be a conflict between the two elements, the material and the spiritual, the Post-glossators gave priority to the latter. Here, BARTOLO DE SASSOFERRATO's example stands out. He held, for instance, that capital punishment, foreseen for all who spilt blood in the Communal Palace, should not be applicable when this came about because a doctor was attempting to save the life of a patient.⁷⁴

72 Cf. E. M. MEIJERS: "Le conflit entre l'équité et la loi chez les premiers glossateurs", in *Tijdschrift voor Rechtsgeschiedenis*, 17, 1941, pp. 117-135; also in his *Études d'Histoire du Droit. IV. Le droit romain au Moyen Âge*, II. Leyden. Universitaire Leyden. 1996, pp. 142-156.

73 Cf. A. ROTA: "La concezione irneriana dell'aequitas", in *Rivista Internazionale di Filosofia del Diritto*, III, 26, 1949, pp. 241-257.

74 PIER GIOVANNI CARON: "*Aequitas*" romana..., *op. cit.*, pp. 74-81; BARTOLO DE SASSOFERRATO: "In primam Codicem Iustinianum partem, tit. De legibus et constitutionem principum", *lex prima* "Inter aequitatem", 7-10.

4. Later Development of the Idea of Equity

4.1. *Martin Luther's Protestantism: Equity and Forgiveness for Sin*

The name “Protestantism” or the “Protestant Reform” is given to that movement of protest aimed at the then-existing Christian Church. It was initiated by LUTHER in the XVth century. The name is also given to the combination of communities, confessions, congregations, or sects, which arose out of this movement. The Protestant Reform is, then, the group of “heresies” which, in the XVIth century, shook the Catholic Church and broke its unity under the guise of trying to purify and perfect it.

The critical and individualist spirit and the greater freedom of humanist and rationalist thought, peculiar to the Renaissance, affected religious questions in general, and encouraged the seeking of less rigid, religious canons. The defects of the Church as an institution were taken note of, and denounced, in the hopes of recovering the Church's purity, a purity attributed to the early years of its existence. The salvation of man was sought in the individual's direct contact with Christ, in the reading of the *Bible*, and in its free interpretation. This religious unrest showed itself most clearly in the Germanic nations, more given than most to theorizing over spiritual matters. To this tendency was added the fact that the German Empire had been traditionally at odds with the Papacy.

The Protestant Reform had such eminent precursors as thinkers like ERASMUS OF ROTTERDAM and THOMAS MORE. It also had precedents in the heresies of WYCLIFFE—in England—and of HUSS—in Prague—, at the end of the XIVth and in the XVth centuries. Both of these were scholars who advocated a more spiritual and a purer Church, beyond political influence, and governed democratically. Later, LUTHER would do the same, rejecting the authority of Pope and bishops, the sacraments and the cult of the Virgin and the Saints.

Amongst the causes which triggered the Protestant Reform, we might underline the Schism of the West, which had contributed to the discrediting of the Papacy; and the political circumstances of many European monarchs who had just attained absolute power after the defeat of Medieval feudalism. They revealed themselves as rivals to the Pope for the universal power of Christianity. On another front, pious souls also showed unrest and a desire for reform within the Church—not for any complete break with it. In such circumstances, two key figures emerged: the German MARTIN LUTHER, who advocated a schismatic “Reform”, and the Spanish IGNACIO DE LOYOLA, who offered the Pope the unconditional obedience of the Company of Jesus, and counteracted the Protestant movement with his Catholic “Counter Reformation”.

The well-known Kantian saying “the true reason for equity is this: the most rigorous law is the height of injustice”—which without doubt is part of German

legal culture, though already formulated by Roman jurists as "*summum ius, summa iniuria*"—would be taken up by LUTHER in many of his writings. On all occasions, LUTHER recommended the principles equity should embody. For him, equity was not only conceived of in the classical, Aristotelian sense, but also in its canonical sense, where justice is moderated by grace, by piety, by *miser cordia* and charity. In sum, the Prince should relax his legal severity.

Already in his youthful works, we find explicit references to equity, understood as a synthesis of Aristotelian "*epieikeia*", Roman "*aequitas*" and Christian "*miser cordia*". LUTHER held equity in high esteem—references to it are spread throughout his works—and he thought of it in a way which closely follows the Scholastic and Canonical idea of love. LUTHER often identifies equity ("*Billigkeit*") with love ("*Liebe*"). In this, he also comes close to the idea of equity as virtue, as we have seen already intuited in ARISTOTLE. The importance LUTHER gives to equity is shown in his dictum: "*Epieikeia muss bleiben*" (equity must always remain), or in his considering equity as "*Milde*", a mitigation of punishments. For this thinker, one must always submit oneself to the grace of God—"*immer nur Gnade: da geht alle Zucht und Ehre unter im Lande*". It may be noted that LUTHER's expressions are, rather than deep, thought-out, meditations, really a summary of popular common sense.

LUTHER's equity plays a major role in the "remission of sins". He says that there is no human life that is without sin—"*Leben ohne Sünde*". The goal man must set is not to avoid sin—the which is impossible to realize—but rather to assume the sinful, human condition, then to live and transfigure it by faith, helping one's fellows sinners ("*Mitmensch*"), renouncing abstract principles and maxims, but following the impulses of love and charity ("*Lindigkeit*"), according to the demands of the times ("*Zeit*"), and of the moment ("*Stunde*"). To co-operate with the next man thus becomes a true vocation, almost a profession ("*Beruf*"), to which everyman is called at every moment of his life, so that God's creative love may not see itself destroyed by the powers of evil, in a continuous "*Neuschöpfung*", in a struggle with present conflicts ("*Kampfhandlungen*"). In this daily struggle, equity helps man give the best of himself, helps him overcome egoism and open himself up to an understanding of the demands of others, to brotherly accord, to true freedom. Thus, equity ("*Billigkeit*") and freedom ("*Freiheit*") become one.

Should even equity and love for your fellow man fail, then, says LUTHER, all that is left is prayer. In this way, equity, prayer, and forgiveness of sins, are joined together. He who believes is destined for salvation—justification by faith—, not by his own means but, rather, by the Grace of God. In LUTHER, what saves a man are not works but faith. The human being is not saved because of his own merits, but only when he recognizes his smallness and renounces all kind of earthly "*securitas*", stemming from wisdom and the practice of religion, since this life is not, according to LUTHER, a question of current being, but a ques-

tion of the future. It does not consist in quietude but in action. Nothing is already given and completed, everything moves and evolves. Equity is therefore found immersed in a complex cosmic vision, a *Weltanschauung*. Equity does not only work through the faithful, the baptized, but through all human beings who have experienced their tininess and their need for God.⁷⁵

4.2. I. Kant's Idealism: Equity in the Foundation of the Metaphysics of Custom

Below, we investigate KANT's idea of equity, especially in his *Foundation of the Metaphysics of Custom*.⁷⁶ To do so, we must always bear in mind ARISTOTLE's idea of equity. We must also take into account KANT's relation to the Enlightenment.

The central premise of the Enlightenment was the reign of reason. In this regard, KANT distinguished between the private and the public use of reason. These concepts, however, do not mean the same for him as they mean in the common language of today. In KANT, the private use of reason is that where reason's activity is limited by extrinsic factors. The public use of reason is that in which reason is subject to no external limit whatever. It is only limited by its own nature and by reason's internal logic. The distinction lies in the greater or lesser amplitude of reason's scope. The boundary line between the private and the public is, in other words, that which exists between the forbidden and the permitted.

An instance of the distinction might be seen in the case of a priest in his double function as one who recites the Mass to the faithful, and as a theologian who delves into the ultimate truths of religion. In the former example, we find what KANT calls the private use of reason, since the presence of the faithful and the nature of the rite mark the external limits of the preaching. In the latter instance, the theologian need not suffer any limitations other than those inherent in the subject he is investigating. In such a case, we find ourselves dealing with, what KANT calls, a public use of reason. Obviously, then, the terms "public" and "private," in KANT, have a meaning, in part, different from the common. The tension between the private and the public here is the same as that which fires the dispute between the man of action and the man of science. It is essential that censorship or other forms of limitation on intellectual freedom should not control the use of public reason. In the XVIIIth century—also known as the "the Age of Light" or "the Age of Reason"—and in the Modern Era, in general, the use of public reason receives greater emphasis. Perhaps, this might be thought of as an historical answer to the Middle Ages, when what predominated, in KANT's terminology, we have dubbed the "private use

75 FRANCESCO D'AGOSTINO: *Dimensioni dell'equità*, op. cit., pp. 111-149.

76 AGUSTÍN SQUELLA and ABEL GONZÁLEZ: *Dos concepciones de la equidad*, op. cit., pp. 49-55.

of reason". In brief, what is characteristic of modernity—in which KANT was thoroughly immersed—is the existence of a stage whose fruits and hopes are placed in rational activity.

4.3. *Codification as a Phenomenon Running contrary to Equity*

XIXth century Positivism and the Parliamentary zeal for everything which legal monopoly presupposes—following on from the distrust of all that legal arbitrariness presupposed in the XVIIIth century, as expressed by MONTESQUIEU and others—laid the foundations for a legal period characterized by the most absolute predominance of legality. A sign of this is the written documents of law, in petrified and rigid form, such as are the Codes and the Constitutions, in that dual historic phenomenon made up of Codification—starting with the *Napoleonic Code*—and Constitutionalism. The Law of Reason, prepared by Rationalism and the Enlightenment in the XVIIth and XVIIIth centuries, ended up embodied in these two phenomena. The certainty of law, the systematization of norms, the guarantee of individual liberty, all these things are themes which flow together in the search for the greatest limitation possible on the freedom of the judge when faced with the written text. Equity's openings are very limited in the *Napoleonic Code*.

Equity and law are set up as antagonistic terms with Codification. Equity may now only be part of the law, and must always take the law as its starting point. It may judge in accordance with law. What it cannot do is judge the law itself. There is an English maxim which holds: "*equity follows the law*".⁷⁷

Nevertheless, at present, we are witnessing a recrudescence of natural law, and a return to Scholastic sources and, with those things, a re-evaluation of equity. Equity may then appear not as a mere, exceptional, legal interpretation, dangerous to law, but as an ideal justice, natural justice or "super justice". In order to see this more clearly, below, we carry out an analysis of equity in the main, present-day, legal systems.

77 GERARDO BROGGINI: "Aspetti storici e comparativistici", in CENTRO NAZIONALE DI PREVENZIONE E DIFESA SOCIALE: *L'equità*. Milano. Giuffrè. 1975, pp. 37-48.

Chapter 3

Equity in “Space”. The Treatment of Equity in Different Legal Systems and Codes of Law

As important as the examination of equity through time is that examination which takes into consideration the other great coordinator in the study of phenomena: space. Equity varies according to which legal system is being treated of. RENÉ DAVID sets out as the best known, contemporary, legal systems, the following: “Western” Law, with two groups, these he designates the “civil law” group and the “Anglo-American” group. Then, there are: “Soviet” law; “Islamic” law; “Hindu” law; and “Chinese” law.¹

In dealing with equity, we might group legal systems by planes, in line with the three-dimensional scheme followed in this study. On the plane of facts, we would place the “equity” of Anglo-Saxon systems, with its roots clearly in the factic, with judge made law; on the most properly legal plane, that of norms, we would situate the family of Roman-German systems. Finally—and by way of questioning rather than affirming—might we speak of such legal systems as the Islamic and the Judaic as being on the plane of values? And, might this even also hold for the Soviet system—as a sort of negation of all value, value being of the superfluous superstructure, and hence to be abolished? We are aware that the three part division does not provide any absolute precision, and is never 100% adapted to reality, still we consider it does have a certain approximation to the real state of affairs amongst our chosen legal systems. Anglo-American legal systems tend to the factic. Continental systems, of a legalistic type, have a normative slant, *par excellence*. And—very close in semblance to the axiological of law—we indeed find Islamic or Judaic law, with the religious aspect very much in evidence. In what follows, we analyze these three types of system, and their different variants, beginning with Anglo-American “equity”.²

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- 1 RENÉ DAVID: *Tratado de Derecho civil comparado: Introducción al estudio de los Derechos extranjeros y al método comparativo*. Spanish translation. Madrid. Editorial Revista de Derecho Privado. 1953—cited by JOSÉ CASTÁN TOBEÑAS: *La formulación...*, *op. cit.*, p. 54, note 2 -.
 - 2 Cf. LEON GRANT GODLEY: *Outline of Equity*. Brooklyn. New York. 1926; PATRICK PARKINSON (ed.): *The Principles of Equity*. Sydney. LBC Information Systems. 1996; ROBERT S. PASLEY: “L’equity en droit anglo-américain”, in *Revue Internationale de Droit Comparé*, 1961. Spanish translation: “La ‘equity’ en el Derecho angloamericano”, in *Revista Internacional del Notariado*, 52, 1961, pp. 81

1. Factual Plane: Anglo-American Equity

1.1. Introduction

Although it is certain that Anglo-Saxon systems, as opposed to those we call “Continental”, reveal a minimum common denominator, an identical hard core, nevertheless, an in-depth analysis into the reality of the case allows us to appreciate clear differences amongst the various countries this block represents, since it is not possible to talk of any uniform Anglo-Saxon culture. There exist many sorts of “*common law*” systems, if we not only consider the English system, but also the Scottish, the Irish, and all the different States of the United States,³ the systems found in the ex-colonies Canada, Australia or New Zealand.⁴

We might say that to the “*common law*” family belong, with certain exceptions, almost all the English-speaking countries. For their importance, and each with its own peculiar characteristics, we should basically highlight two systems: English law—historically occupying the most relevant position—and United States’ law—an offshoot of the plant, the ancient Metropolis, England, and of enormous importance in our time.

In turn, within English law, one must make a series of observations regarding its sphere of application. English law is limited to England and Wales. It does not cover Scotland—where a hybrid system is in place, which is, in part, similar to Continental law—or Northern Ireland, or the Channel Islands, or the Isle of Man.⁵

ff.; WILLIAM SULLIVAN PATTEE: *Illustrative Cases in Equity*. St. Paul. Minn. West. 1893; Id, *Authorities, Deductions and Notes in the Elements of Equity*. Minneapolis University Press. 1900.

3 Cf. ANGELO PIERO SERENI: “L’equity negli Stati Uniti”, in *Rivista Trimestrale di Diritto e Procedura Civile*, 2-3, 1952, pp. 311 ff. Also in *Studi di Diritto Comparato*, I, Milano, 1956, pp. 68-147.

4 ANTOINE GARAPON: “Peine fixe v. individualisation: analyse d’un clivage culturel”, in *Justices. Revue Générale de Droit Processuel. Justice et Équité*, 9, January-March 1998, p. 148; C. AE. UNIKEN VENEMA: *Law en equity in het Anglo-Amerikaanse privaatrecht: rechtsvergelijkende beschouwingen betreffende de belangrijkste structuren en begrippen in het Anglo-Amerikaanse privaatrecht*. Rjeenk Willink. Zwolle. 1990. London. Butterworth. 1924; ANDRÉ TUNC: “L’équité en droit anglais et en droit américain”, in Various Authors: *Justice et équité, op. cit.*, pp. 123-131.

5 Cf. MARÍA LUISA MARÍN CASTÁN: *Significado y alcance de la equity inglesa*. Thesis directed by JOSÉ ITURMENDI MORALES. Madrid. Editorial de la Universidad Complutense de Madrid. 1985, pp. 10 and 38-39. Id, “Razón y Ciencia en la Equity Inglesa del Siglo XVI. Algunas Consideraciones sobre la Obra de C. Saint Germain ‘Doctor and Student’”, in *Reason in Law*, II, Milano, 1988, pp. 63-74.

It is essential to detail carefully, and to use precision, when employing terms here. When we say "Anglo-American" law, we mean a mixture of the English and the American, as in the case of the U.S.A. "Anglo-Saxon" refers to English-speaking countries in general. Speaking of the "United Kingdom", we allude to Great Britain and Northern Ireland.⁶ By Great Britain, we mean only England, Scotland⁷ and Wales. English law refers exclusively to England, and, by extension, to Wales. These terms—Anglo-Saxon, British and English—are not synonymous, and must not be used as equivalents.⁸

We deal in more detail with the differences, in terms of "equity", between the main Anglo-Saxon systems of law, later on. That is, basically, the English, the American, and the Scottish systems. However, before analyzing the Anglo-Saxon system in its own terms, we might view it from the outside, contrasting it with the Roman-Germanic based Continental systems. Here, we might point out as a curiosity that—though, in general, the Anglo-Saxon system has no Roman foundation, but rather, quite the contrary—there is yet, as regards equity, a close analogy between Anglo-Saxon law, specifically English law, and Roman law, between the jurisdiction of the Chancellor and the old Roman Praetor.

1.2. *English Law*

1.2.1. Differences between the Common Law System and the Continental European Civil Law System

While the present section deals with "*common law*" systems in general, we here add the rider that it is basically inspired by English law.⁹ Given that this is the

- 6 JAMES HEATH: "Aequitas' and 'Lex' in the United Kingdom: Motive and Material for Research", in *La Formazione Storica del Diritto Moderno in Europa*. III. Firenze. 1977, pp. 127-166.
- 7 Cf. DAVID M. WALKER: "Equity in Scots Law", in R. A. NEWMAN (ed.): *Equity in the World's Legal Systems*, *op. cit.*, pp. 187-205; ESIN ÖRÜCÜ: "Equity in the Scottish Legal System", in A. MORDECHAI RABELLO (ed.): *Aequitas and Equity...*, *op. cit.*, pp. 383-395.
- 8 Cf. GUSTAV RADBRUCH: "El espíritu del Derecho inglés", translation into Spanish by FERNANDO VELA, *Revista de Occidente*, 1958.
- 9 Cf. CLIVE M. SCHMITTHOFF: "Die Englische Equity", in *Festschrift für Ernst von Caemmerer zum 70 Geburtstag*. Tübingen, pp. 1049-1066; G. BURTON ADAMS: "The Origin of English Equity", in *Columbia Law Review*, 16, 1916, pp. 87-98; JOHN ADAMS: *The Doctrine of Equity*. 8th ed. Philadelphia. Johnson. 1890. WALTER ASHBURNER: *Principles of Equity*. London. 1902. 2nd ed. by Browne Butterworth. London. 1933. (1st ed. 1902). HENRY BALLOW: *A Treatise of Equity*. Dublin. S. Cotter. 1756. CHARLES NEAL BARNEY: *Equity and its Remedies*. Boston. Jackson. 1915. GEORGE TUCKER BISPHAM: *The Principles of Equity*. 9th ed. New York. Banks Law Publ. Co. 1915. New York. Baker. 1931. 11th ed. IAIN J. BLACK - ELISABETH TWEED: *Equity in a Nutshell*. London. Sweet & Maxwell. 1951. VIRGINIA BLACK: "Legal Equity ad its Misuse", in *Vera Lex*, 11, 1, 1991, pp.

basis of the other common law systems, what is attributable to it is—in great part and transatlantically—also attributable to the others.¹⁰

The legal culture of Western Civilization is divided into two large sections which are very different from one another. On the one side, there are the countries of the European Continent, on the other, the Anglo-Saxon world. The dif-

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- 8-10. M.D. BLECHER: "Equitable Delimitation of Continental Shelf", in *American Journal of International Law*, 73, 1979, pp. 60 ff. YEHUDA Z. BLUM: "The Role of Equity in International Law", in A. MORDECHAI RABELLO (ed.): *Aequitas and Equity...*, *op. cit.*, pp. 229-239. EDWARD EGBERT BLYTH: *An Analysis of Snells Principles of Equity: with Notes Thereon*. London. 14th ed. Stevens & Haynes. 1929. (6th ed. 1898). BRADY: "Equity Without the Equity Lawyers", in *Acta Juridica*, Cape Town. 1978, pp. 125-134. ZECHARIAH CHAFFEE: *Some Problems of Equity*. 1950. Id, *Cases and Materials on Equity*. Brooklyn. Foundation. 1958. 5th ed. 1967. Id, *Book Review*: HAROLD G. HANBURY: *Moderne Equity: The Principles of Equity*. Ithaca. New York. *Cornell Law Quarterly*. 1945. LESLIE BASIL CURZON: *Equity*. London. Macdonald & Evans. 1967. (2nd ed. 1974. 3rd ed. 1979). DE FUNIAK: *Handbook of Modern Equity*. Boston-Toronto. 1956. SIR RAYMOND EVERSLED: *Aspects of English Equity*. Jerusalem. Magnes Press. The Hebrew University. 1954. ANN H. EVERTON: *What is Equity About?* London. Butterworths. 1970. Id, "Equitable Interests and Equities - In Search of a Pattern", *en Conv.* 40, 1976. GEORGE E. GARDNER: *A Review on Laws and Equity for Law Students: a Handbook for Law Students*. New York. Baker. Voorhis. 1895. M. GARSIA: *Equity in a Nutshell*. 3rd ed. London. Sweet and Maxwell. 1941. HAROLD GREVILLE HANBURY: *Essays in Equity*. Oxford. Clarendon Press. 1934; Id, "The Field of Modern Equity", in *Law Quarterly Review*, 45, 1920, pp. 12 ff. Also in *Essays on Equity*, pp. 23-54; Id, "The Place of Equity in a Curriculum of Jurisprudence", in *Essays on Equity*, pp. 55-68. HAROLD GREVILLE HANBURY - RONALD HARLING MAUDSLEY: *Modern Equity*. 13th ed by JILL E. MARTIN. London. Stevens and Sons. 1989. 6th ed. (1952). KENNETH A. HARDY: "Equity in Court Dispositions", in *Evaluating Performance of Criminal Justice Agencies*. Beverly Hills. 1983, pp. 183-210. HAYNES: *Outlines of Equity*. Cambridge. Macmillan. 1858.
- 10 Cf. P. D. FINN (ed.): *Essays in Equity*. Sydney. Law Book Company. 1985. S. G. FISHER: "The Administration of Equity through Common Law Forms", in *Law Quarterly Review*, I, 1885, pp. 445-465. Reprint in ASSOCIATION OF AMERICAN LAW SCHOOLS: *Selected Essays in Anglo-american Legal History*, 3 vols. Boston. 1907-1909. GEORGE GOLDSMITH: *The Doctrine and Practica of Equity: or a Concise Outline of Proceedings in the High Court of Chancery*. 5th ed. London. 1867; PETER M. HORSFIELD: *Equity in a Nutshell*. London. Sweet and Maxwell. 1960; CENYD HOWELLS: *Equity in a Nutshell*. London. Sweet and Maxwell. 1966; GEORGE WILLIAMS KEETON: *An Introduction to Equity*. 5th ed. London. Pitnam. 1961. (1st ed. 1938; 2nd ed. 1948; 4th ed. 1956). Id, *Equity*. Milton. Professional Books. 1976. 2nd ed. Id, "The Study of Equity Today". *Jubilee Lectures of the Faculty of Law University of Sheffield*, pp. 59-81.

ference between them principally lies in a difference of sources. These may be outlined as follows:¹¹

1. The countries of the European Continent had received Roman-Byzantine law in the XIIth and the XIIIth centuries—the "Reception" phenomenon. This was found especially in the works of the Emperor JUSTINIAN—the *Code*, the *Digest* and the *Instituta*, completed in the series of *Novelas*, published between 529 and 534 A.D. These countries, in the bosom of their universities, worked out a common legal science, with its own methods, schemata, and vocabulary, via the work of the Glossators and the Post-glossators and, more recently, the Pandectists, who bestowed on the discipline, known as Legal Dogmatism, the greatest degree of systematization and conceptualization.

In contradistinction to the eminently Roman character of continental legal systems, the lack of Roman law influence on the formation of English law stands out. Roman law studies in England have been, traditionally, exclusively confined to the Universities. There, they stayed on the purely academic plane, with no direct influence on the legal system. As proof of this truth, we might cite the fact that, in England, it has never been demanded of judges and lawyers that they possess a law degree. Both kinds of legal professional have been trained by practising at the bar, judges being chosen from among the most prestigious "*barristers*", as the culmination to a brilliant professional career. English law—with its procedures, positive rules, institutions, and the rest—was English, not Roman, the "*common law*" being virtually consolidated in the XVIIth century.

Though already in the days of the Glossators—the first scientific elaborators of Roman law in the University of Bologna (1100-1250)—Roman law was also taught at Oxford. The guild of lawyers, then organized, took care to reserve to themselves the training of future lawyers, based on the teaching of national law, whereas, on the Continent, there only developed jurists' law based on the reception of Roman law. England resisted this move because it already had a body of lawyers schooled in national law. The same occurred with the European Codification phenomenon, at the end of the XVIIIth and start of the XIXth centuries. England showed itself alien and indifferent since, by this time, it had practically already consolidated its own "*common law*".

2. Continental countries, constituted as Nation States mainly during the XVIth and XVIIth centuries, basically possessed a legislative structure, written law being the main, and almost exclusive, source of law, in the normative hierarchy of their legal systems—insofar as general norms emanated straight from State power. At the end of the XVIIIth and the beginning of the XIXth

11 Cf. MARIO BACHI: "I poteri del giudice in un sistema di codice, di 'judge made law' e di equità", in *Rivista Internazionale di Filosofia del Diritto*, 1952.

centuries, Codification appeared in all of them—a phenomenon coming after the reception of Roman law. It was a decisive factor in their respective national law's unification, and was fundamentally inspired by earlier ideas of rational natural law, the French Encyclopedists, and the Doctrine of Nationalities. It favoured the dogma of the law's omnipotence. Using the codification technique, the nations proceeded to order and systematize the legal norms of the different branches of private law into Codes. These were organic wholes of systematized norms, with a logical, internal structure, as opposed to "recompilation" which was a mere juxtaposed aggregate of norms. This gave the law stability, unity, coherence—the lack of antinomies—and "plenitude"—that is, a lack of legal gaps. This latter was achieved by such methods as "self-integration".

Against this legislative character of the Continental systems, traditional, Anglo-Saxon legal systems, with English law at the head, are based upon case law. The promoter of law, in these systems, are the Courts and the magistracy, not the legislator. It is said that, while Roman-Germanic systems make up a law of "University Chairs", "*common law*" systems are a law of judges. For them, the case is more important than the norm. In the former systems, law proceeds by "*deduction*", it descends from the abstract legal principle to the specific case. In the latter, by contrast, law ascends by "*induction*", from the specific case to the general legal principle.

3. The idea reigning in Continental systems is a rationalist, normativist and formalist conception of the world. This is against the empiricism and realism of the Anglo-Saxon system. In the former, *generalization* predominates, in the latter, *casuistry*. Theory, in the first, is offset by the practical spirit of the second. As far as tradition is concerned, "*common law*" appears as a conflict resolution technique, consisting of applying principles taken from legal experience, conserved in collections of case law. It is carried out in the spirit of solid Anglo-Saxon custom which deals with things and solves problems "when and where they turn up"—this rather than "anticipating" solutions via universal, abstract formulae, as is done in Continental systems.

4. Within the Continental family, law is marked by change, by rupture, in the shape of *revolution*. The English legal system, by contrast, shows great historical continuity, without any important rupture having been made in its trajectory. It shows a kind of continuous *evolution*.

A proof of this respect for tradition in England is the veneration and regard for ancient precedents. These are frequently and continually cited by judges, constantly revalorizing for themselves ancient case law. On the Continent, with the passing of a certain amount of time, ancient case law starts to lose its value. Judge HOLMES' comment comes directly from this reverence for tradition. Referring to the "*common law*", he said: "In law, a page of history is worth more than a page of logic".

5. Perhaps, however, the separation between the two systems is best exemplified by their system of sources. English law is a case system, "*case law*", in a wide sense, an eminently judge-made law. It functions in the following way:

- a. There is "*judge made law*", assuming the three following forms:
 - A consensual law, "*customary law*", which takes in traditional uses declared by the popular Courts.
 - "*Case law*", in the strict sense, consisting of "*judicial decisions*", made by judges.
 - "*Equity*", not understood in the Roman-Germanic way, as outlined above—as justice in the specific case, moderating justice—but viewed in the Anglo-Saxon fashion, as a jurisdictional system in itself, derived from arbiters and judges' discretion when applying general considerations of justice to legal controversies.¹²

As regards equity, the current Anglo-Saxon concept of equity has nothing in common with the Continental notion apart from its name—which logically leads to error—and its initial, historical origin. Its origin goes back to the "*aequitas canonica*" which was the basis of not only Continental equity but also of English "equity" in its beginnings, when, in the Middle Ages, the Chancellors of England were ecclesiastics.¹³ Today, however, the idea equivalent to the notion of "Continental equity" is not "English equity" but rather what is called "*natural justice*".

The institution referred to below is not this "*natural justice*", it is what is known as English "*equity*". It is a branch of "*case law*", and constitutes a category different from both "*statute law*" and "*common law*". Its existence was indissolubly linked to that of a specific historic institution, the "*Court of Chancery*", for 500 years of its history, from the XIVth to the end of the XIXth century.

- b. "*Legislation*" or "*statute law*" refers to written law; this includes not only the law properly speaking—formal law or "*Act of Parliament*"—but also administrative rules of a rank inferior to law itself.

The great mass of legislation is called "public law". In the field of "private law", it is still the Courts which hold preeminence. Within that sphere, norms promulgated by the legislator only come to be fully assimilated into the English legal system once they have been interpreted and re-elaborated by the Courts of Justice. Should a conflict arise between such legal rules and the legal principles of "*common law*", then the following maxim is applied: "*laws which go against the 'common law' must be interpreted restrictively*".

12 Cf. GARY F. BELL: *What do we Mean by Equity?* 1993; HARRY RAJAK: "Equity v. Statute", in S. GOLDSTEIN (ed.): *Equity and Contemporary...*, *op. cit.*, pp. 100-115.

13 Cf. DE LUCA: "Aequitas canonica ed equity inglese alla luce del pensiero di C. Saint-Germain", in *Eph. i.c.*, 1947.

Further, a “*legal rule*”, in the English system, is not of the nature of a generality, as it is in Continental law, and it may not dissociate itself from the factic elements brought out by the specific to cases to which it applies. This is in keeping with the eminently procedural character of English law. It explains the special make-up of the “*legal rule*”, and the importance which the factic element assumes therein. The English “*legal rule*” is considered a legal norm, immediately aimed at the solving of a litigant’s case, and whose reach is thus determined by each and every one of the elements of the case for which it was specifically formulated. Hence, translating the Continental idea of the legal norm into an English idiom, would give us something like an “*abstract precept*”, a “*legal principle*” or a “*general directive*”. It would not give us either “*legal rule*” or “*legal provision*”.

Over against the “*legal rule*”, we find the “*rule of precedent*”; in Continental parlance: “opposed to law” PRECEDENT.¹⁴

Here, we should make it quite clear that what we are studying is the “concept” parallel to Spanish law’s understanding of “*jurisprudencia*” and not the Anglo-Saxon “term” “*jurisprudence*” which is a synonym for Legal Science—as it was in Roman law.

“*Precedent*”, as a Court sentence or finding, has totally different characteristics in English law to those of Spanish “*jurisprudencia*”. These differences are basically three:

First, English “precedent” is true law. Legal sentences are not only a source of the law, they are the main source of the law. This goes contrary to Spanish law, where precedent’s task is as a mere complement to law, and never a real source of the law. This is from whence we see the truth of the aphorism, in Anglo-Saxon systems, according to which the judge creates the law. Precedent is “*judge made law*”.

English precedent is “*binding*”, it exercises a “*coercitive effect*”. In Spanish “*jurisprudencia*”, it merely produces a “*persuasive*” effect. In this matter, the English principle of “*STARE DECISIS*”—or “*stare decisis quieta non movere*”—reigns. That is to say, the “abide by the already decided and do not modify the already existing” is adhered to in making judicial decisions. Nevertheless, this rule does admit of exceptions when the earlier decision is evidently contrary to reason, and, still more, should it prove contrary to divine law. The law’s formula is thus: precedents and rules must be followed unless they be clearly absurd

14 Cf. LEONOR MORAL SORIANO: *El precedente judicial*. Prologue by ZENON BANKOWSKI and NEIL MACKORMICK. Madrid. Marcial Pons. 2002. See also the book about precedent by MARÍA VICTORIA ITURRALDE SESMA, edited in Madrid by Civitas.

or unjust.¹⁵ The "*stare decisis*" principle was not formally consecrated, in legal practice, until the end of the XIXth century.

We thus arrive at a consideration of—what has been called—the basic technique of English law, the technique of "*DISTINCTIONS*". We shall attempt to give an approximate translation of this idea. Such a technique is used with the purpose of reaching an "attenuation" of the rigour with which one acts or, better, one would normally act. The rule of precedent, in this way, avoids the danger of legal stagnation and paralysis. By virtue of the application of "*distinctions*", specific cases are dealt with, allowing the judge to appreciate particular elements which do not exactly exist, or which had been overlooked in similar situations ruled on in the past. He can then introduce new solutions and avoid the rigidity, the immobility, and the lack of expansive strength in the law.

In fine, the working of the "*distinctions*" technique is like this: the legal principle, expressed in a precedent, is only binding in what comes after, insofar as it is necessary to resolve the case in question, the case submitted to the judge's decision, "*ratio decidendi*"—that is, the reason why the case is decided in a specific manner, and the basis for the normative decision to be used in future cases. However, if the principle was not essential, but was only an accidental element in the judge's decision, it would lack normative standing. "Accidental elements" are such things as "*obiter dicta*", legal and factual antecedents, marginal opinions, everything which does not affect the essential content of the case at hand.

Secondly, with respect to the number of sentences necessary for the precedent to become a part of English case law, just one case is enough. Various, at least two or more, are needed in Spanish law for there to be "*jurisprudencia*".

Finally, the third difference between Spanish "*jurisprudencia*" and Anglo-Saxon precedent is that, in the former, the sentence must come from a hierarchically higher Court, while Anglo-Saxon precedent may be set by any judge or Court, irrespective of hierarchical rank.¹⁶

A "precedent" is a Court of Justice's judgment or decision, cited with authority to decide a similar case in the same way, either according to the same principle or by analogy. In the Roman-Germanic legal system, the concept of the law has a "*closed*" nature. Such systems are closed systems. There, at least in theory, all matters can and must be given an immediate solution via the "interpretation" of a legal norm, generally formulated beforehand by the legislator in rather broad terms. As against this, Anglo-Saxon systems are "*open*" and inconclusive. Here, numerous legal gaps are taken for granted, and the judges

15 Cf. MARÍA LUISA MARÍN CASTÁN: "Consideraciones sobre el Derecho inglés como prototipo de sistema de Common Law y sus diferencias respecto de los sistemas romano-germánicos", in *Revista General de Legislación y Jurisprudencia*, February 1984, p. 171.

16 M. L. MARÍN CASTÁN: "Consideraciones sobre el Derecho inglés...", *cit.*, pp. 173-174.

and magistrates' mission is to basically concentrate on the process of finding out and establishing specific norms, aimed at solving concrete cases, and applicable to the matter specifically being addressed. Not for nothing is it said that the continental judge "*defines*", while the English one "*enumerates*".

6. Still, what is "*common law*", and what, "*equity*" as counterposed systems and jurisdictions?¹⁷ English "COMMON LAW" is the systematic conjunction of principles taken from legal precedent, coming out of the Royal Courts at Westminster Hall. These Courts are in fact called the "*Courts of Common Law*". Here cases of interest to the Crown are aired, the origin of a public law, common to all England—as opposed to that law which is based on local custom. These principles cease to be of "exceptional" jurisdiction to become of "common" jurisdiction, perfectly applicable to any case whatever.

For its part, and distinct from "*common law*", "*equity*" is the conjunction of principles taken from the precedents of the old "*Court of Chancery*", whose origins go back to two centuries after the "*Courts of Common Law*". These precedents are then applied by English Courts, though—not having been promulgated the *Judicature Acts* (1873-1875)—they will be exclusively applied by those legal institutions called "*Courts of Equity*".

Today, after the "*Judicature Acts*" of 1873-1875, "*common law*" and "*equity*" may be imparted by the same Courts, but their principles are so different that, even in very recent times, they constitute separate branches of "*judge-made law*". These differences in their rules and principles are a consequence of their distinct historical origins.¹⁸

1.2.2. Similarities between the Common Law System and Roman Law with regard to Equity

PUIG BRUTAU, in his work *La jurisprudencia como fuente del Derecho*, dedicates Chapter II to pointing up the analogies between primitive Roman law and the setting up, and initial unfolding, of English "*equity*". He shows the false analogy between the XII maxims of "*equity*", called the "*XII Tables of Equity*", and the first body of Roman law, the "*Law of the XII Tables*". Although both are attempts at systematizing a series of legal rules, the similarity between English "*equity*" and its equivalent in Roman law is best looked for less in primitive "*ius civile*" than in the "*ius gentium*", via "*ius honorarium*" or "*ius praetorium*".¹⁹

17 Cf. W. W. BILLSON: *Equity in its Relations to Common Law*. Boston. Boston Book Co. 1917.

18 MARÍA LUISA MARÍN CASTÁN: *Significado y alcance de la equity inglesa*, *op. cit.*, pp. 19-89. NARCISO ANDRADA HERRERO: *La equidad como elemento...*, *op. cit.*, pp. 221, 240 and 247.

19 JOSÉ PUIG BRUTAU: *La jurisprudencia como fuente del Derecho*. Barcelona. Bosch. 1953, pp. 87-130. KARL-HEINZ ZIEGLER: "Aequitas in Roman International Law", in A. MORDECHAI RABELLO (ed.): *Aequitas and Equity...*, *op.*

In effect, the divide between formal or strict law ("*ius civile*") and equitative law ("*ius honorarium*"), so characteristic of Rome, reveals many similarities to the distinction between "*common law*" and "*equity*", as seen in English law.²⁰ In both legal systems, rigid and formal norms were gradually mitigated through a legal system of equity. This similarity in the two systems is basic. Equity, up against "*ius strictum*", completes the latter's rules and corrects their defects, softening them, to fit them to the specific case.

Moreover, coincidentally, English "*equity*" and Praetorian "*aequitas*" both started out as forms of "natural" justice, fitted to the specific circumstances of each particular case, to end up becoming a "formal" system, a systematic body of positive rules.

Thus, for instance, M. RADIN, showing the development of the Chancellor's "*writs*", offers a curious parallel to the Roman procedure of the "*formula*". In the one and in the other, who the parties are, the cause of the suit, and what the point at issue was which needed to be resolved, all had to be recorded in writing. After a short while, certain sorts of formulae acquired a typical character, giving rise to a body of law, growing up around them, so establishing the conditions under which the "*writ*" or the "*formula*"—in short, the case—would be allowed or denied, and, depending on the outcome, prosper or be rejected.²¹

In fact, at the end of the XIIIth century, the English legal system began to wear out the judges' ability to suit law to the new circumstances. The law became insufficient to solve new problems. Therefore, faced with complaints received, to satisfy the new needs, Parliament authorized the Chancellor to extend new writs—on the model of the old ones—to analogous cases. It was by the same route that, at the end of the XVth century, the Chancellor's jurisdiction was extended to supply "*common law*" solutions through the use of "*equity*", to fill up gaps caused by the rigidity to which the law had succumbed, and to correct the abuses to which rigidity had given rise.²²

cit., pp. 48-63; H. K. J. RIDDER: "Aequitas und Equity", in *Archiv für Rechts-und Sozialphilosophie*, 39/2, 1950-51, pp. 181 ff.

20 Cf. G. PUGLIESE: "'Ius honorarium' a Roma ed 'equity' nei sistemi di 'common law'", in *Rivista Trimestrale di Diritto e Procedura Civile*, 42, 1988, pp. 1105-1126; WILLIAM WARWICH BUCKLAND: *Equity in Roman Law*. London. University of London Press. 1911. Cambridge. 1933; WILLIAM HOLDSWORTH: "The Influence of Roman Law on English Equity", in *The Lawyer and Justice*. London. 1978, pp. 15-30.

21 M. RADIN: *Handbook of Anglo-America Legal History*, St. Paul (Minnesota), 1936, p. 180, cited by MARÍA LUISA MARÍN CASTÁN: *Significado y alcance de la equity inglesa*, *op. cit.*, pp. 105-106.

22 JUAN BERCHMANS VALLET DE GOYTISOLO: *Metodología de la determinación del Derecho. II. (Parte sistemática)*. Madrid. Centro de Estudios Ramón Areces. 1996, pp. 1443 and 1501 ff.

However, there exist differences between the Praetorian, Roman system and that of English “equity”.

In Rome “*ius civile*” and “*ius praetorium*” were applied by the same Court, while in England there were distinct jurisdictions for the application of “*common law*” and of “equity”.

In Rome, Praetorian law was superimposed on civil law, leading practically to its suppression or disappearance; in England, however, “*common law*” and “equity” have co-existed as parallel and concurrent legal systems.²³

1.2.3. Different Phases of English Law in Relation to Equity

According to MARÍA LUISA MARÍN CASTÁN, in her doctoral thesis on the subject of “English equity”, the historical formulation of the idea’s evolution might be set out in five consecutive stages which, starting from 1066—the year historians usually fix upon as the start of English legal history—are as follows:²⁴

—From 1066 to 1307, *common law*’s origin and foundation stage, where, properly speaking, we cannot yet talk of the existence of “equity”.²⁵

A basic institution of Medieval English law—going back to Henry II— is the “*King’s writ*”, destined to constitute the origin of legal actions.²⁶ The word “*writ*” has various meanings: “command”, “provision”, “order” or “decree”. Writs were originally dictated by the King and, over time, ceased to be monarchical orders to become summonses or commandments of the judges. Originally, the Chancellor examined each case submitted to him in order to find out whether to proceed with the writ or not. Soon, however, a list of writs, in common use, was drawn up—the “*brevia formata*” or “*brevia de cursu*”. This list was at the service of the citizens, in specific circumstances, after having previously paid the Chancellor for the rights. As with Greek “*epieikeia*”, it was justice in the specific case. *Equity* was compared to the shoe-maker’s shop where there were

23 JOSÉ CASTÁN TOBEÑAS: *La formulación judicial del Derecho*, op. cit., pp. 47-50. MARÍA LUISA MARÍN CASTÁN: *Significado y alcance de la equity inglesa*, op. cit., pp. 54, 60, 105 and 275.

24 Cf. HAROLD DEXTER HAZELTINE: “The Early History of English Equity”, in P. VINOGRADOFF (ed.): *Essays in Legal History*. Oxford. 1913, pp. 261-285; HOLDSWORTH: *History of English Law*, 9 vols. 3rd ed. London. 1922-1926.

25 J. L. BARTON: “Equity in the Medieval Common Law”, in R. A. NEWMAN (ed.): *Equity in the World’s Legal Systems...*, op. cit., pp. 139-159; WILLIAM HOLDSWORTH: “Blackstone’s Treatment of Equity”, in *Harvard Law Review*, 43, 1929, pp. 13-24; OLIVER WENDELL HOLMES: “Early English Equity”, in *Law Quarterly Review*, I, 1885, pp. 162-174. Also in *Select Essay in Anglo-American Legal History*, II, pp. 705-721.

26 Cf. BARBOUR: “The History of Contract in Early English Equity”, in *Oxford Studies in Social and Legal History*, IV, pp. 100 ff.

all kinds of boot trees to match men's feet, where each one, sooner or later, might find what suited him, whether it be large or small.

Still, with time—given the general tendency to appeal to the King's jurisdiction and the fear of the nobles that this would weaken their power and their justice-giving functions, which up until then they had exercised—an important document, the *Provisions of Oxford*, was signed, in 1258. There, it held that the Chancellor might not award new writs without the King and Council's consent. This was confirmed, in part, by Chapter 24 of the *IInd Statute of Westminster*, in 1258: "No writ shall be created in future without Parliamentary authorization and, moreover, writs should be awarded for cases alike in their essence".

—From 1307 to 1485, the second stage is the age of greatest splendour for "common law", when "equity" first appears upon the English legal scene, in its primitive meaning of "conscience".

Faced with the impossibility of issuing new writs, as a method of legal expansion and creation, the Chancellor would find a new means of development, in the XIVth century, by way of the jurisdiction of "equity"—or rather "conscience", as imparted by the *Chancellor*, a jurisdiction later to become the "*Court of Chancery*".

As First Minister to the King and duly qualified, the Chancellor—generally a man of wide culture—began to develop his legal power, and this was more and more sought after by private citizens. These individuals were well aware of the procedural obstacles which infected the "common law" system. The Chancellor took care of individuals' petitions, known as "*bills*", as opposed to the procedure followed by the Common Law Courts, a procedure which began with an "*action*" rather than a bill. The Chancellor was also "*the keeper of the King's conscience*" and accompanied him wherever he went, unlike the Common Law Courts, with their fixed headquarters at Westminster.

The Chancellor based his decisions on principles stemming from natural and canonical law, in order to lessen the rigours of applying strict law. That is, he softened "common law" in the name of conscience and of moral considerations. This idea of tempering the law approximated the Christian Medieval notion of Canonical "*aequitas*", though, rather than using this term, at least initially, we find more general expressions such as "*good conscience*", "*good faith*", or "*good reason*". This early English equity, like Continental canonical equity, was different to the technical idea of equity developed later.

—1485 to 1672 is a very important period insofar as our subject goes, when rivalry and conflict grew up between the special jurisdiction of equity and the jurisdiction of the "*Common Law Courts*". By this time, the Chancellor's position was no longer normally filled by an ecclesiastic, as in earlier times. Now, at the head of the Chancery, we begin to find important men related to the world of law, that is to the practice of the law, "*lawyers*". The first of these modern type Chancellor lawyers was THOMAS MORE. With this type

came a “juridification” of the Chancellor’s jurisdiction. The Chancery ceased to be a “jurisdiction of conscience”, which applied different rules from those of “*common law*”, that is, “*rules of equity*”.

We become aware now that equity is already a source of law proper with the appearance of CHRISTOPHER SAINT-GERMAIN’s famous work the *Dialogues*. He issued these under the more popular name of *Doctor and Student*, in the first third of the XVIth century. Equity thus loses the earlier terrain occupied by its rules to a new systematization and technification process.

At this stage, a personal confrontation took place between two illustrious legal personages, Sir EDWARD COKE—who was in favour of the Courts of Common Law—and Lord ELLESMERE—Chancellor from 1596 until 1617. ELLESMERE would be succeeded by Sir FRANCIS BACON, not only as Chancellor but also as chief adversary of COKE. The clash took place over the subject of the general exercise of the Courts of Common Law’s injunctions. These were often abusive and were a reflection of a political problem of much greater significance: the Royal Prerogative—“*princeps legibus solutus. Quod principi placuit legis habet vigorem*”. The prerogative was pitted against other State powers—initially the Courts and then Parliament—which would make the cause of *common law* its own, in the battle against Royal Absolutism. At first, victory seemed to incline towards “*equity*”, and the Chancellor’s supplanting of “*common law*”. This triumph was, however, ephemeral, turning into an open campaign against the supposed corruption of Chancery, shown defiantly in the celebrated statement by J. SELDEN: Equity was “as if one took the Chancellor’s foot for the measure, what an uncertain measure that would be”.

As opposed to Royal Absolutism, the monarch’s signing of the *Petition of Rights*, together with *Magna Carta* (1215)—and other texts of the XVIIth and XVIIIth centuries (the *Act of Habeas Corpus*, 1679; the *Bill of Rights*, 1689; and the *Act of Settlement*, 1700)—made up the clear and patent canvas of English public freedoms and basic rights. The “*rule of law*” emerged triumphant, finally doing away with the feudal idea that the monarch was above the law. After almost a century of struggle, “*equity*” won out over “*common law*”. The Commonwealth period—with the suppression of the monarchy and the setting-up of the Republic—, without a doubt, represented the hardest blow aimed at the Chancery, given that OLIVER CROMWELL, named Lord Protector in 1653, eventually handed the Great Seal—until then in the Chancellor’s hands—over to a Parliamentary Commission. With the Restoration of the Stuart Monarchy, the previously existing institutional arrangement was put back in place and the *Court of Chancery*, with CLARENDON (1660-1672) at the head, initiated equity’s systematic rise.

—From 1673—when Lord NOTTINGHAM became head of the Chancery—to 1683—the moment great reforms were carried out in the administration of justice— might be considered the fourth stage, when the rules of equity were systematized.

Lord NOTTINGHAM drew up the first systematic treatise on "*equity*", which he called the *Prolegomena*. However, it is to be regretted that the work was not published until 1965. Lord NOTTINGHAM defined and laid out the "new conscience" of the Chancellor, when he referred to external and objective factors as having a "*civil and political*" character, rather than that "*moral conscience*" propounded by ecclesiastic Chancellors. He therefore affirmed the subordination of "*equity*" to law—"equity follows law". This was, in turn, to constitute one of the best-known "*maxims of equity*".

English historians of law have widely discussed whether—in the era, at the end of the XVIIIth century—we can already speak of a tie to precedent, and of the observance of the "*rule of precedent*", on the Court of Chancery's part. The Court seemed to operate by citing earlier decisions, based on the facts of similar cases, in the same manner as came to be carried out by the *Courts of Common Law*. Still, it seems somewhat premature to speak in this way, in spite of the fact that the stabilization of the equity system had begun.

At the close of the XVIIIth and the start of the XVIIIth centuries, there were various Lord Chancellors. In order of succession, they were: Lord SOMERS and Sir NATHEN WRIGHT, in the reign of WILLIAM OF ORANGE; Lord COWPER and Lord HARCOURT, under Queen ANNE; Lord MACCLESFIELD and Lord KING, under GEORGE I of the House of HANNOVER; Lord TALBOT, the first Chancellor in GEORGE II's reign; finally, we reach Lord HARDWICKE (1737-1760), who is something of a decisive landmark in the process—begun by Lord NOTTINGHAM, and continued by his successors—of transforming and systematizing "*equity*". He set out in a clear and palpable fashion that the general rule for Court of Chancery decisions was that they should be based on a prior decision—the "*rule of precedent*", as an application of "*stare decisis*" to the "*ratio decidendi*" of the finding. This was as opposed to "*obiter dicta*", which were now irrelevant.

Along similar systematization lines, with respect to equity, we might point out the collection of *Reports* on cases judged by the Court of Chancery which appeared at this time. As a set-back to these obvious advances, we should remark that, with Lord NOTTINGHAM, there began the delays in "*Chancery*" litigation findings which were to last throughout the XVIIIth century, and on into the following century, until the *Judicature Acts* of 1873-1875.

With Lord ELDON in the Chancery, "*equity*" attained its maximum splendour. It went from being a "*remedy*" to fix up breaches of law, as *common law's* function was, to become a type of justice, administered by the English Courts of Equity. It now not only operated after laws were broken, but even before, as a "*preventive*" measure. However, the downside of this laudable work, during Lord ELDON's mandate, were the holdups and delays which had already begun to show themselves earlier. They appeared increasingly more often, and soon threw into relief the need for urgent reform in the administration of justice. One of the chief engines behind this reform was JEREMY BENTHAM (1748-1832). Such legal reforms culminated in the so-called Victorian Era.

To try to ease the delays with which affairs were plagued in “*Chancery*”, a Vice-Chancellor was created. At first, this was a one-man job but was, over time, increased to the work of three. The Court of Chancery, in its make-up, thus showed some analogy to the “*Courts of Common Law*”. These were composed of four magistrates—the Chancellor or “*Master of the Rolls*” and three Vice-Chancellors. Wales, which until then had a specific, separate, legal set-up, was finally assimilated into the Central English system of “*common law*” and “*Chancery*”.²⁷ Moreover, special, administrative type jurisdictions, like the “*Court of Exchequer Chamber*”, were done away with. This chamber had come to play a sort of role in equity. This role was then transferred to the “*Court of Chancery*”. The culmination of the process, however, did not come about until the passing of the *Judicature Acts* of 1873-1875. These were entrusted with bringing together the whole series of reforms initiated in the preceding years. This generally took the form of the gradual disappearance of the separation, until then existing, between the two main branches of “*judge-made law*”. That is to say “*common law*” and “*equity*”.

—1873 to 1875 were the years of the *Judicature Acts*. Through these, the Courts were reorganized. In our time, we find the final stage of English “*equity*”.

With the *Judicature Acts*, the administration of justice was reformed in three basic ways: the Court organization system was simplified; there was coordination and harmonization of the rules of “*common law*” and “*equity*”—“integration” rather than “fusion”—which was captured in the saying: “though the two streams of law (“*common law*” and “*equity*”) run through the same channel, they do so together but without their waters mixing”; there was a rationalization of the whole procedural system—from the form of “*writs*”, to put an end to the excessive, reigning formalism, to the suppression of the “*common injunction*”. The latter had been a way of paralyzing procedures, now there was no reason whatever to block and slow up the action of justice. Justice was now imparted by one and the same legal organ, the “*Supreme Court*”.

Despite the procedural unification and uniformity effected by the 1873-1875 reforms, certain specific characteristics proper to the two different modes of procedure remained. One of them was the “oral and safety measure” aspect, inspired by traditional “*common law*”. The other was the “written and inquiring” outlook, more directly based on the old proceedings of the “*Court of Chancery*”. Similarly, the types of lawyer remained different, according to the specialization each exercised in the profession; thus there were “*common lawyers*” and “*equity lawyers*”.

Further to the abovementioned reforms, in the establishment of the current system of administration of justice and organization of the Courts, we should note other reforms set out in the *Administration of Justice Act*, 1970, and the

27 Cf. D. M. KERLY: *An Historical Sketch of the Equitable Jurisdiction of the Court of Chancery*. Cambridge—England-. 1890.

Courts Act of 1971. These were introduced with a view to simplifying what was still a very complex legal machinery.

Also, as phenomena typical of the XXth century, we should point out those measures introduced, on a large scale, following on from the Second World War, in the "Welfare State" era. These were an increase in "statute law" and the administrative reglementation which, to a great extent, brought English law closer to Continental legal systems.²⁸ To these circumstances, we should add the fact of the United Kingdom's joining the European Communities in 1972, now the European Union. Still, this is a topic for another time.²⁹

1.2.4. Systematic Treatment of Equity in England

Though it is the historical rather than the logical factor which figures most largely in the structure of English law, as opposed to what is the case in Continental systems—it is only an historical reason which justifies the opposition between "common law" and "equity"—still, the moment has arrived to broach the systematic treatment of equity—beyond the comparative, historical type of study of the English system.³⁰

This study has been divided into various parts. For one thing, we treat of the so-called "*XII Maxims of Equity*"; for another, we deal with the main procedural instruments in the service of "equity": the "*injunction*"; the "*Decree of Specific Performance*"; and the legal administration of certain kinds of property and usufruct—"judicial administration of states". Thirdly, we speak of "*trusts*", as a type of the essence of equitative law. Further, historically speaking, at least, we must never forget the existence of a series of institutions that were related to equity. There was: the "*King's writ*"—the "writs" were formally abolished following the *Judicature Acts* of 1873-1875; the "*King's Council*"; the "*King's In-*

28 Cf. BAKER: "The Future of Equity", in *Law Quarterly Review*, 93, 1977. THOMAS J. BIETER: "Is Equity Dead?", in *Vera Lex*, 11, 1, 1991, pp. 10-11. GEORGE LUTHER CLARCK: *Equity: an Analysis and Discussion of Modern Equity Problems*. Columbia. Stephens. 1924. J. DEREK DAVIES: "The Re-awakening of Equity's Conscience: Achievements and Problems", in S. GOLDSTEIN (ed.): *Equity and Contemporary...*, op. cit., pp. 46-72. DENNING: "The Need for a New Equity", in *Current Legal Problems*, 5, 1952, pp. 1-10. W. M. C. GUMMOW: *Change and Continuity: Statute, Equity, and Federalism*. Oxford. Oxford University Press. 1999.

29 MARÍA LUISA MARÍN CASTÁN: *Significado y alcance de la equity inglesa*, op. cit., pp. 21-22 and 90-250; J. DEREK DAVIES: "Equity in English Law", in RALPH A. NEWMAN (ed.): *Equity in the World's Legal Systems...*, op. cit., pp. 159-181; ARTURO GALLARDO RUEDA: "Equidad", cit., p. 632. J.A. ZARZALEJOS: "Equidad", cit., p. 3448.

30 MARÍA LUISA MARÍN CASTÁN: "Los principios generales de la Equity inglesa: Aproximación a un tratamiento sistemático", in *Revista de las Cortes*, 16, 1989. Id, "La figura del juez en el sistema jurídico inglés", en ÁNGELES LÓPEZ MORENO (dir.): *Teoría y práctica en la aplicación e interpretación del Derecho*. Madrid. Colex. 1999, pp. 171-191.

quest”; the “King’s Peace”; and the “legal standards”. We stress that these are historical institutions of less present day use.

1.2.4.1. The “XII Maxims of Equity”

The so-called “XII Maxims of Equity” encapsulate an attempt—though not a normative, nor an exhaustive, one—to systematize a series of rules, a sort of general outline of what equity was. It is a set of synthetic and lapidary formulae which bring together the general principles which inspired the Court of Chancery in the period of its greatest expansion in the XVIIth, XVIIIth and XIXth centuries.³¹

The maxims were laid out by SNELL, almost “*ex cathedra*”. He was a reputed authority on the subject.³² His formulae have been followed by the majority of legal minds,³³ and are as follows:

1. “Equity will not suffer a wrong to be without a remedy”.³⁴
2. “Equity follows the law”.
3. “Where there is equal equity, the law shall prevail”.
4. “Where the equities are equal, the first in time shall prevail”. This echoes the Latin maxim “*prius tempore, potior iure*”.
5. “He who seeks equity must do equitably”.

31 P. V. BAKER - P. St. J. LANGAN: *Snell's Principles of Equity*. 28th ed. London. Sweet and Maxwell. 1982. BESSONE: “Principio di buona fede, disciplina del ‘Common law’ e massime di ‘equity’”, in *Rivista Trimestrale di Diritto e Procedura Civile*, 1973, pp. 426 ff. JOHN INDERMAUR: *A Manual of the Principles of Equity: a Concise and Explanatory Treatise Intended for the Use of Students and the Profession*. 17th ed. London. G. Barber. 1913.

32 EDMUND HENRY TURNER SNELL: *Snell's Principles of Equity*. 28th ed. by P. V. BAKER and P. St. J. Langan. London. Sweet and Maxwell. 1982, p. 28 (20th ed. by H. GIBSON RIVINSTON and A. CLIFFORD FOUNTAINE. London. Sweet and Maxwell. 1929. 15th ed. London. Stevens and Haynes. 1908. 12th ed. 1898. 3rd ed. 1874). Id, *Rivingston's Epitome of Snell's Equity*. 24th ed. London. Sweet and Maxwell. 1954. ALBERT GIBSON: *Aids to Equity: Intended to Assist the Student in Reading Snell's Principles of Equity*. London. Reeves and Turner. 1881.

33 RONAN KEANE: *Equity and the Law of Trusts in the Republic of Ireland*. London. Edinburgh. Butterworths. 1988, p. 27. RODERICK PITT MEAGHER - W. M. C. GUMMOW - JOHN ROBERT FELIX LEHANE: *Equity, Doctrines and Remedies*. Sydney. Butterworths. 1975. 2nd ed. 1984, p. 67. R. FRANCIS: *Maxims of Equity*. 1823. PAUL JACKSON: “The Maxims of Equity Revisited”, in S. GOLDSTEIN (ed.): *Equity and Contemporary...*, *op. cit.*, pp. 72-100; HENRY HOME KAMES (Lord): *The Principles of Equity*. 2nd ed. Edinburgh. Bell and Bradfute. 1825; RO-SCOE POUND: *The Decadence of Equity*. New York. Columbia University Press. 1905; Id, “On Certain Maxims of Equity”, in *Cambridge Legal Essays*, 1928, pp. 259 ff.; Id, “The Decadence of Equity”, in *Columbia Law Review*, 5, 1935, pp. 20 ff.

34 GERALD GODFREY: “Where There's Wrong There's Remedy’: The Approach of Modern Equity”, in S. GOLDSTEIN (ed.): *Equity and Contemporary...*, *op. cit.*, pp. 13-30.

6. "He who comes into equity must come with clean hands".
7. "Delay defeats equities", also "equity aids the vigilant and not the indolent".
8. "Equality is equity".
9. "Equity looks to the intent rather than to the form".
10. "Equity looks on that as done which ought to be done".
11. "Equity imputes an intention to fulfill an obligation".
12. "Equity acts 'in personam'".

Some doubt may arise with respect to the authenticity of the twelve maxims, if, with ROSCOE POUND,³⁵ we consider that SNELL originally set out only eleven maxims—initially, the final maxim was left out, "Equity acts 'in personam'". There are other manuals which give thirteen or fourteen maxims—two new maxims are cited, one by G. W. KEETON:³⁶ "Equitable remedies are discretionary", and the other by J. C. WYLIE: "Equity like nature does nothing in vain".

HALSBURY made up a "sui generis" list, where only eight of the maxims of SNELL³⁷ are recognized. He then adds three more: "Equity gives account of profits, not damages"; "Equity does not allow a statute to be made an instrument of fraud"; and "Equity favours a purchaser for value without notice".

Other possible candidates for the status of "rules of equity" might be: "Equity will not assist a volunteer" and "Equity will not perfect an imperfect gift". For his part, Lord PARKER OF WADDINGTON further described as a maxim of equity the rule: "The time fixed for completion is not of the essence of a contract".³⁸

35 ROSCOE POUND: "On Certain Maxims of Equity", in *Cambridge Legal Essays*, 1928, pp. 259 ff., esp. p. 273.

36 GEORGE WILLIAMS KEETON: *An Introduction to Equity*. 5th ed. London. Pitman. 1961. (1st ed. 1938; 2nd ed. 1948; 4th ed. 1956). Id, *Equity*. Milton. Professional Books. 1976. 2nd ed. Id, "The Study of Equity Today". *Jubilee Lectures of the Faculty of Law University of Sheffield*, pp. 59-81.

37 Maxims not mentioned are the 1, the 7, the 9 and the 11.

38 Cited by PAUL JACKSON: "The Maxims of Equity Revisited", in S. GOLDSTEIN (ed.): *Equity and Contemporary...*, op. cit., pp. 72-100, esp. pp. 74-75. M. L. MARÍN CASTÁN: *Significado y alcance de la equity inglesa*, op. cit., pp. 257-298, esp. pp. 275-277.

1.2.4.2. Procedural Instruments Available to Equity

According to STORY,³⁹ BISPHAM,⁴⁰ POMEROY⁴¹ and BEACH, we should divide matters included under equity's jurisdiction into two related groups: "equity rights"; and the "procedural instruments" typical of those rights.⁴²

Amongst the former, we usually include rights relative to property and its titles⁴³—"equitable states and titles"—fidei-commissus, mortgages, and other encumbrances, cessation of rights, administration of inheritances, subrogations, penal clauses, error, fraud, injury, "*estoppel*", compensation, and the like. Within this group, we shall deal with the "*trust*" as a special institution.

The second group we shall look at combines a series of legal items, amongst which we shall deal specially with the "*injunction*", the "*decree of specific performance*", and the "*judicial administration of states*".

1.2.4.2.1. Injunctions

According to MAITLAND's definition,⁴⁴ the "*injunction*" is an "order dictated by the Court, by means of which a person or a specific category of persons are forbidden to carry out a specific act or series of acts of a certain type, or be sentenced to imprisonment for an indefinite time period, for *contempt of Court*". The punishment is not properly mentioned in the "*injunction*", but the Court has ample, discretional power to imprison and retain the said subject who should, having previous knowledge of an injunction, disobey it.

The "*injunction*" is, then, a prohibition which a Court with competence over equity directs at a defendant, ordering him to not act in such and such a way or not to persist in a certain line of conduct that the Court considers contrary to equity. "*Injunctions*" are "*in personam*" remedies. They are not discretional

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- 39 JOSEPH STORY: *Commentaries on Equity Jurisprudence*. Ed. by W.H. LYON. 3 vols. 14th ed. Boston. Hillard & Gray Co. 1918. (11th ed. 1873. 10th ed. 1873. 5th ed. by STEVENS and NORTON. 1849. 3rd ed. by A. E. RANDALL. London. Sweet and Maxwell. 1rst ed. by W.E. GRIGSBY. London. Steven and Haynes. 1844). Id, *Commentaries on Equity Jurisprudence, as Administered in England and America*. London. 1839.
 - 40 GEORGE TUCKER BISPHAM: *The Principles of Equity*. 9th ed. New York. Banks Law Publ. Co. 1915. New York. Baker. 1931. 11th ed.
 - 41 JOHAN NORTON POMEROY: *A Treatise on Equity Jurisprudence*. 6 vols. 4th ed. San Francisco. 1918-1919.
 - 42 BRUNYATE: *Limitation of Actions in Equity*. 1932. WILLIAM HAMILTON BRYSON: *The Equity Side of the Exchequer: its Jurisdiction, Administration, Procedures and Records*. Cambridge. Cambridge University Press. 1975.
 - 43 Cf. ROBERT CHILDRES - WILLIAM F. JOHNSON, Jr.: *Equity, Restitution and Damages. The Study of Litigation Theory*. New York. Foundation Press. 1974.
 - 44 F.W. MAITLAND: *Equity: A Course of Lectures*. Cambridge—England-. Cambridge University Press. 1969. 2nd ed. revision by JOHN BRUNYATE. 1969. Lect. XXI, p. 318. 1rst ed. 1909. Reedited in Italian: *Lequità* by ANNA ROSA BORZELLI. Preface by CARMELO GERACI. Milano. Giuffrè. 1979.

remedies, though, when conceding them, the Court cannot act arbitrarily, but must use injunctions according to certain rules and principles. "*Public interest*", together with that of individuals, must preside over the workings of the "*injunction*". There can be no "*injunctions*" against any act of the Crown.

There are, basically, two types of "*injunction*": "*prohibitory or restrictive injunctions*", outlined above, and "*mandatory injunctions*". The latter order the defendant to carry out an act in a certain way and within a certain time, in order to re-establish the "*status quo*" which he has upset. We should also classify "*injunctions*" according to when they are dictated. They can be "*perpetual*" or "*interlocutory*". Another type of "*injunction*"—of a preventive sort, which might prove advantageous to the one seeking it—is the so-called "*quia timet injunction*". By means of such an injunction, certain acts—foreseen as likely to have grave effects should they be carried out—are prevented from taking place.⁴⁵

1.2.4.2.2. "Decree of Specific Performance"

One of equity's greatest contributions to English contract law is the possibility of obtaining specific, forced execution of contracts—"*in natura*"—in cases of willful non-fulfillment by way of a Court "*decree of specific performance*".

As with "*injunctions*", the "*decree of specific performance*" is always at the discretion of the Court. It is a solution only conceded when it can be made effective, that is, when the defendant is able to meet the concrete demands of the case, since equity "*does nothing in vain*". Like all equity resolutions, it acts "*in personam*", and only goes forth when "*common law*" solutions prove inadequate. It is never used when common law damages indemnity are sufficient. It demands "*mutuality*" or equality of the parties to the contract, in that it calls for the forced execution of claims. Unlike the "*injunction*"—which is applied to the damages occasioned by extra-contractual negligence, "*tort*"—"specific performance" is only applied to contractual defaults.⁴⁶

1.2.4.3. Equitable Laws: Trusts

There are writers, doubtless influenced by Sir EDWARD COKE, who have linked the origin of the Court of Equity to the institution of "*uses*"—the famous "*trusts*" precedents—and dating its appearance to the reign of HENRY IVth (1399-1413).

45 M. L. MARÍN CASTÁN: *Significado y alcance...*, *op. cit.*, pp. 299-307.

46 M. L. MARÍN CASTÁN: *Significado y alcance...*, *op. cit.*, pp. 307-312.

The “*trust*” is the most relevant and original gift of equity to English law.⁴⁷ In comparative law, there is no other institution to which it might be compared. It is something unknown to the Continental legal world.⁴⁸

The origin of the “*trust*” is in fact linked to Feudalism and goes back to the second quarter of the XIIIth century. The religious orders had come to own one quarter part of the lands of the Realm. Faced with “dead hand” laws—which had taken from the ecclesiastical corporations the legal capacity to possess real estate, and fearing the confiscation of their goods, and with the aim of eluding the real estate prohibition—ecclesiastical congregations hit upon the idea of being able to enjoy such goods and estates through an intermediary. They would sell their properties to landowners who would acquire them for ecclesiastical “*use*”. In the concept of “*use*” is to be found the origin of the “*trust*”. A “*use*” was a “*mission of trust*” given to someone for the benefit of another. It derived less from the ownership of the land than from its possession. Here, the beneficiary of the “*use*”—the “*destui que iuse*”—neither had a “*ius in re*” nor a “*ius ad rem*”, protected by the Courts of Common Law, but only the possibility of seeking the *Chancery’s* protection—a “*writ sub poena*”—in case of any breach of trust.

Given the elusive nature of disentailment law regarding “*uses*”, an attempt was made to put an end to such practices via special laws, tending to equate the beneficiary’s legal possession with that of the full legal owner’s. The goal was to attribute to the former some of the obligations inherent in property rights. Thus, it was laid out that any transference of real estate to another person for “*use*” would transfer the property itself—as much legally as in “*equity*”—directly to the “*beneficiary*” of the “*use*”, so that the property would no longer be in the original owner’s name but would pass entire to the beneficiary. This would prevent there being a double title to one and the same property.

From the XVIIth century on, “*uses*” began to be called “*trusts*”. Trusts were applied to family law, especially as regards marriage settlements, in order to protect the inheritance of the married woman, an inheritance which might, on re-marriage, constitute a distinct and separate inheritance from that of the husband’s. This was opposed to the “*common law*” rule which held that the husband automatically became absolute owner of his wife’s property. The dif-

47 D. J. HAYTON: “Equity and Trusts”, in Lord DENNING: *The Judge and the Law*. London. 1984, pp. 79-108; JOHN DYSON HEYDON - W. M. C. GUMMOW - R. P. AUSTIN: *Cases and Material on Equity*. Sydney-Melbourne. Butterworths. 1975. Id, *Cases and Materials on Equity and Trusts*. 2nd ed. Sydney. Butterworths. 1982; GEORGE W. KEETON - L. A. SHERIDAN: *A Case Book on Equity and Trusts*. London. Professional Books Limited. 1974. 2nd ed.; TIMOTHY G. YODAN: *Equity, Fiduciaries and Trusts*. Toronto. Carswell. 1989; J. G. RIDDALL: *Equity and Trusts*. London. Butterworth. 1967. 2nd ed. 1974.

48 Cf. RONAN KEANE: *Equity and the Law of Trusts in the Republic of Ireland*. London. Edinburgh. Butterworths. 1988.

ference between contract and "*trust*", in English law, lies precisely in the fact that the contract was sanctioned by "*common law*", while the "*trust*" is something which anciently, exclusively, belonged to the Chancellor's jurisdiction.

The "*trust*" then, in brief, might be defined as a relation of confidence set up between the "*settler of the trust*" and the administrator of the goods, the "*trustee*", for the benefit of a specific person or persons—"*cestui que trust*"—amongst whom the "*trustee*" himself might be found. Such persons may demand, in "*equity*", the fulfillment of the obligation contained in the "*trust*". The "*trustee*", who, in accord with "*common law*", might have transferred the ownership of the trust goods, will have, according to equity, the obligation to behave with respect to those goods in a way which will agree with the trust deposited in him. If he does not do so, the Chancellor may issue "*injunctions*". Should these, in turn, be disobeyed by the "*trustee*", he might be sent to prison until such time as he reveal a change in attitude.⁴⁹

1.2.4.4. *Major Historical Institutions Relating to Equity*

Basic, historical institutions, where the idea of equity appears as a constant feature, are the following: "*writs*"—already treated of; the "*King's Council*"; the "*King's Inquest*"; and the "*King's Peace*".

From the "*King's Council*" are born the King's Court, Parliament, and the Law Courts, that is, the Legislative, Executive and Judiciary powers. As regards justice, with the fall of the barbarian tribes, we see the disappearance of "trials by combat", trials by fire, water, and the like, and the oath. In their place, there grows up a justice organization, within which we find the institution of the jury.

Another ancient institution—closely linked to the King's person—was the "*King's Inquest*". This was the basis of findings in specifically fiscal matters in the administrative sphere, supplementary and indirect proceedings to determine sovereignty over controversial land ownership. In time, it was extended to all kinds of civil and criminal suits, as also to trial by jury.

Though also now outdated, we should finally mention the so-called "*breach of the King's Peace*" which came to cover the entire range of crimes, holding all such infractions to be carried out against the public peace, that is, the King's Peace.⁵⁰

1.2.4.5. *Legal Standards*

The function normally attributed to equity in Continental European legal systems has in fact been carried out in England by another set of institutions: "*legal principles*" or "*legal standards*". In Spanish law, these are known as "*concep-*

49 M. L. MARÍN CASTÁN: *Significado y alcance...*, *op. cit.*, pp. 312-330. J. DEREK DAVIES: "Equity", *cit.*, pp. 639-640.

50 NARCISO ANDRADA HERRERO: *La equidad como elemento catalizador...*, *op. cit.*, pp. 243-246.

tos válvula”, which have grown up around the daily business of law. The most common of these are those of “reason” or “reasonableness”—a synthesis of all the rest—, “common sense”, “common fairness”, “good faith” and “public policy”, amongst other. Reason has been the only one which has traditionally been held to be a subsidiary source of “common law”.⁵¹

“Legal standards” contain the “middle term” of socially correct conduct with regard to legal matters. This is when, in practice, contradictory principles arise that must be reconciled, “legal standards” act as a complementary or supplementary “corrective” to the norm. They take into consideration social necessities and seek stability via a median point. They, therefore, adapt law to the conditions of life, as did Roman-Germanic equity. As against legal rules and principles—of which they are independent—legal standards are always used when it is necessary to adapt legality to justice. They have a corrective use-value with regard to existing law. This is totally unlike the rules, which must always be applied, simply because they give an air of legal security.⁵²

1.3. Equity in the United States of America

Given the English colonization of what would become the United States of America, it is only logical that the system adopted in the case of equity—as is the case of many another matter—should correspond to the English equity model, though, of course, it would have certain peculiarities, a product of the new country.⁵³ One exception to this general rule came about in the State of

51 M. L. MARÍN CASTÁN: *Significado y alcance...*, *op. cit.*, p. 344.

52 NARCISO ANDRADA HERRERO: *La equidad como elemento catalizador...*, *op. cit.*, pp. 250-253; JOSEPH STORY: *Commentaries on Equity Jurisprudence*. Ed. by W. H. LYON. 3 vols. 14th ed. Boston. Hillard & Gray Co. 1918. (11th ed. 1873. 10th ed. 1873. 5th ed. by STEVENS and NORTON. 1849. 3rd ed. by A. E. RANDALL. London. Sweet and Maxwell. 1st ed. by W. E. GRIGSBY. London. Steven and Haynes. 1844); *Commentaries on Equity Jurisprudence, as Administred in England and America*. London. 1839.

53 Cf. BRENDAN F. BROWN: “Equity in the Law of the United States of America”, in R. A. NEWMAN (ed.): *Equity in the World's Legal Systems...*, *op. cit.*, pp. 205-223. JAMES IRWIN BROWNSON: *Equity in Pennsylvania from the Historical Point of View*. Washington. Washington Bar Association. 1914. WALTER WHEELER COOK: “The Place of Equity in our Legal System”, in *American Bar Association Report*, XXXVII, 1912, pp. 997-1009. KAREN S. COOK - DAVID M. MESSICK: “The Powers of Courts of Equity”, New York. *Columbia Law Review*, XV, 1915. Id, “Equitable Defenses”, in *Yale Law Journal*, XXXII. Id, *Cases and Materials on Equity*. 3rd ed. Ed. Warren A. Seavey (American Casebook Series). St. Paul, Minnesota West Publishing. 1940. THOMAS A. COWAN: “Legislative Equity in Pennsylvania”, in *University of Pittsburgh Law Review*, 4, 1, 1937; J. P. PUTNAM: *Digest of the Decisions in the Courts of Equity in the United States*. Boston. Little. 1851.

Louisiana, colonized by the French. Its legal system corresponded rather to the Continental systems, with substantive, French civil law predominating there. English law became consolidated once colonial emancipation had been effected in the middle of the XVIIIth century. Despite this accommodation to the dual English system—making a divide between "*common law*" and "*equity*"—in the United States there exist as many stable "*common law*" systems as the Union has States.

Each different type of Court's powers has a distinct origin. While those pertaining to "*common law*" stem from the mere fact of Court institutionalization, without this being necessarily an express awarding of jurisdiction, the case of equity is something entirely different. Equity being a special jurisdiction, it required express recognition for its exercise. This creates a certain reluctance to use equity, though such reluctance is slowly disappearing, until equity has become converted into a national jurisdiction in certain States in the U.S.A.—achieving a reach similar to that of "*common law*"⁵⁴

While in different States equity's status is widely different, certain general comments may be made. First, it might be said that the authority of precedent is much weaker here than in England. The American judge's freedom to pass sentences—as he sees fit in the specific case submitted to him—is greater than that of his English opposite number. In England, it is easy to find a judge who laments the decision he is obliged to take. Such regret is, contrariwise, unthinkable in the mouth of an American judge. Moreover, there, judges are elected, a fact which eliminates all ability to be self-critical.

On the other side, the American Constitution contains an Amendment, the fourteenth, which forbids a citizen's being deprived of his "life, liberty or property *without due process of law*". The expression might be equivalent to "without a trial where all possible guarantees are offered", or, going back to our topic, "without an 'equitable' legal trial".

There is another slight indication that is relevant here. EARL WARREN—who presided over the United States Supreme Court from 1953 to 1969—would listen to what the lawyers had to say during the half hour allotted them, and then, often when they had finished arguing their case, would object to one of them with the question: "But, is it fair?" This, for him, was the key point.⁵⁵

54 NARCISO ANDRADA HERRERO: *La equidad como elemento...*, *op. cit.*, pp. 273-275. JOSÉ CASTÁN TOBEÑAS: *La formulación judicial del Derecho...*, *op. cit.*, pp. 55-56; ARTURO GALLARDO RUEDA: "Equidad", *cit.*, p. 632.

55 ANTOINE GARAPON: "Peine fixe v. individualisation: analyse d'un clivage culturel", in *Justices. Revue Générale de Droit Processuel: Justice et Équité*, January-March, 1998, 9, pp. 138-139.

1.4. *Equity in Scotland*

Scotland has an independent and separate legal system—even though, first, from 1707 to 1800, it was part of Great Britain, and, then, a part of the United Kingdom of Great Britain and Ireland (from 1921, Northern Ireland). Many Scottish people do not realize that, though the English and Scottish legal systems are different, this does not mean that the Scottish might not be a relic of barbarism and an example of irrationality.

One primordial characteristic of Scottish law has always been its unitary nature. There have never existed distinct bodies of principles for common law and for equity, nor for civil law and commercial law, nor is there any different procedural administration for each of the aforementioned. Thus, while England developed various jurisdictions—*King's Bench*, *Common Pleas*, *Exchequer*, *Chancery*, *Admiralty*, and so on—Scotland only had one “*Court of Session*”. This had civil jurisdiction. It also had a “*High Court of Justice*”, with criminal jurisdiction. The only other thing was a weak “*Court of Admiralty*”. What never existed was a “*Court of Chancery*”. Further, in Scotland, there was no evidence whatever of a “*Council*” nor of a “*Chancellor*”—both ancient institutions—nor any other body to interfere with “the course of justice” should there be unjust acts or acts contrary to “good faith”.

In England, equity was—and to a certain extent, still tends to be—a body of rules and principles which make up an “appendix or addendum” to the general rules of law. In Scotland, equity, by contrast, was, and is, the “basic idea” which explains and justifies a great number of principles and rules which are to be found within the general rules of law.

It is crystal clear, therefore, to anyone who has been faced with the ideas and principles of Scottish law equity, that it is not in its essence any copy of the English Chancery model of equity. English law found no reception in Scotland. The adoption of a series of equity principles in Scotland comes from their ultimate source in “natural justice”, in its widest sense. That is, from its being “naturally” right, just and reasonable. What is certain—from a reading, and the praxis, of matters concerning equity in Scotland—is that Scottish equity never stemmed from the doctrines, principles and rules, developed and applied by Courts of Chancery, but neither is it taken from abstract, general ideas about “*justice*” and “*fairness*”. Rather, it derives from the application which the Courts in Scotland have made of the idea of natural justice, and the principles taken from such application.

The content of the Scottish legal system's equity is very similar to the Anglo-American legal system's: the idea of applied justice, of “*actual justice and fairness*”, of which JOHN RAWLS—recently deceased North American thinker, late of Harvard—speaks so much. That is the basic principle of equity in both systems.

In Scotland, for its part, the “*common law*” system has developed more slowly and did not give rise to any rigid system of procedural actions. It be-

came rather a more informal system as a consequence of canonical law influence and of the resurgence of Roman law. Both tried to remedy injustice or damaged interests when and where they occurred. The fact that, from the very beginning, in Scotland, an equity jurisdiction should have existed, inherent in the "*Court of Session*"—and later, in many regards, spreading out to the lower Courts—causes the doubt to arise as to whether the Scottish have gained or lost by not having any separate jurisdiction.

As pointed out, it is quite clear that their equity does not follow the English Chancellor's equity, but is rather influenced by the idea, proper to Roman law, of an "equitable" law, under the influence of the Roman Praetor. Still, it might also be noted that, especially since 1800, the influence of the "*House of Lords*" has played its part. The House is the Highest Court of Appellation common to both England and Scotland. Further, there is the tendency to look at the works and cases of English law in the search for aid in the absence of original, native Scottish principles. This had led to a certain parallelism and, in a way, to the acceptance of English solutions.⁵⁶

2. Normative Plane: The Equity of Continental Europe under the Roman-Germanic Systems. A Study in Comparative Law

In the present, civilized, Western legal world, two great legal systems reign: Anglo-Saxon, or common law, and the so-called Roman-Germanic, or civil law. The Romanized, Continental system is known as such for its origin in JUSTINIAN's *Corpus Iuris Civilis*, spread and perfected throughout all Europe by the Medieval Schools of Glossators and Post-glossators, or commentators. It was then transmitted, especially by Spain, to the American Continent, to the Latin American Codes.⁵⁷ Below, we look at the subject of equity in some of the main Continental European legal systems, at some of the most emblematic, such as the Spanish, the French, the German, the Swiss, the Portuguese and the Italian.⁵⁸

56 DAVID M. WALKER: "Equity in Scots Law", in RALPH A. NEWMAN (ed.): *Equity in the World's Legal Systems...*, *op. cit.*, pp. 187-203.

57 Cf. IMBRE SZABO: "Le traitement de l'équité dans les divers systèmes juridiques", *VIIIe Congrès International de Droit Comparé*. Pescara. 1970, pp. 23-50; STIG STRÖMHOLM: "Equity in Swedish law", in R. A. NEWMAN (ed.): *Equity in the World's Legal Systems...*, *op. cit.*, pp. 443-471; JEAN G. RENAULD: "L'équité en droit belge", in *Rapports Belges to the VIIIth International Congress of Comparative Law*. Italy. Pescara. Bruxelles. 1970. pp. 61-114. "Equity in Belgian law", in *Belgian Reports to the VIIIth International Congress of Comparative Law*. Interuniversity Center of Comparative Law. 1970, pp. 61 ff.; G. M. RAZI: "Reflections on Equity in the Civil Law Systems", in *The American University Law Review*, 13/1, 1963.

58 JOSÉ CASTÁN TOBEÑAS: *La formulación...*, *op. cit.*, pp. 57-70. J. A. ZARZALEJOS: "Equidad", *cit.*, p. 3449.

2.1. "Equidad" in the Historical Evolution of the Spanish Legal Order

While we treat of the study of equity in distinct branches of the law toward the end of this study—taking note of *current* equity regulation in each of the legal fields—, here, we are going to give some brief outlines of equity's *historical* evolution within the Spanish legal system *as a whole*.

During the Visigothic period of Spanish law, in the *Lex Visigothorum*, the King is exhorted to guide the people God has entrusted him with by means of justice and mercy—"justitia et pietate". He is expected to let himself be led during trials more by "*mansuetudo pietatis*" than by rigour. In Castile, during the Reconquest, equity was raised to the status of law's main source of creation "*ex novo*". This came about when "*fazañas*"—resolutions dictated by qualified persons, raising questions of extraordinary interest—and "*albedríos*"—decisions given by arbitrating judges, concerning sentences passed "*ex aequo et bono*", according to conscience—overrode laws and customs. From the time of ALFONSO X on, these Castilian "*fazañas*" ceased to have any value as creators of law. This was because ALFONSO forced the mayors to judge according to regional law-codes and to the laws of the realm. The only exception to this ruling were "*fazañas*" issued by the King or by the Lord of Biscay.

The role of equity is now minimal as a local source of municipal law, when it is not simply unnecessary, given the consensual, living nature of this type of law, that requires few correctives. Still, the *Partidas* give to magistrates very wide interpretive powers, and these are not limited to the mere letter of the law.

In the so-called "*Derechos forales*" (regional and local privileges), equity is especially in evidence as concerns the Kingdom of Aragon, through such original institutions as the "*Justicia de Aragón*". The influence which certain legal-philosophical thinkers from Catalonia and Aragon had was decisive for the form which equity took. These were such men as SAN RAIMUNDO DE PEÑAFORT and RAYMOND LULL. To such an extent was this true that, after these men, both historical and legal texts come to regard equity as a subsidiary source of law or of municipal charters ("*fueros*"). Thus, the *Fuero of Aragon*, in its preamble, states: "*ubi dicti autem fori non suffecerint, ad naturalem sensum vel aequitatem recurratur*". This idea agrees with the preamble to the "*Costums*" of Valencia. At this time, the basic nature of equity in Spain was also revealed in Catalonia in the various texts of the ancient "*Usatges*" of Barcelona (XIth century). The role of the Theory of Law has been as outstanding as the role of equity, in Catalanian law.⁵⁹

59 JOSÉ CASTÁN TOBENAS: *La formulación...*, *op. cit.*, pp. 77-84. NARCISO ANDRADA HERRERO: *La equidad como elemento...*, *op. cit.*, pp. III-VI and 66-108, esp. 66 and 85-86. J. A. ZARZALEJOS: "Equidad", *cit.*, p. 3449. CARLOS M^a ENTRENA KLETT: *La equidad y el arte de juzgar*, *op. cit.*, pp. 47-57, esp. p. 47.

2.2. "Équité" in France

All other procedures creating the law—apart from those referring to some law written out in the Codes, at that decisive point when codification seemed natural—were practically disregarded. The French revolutionary system allowed no other powers to the Courts than those of interpreting the text of the law, that is to say, the codified legal rule. Nevertheless, the Civil Codes of different countries never ceased to permit the use of equity via certain institutions which—expressly or tacitly, generally, or, above all, in special cases—supported such a use.

The Napoleonic Code is the greatest example of the codifying mentality stemming from the French Revolution. Here we find embodied in written legal texts, the entirety of systematic norms for any and every specific realm or sector of law. In the blueprint for the Code, the principle of equity is at least named, though, finally, this reference was cut out in the finished version. The suppression was so that legislators might suggest the enormous social risk involved should an immoderate use of equity be made by the magistracy. In the Napoleonic Code itself, equity is only alluded to indirectly, by means of mention of "good faith", of "public order", of "good usage" or of the express will of the parties. Hence, Article 4 of the French Civil Code of 1804 would establish the prohibition of principle of "*non liquet*", according to which "*the judge who don't judge—under the pretext of silence, of obscurity, or of the law's insufficiency—might be held guilty of a denial of justice*".

Some French legal scholars—not only GÈNY, but also BLONDEAU or DEMOLOMBE—, when commenting on the Napoleonic Code, hold that the texts were written, above all, so that nothing might be declared either as against the law nor as even outside of the law, thus excluding all legal show of anything not expressly sanctified by the law. The result would therefore be that equity also would be excluded. It is almost as if they had wanted to prove the adversaries of Codification right, when these feared that the Code would petrify into immovable legal texts, and would make their adoption to the needs of a changing social reality impossible. In this sense, DEMOLOMBE exclaimed "when publishing my course, I set out to do nothing but explain the Napoleonic Code itself, as the living law, as obligatory and applicable law", and BUGNET said: "I do not know anything of civil law; I only teach the Napoleonic Code".

Many writers distance themselves from this position, not only those who see substantive value in custom itself and who complement custom with equity—DEMANTE and BEUDANT—but also those who are themselves adversaries of all non-written law—BAUDRY-LACANTINERIE and HOUQUES FOURCADÉ; AUBRY ET RAU. All of these recognize at least that higher type of equity which appeals to the conscience of the interpreter or which may be

deduced from observing life itself. We find here LAURENT and PORTALIS, amongst others.⁶⁰

2.3. "Billigkeit" in Germany

The German Civil Code, published in 1896—known as B.G.B. for short—allows a healthy margin for the judge's own opinion. This body of law was written under the direct influence of WINDSCHEID's constructive idea of Jurisprudence. It is a Code where abstraction predominates and where, often, only a general orientation is given to the interpreter. It appeals to "good faith," to the "usages of legal business," to the avoidance of the "bad use" of the law, to submitting findings to "equitable arbitration" or to "equity," and to the taking into consideration of the circumstances of the case.⁶¹

2.4. "Equità" in Italy

In another group, we find the 1865 Italian Civil Code and legislation which substitutes iusnaturalism by that of organic law. Here, we encounter many of the second half of the XIXth century Codes. The Italians chose to rely on general principles of law, taken from generalizing over, or abstracting from, positive, legal norms, using the procedure known as "*analogia iuris*". This method, assumed by the Italian Code, was followed by many Latin American systems, such as those of Chile (1855), or the Argentinean Civil Code of 1869.

The new 1942 Italian Civil Code was cautious and said nothing about equity, nor did it take up the idea of the judge-legislator. Where gaps appeared in the law, analogy had to be resorted to, and, ultimately, the "general principles of the state legal system". Italian jurisconsults never showed themselves in unanimous agreement as regards equity. This omission concerning equity is interpreted as a wished-for omission. It is not that equity had not been considered, rather, equity had been intentionally avoided. In works preparatory to the Code, there are reports proposing equity as a source supplementary to that of natural law, of natural principles or of natural reason. Confronted with the fear that equity would allow for a departure from the rigour of the law, and similar fears over other suggestions, Code makers stopped talking about equity and proposed

60 CLAUDE KLEIN: "Equity in French Conseil d'Etat", in A. MORDECHAI RABELLO (ed.): *Aequitas and Equity...*, *op. cit.*, pp. 326-332. NARCISO ANDRADA HERRERO: *La equidad...*, *op. cit.*, pp. 224-226. MARCELIANO ISÁBAL: "Equidad", *cit.*, p. 407.

61 JOHANN CHRISTOPH SCHWARTZ: *Das Billigkeitsurteil des 829 BGB. Eine Zivilistische Studi.* Halle. Niemeyer. 1904; MAX RHEINSTEIN: "The Struggle Between Equity and Stability in the Law of Post-War Germany", in MAX RHEINSTEIN: *Gesammelte Schriften*, I, Tübingen, 1979, pp. 269-282.

that—after the mention of analogy—the general principles of the State legal system should be the only source of law. This proposal was accepted and is nothing but an appeal to "*analogia iuris*".

As happened in France, in Italy learned opinion was divided over the role equity should play, in relation to interpretation and application of law. While some, like LOZZI and DIENA, considered that equity plays an important part—despite its omission from the Civil Code—others, like DEODATI and SCIALOJA, limit its role to the equity placed in the legislator's hands—that is, legislative equity—and, on the other side, they see its place in judicial interpretation, in the judge's hands, when applying the law, as minimal. Between these two extremes, as often happens, we find an intermediate, conciliatory, mixed, eclectic, position represented by such thinkers as PACIFICI MAZZONI, BIANCHI and PIRLA. They would like to see the legislator not forget to legislate in accordance with equity so that the judge would not find it necessary to have recourse to equity save when such is inevitable, as—given the law's deficiencies—often in fact occurs.⁶²

2.5. *Equity in the Swiss Legal Order, as an Introduction to the Law of Equity in a more General Sense on the Continent. The Judge-Legislator*

Already in the XXth century, in the newest European Codes—amongst which, for its special significance, the Swiss Civil Code might be singled out—as well as in some outside of Europe, it has been possible to observe a strong tendency to give greater freedom to the judge. Article 1 of the Swiss Code, coming in 1907, and taking effect in 1912, even speaks of a judge who will act almost as a legislator. The direction pointed out by the Swiss Code was followed, to a large extent, in later codifications, such as the Turkish Code of the 17th February, 1926, or the Law on Sources of Law drawn up by the Vatican City on the 7th June, 1929. In the Americas, the 1916 Brazilian Civil Code, on its technical side, gathered together the most modern of tendencies.

Article 4° of the Swiss Civil Code sets out that "*the judge is obliged to decide according to law and to equity when the law recurs to his wise arbitration or the decision is made either to depend upon circumstances or powerful motives*". This precept is fulfilled in Article 2° of the same Code, the tenor of which is: "*everyone is obliged to exercise his rights and to carry out his obligations according to the rules of good faith. The open abuse of any right is not protected by the law*". The formula used is, as we see, of the widest interpretation. The judge may take into his sphere of competence, and shelter under "the exercise of a right", all cases at law threatening equity. It is with good reason that here we might speak of a judge-legislator, of a judge with discretionary powers so wide they may dictate law, in the manner of the legislator. We encounter a system with sources

62 MARCELIANO ISÁBAL: "Equidad - Derecho civil -", *cit.*, pp. 408 and 409.

much wider and much more open than those strict, legalist, positivist systems we are so used to seeing in the Roman-French type systems.

2.6. “Equidade” in Portugal

The Austrian and Portuguese Codes offer supplementary accommodation to the principles of natural law and to equity. To the same legislative group, we might assign the 1844 Serbian Code and the mixed Egyptian Code of 1875, the Montenegrinian Civil Code of 1888, or the Japanese Charter on the Sources of Law, 1875.

The Portuguese Civil Code establishes the reach of equity in its Article 4, where it holds that Courts may only decide according to equity when: a) There is a legal order allowing for it. b) There is agreement between the parties, and no legal relation preventing it. c) There is prior agreement existing between the parties that they shall have recourse to equity, in terms applicable to the clause permitting such a recourse.

2.7. Influence of Continental Equity on Latin American Legal Codes

In large part, Latin American Codes have followed the Italian Code and, where the law has gaps, is obscure, or insufficient, they fall back on the spirit of the Italian Code, its rulings in analogous cases and its general principles of law. Often they rely solely on this last. Codes conforming to this pattern are those of Peru, Argentina, Uruguay—which also relies on the most accepted usages—, Brazil and Venezuela.

The Mexican Code relies exclusively on the general principles of law. And, while such general principles are not the same as equity, they do allow a way for equity to be articulated and to come into play. We shall return to the topic later, when differentiating equity from other, closely related, topics, amongst which we find these general principles. A certain influence stemming from the Anglo-Saxon model is peculiar to the Mexican system. For instance, it has the institutions of “*trust*” and “*fidei commissus*”, and, especially, it follows the Anglo-Saxon in the realm of public law. The inspiration for law in the private sector is, oddly, of a clearly Continental and Spanish complexion.

In Chile, in spite of an express declaration to the effect that the Civil Code of 22th November—given in a message directed by the Executive to Congress—would not receive legislative content for other Codes, yet, a clear Continental orientation is also visible here.

Ecuador’s Civil Code, in Article 18, when speaking of legal interpretation, established that “*judges may neither suspend nor deny the administration of justice because of any lack of law nor any obscurity in the law. In such cases, they should judge according to the following rules... 6.- In those cases where precedent interpretation rules might be applied, obscure or contradictory passages shall be*

interpreted in a way which would seem most to conform to the general spirit of the legislation and to natural equity".⁶³

3. Values Plane: Equity in Other Legal Contexts

Equity does not only appear on the European Continent, and in what is known as the Western World. Equity is present in other continents, such as Africa⁶⁴ and Asia.⁶⁵ Here, we shall omit from our analysis equity as that relates to the Indian and the Chinese Systems, as being rather distant from our own concerns. Still, we do not wish to omit allusion to certain other legal traditions, somewhat closer to our own. We shall look, therefore, at Jewish Civilization, the Islamic World and the ex-Soviet System.

3.1. The "Midrash" in Judaism. Maimonides

The idea of equity is not foreign to Spanish-Muslim nor to Spanish-Jewish culture, cultures which have played an important role in Spanish law itself.⁶⁶ At the end of the VIIIth century, certain Muslim Schools of Law, those of Abu Hanifa and Málic, appealed to equity ("*istihsan*"). They gave to it a supplementary function to cover legal gaps. In the XIIth century, Jewish legal philosophy,

63 ALBERTO REYES TERRA: *La equidad en el sistema del Código Civil uruguayo*. Montevideo. Universidad de La República. División Publicaciones y Ediciones. 1978. J. A. ZARZALEJOS: "Equidad", *cit.*, p. 3449. NARCISO ANDRADA HERRERO: *La equidad como elemento...*, *op. cit.*, pp. 235-239.

64 A. K. P. KLUDZE: *Modern Principles of Equity: an Exposition with Particular Reference to Ghana*. Dordrecht. Holland. Foris Publications. 1988; Id, "The Impact of Equity Jurisprudence on the Evolution of Law in Emergent Nations", in S. GOLDSTEIN (ed.): *Equity and Contemporary...*, *op. cit.*, pp. 868-911; GILBERT KODILINYE: *An Introduction to Equity in Nigeria*. London. Sweet and Maxwell. 1975.

65 K. YUKIZAWA: "Equity and Good Faith in the Japanese Legal System", in A. MORDECHAI RABELLO (ed.): *Aequitas and Equity...*, *op. cit.*, pp. 510-517; WEN YEN TSAO: "Equity in Chinese Customary Law", in *Essays in Jurisprudence in Honor of Roscoe Pound*. Indianapolis. New York. 1962, pp. 21-43.

66 Cf. AARON KIRSCHENBAUM: "Equity in Jewish Law", in *Da'at*, 13, 1984, pp. 43 ff.; Id, "The Example of Medicine in Law and Equity. On a Methodological Analogy in Classical and Jewish Thought", in *Oxford Journal of Legal Studies*, 5, 1985, pp. 238 ff.; Id, "Maimonides and Equity", in N. RAKOVER (ed.): *Maimonides as Codifier of Jewish Law*. Jerusalem. 1987, pp. 144 ff. Reprint in a slightly different version in A. KIRSCHENBAUM: *Equity in Jewish Law: Beyond Equity: Halakhic Aspirationism in Jewish Civil Law*. New York. 1991, pp. XXIV-XXXV; Id, *Equity in Jewish Law: Halakhic Perspectives in Law: Formation and Flexibility in Jewish civil Law*. Hoboken. New York. Yeshiva University Press and Ktav Publishing House. 1991; Id, "Jewish Law and Aristotelian Equity", in A. MORDECHAI RABELLO (ed.): *Aequitas and Equity...*, *op. cit.*, pp. 63-83.

in the figure of its main exponent, MOSES BEN MAIMÓN (MAIMONIDES), in his work *Moreh Nebûchim*—"The Guide for the Perplexed", whilst attempting to harmonize the Philosophy of ARISTOTLE with Jewish Thought- developed an idea of equity as mildness, along the lines of the Christian-Canonical tradition.⁶⁷

MAIMONIDES points out—in Aristotelian fashion—how law (*Torah*) pays no attention to the isolated, the strange, but rather only to what happens in the majority of cases. Nevertheless, applying the law, like applying a medicinal cure, should be particularized for each specific, individual case, according to conditions. This universal character of law is associated, in MAIMONIDES, with the prohibition against listening to music. He writes thus: the Talmud explains that the said prohibition rests upon the fact that there is no difference whatever between listening to songs or melodies which cheer the spirit and those which raise up evil passions. Still, this constitutes a general rule, it does not prevent there from being rare exceptions when an individual may find himself induced by the music to preserve his spirit and submit it to the divine commandments. The law is given only in its general application, it pays no attention to specific cases.

Having reached this point, it should be emphasized that, for MAIMONIDES, equity is not a means of correcting divine law, since this needs no amendment; what do require correcting are rather society and the individual. The Aristotelian idea of a correcting of the law is based on the premise that both legislator and corrector of law are on the same level, that they have the same status. This, however, does not fit in with the principles and main conception of Judaism wherein the divine legislator and the authority applying the law are not on the same plane. Still, MAIMONIDES' idea approaches ARISTOTLE's in that equity is a human virtue, the quality of the equitable man. It is a taking into consideration of human weakness. It is the taking of less than one is due, the recalling of advantages, not grievances, being tolerant of error, and preferring consensus to litigation, always in imitation of the divine way of working.

Chapter 53 of the *Guide* is especially important here. In that chapter, we find the concepts "*hesed*", "*zedek*", "*zedakah*" and "*mishpat*" defined. "*Hesed*" (amiability and love) consists in giving more to the other than strictly corresponds to him; "*zedek*" (justice) is giving to the other exactly what is his; "*zedakah*" is a moral virtue and consists in the duty one owes to one's own spirit or soul—"because, when one walks along the pathway of the moral virtues, one does justice to one's own spirit, giving to it what is right and that to which it has a right". Finally, "*mishpat*" (judgment) means doing what one should in relation to the person judged, be it awarding a benefit or imposing a sanction upon him.

In truth, we cannot know whether, when writing these lines, MAIMONIDES had ARISTOTLE's "equitable man" ("*epieikes*") in mind or not. In-

67 JOSÉ CASTÁN TOBEÑAS: *La idea de equidad en las letras españolas*, op. cit., pp. 28-29.

deed, we do not believe that he needed ARISTOTLE's examples specifically, given the wealth of such examples in the Jewish Tradition itself. What is clear is that the Aristotelian idea of equity is very close to MAIMONIDES' own idea of "*hesed*"—kindliness and love. However, MAIMONIDES' special contribution, rooted in Judaism, is his vision of equity as a description of divine qualities which we should emulate in our earthly life.⁶⁸

Jerusalem was destroyed because the administration of justice there was too rigid and did not let justice and equity impose themselves upon the strict letter of the formal law. It is not enough to observe the laws just as they are. It is necessary also to distinguish between what is correct and what is good, between the good in the eyes of men and the good in the eyes of God, between "*right*" and "*good*", between the Biblical "*yashar*" and "*tov*"—a distinction which is equivalent to the Roman "*aequum et bonum*", respectively.

Many examples are to be found in the Bible where one should act not only according to formal law, but according also to justice. Thus, in *Exodus* 22, 20-23, there is the very interesting example of how offending a stranger, a widow, or an orphan goes against divine law, though it does not constitute any criminal offence nor bear with it any earthly sanction whatever, according to human law. Another example might be found in *Exodus* 22, 24-26—a passage similar to *Deuteronomy* 24, 10-13—and those cases where money is lent to a poor man. There the duty is imposed that one not act later as a usurer and demand any repayment. Another famous Biblical exhortation is that of *Exodus* 23, 4-5—parallel to that of *Deuteronomy* 22, 1-4—dealing with the divine command to help one's neighbour when his belongings are in danger—here an animal which has gone astray. We see a good neighbour's responsibility is not only to look after his own property, but also that of others. Though we are not legally bound to this, yet any kind of egoism is a character defect even if it is not a crime. This duty to help is exactly the same even should our neighbour also be our enemy. Moreover, if God is concerned over stray animals, then how much more so must he be "*a fortiori*"—over lost people, as much in the physical as in the spiritual sense of "lost". Our moral duties extend to them; we ought to offer succor to all who are in need. One more of the most clear-cut examples of equity in the *Bible*—and one to which the greatest number of mistaken interpretations have been given—is the prohibition on returning a fugitive slave to his legal owner—*Deuteronomy* 23, 15-16. Talmudic law, however, also ensures that there exist ways and means by which the rightful owner of the fugitive might be refunded his loss. In other words, equity should follow the law and not serve to evade it.⁶⁹

68 IZHAK ENGLAND: "The Problem of Equity in Maimonides", in ALFREDO MORDECHAI RABELLO (ed.): *Aequitas and Equity...*, *op. cit.*, pp. 87-127.

69 HAIM H. COHN: "Ancient Jewish Equity", in RALPH A. NEWMAN (ed.): *Equity in the World's Legal Systems...*, *op. cit.*, pp. 47-71.

3.2. *Equity and Islamic Law*

Islam is not only a religion, it is also a political system for a universal society. The “*Sharia*” is the way, traced out by the Creator, men must tread to, one day, arrive at final happiness in the afterlife. Justice, in Islamic law, is one way of attaining to truth, beyond any legal victory. Islamic law has two, synonymous, words for equity: “*Adle*” and “*Insaf*”. Some Islamic Schools consider equity a divine attribute. Equity, at the divine level, implies taking into account all circumstances before judging. On the human plane, equity is the just path of the heart.⁷⁰

First and foremost, it should be made clear that Islamic law is not a casuistic law, derived from legal practice, as the Anglo-Saxon is, for instance. It is a law of jurists and of theoreticians who work in Schools and who develop legal theories. The judge’s role is purely technical. He must apply the law in practice, though without the authority to create legal precedent upon the basis of his discretionary power. Secondly—and as a consequence of the above—jurists and judges are linked together by the legal tradition of the School to which they belong, and are not authorized to deviate from it. The tradition is known as “*taqlid*”. It logically restricts the freedom to argue juridically.

The tradition itself is based on the sources of existing law. These are four in number: the “*Qur’an*”, “*sunna*”, “*ijma*” and “*quiyas*”. The first two are material and primary sources. That is, they are written sources of officially recognized law’s creation. The “*Qur’an*” is the sacred book of Islam. It sets out the main Islamic norms. The “*sunna*”—formed by, initially, oral tradition—were later written down, and are to be found in various different collections. The other two sources, “*ijma*” and “*quiyas*”, though they do not achieve the rank of Islamic law material sources, nevertheless, also create law. “*Ijma*” is the agreement, via public consensus or via scientific doctrine, while “*quiyas*” is an interpretive principle that may, basically, be translated as equivalent to our “legal reasoning by analogy”, or “legal analogy”.

Common to these four sources is the basic postulate that the final foundation of Islamic law is the Divinity. Such a law cannot be altered by man, human discretion plays no part whatever in the drawing up and development of the law. Even analogical argument (“*quiyas*”)—which might lead us to think that, in principle, there would exist room for a certain level of discretion and interpretation—only has a part to play at the service of an already existing norm and does not have a legal, creative character.

Muslim jurists, from the IXth century on, have not allowed for any possibility of law’s creation which does not derive from some of the four aforementioned sources. Little room is therefore left for discretion, for justice, or for

70 HASSAN AFCHAR: “Equity in Musulman Law”, in RALPH A. NEWMAN: *Equity in the World’s Legal Systems...*, *op. cit.*, pp. 111-123. JOSÉ CASTÁN TOBEÑAS: *La formulación...*, *op. cit.*, pp. 45-46.

equity, in this rigid system of sources. No creative role whatever is recognized for human intervention in the making of law, nor is custom given any recognition as it is in the Western World. Still, at a certain stage of its development, Islamic law evolved an institution, regarding equity, similar to that which exists in English law. It is known as "*nazar fil-mazalim*". This examines public appeals. In modern terms, it is a sort of Supreme Court. It acted in matters having nothing to do with Islamic law and its deliberations were not subject to substantial Islamic law. Its decisions were not considered as legally binding precedents, its procedure and its verdicts lacked consistency. Such an institution never became a genuine equity jurisdiction, neither was it recognized as a parallel legal system, as distinct from what happened in English law with "*equity*" versus "*common law*".

What occurred in Islamic law is that it became incapable of adapting itself to the necessities and challenges of a changing, rich, social reality. This happened despite the sources of law machinery, included in the voluminous writings collected in "*usul al fiqh*", whose main mission was to teach how to produce legal norms derived from the sources. The result of all this was that legal decisions were often unjust. To try to overcome the rigidity and formalism of the system, there arose an equity framework. It was different from English and Continental "*equity*", though it did stem from similar motives, the need to make the system more flexible. The main idea behind Islamic equity lies in the concept of "*istihsan*". Etymologically, this comes from "*hasan*"—the good, public welfare. *Istihsan's* main mission is to remedy legal rigidity and formalism. As AVERROES says, in his celebrated work, *Bidayat al-Mujtahid*: "*Istihsan*, in most cases, means considerations of utility and justice" (*al-maslaha wal-'adl*).

The concept of "*istihsan*" was accepted by most legal schools, with the exception of the "*Shafi'is*". Nevertheless, there was no agreement between different members of varying schools as to its legal significance and its relation to the four sources of Islamic law. Two main points of view concerning this might be underlined. For some, "*istihsan*" was a concept apart—though not completely apart—from the four recognized sources. It was an almost independent source wherein were implicitly found considerations of necessity, utility or convenience. The other view saw equity dependent upon the accepted legal sources to which it was subordinate, and from which it could not separate itself. This is precisely one of the differences between Muslim equity—subordinate to Islamic law—and equity in systems like the English. In such systems, equity makes up a jurisdiction parallel to that of common law.⁷¹

Still, what is the relation that exists between Islamic equity and Jewish legal equity? On this point, on the one hand, it should be pointed out that, as is well known, Islamic law grew up in the shadow of Jewish law. Holding that Jewish law was a rigid system, Islamic law tried to adopt easier and more flexible for-

71 Cf. MOHAMMED SULTAN: *La equidad entre el Derecho musulmán y el Derecho romano*. Beyrouth. 1962.

mulae. This becomes clear, for instance, with the introduction of the principle of “*rukhsa*”—mitigation. Nevertheless, Islamic law finally fell into the very formalism it attempted to avoid, making appeal to “*istihsan*” necessary. On the other hand, in contrast to Jewish law—to which numerous principles of equity might be traced—nothing similar is to be found in Islamic law—save the idea of “do good and eschew evil”, ever-present throughout Muslim literature. To the Jewish tradition, already considered, we might add such things as: “do what is good and right”, *Deuteronomy* 6, 18; the going beyond the letter of the law of “*lifnim mi-shurat ha-din*”; the “*middat hasidut*”—or considerations of what is morally correct—, and so on.

Summing up what might be said of equity in Islamic law, we can say that “*istihsan*” was nothing but a tool of legal discretion, when faced with actual, individual cases, a theoretical technique, used by the different schools of legal theory, of a general character, which could be used in future cases.⁷²

3.3. Equity in Soviet Law

Today—after the Fall of the Berlin Wall, the dismantling of the Communist System of the old Soviet Union and the Balkan Wars—the world situation has greatly changed with respect to what was known during the Cold War as the division of that world into two blocks: the capitalist, led by the U.S.A., and the socialist, with the U.S.S.R. at its head.

The 1989 Eastern European Revolutions might well be considered by future historians as movements of as great importance in human history as the Russian Revolution of 1917 or the French Revolution of 1789. Not only did they put an end to Soviet dominance in the region, they also wiped out much of the aftermath of the Cold War and, to a large extent, contributed to the disintegration of the Soviet State and the final overthrow of the Leninist Communist model.

Everything began with Gorbachov’s coming to power in the U.S.S.R. in 1985. His initial aim was to reform the Marxist-Leninist system from within. However, the pressures unleashed turned his program of reform into an authentic revolution in depth. These events had their negative side in the instability created by the dissolution of the Soviet State and its sphere of influence. The most tragic event came about with war in what had been Yugoslavia. Together with this, there reigned a situation of violence and civil war within various ex-Soviet republics and between their various ethnic groups.

Should one have to make up a balance sheet of the situation in Russia and in Eastern Europe in the 90s, we would have to point up as negative outcomes the multitude of new problems and dangers, more especially the Yugoslav War, the

72 GIDEON LIBSON: “A Few Remarks on Equity in Islamic, Jewish and English Law”, in ALFREDO MORDECHAI RABELLO (ed.): *Aequitas and Equity...*, *op. cit.*, pp. 152-160.

war in Kosovo, the ethnic and nationalist conflicts in some of the States arising out of the demise of the old Soviet Union, and the re-emergence of racist groups and even fascists in Germany, France, and many other parts of Europe. Still, it is also necessary to recall the positive achievements. Among them, there were the overthrow of the authoritarian Communist government and of Soviet hegemony over those countries which had belonged to the Warsaw Pact. This was done with almost no bloodshed—apart from that spilled in Rumania. No less noteworthy is the democratization of the Soviet Union and its later dissolution as a single block State. Even though it is true that this did not come about without loss of blood, still the killings never reached that extent which has accompanied the collapse of other established empires, as, for instance, the fratricidal bloodbath produced in India and Pakistan when Great Britain withdrew from the Asiatic Subcontinent. Russia's pullout from empire was smoother and more pacific than the very many effected by European Powers from Africa and from Asia, after the Second World War.

The above serves as an introduction to explain how the general situation and equity, in particular, will, perforce, be different depending upon such events as we have just outlined, events which represent a distancing from the Socialist idea of the world and an approximation to a more Western vision of reality. Nevertheless, for many years, from the Russian Revolution until very recently, the Soviet system was a reflexion of Communist and Socialist theories. The reigning idea was the unity of powers. This made legal rules emanating from the organs of the Central Power, or local powers, have as much authority as the law itself, and meant that Courts could dictate ordinances with the same force as all the other authorities. This gave the Soviet Supreme Court tremendous administrative authority, with the power: to dictate directives to lower courts; to force them to interpret Soviet law along certain specific lines; to convert the discretionary powers of the ordinary Soviet judge into mere illusion. The judge, at this time, was at the service of the authoritarian Soviet, be he worker or peasant, and the Socialist idea of law. His situation would be one diametrically opposed to that of the judge-legislator of the Swiss model, for instance.

The judge had to judge according to the "Socialist legal conscience". This replaced the non-individual "legal conscience" of the Capitalist system. It was collective, societal, attributed to the work of the People's Courts—these were set up by decree on the 24th of November, 1917 and, later, confirmed by the Rules for People's Courts, the 30th of November, 1918. In "theory", in an ideal world, perhaps in one MARX imagined, judging thus would be judging according to equity, and not according to some codified norms and the law of the Czar—these latter being but a reflection of the superstructure, an ideology, with all the pejorative emotional charge this term carried in the Marxist worldview, it being a "deliberate" deformation of reality. In "reality", however, the "Socialist legal conscience" led to submission to central directives and, in

sum, to a total lack of freedom. This has left the Marxist model like some historical utopia, a dream that disappeared just as it came true.⁷³

73 VITTORIO FROSINI: "Equità (nozione)", *cit.*, p. 75. JOSÉ CASTÁN TOBEÑAS: *La formulación...*, *op. cit.*, pp. 70-72. W. J. WAGNER: "Recent Application of the Idea of 'Principles of Community Life' in Poland", in R. A. NEWMAN (ed.): *Equity in the World's Legal Systems...*, *op. cit.*, pp. 539-549; CHARLES SZLADITS: "Equity in Hungarian Law prior to 1945", in R. A. NEWMAN (ed.): *Equity in the World's Legal Systems...*, *op. cit.*, pp. 471-485.

Chapter 4

Concept of Equity

The task of defining “equity” is one whose relevance is very debatable. Some say equity should neither be defined nor evaluated nor quantified.

According to such a view, why should equity not be “*defined*”? It is because to define means in a certain way “to straightlace”. Why is it that the greatest spirits cannot be confined within some general definition? Is it because they have a multitude of specific manifestations? The confinement which all definitions imply and the artificiality of all definitions become especially evident in the case of equity. Since it causes us to move through closely-related figures, its contours tend to become blurred as it passes through areas common to other notions, and through such danger zones as feelings, virtues, legal norms, values and principles. Hence, it is often easier to study equity by its function—be that supplementary, applied, interpretive, creative, humanizing, individualizing, and whatever. Equity is indeed all this, but, at the same time, it is also so much more.

Further, equity should not be the subject of “*evaluation*” or of axiological appreciation. Is it good or bad, positive or negative? Should we be glad or worried that it is so? Though there are some who judge equity as something pernicious, a real threat to legal security and from the separation of powers’ point of view, its contribution in solving specific cases is undeniable.

Finally, equity is also something hard to “*quantify*”. It is nearly impossible to measure, from the moment it ceases to be a special category to its becoming a principle to be used in the judge’s professional life. That is why we must reason in terms of “tendencies” rather than in terms of “on balance” and, on the other side, we have to examine the evolution undergone in this field from equity’s initial stages. There, the principle of legality reserved a reduced role for equity, marginalizing it. In the later stages of its contemporary evolution, with the tendency to release the judge from the law’s yoke, equity’s role has grown considerably, by way of judicial equity in the resolving of cases.¹

However, without being over negative and pessimistic, and even admitting the possible danger involved in all definition—the danger of its becoming a stereotype or a stale cliché, of its having little to do with the plurality of per-

1 LOÏC CADIET: “L’équité dans l’office du juge civil”, in *Justices. Revue Générale de Droit Processuel: Justice et Équité*, 9, January-March 1998, pp. 88-89.

spectives which life offers, and though, in the case of equity, this danger is more than likely to become a probability—yet we still hold that a definition of equity might be essayed, at least from a triple perspective: from the historical-spatial; from the lexicographic; and from the logical-scientific.

1. Historical-Spatial Perspective: Equity “Here and Now”

The first sort of conceptual precision to be made as regards the subject of equity really takes the form of a warning. There is not “one” but “various” ideas of equity. The idea of equity in Greece, a philosophical idea, is different from that of Rome, where it has a legal character. This again differs from the Christian-Canonical idea, which is an ethical one, and so on. Not even in Roman law may we speak of a unitary conception of equity, equity being different in the distinct epochs of Roman law’s evolution. What do we mean by all this? Well, there are as many concepts of equity as there are historical periods in its development. This is the theme of historical equity. However, what we intend to give, in this section, is the “modern” idea of equity.

One might well say as much about the other important co-ordinate in the analysis of every phenomenon: space. There is no “one” but rather a “multitude” of ideas of equity, depending, in great part, on the place we are referring to. Anglo-Saxon equity is not the same as Continental equity. Equity is not even the same in English law when compared to Anglo-American or to Scottish law. Nor is equity in French law the same as it is in the Swiss Civil Code, with its idea of the judge-legislator. Neither are concepts of equity equivalent in legal cultures different from the Western, those of Islam, of Judaism, or of the Soviet sphere, especially as this latter existed prior to the Fall of the Berlin Wall. These are, however, topics we have already run over. Here, what we wish to do is get a little closer to the typical Western idea of Continental equity, that is, as near as possible to the Spanish legal system.

In brief, we might assert that, in this section, we focus upon the “modern and continental” idea of equity, equity in the *hic et nunc*, the here and now, though without forgetting that there are other models in the “there and then”, in other places and at other times. The distinction is basic when taking on the study of equity.

2. Lexicographical Perspective

The importance of language is today undeniable. A medium of communication—especially written and oral language—, words and their etymology, all these things are of vital importance when studying any concept. We have already said something of the etymology of the term “equity” when referring to equity in Greece and Rome. The word “equity”—similar-sounding in all languages—also stems from the same root in all languages, from the Sanskrit “*aikatuan*” -unity, similarity-, and from the Latin “*aequus*” -equal, straight-,

and comes to express “equality of treatment”—an idea retained still today in Anglo-Saxon law with its maxim: “*equality is equity*”.

Here and now what we are carrying out is rather an analysis of the term “equity” in its present state in the Spanish language.² All Spanish words which begin with the prefix “*equi*” have to do with equality amongst the concepts before which they are affixed. This is clearly evident in terms such as “*equiángulo*”—according to the *Diccionario de la Real Academia* (The Royal Academy Dictionary), this applies to a figure having all its angles equal. “*Equidistar*” is a situation where one or more points are found to have an equal distance between them. “*Equilibrar*” is to make one thing rise above another, the keeping of proportionate equality between them. The list is a long one, and the idea of equality and proportion is always implied by the prefix “*equi*”. When this is juxtaposed to the suffix “*dad*”, in Spanish, the ideology contained in the root word is raised the highest possible level. Hence, in an etymological sense, equity presupposes as much “the most equal” as it does “the most proportional”.³

3. Logical-Scientific Perspective

The idea of equity, as we have seen, is not a univocal concept, but varies according to time and place. Nevertheless, if we limit ourselves to a static focus on the question, an abstract, logical, appraisal, more than a dynamic analysis, we might say that a latent antinomy or counterpoint between two poles may be found therein. This counterpoint admits of many forms of expression. Some of them are as follows: there is the clash between two of the concepts, the two which give this work its title: *Equity and law*. Put another way, this might be expressed as the friction between: legislator and law; the spirit and the letter of the law; a legal standard and a legal rule; the all and the part; what is always the case and what is but momentary; good and evil; a merely semantic solution and works; misfortunes, mistakes versus crimes; arbitration versus a trial; the actual over against the potential; facts versus norms; freedom over authority; judge versus legislator; the individual against the generic; the casuistic vis-à-vis the abstract; mildness and humanity over rigour and harshness; discretionary, non-official, living, social, intuitive, free law versus scientific statutory law. These are some of the ways in which the tension existing between equity and law might be graphically explained.⁴

Equity is always considered as having reference to the “*ius dicere*” moment, the moment of administering justice, rather than to that other moment—more vague from the legal-technical viewpoint, though infinitely more meaningful,

2 Cf. STIG STRÖMHOLM: “Equity in Swedish Law”, in RALPH A. NEWMAN (ed.): *Equity in the World's Legal Systems...*, *op. cit.*, p. 443, note 1.

3 CARLOS M^a ENTRENA KLETT: *La equidad y el arte de juzgar*, *op. cit.*, pp. 24-25.

4 ARISTOTLE: *Retórica*, I, 1374 a-b.

from the subject's point of view—, the moment of “*ius petere*,” or petition which law itself recognizes. In the identity-difference dialectic, when applied to the law-equity nexus, equity symbolizes “difference,” particularity, specialty over against the law, which expresses the idea of “equality”—in the legal sense. Equity has reference to the “limit-situation.” The situation where the individual sees himself taken away from community obligations with regard to the law. Equity is placed in a midpoint of contrast between law and morality. This means that—in those cases where the law is valid but leads to unacceptable ethical results—the law ceases to be binding and classical causes like “*liberatio ab observantia legis*” may be appealed to. Dispensation may be cited, as may privilege, desuetude or “*cessatio legis ob revocationem*” itself. Human law is held to be structurally subordinate to natural law. Human law is established only for ordinary cases, not for the exceptional or the extraordinary. It is in those cases that equity must enter the field of play. Equity thus fixes a limit to legal justice and introduces a dynamic element in the static nature of the law. It is a radical, dynamic element now not born from the social variable but from the originality of the individual who attempts to impose the truth, his truth—“*causa suae veritatis*.” Thus “subjectivity” is vindicated as a part of the content of equity.⁵

However, in truth, this counterposing of poles, or of the antinomy existing, between law and equity is not really a true opposition or contradiction. It is rather a matter of ideas which are always interconnected and which need to be reconciled. In this, as in so many other things, the truth lies in a happy medium which might harmonize the imperatives of normative law with those of free law, the demands of law and those of life. Only from their reconciliation and synthesis can we hope for the full realization of justice.⁶

We should never confuse equity with other concepts having close affinities with it. Even though equity is a concept difficult to pin down and elaborate on—given its variable nature depending on time and space, its complexity, and its vagueness—it is not to be mistaken for “good faith” or with the general principles of law. Here, an interesting question arises as to what the relation between equity and legal norms is. Again we are faced with the law-equity relationship. Is equity a norm? To this question, JOSÉ CASTÁN TOBEÑAS answers by saying that—rather than a norm in itself—equity is a quality or property which every legal norm may have when it carries out the demands of justice in its application to specific relations. Still, there are not wanting those who consider that equity does translate into legal norms, at least in the following ways:⁷

- Insofar as equity can *incorporate itself* into a legal norm by legislative, consensual means, or via general principles of law.
- Insofar as—through equity—rules or *legal maxims* might arise.

5 FRANCESCO D'AGOSTINO: *La tradizione...*, *op. cit.*, pp. 14-27; Id, *Dimensioni dell'equità...*, *op. cit.*, pp. 17-45, 59-62 and 179-181.

6 JOSÉ CASTÁN TOBEÑAS: *La formulación...*, *op. cit.*, pp. 146-147.

7 JOSÉ CASTÁN TOBEÑAS: *La idea de equidad...*, *op. cit.*, pp. 56-57.

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- Insofar as equity may give place to a true legal system, as, for instance, with *equity jurisdiction in the Anglo-Saxon legal systems*.
 - Insofar as the judge might adapt the law to the specific case when seeking the most just solution. This may come about when equity norms—which have recourse to equity or refer law to equity—give rise to *flexible and elastic norms*, without precise and fixed content, as opposed to strict legal norms.

Chapter 5

Functions of Equity

1. Three-dimensional Distinction

Below, we set out a scheme to graphically chart the workings of equity in legal argument. This will allow us to clearly see the three planes set of the “three-dimensional”: the planes of facts, norms and values.

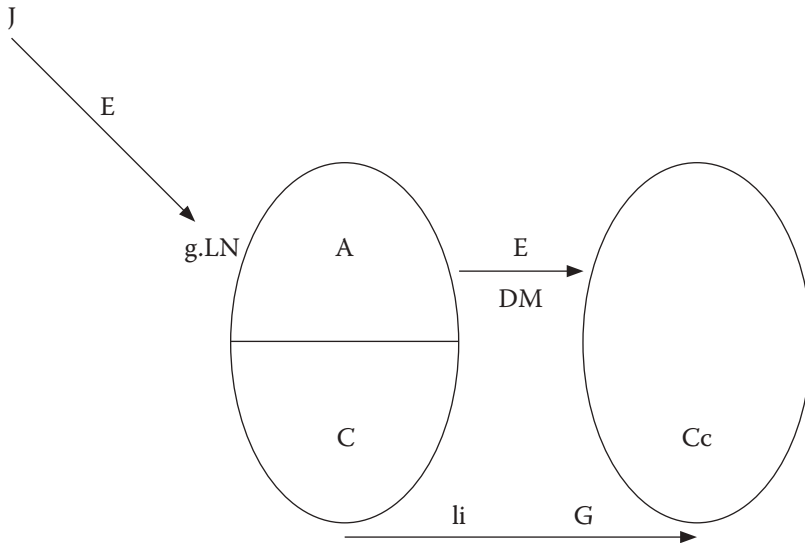
We should start out from the existence of a specific case from real life (Cc) to be solved, according to law. Together with that specific case, we find a general legal norm (g.LN). This is because—when faced with life which is plagued by particular circumstances—the law, and the legal norms making it up, have a generalizing vocation. They offer general solutions to a whole series of cases and clients. The legal norm (g.LN), like the human being, consists of two elements, the body and the soul or, what is the same, the “*corpus*” (C) and the “*anima*” (A). The “*corpus*” is made up of the letter of the law, the “*anima*”, by its spirit or “*ratio*”. Both elements are present in every legal norm. To apply the strict letter of the law (C) to the concrete case (Cc) a regulation is required which derives from a literal interpretation (li) of the law. This may often cause insufficiencies to appear in the law, may lead to true, legal gaps (G). Legal gaps may exist even where there is a norm applicable because the norm might prove too general and lacking in the concrete, legal development needed for the specific case in question—so-called “technical gaps”. Further, there might be gaps because the law is openly unjust: “axiological gaps or value gaps”. Faced with this type of gap, it is necessary to have recourse to legal argumentation—analogical arguments or “*a fortiori*” arguments, for instance—in order to find a solution, since, when all is said and done, the legal system must be complete—the dogma of the “plenitude of the legal system”—and the judge must come to some decision regarding all cases submitted to him.

Amongst other possible argumentative solutions, equity (E) may now arise. Equity would be nothing but the application of the spirit of the law, its “*anima*” or “*ratio*”, to the specific case. If, when applying the law, we allow the letter to override the spirit, then, we are dealing with a literal interpretation. Should we, however, award priority to the spirit over the letter, we are treating of, what we might call, an equitable solution. This not only plays an interpretive and applicable function with regard to the legal norm, it also fills the legal gap and moderates the legal norm’s rigour to make it suit the specific case. In certain

legal systems, not in the Spanish, equity also fulfills a creative legal function, making equity an authentic normative source.

In the process described, equity comes into play through the figure of the judge, the one who applies the law, but it may also enter the process earlier via the legislator who, when elaborating the law, may make the idea of justice—which should preside over all legal systems—be reflected in the “*ratio*” of the law. However, as we shall see, this is not always the case. For instance, it is not the case when we deal with “iniquitous laws”—the above described value gaps example. There thus exist two justices. One is abstract and general, justice in its “genuine” sense (J). The other is justice in the specific case, which we might call “*justeza*”—an adapting of abstract justice to the peculiarities of real situations. We might also term this type of justice “equity”. The result of a judge’s applying equity is a decision or sentence maxim (DM).

The above might be displayed in the following graph:



Key: J=justice; E=equity; g.LN=general legal norm; A=anima; C=corpus; li=literal interpretation; Cc=Concrete Case; G=gap; DM=decision maxim.

1.1. *Factual Plane*

1.1.1. The Applying, Singularizing and Individualizing Function of Law, through Case Law

ARISTOTLE had already highlighted the singularizing and individualizing role of equity as concerns the application of an abstract law to a specific case,

and as concerns the difference between general justice and individual justice. In this double sense, we might speak of the “equity of application”. Insofar as this is an application of justice, we move within the ethical sphere. When it is an application of the norm—especially a legal one—we are specifically within the sphere of legal argumentation.

Normally, when we talk of an application of the law via legal argumentation—in analogical argument, in “*a fortiori*”, in “*a contrario*” or even in the application of general legal principles—the product or result of such an application is a decision maxim. This is the outcome of endowing the legal decision in the specific case in question with normative standing. In the above graph, this was expressed as DM. In reality, in legal systems with a Continental character, like the Spanish, it is not an authentic legal norm, since, at least formally, case law is not there a source of law. This is the opposite to what happens in systems based on Anglo-Saxon common law, for instance.

1.1.2. The Interpretive Function of Law

1.1.2.1. Interpretation as a Process that is Inseparable from the Application of Law

Whenever a judge applies a legal norm to a real case, he must, ineluctably, either previously or simultaneously, interpret the norm. The processes of application and of interpreting are intimately tied, they are inseparable. Every legal norm needs interpretation for its application, not only obscure norms—where the need is more in evidence—but even clear norms. Although there are aphorisms like “*in claris non fit interpretatio*” or “*clara non sunt interpretanda*”, the truth is that to even see that something is clear requires that one first undertake, at least a minimum, hermeneutic task. In the case of an equitable application-interpretation of law, a literal or grammatically exact interpretation is not enough. It is therefore necessary to carry out greater exegesis. A double interpretive phase is called for, and this consists in: 1.- Accepting that the literal tenor is not enough; 2.- Admitting that one must find out the spirit or “*mens*” of the precept in order to suit it to the specific case, suit it to the light of justice.

Still, though application and interpretation go hand in hand, this does not mean that they are the same thing. It is necessary to distinguish between them.

There are, then, various operations involved in the processing of a norm—in the widest sense. First, one must see if the norm applicable to the case is valid, that is, whether it has been created by some competent body, following the correct procedure (validity decision); next, one must check the meaning of the norm applicable (interpretation decision); then, one has to take care of the facts to be proved (evidence decision); fourthly, it must be seen whether the proven facts do or do not enter within the norm to be applied (subsumption decision—application in the strict sense); and, finally, we must look at what le-

gal consequences follow for the proven and legally qualified facts (consequence decision).⁸

For a great number of writers, as CASTÁN TOBEÑAS says, “*the interpretation of positive laws is the unique field of equity, and the only place equity functions, so it follows that the two ideas go together, equity... being confused with interpretation (especially with restrictive interpretation) of positive laws, often there is no difference made between interpretation and “epiqueya”, like the one made between genus and species... Thus general interpretation is differentiated from interpretation in “epiqueya” since there might be other interpretations in law which do not refer to their emendations, but only help explain the meaning of whatever is ambiguous... “epiqueya” is different from simple interpretation because of the following: first, interpretation looks to the mind of the legislator, contained within the law, and “epiqueya” seeks the mind of the legislator outside the law... Interpretation is an operation; equity is a principle or directive criterion, even if its handling also presupposes an elaboration or an investigation*.”⁹

Interpretation, properly speaking, operates on the legal norm to see what its true meaning, content, and reach, are, while equity is an “*ultra-interpretative*” legal investigation, beyond the statutory norm. The investigation is carried out—apart from finding out the norm’s sense (interpretation)—to fill in a vacuum (integration), to correct an imperfection (correction), to moderate and humanize the over-strict law (moderation) and, to some extent, to innovate (creation), though not to innovate so far as to be considered an actual source of law. Further, there is “*application*” in equity. Equity is not limited to interpreting—the norm may already be interpreted, its sense might be fixed. Still, to this interpretation *tout court*, application is added, that is, the adaption of the law, with its already-fixed sense, to the reality of the specific, real life, case. In this way, while we might say that there cannot be an application of a legal norm without, prior or simultaneous, interpretation, we can certainly speak of an interpretation of application not followed. The first case—interpretation + application—is proper to equity. The second is where interpretation is limited to clarifying the norm and we do not move on to application.

In this way, we see CASTÁN TOBEÑAS’ words made somewhat more precise. It is not that interpretation is the genus and equitable interpretation the species, but rather, the interpretation verified in equity is wider than simple interpretation, since it is followed by integration, creation, application, and moderation. At least that is—to reconcile both positions—we consider that simple

8 JERZY WRÓBLEWSKI: “Evaluative Statements in Law. An Analytical Approach to Legal Axiology”, in *Rivista Internazionale di Filosofia del Diritto*, 1981, 4, cited by JUAN IGARTUA SALAVERRÍA: *Teoría analítica del Derecho (La interpretación de la ley)*. Oñati. Instituto Vasco de Administración Pública. 1994, p. 14. JUAN IGARTUA SALAVERRÍA: *Márgenes y límites en la aplicación del Derecho*. Donostia. Librería Carmelo. Facultad de Derecho. 1992.

9 JOSÉ CASTÁN TOBEÑAS: *La idea de equidad...*, *op. cit.*, pp. 90-93.

interpretation, or “proper interpretation”, is wider, as far as interpretation goes, but then such an interpretation fulfills no other function, while equity is less generic—or, what comes to the same, more specific, as to interpretation—, it is a type of interpretation, equitable interpretation, though there are other sorts of interpretation not touched on by equity, and these do come accompanied by other functions. These are such things as application, creation, integration of a legal gap or moderation of the norm’s rigour.

1.1.2.2. *Types of Interpretation*

Once the norm’s sense, spirit, or “*anima*”, has been found out via equitable interpretation, and has been compared to the letter or “*corpus*” of the law, two situations may arise: 1- The letter and the spirit may coincide. 2- They might not coincide. In the former case, we are faced with a *declarative* interpretation. This, in turn, may be either a broad interpretation or a strict one. The broad interpretation comes about when, of two possible meanings, the wider is accepted. For instance, a broad interpretation of the word “man” may be understood to include both sexes, male and female, taking it as equivalent to “human being” or the “human race”. On the other hand, strict interpretation is when, while there are two possible senses, the more limited sense is accepted. Thus, in our example, a strict interpretation of the word “man” would take the term to mean only “male”, leaving out of account the feminine gender.

When the letter of the law and its spirit do not coincide—our second scenario—this might be for any of three reasons: because the spirit found is broader than the letter; because the spirit is narrower; or because—though neither broader nor narrower—the spirit is found simply to be different. The first two possible reasons are quantitative in nature, the third is qualitative. In the first case, the spirit being broader, when the law says less in a literal sense than would be in keeping with the spirit of equity (“*lex minus dixit quam voluit*”), the letter must be extended to take in other factors included in its spirit, judged in terms of equity. Such a situation gives rise to the *extensive equitable* interpretation, the which has *an exceptional character*.

When the spirit found in accordance with equity is narrower than the letter of the law, in such a way that the grammatical or literal interpretation says more than is required by its spirit, in conformity with equity (“*lex plus dixit quam voluit*”), the letter of the law’s sphere must be reduced so that it excludes certain factors not covered by its spirit according to equity. This situation gives us a *restrictive equitable* interpretation, the which has a *normal equity character*.

Finally, when the spirit, following equity, means something different from what the letter appears to say (“*lex alter dixit quam voluit*”), then it is necessary to correct the letter to adequate it to the spirit. We here face the *corrective equitable* interpretation.

In reality, what must always be sought is the norm's "true" spirit, attempting to adjust abstract justice to equity—as justice in the specific case—without any pre-established directives or schemata to hand. In case of doubt, one should adhere to the interpretive aphorism according to which "*favorabilia amplianda, odiosa restringenda*" (the favourable should be broadened, the unfavourable, restricted). One should choose to exclude the doubtful, limit oneself to including the certain, and, therefore, opt for the restrictive interpretation, when dealing with so-called "hateful laws" -that is, laws unfavourable to the citizen, for instance, those which punish or those which restrict rights-, or else one should include the doubtful, giving priority to the extensive interpretation, to favourable laws.

1.1.2.2.1. Declarative Interpretation of Law and Equity

To begin this section on interpretation, which focuses on the letter of the law, it should be noted that this is not a typical case in which equity is applied. We recall, equity comes into play when the literal interpretation is not enough, and the spirit of the law must prevail over the letter. Indeed, the type of interpretation produced in equity is what we might consider a "strong" interpretation, as opposed to what are known as interpretations in the "weak" sense. To better understand what the difference between the two types is, we may start off with an example which compares the hermeneutic, or interpretive, act with music.

We have all heard musical fragments interpreted by different soloists and orchestras, and we may see how—despite the fact that the original score is identical—the results are many-hued. In law, the original score (in music) is the text of the law. What has altered in these cases if the text—musical or legal—be the same? What has changed is the interpreter—in equity, this would be the judge. There is also the possibility that the same interpreter will offer different interpretations on different occasions—be they concerts or trials. We might go even further and ask ourselves if any musical text would exist if there were no-one to interpret it, in the same way as there is no work of art in the world of painting simply because canvas, brush, and paint exist. Elements like light, in painting, give rise to totally distinct interpretive results—remember the importance given this by the Impressionists, amongst others. They painted one building at different times of day, for instance, with different light, which produced different painted effects, despite the fact that the building itself was the same. We might also think of inspiration, or, in the case of the judge, of ideology and, in sum, of the whole context surrounding him. All these things will result in totally distinct interpretive results.

The result might well be even more relative in the case of equity, if that were possible. This is because it treats of a reflection of justice and is an estimate, an evaluative, idea. It is not empirical, nor verifiable, on the plane of facts. Indeed, what is just for some is unjust for others. Just think of any polemical subject, or of what are called "doubtful cases", like, for instance, whether it is right to steal

to feed a hungry person, to bear false witness to save the life of an innocent person, or to carry out a bad action in order to get publicity for a good cause; all these are just for some, unjust for others. We might also find the same when considering any controversial theme—legalizing euthanasia or abortion, certain types of sexual behaviour, and so on. Even so, it is still true that there are some things more objectively unjust than others. For instance, there is usually agreement, being of “*ius cogens*”, that it is a basic principle of coexistence that one respect human life. Without this agreement, the other rights could not exist. Though in value questions there are as many visions as lenses—scales of value—through which we see, a minimum amount of common sense, to some extent, would cause us to agree on some things.

Interpretation in the *weak* sense is an interpretation which sticks more to the norm text, in that the interpreter gives the most neutral reading possible of that text. In the *strong* sense, by contrast, an interpretation does not limit itself to clarifying the text—which, in normal language, is often taken to be the meaning of interpret—rather the reader here uses the interpretation to “express” what is contained “within” the text. In this way, he overcomes the formalism of the weak approach. In the first interpretive method, the object of interpretation predominates. In the second, the leading role is taken by the hermeneutic subject—the reader or the judge.

One characteristic of the weak sense of interpretation is the clear distinction it makes between the subject and the object of interpretation. A typical instance of this is the situation where a judge must apply—hence, interpret—a legal norm to a case which clearly falls within its scope, when the legal text is also clear and suitable to the case. The law itself is, almost, sufficient here. The judge is merely an interpreter-executor.

However, in hermeneutics, in the strong sense, we find the object depends much more on the subject, or judge. In an extreme example, the interpreter, in fact, will give life to the object, to the text. This happens typically, for example, in creative or artistic realms—painting or music, as mentioned above. It also happens in the case of equity. The equitable judgement requires an hermeneutic subject and a strong interpretation, as we have been using the terms. While simple legal interpretation approaches the weak sense of interpret, equity needs a strong interpretation and, while it may not reach the level of actually creating law, it does call for a certain innovation.¹⁰ It means forgetting formalism and legalisms and opening up the search for a rule in a specific case, via an equity judgement undertaken in the strong sense of interpretation.

In conclusion, a purely declarative interpretation of law has no place in equity.

10 Cf. GIULIO M. CHIODI: *Equità. La regola costitutiva del Diritto*, op. cit., esp. pp. 204–211.

1.1.2.2.2. Corrective Interpretation of Law and Equity

By way of synthesis of what has already been noted, some reasons a law may be considered defective are:

- Because of its sphere of application—a quantitative defect. In turn, such a flaw takes two forms:
 - Restriction, or limiting application, of the law, the typical case for invoking equity.
 - Extension of the legal sphere, where equity's role is more debatable—and, of course, its admissibility is less frequent. We return to this subject later in the work.
- Because of its content—a qualitative defect. Here we may speak of correction in its stricter sense. This flaw also assumes two forms:
 - The law's intrinsic, or radical, injustice, the most difficult case for applying equity, since we must not forget "equity should not judge the law".
 - The injustice of applying the law, the typical, equity case. For instance, when the law is too general.

1.1.3. The Integrating Function of Legal Gaps

1.1.3.1. The Robustness of Legal System and the Prohibition on "Non Lique"

The "*robustness of legal system*"—some prefer the "completeness"—refers to the need for the entire legal system to be complete, that is, to contain all legal norms necessary for all situations which may arise in real life and require a solution or answer at law.

However, reality is much richer than any of the schemes which attempt to capture it, no matter how wide such schemes may be. In real life, there is always the possibility of original cases arising, cases not foreseen in a law, and which require regulation. This creates the phenomenon known as legal gaps or legal vacuums. It is here that equity comes into play. It acts as one mechanism, amongst many others, to service the dogma of the robustness of the legal system. It is a means which allows the interpreter to carry out the juggling act which ends in filling up legal vacuums to make the system, as a whole, appear one seamless, complete structure.

Equity is no stranger to the problematic question posed by the "plenitude" of law and legal gaps in, at least, two ways. On one side, equity acts in a positive way when, through it, one attempts to verify the robustness of the legal system. On the other, it plays a negative part when it helps point up the existence of vacuums—which break up the dogma of the law's robustness, as one whole, as is particularly the case with so-called improper gaps. Such gaps often come about because of the lack of any suitable interpretation of a legal norm, in the light of equity.

As regards the first aspect of equity, the positive, we should note the theory based on the obligation to issue some judge's finding. This is where equity's role is best seen. In keeping with this theory, legal systems are complete, if

not immediately, or “*a priori*”—since, in truth, the legislator is not perfect and may leave out certain necessary legal norms which, at first, may have seemed unnecessary—then, they are at least complete after a judge’s interpretive intervention, which is always made to give an answer. Courts may not refuse to offer some finding, on the pretext that the laws are silent, obscure or lacking in guidance, on the point. That would be a shirking of responsibility. This is the ban on “*non liquet*”.

1.1.3.2. *Different Types of Legal Gaps and Equity*

Still, equity not only works in the service of the completeness of legal systems. We must also rely on the idea of equity to see if legal gaps exist, especially *technical gaps*—arising from a general norm’s lack of specific development—or *axiological gaps*—stemming from the obvious injustice of some norm. Equity possibilitizes justice in the specific case or “super-justice”, or, in spite of the redundancy, a “*better adjusted justice*” or “juster justice”.

When we speak of gaps (*Lücken*), in either of these two modalities, we are referring to flaws or imperfections in specific laws. The system as a whole, meanwhile, must continue to give answers and maintain its justice, as a whole. That there are over-general laws, that the application of a legal precept might be too strict or rigorous so that evident injustices appear, does not mean the legal system in its entirety is either formally or materially defective. It does not mean that it suffers from inefficacy or from illegitimacy. In fact, “gap” refers exclusively to one or various specific precepts, and this does not vitiate the whole. Similarly, a slightly imperfect feature does not necessarily detract from the harmony or beauty of a face. Since “to be human is to be imperfect”, it is also essential that humans should correct their flaws and imperfections. In law, this is done through those bodies which apply the law: the judges and the Courts. They must correct when legislative bodies have not done so or when time overtakes and changes true necessities.

Following DIEZ-PICAZO the elder’s metaphor, the legal system is like a cheese, solid in the main, but with certain holes. Gaps thus are the imperfections of specific norms, legal gaps, rather than gaps in the entire system. It is true when we talk of legal gaps we refer to law in the wide sense, but this is to speak loosely of both law strictly speaking—a reflexive norm written by Parliament—and custom—which is oral and spontaneous. What do not seem to be included here are the general principles of law, as a non-objectivized source of law, as opposed to law and custom, which are so objectivized.

There are a multitude of learned positions when it comes to dealing with the question of what the main types of legal gap are.¹¹ Here we start out with the four cases of classical gap, already pointed out by ENNECCERUS and gener-

11 LUDWIG ENNECCERUS – THEODOR KIPP – MARTIN WOLF: *Tratado de Derecho civil. I. Parte General*. Barcelona. Bosch. 1953. Spanish translation by BLAS PÉREZ GONZÁLEZ and JOSÉ ALGUER.

ally admitted by most scholars. We shall give them in the light of equity. To this end, we open with the difference between legal gaps properly speaking, and what are known as improper gaps.

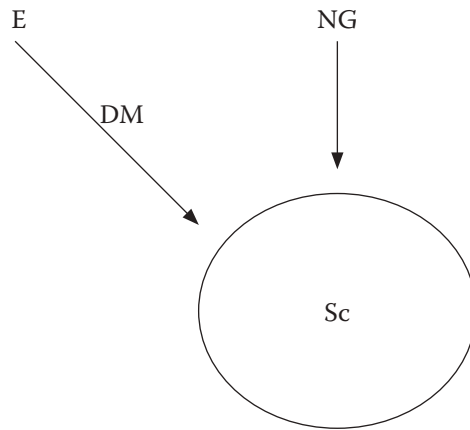
1.1.3.2.1. Authentic or Proper Gaps

– *Typical Example of a “Normative” Gap*

We consider that we confront a legal gap in the “proper” sense when the law is really lacking. The first kind of gap, of this type, is produced when the law is completely silent—either intentionally or involuntarily—because there was no way of foreseeing such a case, since the question arose only after the law was passed. For example, in the XIXth century Codes, there is no regulation whatever concerning computer science in legal work because the phenomenon came after the Codes. This “total lack of norm” case is the typical instance of a legal gap properly speaking, and it is known as a “normative” gap.

Here, the judge will try to “subsume” the specific, real life, case needing a solution, under some suitable, existing, legal norm, with a negative result. That is, he does not find any applicable legal precept whatever. What is equity’s role in the case of the normative gap, when there is no norm at all? Is it open to the judge to opine in the most absolute of vacuums because he considers that the lack of a norm where one should exist might compromise the solution “in equity”? We have seen already that, in Roman law, there is the possibility of taking action in cases for which such action is not foreseen, should the judge consider so doing in accord with the demands of equity. In these cases, we are dealing with—what is known as—“supplementary” equity or equity “*praeter legem*”, that is, because there is no applicable law. This may be contrasted with “interpretive” or “*secundum legem*” equity, the type of equity described so far (see first section).

Though we shall come back to this, when talking of types of equity, here we might just say that, in this specific case, the graph we gave earlier, for interpretive equity, would look as follows:



Key: NG=normative gap; E=equity; Sc=specific case; DM=decision maxim

A specific case (Sc) comes up which requires legal solution. No suitable legal norm is to be found, so a normative gap (NG) exists. As a consequence of applying equity (E) to the specific case (SC), one reaches a sentence or decision maxim (DM). This will integrate the gap.

This would be the case, for example, with the so-called “*equity arbitrator role*”. Here, the arbitrator decides—“*according to the best of his knowledge and belief*”. That is, without the need to back up his decision with any pre-existing, positive, legal norm whatever. This is not the typical case of equity, equity as true creation of law. Equity usually comes into play in the interpretation of the norm, that is, in its role as interpretive equity or “*secundum legem*”.

– “*Technical*” Gaps. “*Correctio Legis Generalis*” and Equity

Not all true gaps stem from this source, however. A second instance might also occur where the law only offers the judge a general guide, without controlling his direct decision through detailed legal development. There, then, exists an excess of abstraction in the law. Such cases are known as “*technical*” gaps. Equity plays an important part here. This is none other than justice in the specific case. Equity then functions to develop or articulate general law. Only in extreme cases must one have recourse to “*correctio legis generalis*”. Put another way, a “*correctio legis generalis*” is admitted in cases where one is simply dealing with correcting a law’s sphere or its reach. That is, it is an, especially restrictive, *quantitative* correction—rather than an extensive one.

More debatable would be the use of equity as a material or *qualitative* legal correction. In that case, we should almost be going against the law itself, entering into what is known as “*contra legem*” equity. The decision would have to take into consideration that the interpretation—according to equity—cannot, in principle, rob a law of its force simply because, in a specific, not in the gen-

eral, case, that law proves unjust. In such instances, equity can indeed fuel and guide the legal interpretation, via case law. It cannot, however, take the law's place. Judgement must be in accordance with law, it should never judge the law itself.

Things are thus because, in Continental systems, the judge's decision maxim is not a source of law, even when it makes up a part of "*jurisprudencia*". "*Jurisprudencia*" here might be considered as when two or more decisions are upheld by hierarchically superior Courts, and they use identical "*ratio*" for that decision. The judge's decision maxim is not a legal norm overriding another legal norm, and taking its place. What the decision maxim can do is integrate or fill in the gap, offering a temporary solution for the specific case in question. The situation is different in Anglo-Saxon systems. In those, precedent is the main source of law, and one precedent may be derogated by another which comes to substitute it.

1.1.3.2.2. False or Improper Gaps

False or improper gaps are those for which there is a norm but it suffers from some defect, therefore it is as if it did not exist. False or improper gaps may, basically, be of two sorts: "*axiological*" and "*conflicting*" gaps, according to which kind of flaw is involved.

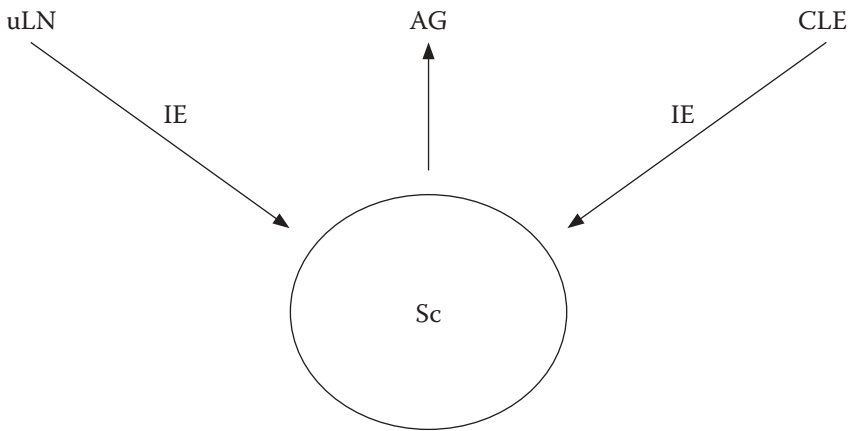
– "*Axiological*" Gaps

Sometimes its obvious injustice is the legal norms defect. We recall that, for this flaw to be considered such, the injustice must be flagrant, not simply a matter of some, more or less, debatable and subjective nuance. This is not a "*de lege data*" imperfection of the system, but rather something which may be a better law. The norm is inapplicable because it touches on cases or draws with it consequences which the legislator cannot have meant had he known or suspected anything of these cases or consequences. These are, what are called, "*axiological*", "*ideological*", or "*de lege ferenda*" gaps. Here, equity plays its most important, interpretive role, precisely when it decides whether or not the law is unjust. What is just to one, to others might seem the greatest injustice. It is up to the judge to decide and, hence, interpret.

Equity intervenes to make clear the existence of a gap, an injustice. If, giving an equitable interpretation of the norm may, in some way, cause the norm be applied in a more just fashion, then, at the same time, it will have integrated the gap. What it may not do, for reasons above outlined, is derogate the unjust law, in a general way, nor may it substitute a juster precept, with pretensions to being definitive for that new law is required. Equity cannot stand in for law, at least not "formally" and in some Continental system like the Spanish.

In such cases—"axiological" gap cases—the equity scheme which would be applied is, first, equity as an interpretive function. That is, it interprets a law whose wording is over-strict, which, in practice, leads to unjust results. It interprets such a law according to the true spirit or "*ratio*" of that law, which would

not be so unjust. Still, what happens when what is unjust is not only the letter of the law, but also its spirit, so that giving an interpretive slant would not be enough, when the norm itself should be replaced? This gives rise to “*contra legem*” equity. As we have seen, this is not usually allowed, at least in Continental systems. As opposed to the schemes we have already looked at, interpretive equity—“*secundum legem*”—and supplementary equity—“*praeter legem*”—, the new “hypothetical” (because not permitted in Continental systems) scheme of “derogatory equity”, or “*contra legem*” equity, might be represented as follows:



Key: Sc=specific case; uLN=unjust legal norm; AG=axiological gap; IE=interpretive equity; CLE=“*contra legem*” equity.

Faced with the specific case (Sc), for which the applicable legal norm is unjust (uLN)—an axiological legal gap (AG) situation—the solution would be: 1.- when injustice is limited to the letter of the law, use interpretive equity. 2.- If injustice extends to the spirit of the law also, apply “*contra legem*” equity. This annuls the unjust law and substitutes it by another. In the above graph, both situations are represented. Situation 1 is developed in more detail in our first graph.

– *Gaps “of Conflict or Collision”. The Problem of Legal Antinomies*

There might even be a fourth type of gap, also an “improper” gap, like the foregoing. In turn, this would not be because of the flaw in, or lack of, norms, nor would it be for a norm’s injustice, but rather it would be for the excess of precepts applicable to the same case, norms which contradict each other. This sort of gap comes about when there are two laws which contradict one another and

there is nothing to choose between the two. This makes them reciprocally ineffective. These are “logical” gaps, also known as “conflict or collision” gaps.¹²

Here, again, it is essential to interpret to find out if a true antinomy exists and if it is, indeed, irresolvable, should we follow only the usual criteria for antinomy resolution. This is true of first grade antinomy resolution—chronological or temporal criteria, that is, the later law overrides the earlier. There are also: hierarchical criteria—the higher overrides the lower; specialty criteria—the special law overrides the general; and criteria of competence—the competent organ of law overrides the non-competent organ. Antinomy resolution criteria is also amongst the correct criteria. All these are called “second grade” criteria. They are as follows:

1. Should conflict arise between chronological and hierarchical criteria, the hierarchical criteria always prevails over the chronological. This only functions with same level norms.
2. If the criteria clashing are those of speciality, the solution may vary. Recall, the case is either a lower, special law versus a higher, general, or it is the earlier, special law over against the later, general law. The special criteria will win out when this would be a demonstration of equity. That is, where the specialty has a positive slant, such as awarding a better kind of justice. The other conflicting criteria will overrule—the hierarchical or the chronological—when specialty would be a sign of privilege, that is, an unjustified, discriminatory, favour, and, therefore, one with a negative or pejorative tendency.

In this gap—the conflict gap—our graph would be the same as for gaps where a norm is missing. This is so because, while, in principle, there is a norm, or even many, applicable to the case, since they contradict, and since the resulting antinomy cannot be resolved through the usual means, then they become neutralized or annulled, reciprocally ineffective, and we are faced with a normative gap—lack of a norm—and “*praeter legem*” equity. In second grade antinomies, however, when one of the criteria is specialty, there, equity plays a legal, interpretive role, an interpretive function.

In conclusion, then, with respect to the existence or non-existence of a norm, gaps might be proper—when a norm is truly lacking—or improper—there is a norm but it is a defective one and, therefore, it is as if there were none. In turn, proper gaps may be normative or technical. There either is no law or its concrete development is missing. Improper gaps, for their part, are subdivided into axiological gaps and conflict gaps. In the one, the norm is defective due to

12 Cf. ULRICH KLUG: “Observations sur les problèmes des lacunes en Droit”, in CH. PERELMAN (ed.): *Le problème des lacunes en droit*, *op. cit.*, p. 89. AMEDEO GIOVANNI CONTE: *Saggio sulla completezza degli ordinamenti giuridici*. Torino. Giappichelli. 1962, p. 44.

its clear injustice, in the other, there are contradictory norms and nothing to choose between them, hence, they are annulled.

Normative gaps may give rise to a case of “*praeter legem*” equity. Technical gaps, like axiological ones, may limit themselves to the use of interpretation with an “over-general” law or with an obviously unjust one—going beyond the letter of the law but keeping within its spirit, in the first; “*secundum legem*” equity, in the second instance. They cannot substitute nor derogate the inadequate norm, at least, not in Continental systems. That would be “*contra legem*” equity. In conflict gaps—the last case we consider—, since the norms mutually cancel each other out, it is as though there were a true norm absence. Interpretive equity only comes into play with conflict gaps when a second grade antinomy is produced, where one of the criteria disputed is that of specialty. There we must judge whether there is a case of a show of privilege—with its pejorative slant—or if it is a manifestation of equity—with its favourable overtones.

1.1.3.2.3. Are the Gaps Temporary or Permanent?

Another gap classification is, as regards time, that which divides the permanent from the transitory. Some argue against making the distinction, saying all gaps are permanent, despite the fact that, for a time, they may appear to be filled. Though gaps might appear filled or integrated, for the specific case, this does not mean they will be definitively suppressed. Judges having to deal with the case do not regulate for posterity. They might not necessarily follow the first judge’s resolution. They may go back to resolve it anew or re-interpret it in a sense different from the first judge’s decision. The interpretive task, therefore, remains for ever an open one. Hence, one should not really speak of “suppressing” gaps, which has a permanent or general sense, but of “integrating” or “filling” them. This is more exact since it refers to, in time terms, a provisional operation, and, in material terms, to the effects it has for the specific case.

This is especially true of Continental systems, like the Spanish, where the gap, in a general and definitive way, can only possibly be suppressed where the judge’s maxim decision—the outcome of the play between equity and the other interpretive and integrating resources—is a true source of law as are custom and general principles of law. In Anglo-Saxon legal systems, like the English, the situation changes somewhat. This is because precedent is not only a source of law, but the main source of law. There, a single finding by any Court, regardless of hierarchical standing, not dependent upon reiterated legal decisions, as on the Continent, is enough to set a precedent. Precedent is, in Anglo-Saxon systems, more important than “*statute law*”—Spanish law’s *Derecho legal*. Further, in the Anglo-Saxon system, there is the principle of letting stand, and not moving, the precedent—“*stare decisis, quia non movere*”—and here equity enters in. The Continental system is, however, somewhat approached, where a certain precedent would be “manifestly contrary to justice”.

1.1.3.3. Various Procedures for Integrating Legal Gaps and Equity

Throughout history, basically three ways of filling gaps have been found: Heterointegration, self-integration, and judicial discretion.

1.1.3.3.1. Heterointegration

The Classical Schools and those of natural law appealed to “*naturalis ratio*” or natural law, to the ideal of justice which remained immutably rooted in the human conscience. The method is still accepted today in some Codes, like the Austrian or the ABG, and amongst large sector of the Legal Science community. Still, many systems, ever since the Albertine Code of 1938, have substituted natural law principles by the more equivocal “general principles of law”. These also include positive principles.

This method of filling in gaps might be called heterointegration. It comes about, as the name suggests, when the legal system has recourse to another, different system in order to complete its gap-filling task. The procedure is proper to under-developed systems. It is the way of, what are called, supplement laws, and very much in use until the time of Codification. As, beside the special laws of the city or of the State, Roman law was to be found, this was looked to to complete the law. Roman law acted as common law and reason written-out.

Nowadays, as DIEZ-PICAZO and GULLÓN BALLESTEROS say, this method is not used with regard to the legal system as a whole, but rather in the different relations between each of the system’s parts or branches. Now, then, heterointegration takes place when a branch or sector of law, to integrate its gaps, has recourse to another, distinct, legal patch. Thus, the Commercial Code might appeal to the Civil Code and, in procedural matters, Administrative Law might go to Civil Law Procedural practice.

However, heterointegration is not the integrating method which corresponds to equity. Equity, though it refers to justice, doesn’t refer to abstract justice, to natural law. Equity is best seen in the following type of gap integration, self-integration.

1.1.3.3.2. Self-Integration

Self-integration is the gap-filling mechanism of most importance these days. As the name indicates, and as opposed to heterointegration, where the solution comes from without, self-integration consists in the legal system completing itself. It may do this by different methods: by analogy, through general principles of law—main integration—and, of course, via equity. Self-integration is the course taken by, for example, the Historical School of Law and the German Pandectists. They look to analogy, especially in its “*analogia iuris*” guise. This is also the way with the Spanish Civil Code.

1.1.3.3.3. Judicial Discretion

The Free Law, or Free Jurisprudence, School has set forth the discretionary method as the way to integrate gaps. This is to give the judge wide powers

in the application and interpretation of law. For some, his powers are a mere declarative activity—free investigation of law—while, for others, his discretion goes much beyond this to become a true creative force—the free creation of law.

Judicial discretion might use equity in the first instance—that of the free investigation of law—in equity’s interpretive and integrating functions—“*secundum legem*” and “*praeter legem*” equity. These are its only acceptable functions, according to Spanish law. There, there is no place for the second scenario outlined—the free creation of law. This is proper to “*contra legem*” equity.

1.2. Normative Plane

1.2.1. The Moderating Function of Equity. Mitigating the Harsh Nature of Strict Law through the Softness, Kindness, Humanity, Mercy, Lessening, Pacifying, and Smoothing Effect of Equity

We have already seen how equity usually effects a moderating influence on the rigours of the law. Equity—inspired by ideas of benignity, humanity and mercy—carries out a smoothing, attenuation, and sweetening of the possible harshness—when applied to a specific case in some real present—of an abstract norm or abstract justice, the which may have inspired the historical legislator. Application is a job for the judge and he may avail himself of equity when carrying it out. Already in Classical Roman law this was reflected, more especially in the Justinian, influenced by Christianity. Equity reached its culminating point with Medieval Canonical Christian equity, and, through that, it eventually comes down to us today.

However, it is essential to make a conceptual distinction, one which was already present in the thought of AQUINAS, perhaps, inspired by ARISTOTLE. This distinction is that between the Greek idea of “*epieikeia*”, taken up by Thomism, and the Roman concept of “*aequitas*”. The individualizing nature of Aristotelian equity, as “justice in the specific case”, does not necessarily imply that there always be a smoothing of law. It might, incidentally, produce a harsher treatment. Equity, especially in its Greek form, as “*epieikeia*”, does not oppose severity. It opposes “*ius strictum*”—and, as the Romans said “*summum ius, summa iniuria*”. Hence, what is equitable might also be that which is severe. Similarly, education does not always consist in awarding or in punishing children. It all depends on the situation, whether one adopts one or the other. So equity does not always consist in sweetening the law, though it does do so in most cases, which is why there is this tendency to equate the two. In the light of specific circumstances, the judge might have to act in a more severe fashion to what, at first sight, the law seems to recommend.

This also happens in such a branch of law as canonical equity which, in principle, would seem more inclined to clemency and mercy, to amendment

and dispensations, than to making the law harsher.¹³ A poorly understood indulgence would be not equitable, but rather, unjust. Only when mercy is in accord with the advisable application of law, in certain circumstances, is it equitable. Equity is always within the bounds of justice—though not an abstract, distant justice, but a justice related to the specific case. To such an extent is this true that it makes no sense to speak of unjust equity. It is possible to talk of non-equitable justice, since the sphere of justice is all-comprehensive. This is not true of equity since equity is a species or form of justice. Still, there is room for a mercy which goes against justice, when this former constitutes a privilege or is arbitrary, as is the case with an unjustifiable favour, done out of sentimental or political considerations.

1.2.2. The Creative Function of Law

Equity's function as the creator of law concerns the sources of law. It is a matter over which opinions may clash, in part, because the question varies according to each positive, legal system, and, in part, because the expression "sources of law" is vague and equivocal.

In Spanish law, the creative function belongs to three sources or material powers, via three sources or formal channels. These are: 1) Parliament, the House or Legislative Assembly; 2) The People; 3) Judicial Power. The first, both national and regional, create the laws, reflexive and written laws. The second makes spontaneous and spoken law via customs. The third, judicial law, is the application of law, through which arises general principles of law, be these ius-naturalist or positivist.

There is little more. "*Jurisprudencia*" is not "formally" considered a source of law in the current Spanish legal system. The sources are set out in Article 1 of the "*Título Preliminar del Código civil*", after the 31st May, 1974 reform. Nevertheless, it is true that, *de facto*, the Constitutional Court plays a role as a source of law. If it is not a source in the strict sense, then it comes very close to being one. To this Court—and we would extend this to the Supreme Court's findings too—we would apply the aphorism "the law reigns, but precedent governs". On the other hand, looking at other legal systems, distinct from the Continental kind, we may there speak of the enormous role precedent plays as an authentic formal source of law. With Anglo-Saxon precedent, it becomes the most important source of law.

This brief introduction to "*jurisprudencia*" in the Spanish legal system is interesting here, since equity, in its typical form—as a legal argument applied in the argumentation of judges and Courts—is found in, and results in, the creation of "decision maxims". Here, the judge tries to apply a norm in a just spirit, to give an equitable solution to a real case, a case where the strict application of the law would give rise to injustice. That is, what stems from the play of equity

13 JOSÉ CASTÁN TOBEÑAS: *La idea de equidad...*, *op. cit.*, pp. 49 and 93-95, esp. p. 95.

is a sentence which, in most cases, would, in the end, be an “improper”, *“sui generis”* or indirect source of material, though not formal, law. This is when it comes from a hierarchically higher court (the Supreme Court, the Constitutional Court, or the Regional Higher Courts of Justice, in their respective territories, and with their respective competences) and comes accompanied by at least one other sentence and has an identical *“ratio decidendi”* in the finding. In a word, this is when it constitutes *“jurisprudencia”*. Even then, it is not a proper source of formal law.

Still, does equity then create nothing? In equity, there is creation. How could there not be if the judge makes a special, peculiar application of it to law, leaving aside the letter, though guided by the *“mens legislatoris”*—what the legislator would have wanted had he known of the specific case to which the norm was going to be applied? The judge thereby transcends the *“mens legis”*, even if he does not betray the essence, the *“ratio”* or spirit of the precept. Every choice made by a judge implies opting for a specific interpretation and applying it in a certain, concrete, way, with all this presupposes of discarding other possible solutions. Further, as concerns interpretation in the strong sense, the judge does not limit himself to carrying out the law, but, rather, like the soloist or the orchestra’s conductor, he confers his own particular vision of things as he reads the score—the text.

This is indubitable; there is creation in equity. That creation, however, is not the creation of law, the decision maxim not being an authentic, “formal” source of law, not even when it may constitute *“jurisprudencia”* of the Supreme Court or of the Constitutional Court. Thus, we arrive at a triple conclusion as to the possible creative function of equity in law:

1. There is creation in equity, via an interpretation-application-integration of the law, taking interpretation in the strong sense. This goes beyond the norm’s *“corpus”* to the *“mens legis”*, it delves within the law’s *“anima”* and the *“mens legislatoris”*.
2. The result or product of equity application is a *“decision maxim”*, or legal sentence which, finally, when all needed requisites are met, will count as *“jurisprudencia”*.
3. At this time, *“jurisprudencia”* in Spain is not a formal *“de lege”*- source of law. Though, *“de facto”*, its role in many cases is very similar to that of a source, at the most it can be an indirect or improper source. In our view, the question is clear in this sense and, on the other side, its exhaustive analysis goes beyond the subject of equity, which is what really concerns us, to enter into that other question of whether *“jurisprudencia”* does or does not constitute a source of law. Rivers of ink have been spilt over this, and we have already touched on the theme in another work, set out in the notes.¹⁴

14. MARÍA JOSÉ FALCÓN Y TELLA: *Lecciones de Teoría del Derecho*, op. cit., pp. 131 ff.

What should be asked here is the question of whether equity, insofar as it implies a certain creation, might itself alone be a source of law, without recourse to case law to which it has ties. It is precisely the merit of some anti-formalist currents to have widened the sphere of traditional sources of law to take in other possible methods. So, to cite some examples, we might look at scholars' discussions on the role of other mechanisms like analogy—especially its “*analogia iuris*” side—, jurisprudence or contracts. There have even been times when some of these questions took a favourable view of equity's standing as having the nature of a source. Thus, for instance, jurisprudence of the “*prudentes*” in Rome—“*iurisprudentia*”, or Roman Legal Science—or of the Glossators and Post-glossators, during the Middle Ages, had a very important historical value. The same happened with analogy, which took on a very important role in the Historical School of Law and with the German Pandectists. On the other hand, there is no reason whatever impeding as many more other instances occurring in the future.

In our view, here, the correct thing to do is to bring together positivism and legalism to create a legal dogmatic investigation—using theory, abstract reasoning, and substance—informed by a more philosophy of law type analysis. This is necessary because the role of theory of law reflection—from a philosophy of law point of view—is to tackle problems through general and abstract theory, without anchoring them—at least, not exclusively nor over-much—in specific time and space co-ordinates. It does not deal with any specific positive law nor does it treat of any concrete legal system—as would civil law or any other section of law that treats of legal problems from a positive perspective. On the other hand, since we take up the analysis of equity in the different branches of law at the end of this work, we feel the type of analysis outlined above is the right one here. Again, we see the clear interdisciplinary nature of the subject of equity, a true *mare magnum* of questions, where the most diverse foci must run together.

1.2.2.1. *Is Equity a Formal, Subsidiary or Indirect Source? The Will of Equity as a Guideline, not as a Source of Law*

Further—though leaving aside the theme of equity's contribution to the creation of law via judicial maxims, when these constitute case law—we believe that equity also helps in legal production when judicial maxims do not constitute case law. This is because, simply in its functioning—at the point of applying pre-established law to specific cases—it adapts itself to these cases and individualizes them, or, rather, it sweetens law for these cases, thus creating an exception to strict law. It then gives rise to what are called “*individual norms*”, that is, those norms not addressed to the collective citizens but designed for a specific subject. This is the case with simple sentences which, though they do not go to make up “*iurisprudencia*”, do have “*inter partes*” value—not “*erga omnes*” value—for the thing being judged—“*res iudicata*”.

These “judge-made” sentences, the fruits of equity, even if they do not qualify as case law, are truly individual norms, which some modern, legal schools do consider authentic law. This is true of KELSEN’s *Reine Rechtslehre*, which includes them at the bottom of the normative pyramid, the “*Stufenbau*”, but at least within that same pyramid, that, for him, made up the legal system. It is even true of the Swiss legal system or the “egologic theory” of law of CARLOS COSSIO, the La Plata professor. He holds this position over against traditional legal theory—represented by FRANCISCO SUÁREZ, for example, who maintains that generality is an essential and inexorable characteristic of all legal precepts.

Further, for those who follow RONALD DWORKIN’s line—opposing his master, HERBERT LIONEL ADOLPHUS HART—the legal system is not the mere sum of rules—primary and secondary—since there also exist “*legal policies*”, “*legal standards*”, “*directives*”, “*Erfahrungssätze*”, “*maxims of experience*”, “*valve concepts*” or “*elastic concepts*”. Here, the source panorama thickens greatly. We come back to this theme when talking of equity and the sources of law, Chapter 9, point 2.1.

In sum, as JOSÉ CASTÁN TOBEÑAS has already noted, there is, in our legal systems, something we might call law “reconstruction”, which corresponds to judges. This is quite apart from any original formulation, positive law’s properly “creative” or “constructive” role—the laws and formal sources, in general. Neither the one nor the other should be slighted.¹⁵

Not even the “*contra legem*” equity, that is, the most radical kind of equity—where the judge’s decision does not limit itself to interpreting the law in accord with the spirit (“*secundum legem*” equity), but goes on to resolve the case through his “best knowledge and understanding”, without the help of any positive norm, and not only in a vacuum (supplementary equity or “*praeter legem*” equity), which would not be so grave, but even, what is worse, going against the norm (derogatory or “*contra legem*” equity, seldom admissible)—can make us consider equity a source of law. This is so because, as LACRUZ BERDEJO has it, the judge here does away with sources and he himself is not a source so no trace is left which might serve in any case to act as precedent, with authority for other, future judges. Also, “*contra legem*” equity is not a typical instance in the cases of equity studied here.

Hence, we might assert that, neither as “*ius adiuvandi*”, nor as “*ius suplen-di*”, nor as “*ius corrigendi*” is equity a source of law.¹⁶ Equity serves as a guide. It is not a norm but a directive. It is the lense through which we view the prob-

15 JOSÉ CASTÁN TOBEÑAS: *La formulación judicial del Derecho...*, *op. cit.*, pp. 7-26, esp. p. 26. See also pp. 144-146.

16 Cf. JOSÉ LUIS DE LOS MOZOS: “La equidad”, in *Estudios de Derecho Internacional Público y Privado*. I. Oviedo. 1970, p. 163. CARLOS MARÍA ENTRENA KLETT: *La equidad y el arte de juzgar*. Pamplona. Aranzadi. 1979. 2nd ed. 1990, pp. 60-63.

lem. The spectacles are not the eye—the vision—nor are they the reality seen through them. A blind man would see nothing through them. A table cannot appear as a tree no matter how many types of glasses and gradations are tried out. What glasses can do is help us gain in precision and visual acuity, correct our myopia or the visual defect we have, that is, with them we can correct what, without them, would be too blurred. The same is true of an over-strict conformity to general, abstract justice. Equity lets us see it better. There are no rules of equity. What appear to be such are other sources of law: a law which must be equitably interpreted for the specific case, a general principle of law, and the like. Still, equity is neither the law nor the general principle, though it does manage both.¹⁷ Equity is the spectacles which help us get the object in focus—a specific case from life needing regulation according to law—through which our eyesight passes—a law or another source of law to be applied.

Whence, we might draw out another conclusion which sums up the foregoing: equity is not a source as far as case law is concerned, since it is not case law; and equity is not a source in itself. Such a conclusion amounts to *equity is not a source either though it manages sources*—laws, customs or general principles of law. The source, as the name indicates, is what creates, what originates, or gives life to, something which did not exist before. The process of application-interpretation of an already existing source is not itself a source. It is like a lift which goes up and down, bearing within it people and goods—laws, customs, general principles of law. When the lift goes down—when abstract justice is applied to the specific case— it descends loaded. It did not create the load, it only transports it, changes the load's position. The load has been created by someone—either a person, another human being, or by some thing which made it. It is this person or thing which is the true source. Equity is the process which moves something from a greater level of generalization to a level of greater concretization, the something is the cargo in movement.

In the same way as we say that law, custom and general legal principles are sources of law, we also say that the source of law is not equity. Sources are: a result of a parliamentary elaboration process—the law; a social reiteration—customs; or positivization—the principles of law. The source, however, is the result, and not the process used to arrive at it. The legal norm interpretation-application process is not the source, the equitably interpreted-applied legal norm is.

Another possibility,¹⁸ both tentative and threatening—and doomed to fail too, as far as we can see—of attributing to equity a source characteristic, might be to see equity as such in those cases where *the law refers to equity*—in a general way. This is unlikely, since, as we have already had occasion to point out, at

17 JOSÉ LUIS LACRUZ BERDEJO *et al.*: *Elementos de Derecho Civil. I. Parte General*. Madrid. Dykinson. 1998, pp. 70 and 72. AGUSTÍN SQUELLA and ABEL GONZÁLEZ: *Dos concepciones de la equidad*, *op. cit.*, pp. 19-21.

18 JOSE CASTÁN TOBENAS: *La idea de equidad...*, *op. cit.*, pp. 58-60.

least in Spanish law, it does not happen, either in Article 1 of the Spanish Civil Code nor in any other legal precept to which the character of a source of law is attributed. What appears perhaps easier, and which does occur in Spanish law—when the law refers to equity in specific Articles, with respect to concrete matters—, is where equity passes from being “well looked upon” or considered as having “legal authorization” to being a source of norms—a mediate one at least.

This, however, is at the minimum debatable. It would rather be a situation of a legal disposition’s “re-sending” to equity. Remission or “re-sending” is a recognized, foreseen, procedure included in the legal system. It is there hardly a source of law. It is more a way of completing a precept which, in itself, is not complete or autonomous, but requires for completion the aid from that procedure to which it has been re-sent. The same happens with legal definitions or restrictive norms. The law would be like a limping man without his crutch or a deaf man without his hearing-aid. These devices help him to lead a normal life, but his life itself exists before these things. He might even be able to go on without them, though his life would then be poorer as to locomotion or auditory experiences. This is because—as in the case of the law being sent back to equity—the nature of the originary source should be reserved for the law sent back and not for the equity to which it is sent. Equity in itself, with no norm to be applied to, without law, would be the same as the crutch or the orthopedic leg without the person who needs it. That is, it would be useless. No matter how much the lame man might say these aids have given him back his quality of life, no matter how many times the law authorizes equity, it would still remain a case of complementing, in the first instance, of remission or re-sending to equity, in the second.

Complementing is one thing, *completing* is another. A complement is like an accessory—a belt, some gloves. Something already in existence is so complemented. It takes something not yet whole, not yet finished, to be completed. Likewise, whether “completing” be the best account of equity’s role in the legal system is much debated. This has been done, for instance, in the preparatory works leading up to the definitive writing out of Article 1 of the “*Título Preliminar*” of the Spanish Civil Code in the Reform of 31st May, 1974. The term would have given rise to the consideration of whether equity is an authentic source of law. Would the expression “complement” be better used? This is what finally happened. Scholars interpreted this as an unequivocal sign of the existence in the legislator of a will to take away from equity its character as a source. Similarly, a law remitted to equity seeks a complement through such a remission, especially at the legal application phase when the law is applied to the specific case. Nevertheless, the law in a complete state already existed before the said equity, precisely as the fruit of an earlier stage, that of the law’s creation by Parliament.

1.2.2.2. *Equity and Judicial Free Will*

1.2.2.2.1. *Distinction between Discretionary Power and Arbitrary Power*

It is a characteristic of equity that it gives a certain margin of freedom to the judge, a more or less wide discretionary power. It never permits this power to become arbitrary. The judge's arbitration must never be capricious or arbitrary, a situation which would allow him to base his decisions on his personal feelings or on the legislator's utopian ideals. He is not a free and absolute arbiter, he is an arbiter within the bounds of the law.

There are various restrictions on judicial freedom when a judge uses equity. On the one side, he must take into account the *circumstances of the case* to be decided. These already must be decided and mark out the conditions for the decision, from the point of view of facts. It is not so much a matter of deduction from the general rule, as it is a kind of induction from observing the specific case. Empiricism takes over the first plane. It is essential to ponder over the interests at stake and take into account the mean conduct prototype suitable for resolving the case. This is clearly seen in the American model of the judge. For him to complete his legal investigative work, a margin of freedom must be given the judge. This margin must not be so wide as to allow his audacity to go beyond the marginal bounds and hence beyond legal safety, nor must his decision give rise to such feared later problems as contradictory, inharmonious, vitiated, subjectivism might create. Hence, as K. N. LLEWELLYN has it, the law is what those do who are in charge of its application and not what they say they do, nor what the books say they should do. So, one must tread carefully, moving along the knife's edge: judges, for one part, must seek out the most just, most apt, solution for the specific case, still, for the other part, they must respect the law and argue for their findings.¹⁹

In the distinction between discretionary and arbitrary power, the practical aspect which that hovers over all is the distrust of the judge as a man and the consequent need to limit his freedom of action to a minimum. This, in turn, relates to the question of the separation between the judge as real person and the judge as legal institution—a servant of the State who carries on official business. There inevitably exists the danger that the judge will interpret legal norms in some personal fashion, erring in their application to some specific case. However, sticking to this vision of the person and function of the judge might give us an over-pessimistic panorama. It would concentrate too much on the negative aspects of the scene, making us forget the other, positive points, for these certainly do exist.

Though the power of the judge is discretionary, it is subject to certain limits. These derive from the social function he is to carry out. Equitable justice links this social function directly to the person of the judge and has no need of legal syllogistic “mediation”. The judge is not, as MONTESQUIEU supposed, the

19 JOSÉ CASTÁN TOBEÑAS: *La formulación...*, *op. cit.*, pp. 108-109, 151, 152-154, and 157-158.

mere mouthpiece of the law, pronouncing the words of the law in a logical-syllogistic deduction, which acts formally, almost automatically. In law, there exists a certain subjectivism and the impossibility of total, formal, verifiability where equity's workings are concerned. We must never forget we are dealing with a strict legal judgement since the law reverts to equity and, in turn, equity constantly sends back laws, so we should never equate discretionary power with arbitrary power, nor with "free law". Further, the use of equity must lead back to law, from whence it draws its binding force and upon which it takes its stand, when coming into play.

The judge's subjective judgement finds outer limits and inner ones. The outer derive from the proper logic of the argumentative operation, which must make the equitable judgement verifiable. Inner restrictions come from a series of directives that must be followed, like, for example, those which are marked out by *constitutional norms*. These show, once again, what the legislator's will is, and stop the judge issuing his own, personal, arbitrary, judgements. The judge has the opportunity to put the spirit of the Constitution into practice and to make it operative. This should be the ordinary and not the extraordinary state of affairs. It is normal to the extent that the Constitution itself has a programmatic reach, which—to a greater or lesser degree, directly or indirectly, depending on the sort of legal system—binds the judge when applying the law.

The argument often flourished about against judicial equity application, holding it to be the judge's arbitrary power, does not really take into consideration the law's certainty, imposed as an ideal dogma by the Constitutionalist and Codificationist movements. Taken to the extreme, the dogma would result in a restrictive vision of reality. A more social and less individualist vision shows that trust in the law is not an absolute, nor a secure, bulwark for liberty, still less, for equality, unless certain guarantees exist ensuring that the concrete reality of life will be taken into account. Such realities change at an infinitely greater rhythm than do those which mark the law. Equity watches over this task along with its main guardian, the judge, always watching over to ensure a system of guarantees regarding the constitutional norms of the Democratic Game. When carrying out its work the legal organ should not pursue its own abstract ideal of justice, like a fabled knight seeking truth and beauty, nor should it use discretionary power in any individualistic way, transforming it into arbitrary power. Neither should the judge convert himself into some sort of technician or mechanic who, when applying law, believes it should limit itself to considering only what is expressed in law. The judge, when using equity, will be bound by constitutional directives which, even if they do not constitute equitable justice's efficient cause, still they do mark out the legal limitations of his task when he goes beyond them. They act in brief as a constant inspiration.

Further, a series of qualities are in place which must accompany the judge in his work. These are such qualities as proportion, balance, and harmony.²⁰

From thence, rather than speaking of judicial will, we should speak of the will of equity, in that way it was taken when it was more closely tied to the Western Christian Tradition. Because equity is a form of justice, while arbitrariness is never an instrument capable of realizing justice. Equity is not arbitrary, it is rather arbitrating. An exception might come about in the case of so-called “cerebral” equity. There, as in link laws, which the Spanish writers of the Golden Age spoke of, an arbitrary and capricious use is made of equity.

1.2.2.2.2. Can a Judge Declare Himself to be a Conscientious Objector if He is Faced with an Unjust Law?

The job of applying and interpreting the legal norm and the decision as to the solution to be applied in each case belongs to the judge, the interpreter and applier *par excellence* of the law. The judge’s job is presided over by a series of principles.²¹

Firstly, we find the principle of the “*independence of judges*”. This judicial independence, however, does not mean the judge may act according to his conscience with total freedom. It means that his work must not be linked to political, ethical, and economic postulates.

A second condition presiding over the judge’s task is the principle of “*subjection to law*”. Judges are independent, but they must be subject to the rule of law (the gist of Articles 9.1 and 117 of the 1978 Spanish Constitution). This means that legal decisions must be founded legally, in order to guarantee legal security. Nevertheless, this does not prevent the attributing to the judge a certain creative, marginal, discretion. Currently, the antiformalist revolt has meant an evolution in the principle of legality, making the judge’s task one not merely declarative or syllogistic.

A third regulatory principle exists. This is how the judiciary should behave. It is known as “*the social conscience of the judge*”. The judge—the judicial power—, as an integral part of the widest concept of the State, must represent and embody the social conscience. Though, once more, within the margins traced out by the legal system and by the principles of legality, he is at the service of legal certainty in social relations.

We have seen how social conscience, on the one hand, the legal system, on the other, represent the two points of reference the judge’s actions must fall within, when it comes to applying the application-interpretation of law in gen-

20 FRANCESCO GAZZONI: *Equità e autonomia privata*. Milano. Giuffrè. 1970, pp. 162-183 and 317-318.

21 RAFAEL DE ASÍS ROIG: “Las tres conciencias”, in Various Authors: *Ley y conciencia: Moral legalizada y moral crítica en la aplicación del Derecho*, edited by GREGORIO PECES-BARBA MARTÍNEZ. Madrid. Universidad Carlos III de Madrid. Boletín Oficial del Estado. 1993, esp. pp. 27-31.

eral. However, there remains a third factor to take into account in this analysis of the principles presiding over the judicial task: the *individual conscience*. The judge, though he represents the State and serves the law, has, as an individual being, a personal conscience which he cannot gainsay. What is the role this individual conscience plays in the judge's work? Or, in other words, does the judge have the right to conscientious objection? Can the judge, when faced with a certain case, object, in all conscience, to the law to be applied? He might, for instance, consider it not only unjust but also impossible that that law might generate an equitable solution, unless he goes against the law itself. This would be a case of "*contra legem*" equity, and would not be admissible. Might the judge cover himself, claiming the ideological freedom, to object in conscience to such like cases?

Below, we shall refer to certain judicial ways through which the judge may excuse himself from carrying out the law by claiming that he objects in conscience. It should be noted that we are here using the term "the judge's conscientious objection" in a somewhat improper sense, a sense different from, for example, the one we use when talking about a recruit's conscientious objection to serve, or a doctor's objection to practise abortion. Taking this technical precision into account, we pass straight on to the three ways indicated by which a judge might object.

One channel open to the judge—who in conscience considers a law unjust in application, and impossible of solution in equity—is "*to stay his decision and send the case on to another member of the judicial power*". In principle, this is a possible way, though, to repeat, such does not technically constitute an objection. As regards this, Article 4.3 of the Spanish Criminal Code holds that: "*In the same way he may appeal to the Government, expounding the advantage of derogating or modifying the precept or make concessions to leniency, without, of course, prejudicing execution of the sentence, when the rigorous application of the law would result in punishing an act or omission which, in the judge or the Court's opinion, should not be punished, or when the punishment would be notably excessive, taking into account the evil caused by its infraction and the personal circumstances of the prisoner*".

Another course of action the judge might take is to "*dictate a resolution in accord with his conscience, though contrary to law*". This second solution, in principle, seems more difficult to accept than the first. The judge, after all, is a public civil servant with an obligation to qualified obedience. At the least, it would be doubly confusing things were we to counter-argue by saying the judge can dictate a resolution going against the law—"contra legem" equity—despite his being a public servant, subject to that law in its exercise, because, to object when faced with that law—in this case, as we have seen, the Constitution itself—is to set himself up against the terms and limits on the exercise of his position. Still, we said, this seems excessive since it would breach one of the main constitutional principles of the State itself: the principle of legality.

Finally, the judge—facing an unjust law which does not even allow for a solution in accord with equity—may opt for a third course of action, foreseen by law: “*use abstention causes*”. The Spanish system allows the judge the possibility of abstention, without awaiting being challenged, in any legally assessed cause, so long as the motive for his abstention, to avoid rash action, might make the said judge an object of disciplinary action should his objection not be found sufficiently justified. In the Spanish system, one of the legal causes for abstention and, here, challenge, is when an intimate friend is involved in the case or when the judge “has a direct or indirect interest in the suit or cause”. Having a direct or indirect interest in the case may offer an opening for the possibility of a judge’s conscientious objection, in a case where the law appears to him unjust. The judge can thus argue that he does indeed have an indirect or a direct interest in the cause since he finds that his conscience goes against the sense of the norm. His individual conscience countermands the State’s social conscience, the which he should represent. This third possibility seems the closest a judge might come to conscientious objection when confronted with a legally recognized resolution which appears unjust to him.

1.3. *Values Plane: The Humanizing Function of Equity as a Virtue*

Equity was already considered a virtue in classical times. Sometimes it was the virtue of the wise governor, when carrying out his rule, one which had to accommodate equity. At other times, it was proper to all mankind, to every man. And, finally, and more especially, it was a virtue for those people who, because of the role they played in the organs of the State, had to employ equity in their day-to-day actions. These are the judges, the legislators, the magistrates, and the like.

As regards being a virtue, equity has autonomy and is, in and of itself, a complete entity. That fact, of course, does not prevent equity being tied to similar, traditional virtues, such as prudence, clemency, mercy, piety, humanity, honesty, generosity, wisdom, charity or softness. We refer to all this in chapter 9, section 3.2, when distinguishing equity from similar qualities on the plane or level of values.

It is sufficient here to point up the clear, humanizing function of equity, understood in this value sense, that is, as a virtue. This means that, as a shelter for a merciful and charitable spirit, equity sweetens the rigours of abstract and general justice, the type of justice which often gives rise to iniquities in specific cases. The humanizing function of equity was already evident in post-Classical Roman law, and was consecrated in the Middle Ages through the canonist work of the Fathers of the Church. This is canonical equity, equity as “*iustitia dulcore misericordiae temperata*”.

2. The Architects of Equity according to their Different Functions

Having “objectively” looked at the different functions equity fulfills, grouped by planes—factual, that of norms, that of values—, in this second section, we move on to the “subjective” side of the question. This consists in reviewing the “architects” of equity according to their different functions. To this end, in pursuit of greater clarity, we group the different actors in equity also according to the three planes of three-dimensionality.

At the factual level, basically, the organs of judicial power are the actors - this might be the ordinary judge, or it might be some arbiter of equity- and the executive power in its widest sense. Here, we consider the “King” as a figure who might exercise the right of grace or of pardon, in the same way as other similar figures in other times and places—the Roman “Praetor” or the English “Chancellor”. On the plane of norms, the major author of equity would be the “legislator”, he who formulates the law. At the level of values, we find the “individual” before the dictates of his own conscience, in relation to the theme of the possible existence of a conflict of duties.

Thus, we see how equity may be put into play by all those actors who intervene in the elaboration or application of the law. This could be the legislator—who creates the law—, society—which creates customs—, the judge—who applies the law to real life cases—, different parties—who hold legal acts or are involved in legal business—, the scientist or jurisconsult—who must elaborate or determine which law is applicable to which case or cause, abstract or concrete—, and the individual—who lives in accordance with the law.

However, of all these possibilities, what is of most interest to jurisprudence, and to us here, is “judicial” equity. This is as a legal application criterion, applying equity to the specific case submitted to the judge for decision. Equity as a formation criterion of law on the part of the legislator—legislative equity—belongs to politics, as well as to jurisprudence. Equity as a norm of conduct belongs rather to ethics than to law.²²

2.1. Factual Plane

Hence, in spite of our speaking of legislative equity, on the plane of norms, and of equity as an individual virtue, on the moral plane, equity *par excellence*, we repeat, is judicial equity. It is this, on the factual plane, that which makes law equitable, at the final moment of the legal “*iter*”, at the moment of administering justice.

Judicial equity, in turn, may be the work of various bodies and public servants. Here we might differentiate between:

- An equity applied by ordinary and permanent judges—“judicial” equity in the strict sense.

22 JOSÉ CASTÁN TOBEÑAS: *La idea de equidad...*, op. cit., pp. 53-54.

- An equity applied by arbitrators or settlers of disputes—“arbitrator” equity.
- An equity applied by the King or by executive bodies, when granting a pardon. In this case, we are dealing with bodies which exercise judicial functions or functions related to the judicial “*iter*”—more specifically, in its final stage, that of passing sentence—, though, in the strictest way, we are not here treating of judicial powers. Thus, the King is considered a fourth power, as he may also assume executive, representative and, above all, a symbolic role.

2.1.1. The “Judge”, concerning the Application-Interpretation and Integration of the Law

2.1.1.1. *Equity or the Art of Judging*

There is an old debate as to whether law is an art or a science. It is reflected in the classic monograph by CARLOS M^a ENTRENA KLETT, *La equidad y el arte de juzgar* (Equity and the Art of Judging).²³ For some, it is a Byzantine question, a “knotting the knot”, of no practical utility whatever.

By a “science”, we understand any methodical knowledge of the rules which govern a specific subject. Thus, the science of law would be the methodical knowledge of the special group of legal norms which order human co-existence and make up the legal system.

By an “art”, we understand all the procedures used by man, individually or collectively, to attain a beautiful or a useful result.

Still, perhaps the most important, distinguishing, factor between the two might be that science attempts, through its methods, to manage to determine permanent and immutable laws governing the particular branch of knowledge it deals with, while in art the mastery of “technical” rules, might prove very desirable, it is not indispensable to attain the desired result.

From the above definitions and observations we may draw out two consequences or conclusions:

- Law is a science.
- The “application” of law is an art.

The legal scholar must “know” the “science of law” and the legal practitioner—the lawyer, the judge—, like the creator of a work of art, must know his job and the technique inherent in it, before he carries out his work. He must, however, apart from knowing the law, use a series of means—amongst which equity plays a relevant role—to obtain a result, one not simply “adjusted” to the law, but, above all, one which is “just”—or artistic, in the simile set out above. His task then transcends the arid plains of technique and enters into the very heart and magic of the legal art. In the same way as man is an animal

23 CARLOS M^a ENTRENA KLETT: *La equidad y el arte de juzgar*, op. cit., pp. 82-88.

yet is different from other living beings because of his intelligence, his will power, his spirituality, so the judge must not limit himself to being a mere executor of the law, in the carrying-out of his task as the main applier of law. He must, rather, transfer to his creation—the legal maxim, the finding or sentence—all that is best within him, that which is most properly human, that which raises the said creation to the Olympus of art: the “art of judging”.

The question now is to know whether the use of equity has its own rules—its own technique—though, as an art, it transcends these. In the Anglo-Saxon world, one speaks of the “XII Tables of Equity”. It would be pleasant to find these rules, but, then, they would automatically become legal principles or rather, if they were taken up by the law, given its “pat on the back”, they would form authentic legal norms. Indeed, many of these rules are, implicitly or explicitly, taken up in our legal system, or accepted in precedent decisions. Some of these are cited by ENTRENA KLETT, in the above mentioned work.²⁴

2.1.1.2. *Model Judges: Hercules, Jupiter, and Hermes*

FRANÇOIS OST, Chair of the *Facultés Universitaires Saint-Louis* and Director of *Académie Européenne de Théorie du Droit* in Brussels, established a parallel between the model judges: Hercules, Jupiter and Hermes. It is interesting to develop this idea which is nothing but another example of three dimensionalism, and of the distinction between the plane of facts—embodied in realist theories, followers of Judge Hercules—, the plane of values—where the image of Jupiter fits—, and that of norms—the model represented by Hermes.

The system of Hercules—proper to North American Realist theories, especially RONALD DWORKIN's theory, where he speaks of a judge who “takes rights seriously”, the title of one of his most famous works, a work dealing with the “right answer” to “hard cases”—refers to a “demigod” judge who submits himself to exhausting trials of judging and ends up carrying the world upon outstretched arms, thus faithfully reproducing the image of a funnel, an inverted pyramid. Here, there is no other law but case law. As opposed to the generality of the law, the singularity of the specific case reigns supreme. The “dossier” is substituted for the Code. The “dossier” is made up of particular decisions, the singularity and the concreteness of judgements, as against the generality and abstractness of law. In this model, equity is crucial. The funnel evokes the predominance of a justice inspired by the balance of our material, profane, day-to-day, calculations. It is the theory proper to the Welfare or Social State of the XXth century. The Herculean model brings us down to Earth. This is opposed to the Jupiter model. As the man of law, the judge Hercules appears to us as a social engineer. Time is seen here as something discontinuous,

24 CARLOS M^a ENTRENA KLETT: *La equidad y el arte de juzgar*, op. cit., pp. 86-88.

a thing of sporadic, legal irruptions, a “use-once-and-throw-away” affair. It is a pluralist model.

Jupiter law, descending from above, from some Mount Sinai, is written in the table of the law or in modern Codes and Constitutions. The image is one of a normative pyramid—“*Stufenbau*”—at whose apex the sacred, the transcendent, lie. The movement making for its construction is always lineal and unidirectional. The model of the pyramid translates the demands made by the XIXth century Liberal State. In the model, codified, general law reigns, a reflection of an abstract justice, as against equity as justice in the specific case. Jupiter law agrees with a conception of time oriented towards a future which will be a better one. It embodies the idea of historical progress, via law, an anticipation of possible things to come, preferable things. It is a monistic model, over against Hercules’ pluralist model.

Postmodernist law sees itself as overcoming both the above models: the Herculean and the Jupiteran. As an alternative, it offers the features of Hermes, messenger of the gods, the interpreter, the mediator, the spokesperson. If the mountain or the pyramid suit the majesty of Jupiter, and the funnel Hercules’ pragmatism, the Hermes image would take the form of a network. It takes in not so much one pole—equitable case law—nor the other—abstract law—nor even a combination of the two. It is rather a multitude of inter-related points. Information does not now fit into a “dossier” or a Code, it is contained within a data bank. Hermes is neither transcendence—legitimation—nor immanence. It is a combination of the two. Characteristics proper to the Hermes judge are gradualism and relativism, where there once was dogmatism or skepticism, circularity, where there was hierarchical structure. Law, and the role played by equity, becomes a game. Monophony is abandoned for polyphony, without necessarily falling into cacophony—“noise”, as computer jargon has it, lacking in meaning. Law is seen as something perforce unfinished, always in suspense and always recast, like a complex game, with many players: the judge, the legislator, civil society. There is no longer “hard” or “soft” law, one speaks of “flexible” law, porous law, a law which is “*liquid*”, fluid, interstitial and informal.

This ties in with the subject of equity. As opposed to law associated with the idea of rigidity—law as the steel rule—equity intervenes and forms a “fluid” law, like some liquid. We recall the metaphor that compares equity to a lead rule, a flexible metal, used in Lesbos in building because it molds itself to the sinuosity of stone. Could there not then be a liquid rule? Certain metals, like mercury, surely have this peculiarity. Is it but chance that Medieval Alchemists gave the name “mercury”, the Latin equivalent to the Greek Hermes, to so curious a metal? Between order and disorder, the letter and the spirit, we find this model of the Hermes judge. It combines in varying proportions rule and hazard, convention and invention, opening and closing, a type of “*game*”, a rule-governed

one, like football or chess. It also involves “*play*”, suggesting free improvisation, as in dressing up for carnival, or for the game of love.²⁵

2.1.2. The “Arbitrator”. A General Picture of the Various Systems of Judicial Formulation of the Law and the Application of Equity

Judicial formulation of the law admits of various formulae or systems.

One of these is based on establishing distinct jurisdictional bodies which may solve legal conflicts without attending to legal prescriptions and abstract principles. These—be they component bodies or parts of the same body—“create” the specific norm, adapt it to the case at hand.

Another formula is to give powers to the jurisdictional body itself—either “ordinary” or “special” jurisdiction—so that it might create such a norm, led on by the circumstances of the case, without that body’s having to stick to any general, legal proposition.

These are so-called “arbitrator” systems and “jurisdictional” systems, respectively. In both cases, we are dealing with a “free” judicial formulation system.

Still, besides these extreme systems, there are attenuated forms, of a “limited” type. These are found in codified legal systems, based on the, more or less, rigid principle of the judge’s subjection to law, but with the proviso that, in certain cases, the judge might use his own will and employ equity. There is also the possibility that the legislator himself may authorize equity—via tacit or express remission or re-sending—to solve some specific, legal question.

Theoretically, the judge should be able to turn to equity without needing to be expressly authorized to, through a legislative remission. However, this general principle has its limits. The character of each legal norm must be considered, since it is thus that, logically, some rules are called “elastic” or “flexible”, allowing the application of equity by their very nature, others are known as “strict” and, for reasons of legal security, are loath to allow it.²⁶

2.1.3. The “King”: The Granting of Pardons

Over against the Aristotelian-Thomist tradition, we might note the work of MARSILIUS of PADUA, whose thought is very close to that of EGIDIUS ROMANUS. Neither of these two thinkers studies equity in relation to the Theory of Justice or the Theory of Law. They consider it as a virtue, not just any person’s virtue, but as a virtue of the governor, proper to the Prince.

In the Scholastic Tradition, the Prince was seen as subject to the law, and this law was as much positive law, given by the Prince, as it was eternal. It was

25 FRANÇOIS OST : “Juge pacificateur, juge-arbitre, juge entraîneur”, in *Fonction de juger et pouvoir judiciaire*. Bruxelles. Bruylant. 1983; Id, “Júpiter, Hércules y Hermes: Tres modelos de juez”, in *Doxa*, 14, 1993, pp. 169-194.

26 JOSÉ CASTÁN TOBEÑAS: *La formulación judicial del Derecho...*, *op. cit.*, pp. 96-104.

always in accord with eternal law itself. MARSILIUS of PADUA, while not distancing himself too much from this tradition, tried to renew it.

It is noteworthy that, when describing the figure of the Prince, MARSILIUS does not speak of him as of a “moral man” but as one having virtues “suitable to govern the community”. In this way, he considers superfluous all the Prince’s virtues which do not have some relevance to, and immediate influence on, political life. Thus, for instance, the Prince’s having faith or offering hope are completely irrelevant factors.

However, this does not mean that the personal morality of the governor is unimportant, nor is it merely of secondary relevance to the happiness of the people. We must remember that, in the “medieval mind”, that of our author, a “secular ethics” was inconceivable. The best Prince has three main virtues: wisdom, justice, and “*epieikeia*”. This last is intimately linked to the other two.

What is interesting about this thinker is to see how “*epieikeia*” might appear as a “political virtue”, proper to the wise governor, who interprets the law to suit it to the specific case.²⁷

Today, in systems like the Spanish, the medieval “Prince” would find his equivalent in the figure of the “King” as governor, and also in the executive power, in general. The “King” makes use of equity, for instance, when he exercises the “right of grace” via the issuing of pardons. We look at this more closely below.

Pardon is one way to wipe out criminal responsibility—Spanish Criminal Code, 1995, Article 130.3°. This is an example of the so-called “right of grace”. Through the right of grace, the possibility of the sovereign’s intervention or the executive power, in the case of the “*ius puniendi*”, is upheld. It is a vestige of an earlier epoch, when the application of criminal law belonged to the monarch. This was in conflict with the principle of the separation of powers, where legislative power had the right to set penalties in criminal laws and the judicial, the power to apply the penalties.

However, even under the *Rechtstaat*, as it exists today, in Spain, with its principle of the division of powers, grace may play a role. It is a corrective to the excesses of legislative power, in the service of equity and may be applied in criminal cases. Nowadays, the Spanish Constitution—Article 62.i)—sets out that “*it belongs to the King... to exercise the right of grace to amend the law, which may not authorize general pardons*”. Before the Constitution, both general and individual pardons had been conceded. The former were for all those committing a certain type of crime. The latter affected specific persons.²⁸

This latter case did not deal with all possible authors of criminal acts, but only with a specific individual who was tried and condemned for a crime,

27 FRANCESCO D'AGOSTINO: *La tradizione dell'epieikeia nel Medioevo latino...*, *op. cit.*, pp. 174-185.

28 SANTIAGO MIR PUIG: *Derecho penal. Parte general*. 4th ed. adapted to the Spanish Criminal Code of 1995. Barcelona. PPU. 1996, pp. 770-772.

though, in equity, he should not have been. The petition for equity is made by the sentencing Court or by the head of the parole board, while the subject is serving a sentence, while he is in prison. A pardon may wipe out the entire sentence -a total pardon-, or it may cancel only a part -a partial pardon. It cannot, of course, eliminate the effects of the sentence. It does not, therefore, cancel out the criminal past. Further, it is an exceptional solution, and only affects the final phase of the criminal “*iter*”, the imposition of the sentence. So, in many ways, it is a meagre solution hit upon rather too late. The solution to the unjust norm, one contrary to equity, should be arrived at earlier, at the level of legislating or, at least, when the subject is tried, in the interpretation-application phase of law.

2.1.4. The “Praetor” in Rome and the “Chancellor” in English Law

The equity exercised by the executive power has historically had more importance than might be supposed. PACCHIONI—cited by CASTÁN—observes that the Roman Praetor was the wielder of executive power, since we should never confuse the magistrate who orders the trial and the judge who judges it, that is, the Praetor and the single person or group of judges, respectively. In England, the executive power resided in the King, and was wielded through the Chancellor.²⁹ We have already mentioned the figures of the Praetor and the Chancellor at the beginning of this work, while studying Roman “*aequitas*” and English “*equity*”. We would refer the reader back to that section. Here, we simply want to underline the important role played by both in the unfolding of equity, at other times and in other places.

2.2. Normative Plane: The “Legislator”, Creating the Law

VITTORIO SCIALOJA, in his famous 1879 speech on equity, stated that, according to an ancient saying: “*Ius legislatori, aequitas iudici magis convenit*”. Nevertheless, he himself considered it meeter to hold to the contrary view: “*Aequitas legislatori, ius iudici magis convenit*”. Had this rule always been kept, there would be no room for the adage: “*God save us from the equity of Parliaments!*”. According to the second of the above maxims, the political moment—equity—is confined to the legislator alone. The task of the judge is restricted to a mere judicial moment—to law.³⁰ What does this whole debate suggest?

If the mission of equity in the current legal world, in practice, does not go beyond the very modest contribution permitted the judge in its use—especially in codified systems—then certain scholars hold its relevance should be sought at some time earlier than the trial. It should be incorporated when law

29 JOSÉ CASTÁN TOBEÑAS: *La idea de equidad...*, *op. cit.*, p. 54.

30 VITTORIO SCIALOJA: *Del diritto positivo e dell'equità. Discorso inaugurale...*, *op. cit.*, p. 16. FRANCESCO D'AGOSTINO: *Dimensioni dell'equità...*, *op. cit.*, p. 195; IOLANDA PICCININI: *Equità e diritto del lavoro, op. cit.*, p. 14.

is being passed. It should be the preserve of the legislator, as a natural and ineluctable aspiration and one to which all positive norms should conform. That is, as far as possible, norms should aspire to justice and to its corollary, equity. At present, in Continental systems, equity is but a weak corrective to the strictness of the law.³¹

In Continental systems, like the Spanish, there is nothing outside positive law which deserves the name, everything else is social ethics. The judge must apply the positive law. He is a judge “by” and “according to” law. He is not a judge “of” the law, and he is not authorized to go against the law, even should that law be imperfect, or badly looked-upon by the “popular conscience”. Therefore, the correction, as it were, which should be sought in equity is not the judge’s concern. It rests with the competent authority, and more especially, in legalist systems, with the legislative power.³²

Further, given that equity is an essentially “relative, empirical, and subjective” criterion, the ideal thing would be to develop a law which does not rest its hopes on the equitable interpretation of the legal norm, but rather would already come created “just” and not need any equity in its practical application. In legal theory, again, there is no agreement when it comes to fixing what is meant by “equity”. Those encharged with applying legal norms and—if they could—equity, judges for the most part, are human beings, with all the intellectual and emotional flaws common to humans, so the above mentioned ideal could, in theory, be realized.³³ While this might be true, in part, it is obviously utopian. Life is always far richer than the rigid schemes of legal norms in which life is supposed to fit. Therefore, though it is true that the government of judges—in line with legal realism—suffers from defects, relativism among them, it is no less certain that the government passing the laws is very far from ideal, as it was sometimes made out to be in the past—its statism and its “out-of-touchness” clearly show this. The best thing, in our view, would be to make the most of both systems—the legal and the judicial. At the same time, of course, we should, as far as possible, try to avoid their drawbacks.³⁴

2.3. *Values Plane: The “Individual”, Internally Struggling with the Values of his Conscience. The Problem of a Conflict of Duties*

Equity, however, does not only act on the institutional plane, in the hands of “subjects” carrying out juridical functions, among the legislative, executive and, especially, judicial powers. It lies also in the hands of the human being in his truly personal aspect, on the plane of values. That is, equity af-

31 ARTURO GALLARDO RUEDA: “Equidad”, *cit.*, p. 634.

32 MARCELIANO ISÁBAL: “Equidad”, *cit.*, p. 405.

33 CORRADO PERRIS: “Equità”, *cit.*, p. 448.

34 JOSÉ CASTÁN TOBEÑAS: *La formulación judicial del Derecho...*, *op. cit.*, p. 150; CARLOS M^a ENTRENA KLETT: *La equidad y el arte de juzgar*, *op. cit.*, p. 16.

fects the PERSON who must work with it, listening to the dictates of his own conscience. This may eventually come into conflict with his duties as a citizen-subject, at the mercy of the external system of human co-existence. This is because a man has duties apart from those owed the State. This is the conflict or antinomy, the clash which may come about, between the internal and the external spheres, between autonomy—moral norms the subject commits himself to, where he is his own judge—and heteronomy—or legal norms, imposed upon him from outside, by State power. The ideal thing would be for these two regimes to coincide, that there should be no confrontation between them. The truth is, however, that there exist occasions and circumstances where they do indeed collide. Personal “law” and social “law” occasionally clash.

In such cases, and within certain limits, there may then arise legitimate forms of disobedience to law, especially peaceful forms. Another thing is violent outbreaks like revolution or criminal disobedience. There are, of course, legal clashes in the form of strikes, demonstrations, conscientious objection. Again, there are certain outbreaks which fall between the borderline of the legal and the illegal, like civil disobedience. Still, the clash may not only arise between the moral and the legal planes, it may even take place within the legal plane itself. This is the case with legal antinomies and, something close to them, the “conflict of duties”.

One must tackle the question of sorting out true antinomies from similar conflicts. Thus, KELSEN already distinguished between antinomies in the strict sense and the “struggle of duties” which comes about when, to fulfill one norm, one must transgress another, for instance when one statute law says we should never kill and another states, “in case of war”, one must kill the enemy. Another example of the conflict of duties would be a norm which forbade setting foot upon sacred ground, and another which obliged all to go to the aid of those whose life was in danger, no matter where they were. If we imagine a child falling into a pond situated on sacred ground, then, it would be impossible to meet the duty to save his life and the duty to not set foot on sacred ground.

In this last example, given by KELSEN, no pure antinomy arises because it is not the case that one norm forbids and the other permits the same behaviour for the same subject, with space and time conditions being equal. In fact, there is no rule whatever forbidding the saving of the child’s life. There is, however, a conflict of duties since to obey one norm is to disobey the other.

Chapter 6

Types of Equity

In the following, we take note of the main current classifications concerning equity. This section appears here, immediately after studying equity's functions and its subjects, because—according to functions and subjects—we may now trace out a primary equity classification. As to function, as we have seen in depth, various subdivisions of equity may be made out. We can speak of “individualizing” equity, “moderating” equity, “correcting” equity, and so on. In turn, as to the body or person applying equity, there are as many types of equity as there are subjects involved in the application and elaboration of law: legislators, judges, arbitrators, and the like. The starring role, doubtless, is played by judicial equity, and the judge is the main person responsible for applying law in our legal systems.

Still, these are not the types of equity we shall be concerned with below. We shall cover rather conventional classifications, or types, of equity, as these are handled by scholars. Some we have already looked at. We start with perhaps the most important classification, that which sets out a series of different equity cases according to the relation they bear to law. Thus, we find: equity “according” to law; equity “on the margins of” the law; equity “against” the law.

1. Due to Their Relation with the Law

1.1. “*Infra*,” “*Secundum*” or “*Propter Legem*” Equity, or Interpretive Equity. Equity Authorized by Legislative Delegation

The first type of equity, given its relation to law, is equity which “follows” the law, interpreting it, and, perhaps, offering a strong interpretation of it. To remind ourselves: this is not limited to a mere declaration or execution of the letter of the law, but, rather, may be similar to an artist or musician’s practice, when the judge offers his personal vision of things in a trial. This lends a certain creative aspect to law. This type of equity is known as equity “according to” law, also “*infra*,” “*secundum*” or “*propter legem*” equity. This equity is admitted and verified so long as there is equity, insofar as equitable application of the norm is not present, nor general application of the law,

without previous interpretation. We cannot apply law if it is not clear what the law means.

Often, interpretive equity, in practice, is not seen as an application of equity itself, but as embedded in the rational, logical or teleological, interpretation of law. Interpretive equity means that the judge, faced with a legal text which is unclear or equivocal, must adopt the logical or teleological interpretation which fits in with justice, because law must be legitimate, and applied legitimately, that is, in line with equity. When the letter of the law seems to lead to injustice, an interpretation must be given in accordance with the “*ratio*” of the precept, with the “*mens legislatoris*”—in the case of a subjectivist interpretation—or with the “*mens legis*”—in the case of one of an objective assessment.

The subject of interpretive equity is found in relation to equity authorized by a legislative delegation, that is, in relation to those cases where the legislator subjects findings to a specific question of equity. Legal norms, in this respect, are classified as follows, into: “rigid” norms or “*strict law*”, and “elastic” norms or “*equitable law*”. In the former, the law is restricted and leaves not the slightest margin for the umpire to take account of the circumstances of the specific case nor to graduate the consequences. In the latter, the requisites or effects of the case are much less indeterminate, and this leaves the judge a certain margin to look at the “*de facto*” circumstances through the eyes of justice and equity.¹

1.2. “*Praeter*” or “*Extra Legem*” Equity, Additional or Integrating

A second equity modality, as it relates to law, is that which is on the margins of law rather than following it. This is “*praeter*” or “*extra legem*” equity and it has a supplementary or an integrating effect on the legal norm. Here, it is not that there is a law with a text which might have to be interpreted according to equity, it is that there is a legal vacuum or gap in the law to be applied to a concrete case. This might be because the norm is effectively missing or because the existing norm suffers from some defect which makes it inapplicable to the case at hand, a gap which might be filled up within the system proper—auto-integration—according to equity. When there is no legal norm applicable, and one cannot be made out using the positive legal system—by way of analogy or of invoking the system’s informing principles, and lacking other sources, like custom—equity is called upon to play a supplementary or integrating role to fill in the legal vacuum or gap. Equity is used to the end of adapting the law to the circumstances of the specific case.

“*Praeter legem*” equity operates when there exists no legal norm to directly regulate a specific relation, nor can one be drawn out from the positive system by other channels or indirect ways, such as analogy or informing principles, where such are acceptable procedures. It is natural, then, given the absence of

1 Cf. JOSÉ CASTÁN TOBEÑAS: *La formulación judicial del Derecho...*, op. cit., pp. 104-106.

other sources, that equity play a beneficent role. This does not constitute any new legal method, it is a tried and trusted solution, known from ancient times, by which to integrate legal gaps. Common law often points to equity as a means of supplying what the legislator kept silent about: “*ubi ius deficit aequitas supplet*.”²

1.3. “Contra Legem” Equity, Repealing or Corrective

1.3.1. Historical Evolution of the Subject Matter

At first sight, it might appear the judge has no power to examine and to criticize the law and, especially, to correct it since he is but a public servant, tied to and subject to the rule of law, with a bounden duty to obey the legal system, as an applier of that system. Judges may not judge the laws, they follow them: “*iudicare non de legibus sed secundum leges*”. The most a judge might attain, as the case may be, is to judge “*praeter legem*”, not “*contra legem*”. However, the facts reveal an inexorable conclusion: laws—no matter how just and wise we might imagine them—do have imperfections. This makes the judge responsible for verifying the existence, validity, adequacy, reach, and applicability, of the precept in question. He cannot avoid analyzing the norm and exercising some certain limited correction of the law, pefectioning the law.

Historically, the problem which has occupied a leading place is whether the judge may dictate a resolution which is not only contrary to the letter but also to the spirit of the law. This problem we shall refer to the Greek thinkers and the Medieval School, via the uses of equity.

Greek “*epieikeia*” did not correct, properly speaking, the intrinsic or substantial injustice of the norm. It corrected its application to specific cases. It was not aimed against the ill contained in the law, but against the law’s over-abstractness, not judging its injustice itself but only its inapplicability in such and such circumstances.

If in Rome a distinction was made between “*ius civile*” and “*ius honorarium*”, the same might be detected in the Medieval and Modern periods. There we find a profound dualism between positive and natural law. Thus, AQUINAS came to the conclusion that unjust laws and those contrary to natural law should have no binding force. On the other side, during the Legal Positivist phase, which came in with legal codification and the dogmatism of the XIXth century, the School of Natural Law suffered a decline and the principle became taken for granted that the judge could never, under any circumstances, separate himself from the law. Thus arose that situation, still problematic today, as to the status of “*contra legem*” equity, and as to the grave difficulties attending its practical application. As against the splendour encompassing equity in Ro-

2 JOSÉ CASTÁN TOBEÑAS: *La formulación judicial del Derecho...*, op. cit., pp. 109-110.

man law or in the Anglo-Saxon legal system, the acceptance of “*contra legem*” equity in modern Continental legal systems is more than dubious.

Theologians and canonists plant a double doubt where “*contra legem*” equity is concerned: what would the gravity of the drawbacks produced be were the law not observed?; and, what level of certitude would have to come together for the subject to be able to employ this type of equity—without recurring to some superior power?

The XVIIth and XVIIIth Spanish Theological School set out the problem of possible disobedience to the unjust law. For instance, JUAN DE MARIANA formulated his theory of tyrannicide from a radical position. This was the right-duty to overthrow the tyrannical monarch. Whether he exercised power by title, for instance, or illegitimately exercised such power, what counted was the way in which power was enforced.

Another important thinker of the same school who took up our theme was FRANCISCO SUÁREZ, especially in his monumental treatise *De Legibus et Legislatore Deo*, where he held that—in order to be able to disobey the law—it was not sufficient that the reasons motivating the legislator of that law “*negatively*” be at fault, but rather he demanded there be no fault whatever “*contrariwise*”, in the sense that any observance of the precept would presuppose an injustice, or else an excessive or immoderate rigour, or, even more, that the said law would be contrary to the intentions guiding the legislator who set out the law. In the first two instances, to avoid the harmful, or the excess of harshness, equity would be founded upon the lack of “*potestas*” of any legislator to command the harmful or to force citizens to do things by employing more rigour than that which is just. In the third case, equity is based on the lack of “*voluntas*”, given that it is presumed that the legislator would not have wished to force people even had he been able to. In all cases, equity must always be at the service of the “common good” or else try to avoid harming a particular good, always so long as grave harm is at stake.

FRANCISCO SUÁREZ, in Chapter VIII of the work cited, concerns himself with the way it is justifiable to use equity and not observe the law. He distinguishes between when: equity’s necessity may be held to be “*certain*”, in which case one might have recourse to it without appealing to the Prince; its necessity appears “*probable*”, and, in this case, too, there is no need for any higher appeal, should there be no time in which to do this; when the case is “*doubtful*”, one is then able to disregard a certain this law if, when doing so, one is obeying another; then, once more, there is no recourse to higher powers. Finally, when he comes to the other “*doubtful*” cases, he maintains one must appeal to a superior and, failing this, stick to the law.

Partisans of the Free Law School or Free Jurisprudence arrive at rather radical conclusions with respect to “*contra legem*” equity. They hold the law is not perfect and that the judge has something to say in the elaboration of law. He should be able to decide against the text of the law, according to some, while another scholarly sector demands legal loyalty, if not to the letter, at least to the

spirit of the norm. In general terms, it might be said that the majority of the representatives of the School—GNAEUS FLAVIUS KANTOROWICZ, EHRLICH, JUNG, RUMPF, STAMPE, and the rest—admit the judge has capacity to modify the law.

Thus, EHRLICH, in 1903, defended the free investigation of law as a rule, only excepting those few cases where a clear and specific law existed. In turn, KANTOROWICZ, in 1906, admitted the judge could judge against the law when: the legal text was doubtful; the judge was sure the current legislator would have another norm for this particular case; extremely complicated cases arose; the parties allow the judge to not observe the state laws. JUNG, for his part, considered a judicial finding contrary to law admissible, when the finding in accordance with the law would have caused greater harm than would be the case were the precept not observed. REICHEL, who also belonged to this school, would allow the judge to sentence against the law, when that law had lost its validity, for example, because it had been repealed; also when the circumstances obtaining when the law was passed have changed, making the goal it pursued unattainable. This could be either because the legal precept finds itself at odds with the moral outlook of the majority of people, or because, without falling into subjectivism, that law has been ignored by not just one judge but by various professional colleagues faced with the same or similar cases.

Recently, in Germany, a new focus has been put upon the question. There the question takes on a legal, not a moral-theological (à la Scholastics), cast. It is held that non-observance of an unjust law does not thereby damage legal security—linking this up with the topic of legal gaps in legal theory—since in cases of “*contra legem*” equity, though law exists, but it is manifestly unjust, an artificial vacuum is created, and this is known as a false gap.

Equity against the law, it might be said, is rejected, in principle, in many of the countries of Western Civilization, especially in socialist countries. This is above all true where people attempted to establish a new social order via law. Repealing equity is also rejected by Islam. There, the judge’s reason or feelings may not break with the law imposed by the Religion. In all these systems, equity is overthrown insofar as it is “*adversus legem*” equity. It is rejected in favour of the law and the objective legal system: “*Dura lex sed lex*”, “*Dieu nous protège de l’équité des Parlements*”. These formulae show a willingness to dissociate the law from equity and to protect the law from equitable solutions, especially in equity’s strongest version—that is equity contrary to the law—which seems to *de facto* consecrate the will of equity.³

In the present Spanish legal system, the judge’s corrective legal powers are difficult to fit in, as a simple glance at the Civil Code will show. However, the question is not so simple. For an in-depth treatment of the subject of equity in positive law, we refer the reader to our final chapter, which deals with equity in different branches of the legal system.

3 RENÉ DAVID: “La doctrine, la raison, l’équité”, *cit.*, pp. 149 ff.

1.3.2. Arguments for and against Corrective Equity

Having made these brief historical references to the question of “*contra legem*” equity’s in/admissibility, we now occupy ourselves with scholarly, theoretical, arguments both in favour and against this type of equity.

1.3.2.1. Arguments for Corrective Equity

Those in favour of “*contra legem*” equity tend to use the following arguments, amongst others:

1.3.2.1.1. The Dogma of the “Rational Legislator”

The non-application of a law whose consequences are harmful is equivalent to not recognizing that law, since the legislator could never have wished for injustice. In those cases, where the unjust law is not applied, we are in reality facing the legislator’s hypothetical will, because the presumption, or rather the dogma, exists of the rationality of the legislator.⁴

It cannot be assumed that the legislator would have desired the unjust or the irrational without going against the essence of law itself. The judge must not satisfy himself with simply applying the law, he must see to it that the law to be applied conforms with justice and, where there is a case when a law is openly harmful in a specific case, he must ensure that the ill it may bring shall not be unleashed.

For justice to be done, the law needs to be revived. If the idea of justice is, more or less, constant and immutable, law, when passed, often follows the historical moment’s fashions. Laws may remain fossilized and petrified in Codes and Constitutions which themselves are, to a great extent, obsolete and inadequate, with the passage of time, as a consequence of changing situations and a dynamic, social reality. There thus often arises a lack of synchronization and an ill-adaptation between corpuses of law and the reality of life. Appealing to equity to solve the problem would be a legal move—according to subscribers to this argument—, even appealing to “*contra legem*” equity.

The end, it comes to be said, justifies the means. The need to re-energize the law would make “*contra legem*” equity good.

1.3.2.1.2. The Existence of “Recourse to the Unconstitutionality” of a Law

Equity’s corrective function—a second argument has it—should not seem strange in modern law, since it finds so outstanding a precedent in the “recourse to unconstitutionality”, and this is not a distant and diffuse theory but a living, real, institution, often applied in practice. If the judge can revise the validity of the law contrary to the Constitution, some say, why may he not do something similar through equity?

4 Cf. FRANÇOIS OST: “L’interprétation logique et systématique et le postulat de rationalité du législateur”, in *L’interprétation en Droit*, pp. 113 ff.

Here, by way of counter-argument and objection, it might be observed that, in truth, recourse to unconstitutionality is subject to many, very strict, prerequisites which limit its application and which, in a certain way, could be compared to the danger which might be expected should one open at will a safety hatch. Such would be a reliance on the judge's subjective appreciation of a case, repealing or corrective equity. It is one thing for the law itself, which is the Constitution, the supreme law, to set a limit on inferior laws which, by virtue of the normative hierarchical principle, must respect the Constitution. It is quite another that the judge might repeal any law which, in his view, has violated justice. In the one case, we are up against the legal limits of an inferior law when faced with the "law of laws", the Constitution. In the other, we face simply a judicial limit to law. In the one instance, the limit has an objective or formal character, in the other, it is material and the judge's free, subjective appreciation that is in play.

Further—and this is another objection to the argument which presumes to compare the recourse to unconstitutionality to the application of equity by a judge, by way of legitimating it—in the recourse to unconstitutionality the body responsible for the declaration of unconstitutionality is not just any judge, it is a qualified body of judges, with a specific composition, and which, despite the possible criticisms which may be aimed at it, at least represents some certain level of guarantee. Allowing "*contra legem*" equity, in sharp contrast to this, would be, in principle, to allow the possibility of any judge, not just the Constitutional Court, being able to invalidate any law. This would, to a great degree, breach all the principles of legality which are so important to civil law systems tradition.

1.3.2.1.3. An "All-Encompassing" Conception of the Legal Order, including "Individual" Norms

Finally, an "all-encompassing" idea of the legal system might show us that neither is it problematic to consider the possibility of corrective equity in positive law, if we take into account that sentences "against law" are only leveled at a specific law, though, insofar as it is an integral part of a global conception of the legal system, these sentences would still be admissible there.

There would be no sentences against law—says CARLOS COSSIO—, since the case being treated of, even though it be against some partial enunciation, will have been resolved by the system as a whole, and will have been subsumed under it. The idea of sentences against law will continue while laws are considered as independent, separate, entities. When, however, they are seen as parts of a whole, and the logical structure of this whole is taken into account, such an idea will die out. No law is a law as such, except it be seen as part of a whole system.

Sentences—according to HANS Kelsen's idea—are individual norms, but they are norms, and as such, integral parts of the State legal system, they fall within the normative Pyramid—the "*Stufenbau*"—which each law makes up.

This is most clearly seen in Anglo-Saxon legal systems, though it is also true of Continental codes, like the Spanish.

The admission or otherwise of individual norms, as legal, as authentic law, is a controversial topic. There are classic authors, like FRANCISCO SUÁREZ, who consider generality as an essential characteristic—a “*conditio sine qua non*”, and not just a “*conditio per quam*”—, an indispensable must for a precept to have coercive power conferred upon it.

This is a distinctive feature of the law, as against other normative codes of human conduct, such as ethics, religion, or the norms of courtesy. There are other writers, KELSEN among them, who do admit the possibility of individual norms. The same is true of Roman Praetorian law or amongst the Free Law School. Something similar occurs in Anglo-Saxon legal systems. It is not surprising, therefore, that it is in these systems that equity has played, and still plays, a most important part.

1.3.2.2. Arguments against Corrective Equity

Arguments “against” allowing “*contra legem*” equity are based on “practical” problems which arise when it is admitted. Should judges rise up against the subjection to law, allowing themselves to correct law, in order to avoid its excessive rigour or possible injustice, we might find a blow aimed against “legal security”, against the “certainty” of law, against its objective and impersonal value, all of which, in themselves, are a guarantee of the rule of law. The supposed freedom of the judge, when carrying out his duties, would then turn against the true freedom of the citizenry. This leads to the polemical theme: which should predominate, justice or security? Is injustice preferable to disorder or viceversa? We shall look at this further later.

1.3.3. Major Examples of Corrective Equity

1.3.3.1. Due to the “Inadequacy” of the Law—a Quantitative Issue

In conclusion, as regards the topic of corrective equity, we look at the main cases where the problem might arise. These are basically two: due to “insufficiency” of law—a quantitative issue—, the typical instance of a lack of law or a legal gap; or due to a “defective” law—a qualitative matter.

1.3.3.2. Due to a “Defect” in the Law—a Qualitative Issue

In turn, this latter case, a defect in the law, may come about for many, various sorts of reasons. Many of these go beyond the theory of equity, and extend to a wider theory of legal interpretation. The most important cases with “*contra legem*” equity effects are those where the norm is excessively general, or unjust, in its application. We shall not go into these since we have treated of them above—when dealing with the interpretive function of equity.⁵ Below, we limit

5 JOSÉ CASTÁN TOBEÑAS: *La formulación judicial del Derecho...*, op. cit., pp. 112-126.

ourselves to making some general remarks concerning certain aspects not yet looked at.

1.3.3.2.1. The Existence of a Law which Goes against a Higher Law: Unconstitutional Laws, “*Contra Legem*” Customs, and Illegal Sets of Rules

The existence of a law which goes against a higher law is one case of a defect in law. This might lead to the repealing of the lower law. This would be the case with unconstitutional laws, “*contra legem*” customs, illegal rules, and the like.

From 1978 on, with the establishing of the Spanish Constitution, the schemata of legal sources has varied greatly and become more complex. The law continues to be the main source of law, as is to be expected in a Roman-Germanic system. What occurred is that the field has widened as to what is understood by law now in its widest sense, as a positive, State law. Thus, within these confines, we find an order going from greater to lesser rank, as follows:

In the first place, we find the “Constitution”, as the law of laws, what SÁNCHEZ AGESTA refers to, using a very plastic metaphor, a “superlaw”. Next comes, as a new category, the so-called “organic laws”. Regarding these, a theoretical debate has grown up as to whether the relation between organic and ordinary laws is, in principle, a matter of legal competence—organic law being organic only for those questions reserved for it—or whether it is a question of normative hierarchy, in which case organic law forms a sort of intermediate step between the Constitution and ordinary law. The third place would, precisely, be taken up by “ordinary law”, or law in the strict sense. Having the same rank as ordinary law, but coming from the government, we find “legal decrees” and “legislative decrees”. In fifth place, there are other norms. These may be “royal decrees”, approved of by the government, with originary power. They may also be “ministerial orders”, coming from the Public Administration.

Of these five types of laws, in the wide sense, only the first four are directly linked to the ordinary Courts, since judicial independence demands these be subject only to the control of law. Rules of the fifth category exclusively link the Administration and people having relations with the Administration. Step four, like step five, already existed in the system in place before 1978.

Insofar as the objective or material sphere of law is concerned, there is what is called the “preserve of the law” (“*reserva de ley*”). This, in turn, may be “material” or “formal”. The material preserve is for those matters specified in the Constitution. These may only be regulated by law and not by regulations, otherwise such matters must be de-legalized. The formal preserve of the law is when, in spite of a matter’s not being preserved by constitutional order, that particular matter is, in fact, regulated by a law, in such a manner that its modification or later repeal would likewise have to be undertaken by law.

Finally, in most of the territory of the State, custom is observed, by way of a fourth prerequisite—that is, besides use, the “*opinio iuris*” and reason—, so long as it does not go contrary to law.

Custom's most important classification comes about via its "relation to law". According to this relation, we may distinguish between three sorts of custom: 1.- "*Extra*" or "*praeter legem*" custom, also called "integrating custom". This covers situations about which the law remains silent. 2.- "*Contra legem*" custom, also known as "repealing" custom. This rules over situations in contradiction to what the law stipulates. 3.- "*Secundum*" or "*propter legem*" custom. This is an interpretive custom which clarifies that which is set out in the law.

The value of integrating custom is made expressly clear by its admittance in Article 1.3 of the Civil Code. Article 2.2 of the same Code expressly rejects "repealing" custom. Nevertheless, the Code says nothing about "interpretive" custom. Some believe the Civil Code's silence on this point is tantamount to admitting it, since only "*contra legem*" custom is expressly rejected. Others hold it means rejecting it, for only integrating custom is openly accepted. In truth, everything depends on the legal value given to silence: "what is not mentioned is allowed" or "whoever says nothing neither affirms nor denies anything". However, these "*a contrario*" arguments carry no weight.

ALBALADEJO, like DE CASTRO, and unlike CASTÁN, believes, in the first place, that, of course, "interpretive" custom is not a "source" of law, since it creates no norm, limiting itself to interpreting a pre-existing norm. In the second place, even the interpretation such custom gives to the law is not binding, since this would go against all the principles governing the Spanish legal system. There, the judge charged with applying the law has the freedom to interpret it.

1.3.3.2.2. The Existence of a Law which Goes against Another Law that is in Effect at the Same Time, in the Case of an Irreconcilable Antinomy

Another case of flawed law comes about when there exists a law which is contrary to another law and the two exist simultaneously, and cover the same subject and situation. This is the case of the legal antinomy, always accepting it cannot be resolved following the normal criteria for antinomy resolution. We have already looked at this above, and would ask the reader to consult the corresponding section.

1.3.3.2.3. The Vagueness or Ambiguity of the Law

Another defect which may make the law in need of reform is the existence of an indeterminate expression, arising from vagueness, from ambiguity, or from lack of completeness in its expression.

Following Professor JUAN IGARTUA SALAVERRÍA,⁶ we might distinguish, in this context, two opposed theories and, as is usual, a third, eclectic theory, reconciling or mediating between the two. The first two theories are: the "formalist" or positive theory and the "skeptical" or negative theory.

6 JUAN IGARTUA SALAVERRÍA: *Teoría analítica del Derecho...*, op. cit., pp. 29-58. GUASTINI: *Le fonti del Diritto e l'interpretazione*, Milano, 1993, pp. 334-339.

The third is known as the “*open texture*” theory of law. For convenience, we shall refer to them as theories A, B and C, respectively.

According to the “*open texture*” theory, in the system there are two interpretive methods: discovery and invention. There exist, in the system, together with certainty zones—be they positive or negative—, “shadow” zones. That is, alongside clear-cut cases, there are doubtful ones. To the first, we should apply interpretation of the type conceived by A, to the second, the realist theories proper to theory B.

In turn, the shadowy nature of the doubtful case is found where the wording is ambiguous or vague. Are the two synonymous? To avoid confusion, it should be said that they are different concepts. Ambiguity occurs when a term or the wording has several different possible meanings. Vagueness, however, is when, while there is but one meaning, that meaning is unclear. Vagueness may be either actual or potential. It is to this latter case that the name “*open texture*” is given. WAISMANN here speaks of the “porosity of concepts” (“*Porosität der Begriffe*”).

In truth, as IGARTUA sees things, nothing is either clear or doubtful in itself. It is so for an individual. The notion of clarity or otherwise only makes sense in the relationship between text and reader. It is a function of various variables: distinct cases, judged at different times and places, by different people. There would thus exist more than one definite “yes” or “no” to the interpretation, a varying border line between the clear and the confused, given the variation in linguistic use, context, and the sphere in which the law is to be applied. In fact, a law is interpreted not because its meaning is debatable, but rather because it is debated.

1.3.3.2.4. The Existence of Improper Expressions of the Law

In other cases, the flaw stems from the existence of an expression inappropriate to the law. This produces a discrepancy between its “grammatical” and its “spiritual” senses. “*Contra legem*” equity may come about, and indeed might attempt legal justification, by recurring to the important role in interpretation-application which the idea of the “*anima*”, or spirit of the law has, vis-à-vis the “*corpus*”, or the text itself. It may be that the judge, when counteracting a specific norm he sees as unjust, might in fact be going against the letter of the law, but respecting that law’s essence or “*ratio*”, that is, its soul.

1.3.3.2.5. The Existence of a Law that is Obsolete or in Disuse—“*Desuetude*”. The Difference that Exists between Disuse and the “*Contra Legem*” Custom

The case which arises when an antiquated law, obsolete under new circumstances, is discovered is a fifth instance of when a law might be defective. This is similar to the case of customary disuse or “*desuetude*”.

Codification brings in its wake advantages and drawbacks. Amongst the drawbacks is the fact that the Code’s appearance comes tied in with a belief in the legislator’s omnipotence. This paralyzes other production sources of law.

A lack of synchronization ensues between legal and social reality, a static law versus a dynamic social life. Though modifications and renovating revisions are attempted, via special laws, such laws break down the unity of the Code.

On the legal plane, the plane of formal validity, at least three conditions must be met for a norm to be valid. Firstly, the norm must have been correctly promulgated, that is, through a competent body and in accord with the procedure established for this end. Secondly, that norm must not have been repealed, either in the form prescribed by the system or by dint of that legal system's having ceased to be effective, as a whole. Any specific norm may have fallen into disuse or "*desuetude*"; by way of its being a "negative custom," that is, when, for a considerable period of time and in a permanent fashion, that norm has ceased to be effective.

Here, it is important not to confuse "*contra legem*" custom or "repealing" custom, being examined at the moment, and disuse, though, at first, they may appear one and the same phenomenon.

It might help, for greater clarity, to draw on a medical simile. Following the case of euthanasia, we might say "negative custom" is like "killing," an active euthanasia. This could be like administering an injection or a lethal shot, and causing death. Disuse is rather like "letting die," a passive euthanasia. This would, rather aptly, be similar to disconnecting the patient from the machine or the apparatus which keeps him artificially alive. In this latter case, we limit ourselves to not helping the patient go on living.

The difference is like that between "pushing" and "falling." Should one ask someone close, he would argue that the difference is that pushing implies giving a shove, and falling does not. In brief, what is important is that "pushing" constitutes a voluntary act, while "falling" does not involve this initial force of will.

We might continue the parallel by alluding to that other distinction which operates between "facts" and "deeds". The former are of a natural character like earthquakes or floods, the latter are voluntary, like crimes—acts contrary to law.

Active euthanasia, throwing oneself from a wall, or a human act—all of which involve what is essential to the human will, the impulse to act, freedom—are concepts close to "*contra legem*" custom—a custom which attacks and kills the law. Euthanasia by omission, simply falling, or a natural fact—where we accept that something happens, without anyone's having intervened in a direct way—are examples close to "*disuse*", the lack of use. In the first case, I achieve what happens, using my own power, custom acts against the law. In the second, something chances to happen to me. I do not seek it out deliberately, custom does not intentionally set itself against the law, it simply happens that it dies through inanition.

In mathematical terms, in the case of custom, it is as if there were an addition sign, a plus. In the case of "*contra legem*" custom, there would be a take-away sign, a minus, which would annul what went before. To any posi-

tive value—1, 2 or 3—would be opposed some negative value— -1, -2 or -3. The result would be 0, the repeal of the law, should “*contra legem*” custom be admitted. In the other instance, that of “*disuse*”, there is no clash between one thing and its contrary, the one thing loses its value through lack of use. It ceases to be and is cancelled out by itself. There is no need to oppose any contrary force to it.

1.3.3.2.6. Laws that are Clearly Unjust and Contrary to Natural Law

When the law is manifestly unjust and contrary to natural law it may be necessary to not abide by it.

To the extent that legal commands coincide with the morally right, no conflict ensues. Still, what happens when personal morality tells us to disobey the legal precept—say, for instance, a presiding judge’s, when he must apply a law which, in his opinion, is unjust? We believe the correct answer would be, though we cannot forcibly forbid immoral acts (indeed, sometimes one might legally do something which one, morally, should not do), neither can we demand, with any binding force, that such acts should be committed. That is, to some degree, the legal and the moral are independent.

In other words, when the moral law agrees with the positive law, both may be obeyed by a judge, with no problem, each on its own merits. These may be seen as the goodness of the one and the coercive nature of the other. The point is worth raising because it is a further proof that law and ethics should not overlap, rather, like parallel lines, they should never cross one another.

Secondly, when laws and morals conflict, this separation remains in place. Then, law may neither forcibly impose the carrying-out of the immoral nor can it forcibly forbid its commission.

2. The Distinction between “Constituent”, “Constituted”, and “Canonical” Equity

These first two—or “constituent” equity, also known as “natural” or “ideal” equity, and a “constituted” equity, “positive”, “legal”, or “civil” equity—are distinguished by the relationship they have to positive law. The first type is made up of reason or “natural justice” and is left to the judge’s conscience. It aspires to become positive or real law, though, it has not yet become so. The second sort is equity which is already taken up into positive law— “*aequitas a iure concessa*”—by way of crystallization in laws or via Court case law.

The difference between the two types, the constituent and the constituted, may remind us of a parallel in the political world between constituent power and constituted power. This difference has given rise to much theoretical debate, though the substance of these debates has not been homogeneous. Modern canonists sometimes add a third type of equity to the two above-mentioned. This is “canonical” equity, which rests upon principles of ecclesiastical law. According as ecclesiastical law is like positive law, this type of

equity approximates positive equity, insofar as it is like natural law, canonical equity comes close to natural equity.⁷

3. The Distinction between “Subjective” and “Objective” Equity—Natural or Ideal

Certain authors, like CASTÁN TOBEÑAS, further distinguish between “subjective” and “objective” equity, according to the characteristics and forms of inspiration or revelation of each.

“Subjective” equity is born out of feelings, or of individual appreciation, usually in the person of the judge, or the person applying and investigating the law.

“Objective” equity, as the name suggests, answers to criteria beyond the individual, to natural, or ideal, law. Within this category, we can also differentiate between “natural” equity, which, like natural law, aims at being universal and immutable—both outside space and outside time. “Ideal” equity, also called “social” equity, is supposed to embody the spirit of a people, at a given historical moment. It is the famous “*Volkgeist*”, spoken of by the Historical School of Law.⁸

4. “Interpretive”, “Arbitrative”—Discretionary Law—and “Additional” Equity

Since we are treating of a series of equity species, we might also, as CASTÁN does, point up, because of its relation to norms, “interpretive” equity—in its “declarative” as well as in its “corrective” guise. This works upon pre-established law—specific norms. There is also “arbitrative” equity—the will of equity—which goes along with discretionary law—non-specific norms-, and “additional”, or integrating, equity—that operates where there is a lack of a norm, in the case of legal gaps.⁹

5. “General” Equity and “Particular” Equity

Following a certain branch of legal scholarship, we may likewise distinguish between “general” equity and “particular” equity. The latter is applied to specific cases.

“General” equity is a “moral” concept. There is a tendency for it to be confused with the “just”. However, it has more to do with taking into account the sphere or the atmosphere—the surroundings—in which the law will be

7 JOSÉ CASTÁN TOBEÑAS: *La idea de equidad...*, op. cit., p. 52. J. A. ZARZALEJOS: “Equidad”, cit., p. 3449.

8 JOSÉ CASTÁN TOBEÑAS: *La idea de equidad...*, op. cit., p. 53.

9 JOSÉ CASTÁN TOBEÑAS: *La idea de equidad...*, op. cit., p. 55.

implanted and develop. This type of equity plays a significant role in the formation and maintenance of law. What is the relation of general equity to the sources of law?

In relation to a “*legal norm*”, it translates into a certain vague and imprecise vision of the just, something somewhat artificial. Because the legislator cannot take into account all the minor vicissitudes of real life—with the law’s dedication to the universal, and that which touches all people and all cases—the law he makes is supposed to come fundamentally tied up with, and approaching to, general equity.

This is not exactly what happens with “*custom*”. This also integrates a part of general equity—though, perhaps, less than does the legal norm—in that it gathers up social practices which have existed for a long time—stemming from the past, rooted in tradition, and looking toward their, presumed, continuation in the future—and which are known for their uniformity and general nature, and are thus recognized by the population. Insofar as it is indeed recognized by the people, custom cannot be basically pernicious, it cannot be contrary to “general” equity.

“*Case law*”, given its judicial custom nature, which crystallizes as “general principles of law”, is also an instance of general equity, insofar as it is the work of an élite—the magistrates—who are, at least in theory, especially sensitive to questions of moral value.¹⁰

In principle, general equity is not opposed to law. In fact, quite the contrary, law should be a realization of equity, even if a “fragmentary” and “imperfect” realization. It is rather “particular” equity—or “equities”, since they are a plurality—which sometimes set themselves up against the law. This is because equity reveals the needs of the specific case in light of the judge’s vision, rather than that of the creator of law’s, the legislator’s, vision. Neither does it take into account how other sources of law might view the case, such as custom or general principles of law.

GIULIO M. CHIODI, for his part, differentiates between general and particular equity according to who authors each. The first refers to legislative activity, the second, to jurisdictional activity. He adds that, while the first finds its maximum expression in Roman “*aequitas*”, the second comes closer to the Greek “*epieikeia*”. However, and here there is a break from what has been explained above, while “general” equity takes up and expresses the demands of justice—and here arises the discordant note—it does so against positive law. “Particular” equity does not do this. It goes along with positive law, not being constituent, but acting as a moderating corrective, sweetening and bettering positive law.¹¹

10 PAUL FORIERS: “Réflexions sur l’équité et la motivation des jugements”, *cit.*, pp. 88–90.

11 GIULIO M. CHIODI: *La regola costitutiva del Diritto*, *op. cit.*, note 27.

In truth, as we see it, these are not two antagonistic viewpoints, as at first sight they may appear. It all depends upon how far, to what extent, we consider the positive law just. Should we consider it quite in accord with the demands of justice, from the outset—“*a priori*”, or, rather, “*ab initio*”—then law, sources of law and “general” equity would coincide, and there would hardly be any call for particular equity. If, on the contrary, we feel, with CHIODI, that the positive law often deviates from justice, then, the equity best suited to positive law would be particular equity, that of the judge—equity “*a posteriori*” or corrective—, and not that of the legislator who created the positive law.

6. Cerebral/Intellectual Equity

As regards an idea mentioned earlier, that the judge cannot be like some knight errant, seeking his own ideal of beauty and goodness, we find the words of that great Spanish writer, the author of *El Quijote*, who spoke of “when equity can and must take place”. He was aware that equity must have some objective sense and be applied according to reason, not to some arbitrary whim. Arbitrary decision is energetically repudiated by CERVANTES, in his rejection of judicial Free Will, what the writers of the Spanish Golden Age nicknamed “embroidered”, the type of law which arose when any judge decided according to what was “embroidered” into his head at the time, regardless of what the real laws stipulated. This sort of badly formulated and whimsical equity is often known as “cerebral” equity, or an abusive and arbitrary use of equity, a misuse of equity. Rightly is it called “cerebral”, having no foundation in either law or reason, but created by each particular judge according to his own lights and tastes, accommodating delirium to fantasy, caprice or blind passion.¹²

12 JOSÉ CASTÁN TOBEÑAS: *La idea de equidad en las letras españolas*, op. cit., pp. 85-95.

Chapter 7

Equity's Content Equity's Judgement

"Legal judgement" must be distinguished from "equity's judgement". The former takes place before a legal norm which is to be applied. The norm forms a statement which cannot be done without. This gives rise to a syllogistic procedure. The classic instance is: "Whoever steals must be punished". This breaks down into the major premise, based on the general nature of the law. The minor premise here is "A has stolen", a factual given. The conclusion is: "A must be punished". This conclusion becomes the sentence or the legal decision. Thus, we find the following sequence: "norm", "fact" and "sentence".

"Equity's judgement", by contrast, may be seen as an "acephalian" syllogism. That is, one lacking in a major premise. In our case, "Whoever steals must be punished" is missing. In the case of equity, the conclusion is not derived directly from the legal norm, but is taken from considerations of equity and adequation. We do not arrive at "A has stolen, therefore, A must be punished". Following this procedure, the nexus between the robbery and the punishment does not stem from any ontologically pre-established, formal principle of any express norm whatever. This kind of acephalic ("headless", or with no major premise) syllogism which makes up equity ARISTOTLE called "rhetoric". This was because it is not a true syllogism. Indeed, in equity's own judgement, the which stems from such syllogisms—clearly axiological in character—, these syllogisms are called "enthymematic". In the judge's opinion, they only make up a part of the opinion arising from the case in dispute.

ARISTOTLE adds that in legal judgements, the one presiding is properly speaking a judge, while, in "equity's judgements", the person deciding is rather an arbiter who bases his decisions on persuasive arguments instead of on solid arguments. The arbiter who uses "equity's judgement" does so more especially in civil matters. The judge who makes legal decisions is very jealous of formalities, and, in a very significant degree, acts within the criminal law sphere, where a higher power rules, beyond that of the usual "principle of legality": "*nullum crimen, nulla poena sine praevia lege poenale*". This principle is already set forth by BECCARIA as one of the few exceptions to the rules of pardon and amnesty by which we might be moved, and which are

found in equity considerations. We see here the disjunction regarding which is better: a government of men or a government of laws.

Equity's judgement is always a "relational" and "relative" judgement; there are no unconditionals nor absolutes where equity is concerned. The equity's judgement takes into account, and places in relation, relevant utilitarian or moral interests. It tries to establish some harmony, balance, congruence, and compatibility, between them; an equitable equilibrium. Law looks to a general and anonymous, socialized control. It is not necessarily concerned with an equitable balance of interests, particularized and referring to specific subjects.¹ The legal trial gives rise to a "law of the will", while equity's judgement leads to a "law of conscience". The former is a "noetic" intuition, it is cognitive. The latter follows a "dianoetic" scheme, it is discursive.

The judge who applies the law appeals to the principle of "identity, parity and equality"—as corresponds to the fact foreseen by the law. The judge in equity takes his stand on the principle of "difference"—and the peculiarities of the specific case.² Legal interpretation is an indirect discourse. Equity is, rather, a direct one. While in the application and interpretation of law a solution is reached by way of an "*a priori*" rule, the major premise of the syllogism, in equity the solution is "*a posteriori*", stemming from the specific case, via an "enthymeme"—an abbreviated syllogism which, having one of the premises taken for granted, only consists of two propositions, the antecedent and the conclusion. The second derives directly and immediately from the first. For instance, the Cartesian enthymeme: "I think therefore I am". In everyday life, there are more enthymemes than there are syllogisms. The major premise is either superfluous or understood. For some examples: "This country's wine is excellent, I would drink more with pleasure"; "the sun is shining, therefore it must be daytime"; and a thousand and one popular sayings and traditional saws. In all these cases, the solution in equity flows from good sense, at first sight, from the mere contemplation of the circumstances.³

The essential difference between legal and equity's judgement derives from the pre-existence, or lack thereof, of a positive norm which, abstractly, foresees how a fact should be dealt with. The crucial point is whether the judge should weigh the litigious case submitted to his decision according to the norm or should he rather derive the norm from the case. The difference is essential because, in the first case, legalistic and general formalist categories are applicable. In the second instance, these would be insufficient and would require a widening of the speculative horizon, in order to take in the totality of the legal experience.

1 GIULIO M. CHIODI: *Equità. La regola...*, *op. cit.*, note 20.

2 FRANCESCO D'AGOSTINO: *Dimensioni dell'equità...*, *op. cit.*, pp. 66-72.

3 MAGDI SAMI ZAKI: "Définir l'équité", *cit.*, note 176.

This does not mean equity's judgement may not be logical. It would be absurd to be able to judge irrationally. It is simply that a closed logic does not enter into equity's judgement. It is not governed by syllogistic and formalist logic, according to which legal norm and sentence share a relation of dependence, the one on the other, mechanically entwining into a pre-established scheme of deductive reasoning, where the judge limits himself to being the living conduit or link between the norm and the fact. Equity's judgement operates with an open logic, with a rhetorical syllogism or an enthymeme, an abbreviated syllogism, where the major premise is omitted, taken as given.

It is from hence that equity's judgement gets its eminently subjective or unverifiable character, making it less an evident, certain, true, or verifiable judgement than one not based on a general rule, one that applies to the specific case, to a single event. A typical equity's judgement may, at first glance, appear somewhat Solomonic, as a judgement in a specific case, where, rather than the law's voice speaking—"*vox legis*"—, we hear the legislator's voice—"*vox legislatoris*"—sounding through the judge's mouth. This is not the historical will of the legislator, embodied in law. It is the hypothetical will which the judge supposes the legislator would have expressed, had he only known of the specific case the judge is handling at the time that legislator dictated the law.⁴

The differences between legal and equity norms might be set out as follows: the latter are singular and subjective. They are not objectively pre-existent and external to the judge. They derive from his own conscience. The logical upshot of all this is that the majority of legal scholars define equity's judgements as "exceptional", with regard to legal judgement. It is held that the case is singular, since its elements are not reducible to any common experience, nor can such a case come to constitute a "given fact" of any legal norm—it cannot be foreseen and put "on the books". As regards the subjective character of the equity's judgement, this refers not to the object but to the subject. This comes about when a case exists which does already come under some legal norm—and so is distinct from that outlined above—, but where the judge or the parties concerned subjectively estimate that the solution should be something other than that foreseen by the norm for such a case. They may consider the legal solution unjust or, in some way, inadequate. That is, they see it as an (improper) axiological legal gap. Here, the subjective aspect of the judge's judgement, as it were, takes pride of place. It outweighs the objective aspect of the particular case at issue. To say that equity's judgement is particular and subjective is not to say that it is instantaneous. There are two distinct moments involved. These are: the evaluation of the facts and the evaluation of the law. This latter moment may only be

4 VITTORIO FROSINI: "Equità (nozione)", *cit.*, pp. 80-82.

the verification that there is no law applicable, or that the law, that there is, is unjust, given the circumstances of the case.⁵

5 ANTONIO NASI: "Equità (giudizio di)", in *Enciclopedia del Diritto*, XV, Milano, Giuffrè, pp. 108-112. PIERO CALAMANDREI: "Il significato costituzionale delle giurisdizione di equità", in *Archivio Giuridico*, LXXXV, 2, 1921. Spanish translation: "El significado constitucional de las jurisdicciones de equidad", in CALAMANDREI: *Estudios sobre el proceso civil*. Buenos Aires. 1945. From the Italian edition: *Studi sul processo civile*. II. Padova. 1930-56, II, pp. 1-56. Also in PIERO CALAMANDREI: *Opere Giuridiche*, III, Napoli, 1968, pp. 3-51. ANGELO ERMANNO CAMMARATA: "Giusnaturalismo e 'critica delle leggi' in rapporto alla distinzione tra giustizia ed equità", in *Bollettino dell'Istituto di Filosofia del Diritto dell'Università di Roma*, 2. MAX RÜMELIN: *Die Billigkeit im Recht: Rede gehalten bei der akademischen Preisverteilung*. Tübingen. J.C.B. Mohr. 1920. HANS KELSEN: "La dottrina del diritto naturale e il positivismo giuridico". 1928. CARLO MARIA DE MARINI: *Il giudizio di equità nel processo civile; premesse teoriche*. Padova. CEDAM. 1959. VITTORIO FROSINI: "L'equità nella teoria generale del diritto", *cit.*, pp. 6-7.

Chapter 8

Equity's Limits

There is a limit to the use of equity: there is discretion used, it is true, but this does not imply arbitrariness. We have already had occasion to allude to this when we dealt with the topic of the difference between discretionary and arbitrary power. We there pointed out that constitutional norms, among others, acted as limits to the exercise of equity. This is so since, though it is possible to conceive of a legal norm without equity, it is impossible to develop any equity without legal norms. It sometimes happens that equity, rather than being applied to legal norms, is inspired by the norms, as well as by considerations of justice and of fact. In spite of the singular character of equity's judgement, when compared to legal judgement, the judge should make every effort to lead discretionary judgement in general—and equitable judgement, in particular—back to positive bases—at least to the overriding principles upon which the legal system is founded, those proclaimed in the Constitution, the law of laws. As we mentioned before, this is what LUIS SÁNCHEZ AGESTA called a “super-law”. It is true that constitutional formulae, often being the fruit of consensus, are not univocal but multivocal. This is without even going into the debate whether it is or is not advisable to introduce declarations of principle into constitutional texts, or the immediate operational nature—or lack thereof—of such declarations, in relation to material connected to appealing against a judge, should the judge exceed the suitable limits of his powers.¹

According to AGUSTÍN SQUELLA, for instance, some limits on equity might be: a) the judge's own conscience, and the limits his conscience puts on his Free Will, when sentencing; b) the case itself and the limits which the facts and circumstances of the case themselves impose on the judge's decision; c) natural law—or, at least, the hard core of natural law, some of which should always inspire positive law, and might not be ignored by positive law, as H. L. A. HART points out; d) general principles of law, standards, maxims and rules which inspire the State legal system, like, for instance, the principle of good faith; e) equity precedents, and the taking-into-account of

1 FEDERICO ROSELLI: “Qualche riflessione sui limiti della decisione equitativa,” in CENTRO NAZIONALE DI PREVENZIONE E DIFESA SOCIALE: *L'equità, op. cit.*, pp. 280-282.

prior, similar situations; f) analogy, which allows one to judge similar cases along similar lines; g) socially dominant ideas and values, and the like.² All of the above permit us to tie in our theme with the following section. This deals with ideas related to equity. There, we see how notions like natural law, general principles or good faith, to mention a few, while they are closely tied to equity, are definitely distinct from it.

2 AGUSTÍN SQUELLA and ABEL GONZÁLEZ: *Dos concepciones de la equidad*, *op. cit.*, pp. 38-41.

Chapter 9

Relationship between Equity and Related Ideas

Any legal idea may be treated “positively”. That is, we can go into its functions, its historical evolution, how it is reflected in comparative law, and the rest. Nevertheless, it can also be dealt with “negatively”, once a certain consensus has been established as to what we mean by the term. This “negative” treatment consists in differentiating the notion from those similar ideas which are often related to it. In this way, we might mark out the field for any concept, so, why not for equity? We therefore here undertake a positive outline, to show what equity is, and a negative one, pointing out what it is not. We thus hope to arrive at a sharper and more precise profile.

In the task of delimiting what equity is not, we intend to maintain the three-dimensional scheme, the division into planes, distinguishing between the factual, the normative, and the values, planes. In truth, our comparative analysis really focuses on those zones where other ideas interact with equity, the “limit” or “boundary” regions. There we find analogous concepts, in part like, in part unlike, equity. All these, we treat of three-dimensionally.

1. Factual Plane

On the factual plane, we have separated equity from concepts related to the interpretation of law, those concerned with its application, and, finally, an assorted miscellany of various other related ideas.

1.1. *Equity and Concepts Related to “Interpretation”*

We have already spoken of equity and interpretation when referring to the (interpretive) function of equity. We would ask you to take another look at that. Here, we limit ourselves to pointing up a series of ideas found in the semantic field connected with interpretation whose conceptual precision plays an important part in the question of equity. Such concepts are those of “*ratio*”—spirit—over against the “*corpus*”—the letter—of the law; “*voluntas*

legislatoris”, as opposed to “*voluntas legis*”; and “*animus*”, in contradistinction to the “*anima*” of the legal norm.¹

1.1.1. Equity and the “Spirit”—“*Ratio*”—of the Law, as opposed to the “Letter”—“*Corpus*”

Equity finds its most comfortable setting within the terms of “*ratio*”, in contradistinction to the letter of the law, or the “*corpus*”. With the latter, we move upon a formal, more than an essential plane. It is when the spirit transcends the letter that we find we must adjust the parameters of each. Equity, insofar as it is justice in the specific case, plays an important role here.

The term “*ratio*” is deeply-rooted in Jurisprudence. Nevertheless, scholars have used it in a great variety of senses. Historically, in Greece, it was used as an equivalent expression for “*logos*”. Even in Classical Rome, in spite of the word’s Latin origin, it was seldom used in a legal sense. In Late Roman law, it took on greater importance, though still with meanings at odds with those of the present. It had a patrimonial rather than a legal sense. It is with the Glossators and Commentarists of the Middle Ages that we find the expression acquiring its modern meaning, linked to the law and to “*reason*”—“*ratio legis*”, and as a synonym for “*rationabilitas*”. At first, it was used by the Glossators as a synonym for “*causa legis*”, but, later, with the Commentarists, this “*causa*” came to be tied into legal business and “*ratio*” remained strictly reserved for the law.

“*Ratio*” thus conceived, as “*ratio legis*”, in an ample sense, may have the following meanings:

- a) The sense of finality—“*animus*”; either in the subjective sense of the legislator’s goal— “*voluntas legislatoris*”; or in the objective sense of the end at which the law aims—“*voluntas legis*”. Here, we are dealing with the “what for” of things.
- b) The meaning of the principle which serves as foundation for the law, that is, the “*anima legis*” or “*medulla legis*”, in contrast to the “*occasio legis*”. Then, we are treating of the “because” of things.
- c) In a third sense, “*ratio legis*” is conceived of as the content of the law. This is neither the “what-for” nor is it the “because”; it is rather the “what” of law. One seeks out protected, legal interests, taking into consideration, besides the logical construction of the norm, the surrounding environment wherein it is destined to operate.

We further develop meaning a) and b) in later sections. Both have to do with teleological interpretation. As regards the third meaning—protected legal

1 Cf. SHAEL HERMAN: “The ‘Equity of the Statute’ and ‘Ratio Scripta’: Legislative Interpretation among Legislative Agnostics and True Believers”, in A. MORDECHAI RABELLO (ed.): *Aequitas and Equity...*, op. cit., pp. 179-211. FRANCESCO GAZZONI: *Equità e autonomia privata*. Milano. Giuffrè. 1970, pp. 145-146.

interests—, this is more correctly linked to sociological interpretation. Equity is connected to interpretation, whether teleologically or sociologically, depending on the emphasis given. Are we emphasizing the value-final pole or the specific-factual pole? In both cases, the attempt is being made to adapt an abstract justice to a concrete, real, case, countering principles and data, values and facts, and “adjusting” them within an equitable interpretation.

1.1.2. Equity and “*Voluntas Legislatoris*”, as opposed to “*Voluntas Legis*”

This section investigates a type of argument used by the equity judge-interpreter in law, by way of psychological argument. Via this argument, the meaning of the will of the law-maker, or the law-giver’s will, is attributed to a norm. That is, one tries to establish the will of the specific legislator who historically made up the law. The problem is how to find this “legislator’s will”. A sort of psychological introspection would in fact be impossible, even more so than usual, since we normally deal not with an individual person but with an assembly. Therefore, it is necessary to analyze the documents where this “legislator’s will” might have been exteriorized. Preparatory works are doubtless the most important thing here. What is more open to doubt is whether we should or should not include preambles and outlines of motives which might also reveal this legislator’s will. The preamble and the outline or declaration often precede the dictating of some normative documents. In them, the legislator explains the principles which have guided him, the end pursued or, in general, the motives leading to his approving this regulation rather than another.

There are some arguments suggesting it is not possible to get to know the legislator’s will. For instance, in Parliaments, as they are collective organisms, it is only fictitiously that we can speak of a single will of the legislator, since various ideological stances co-exist therein. The Parliamentary vote is frequently the fruit of trade-offs between leaders of certain groups with representation in Parliament, rather than the true expression of the original will of the legislator. Technical, legal specialists are involved in the drawing up of the preparatory works and draughts, and these are not legislators. Their intervention is, however, decisive in the project’s make-up. Even amongst parliamentarians, properly speaking, some may not know the bill and vote for it any way, out of pure routine and, whatever the case, not all are experts in the question being ruled on. On the other side, as a consequence of Parliamentary debates, bills may include arguments stemming from all kinds of opinions. Finally, it is said that if the legislator has a definite and certain will, then he would make it sound out crystal clear.²

2 FRANCISCO JAVIER EZQUIAGA GANUZAS: *La argumentación en la justicia constitucional española*. Thesis. Instituto Vasco de Administración Pública. Bilbao. 1987.

Hence it is that, often in the theory of law, a distinction is made concerning the legislator's will. There is the "historical" will and the "hypothetical" will. The former is that which the legislator may be supposed to have had at the time he dictated the law. Still, many problems arise when one tries to determine what this was. Firstly, the legislator's "historical" will might have ceased to exist. Moreover, it may prove a contradictory will. On the other side, and this is where equity has much to say, it is very probable that any such will no longer corresponds to the demands of present-day, social reality. It is, in part, for this reason that the theory grew up which speaks of the legislator's "hypothetical" will. This would be the intention the legislator would have had if he had taken into account the situation which was going to arise. That is, it is a will one believes the legislator would have had when considering the application of the norm, not its creation.³

No matter how difficult finding out the legislator's will might be, and though we might have to content ourselves with the hypothetical will he might have had, yet, it is this will with which equity has to do. Equity pits this against the will of the law—"voluntas legis"—, which is frozen once and for all in the text of the law and which is more objective, and less susceptible to opinion. However, often it must be said that the judge, as interpreter of the law, attempts to verify the true meaning and extent of the law—that is, theories of the objective will of the law. In our view, what he is looking for is in reality the will of the subject who created the law. This, it is supposed, should correspond to the interpretation and application of the law—that is, theories of the subjective will of law.

If we continue with the musical metaphor, invoked previously, we might say that, once the disk being made has been recorded, the margin of appreciation is less broad than the singer and the studio might have hoped for. At first, there was a simple score and it had to be interpreted. The recorded disk here is the law. Of course, the result is open to evaluation and opinion: "I like it"..., "it is melodious"..., and so on. Still, the further the process of production moves along, the more decisions have gone into it, and the less is the arbitrary margin left open to interpretation. This is similar to what takes place regarding the legislator's and the law's will. While the former—be it historical or the hypothetical or presumed will supposed to exist at the moment of the law's application—is somewhat subjective and so open to opinion, the latter is much less so, being more objective. Equity has more to do with the former than with the latter.

3 Cf. AULIS AARNIO: "On the Truth and Validity of Interpretative Statements in Legal Dogmatics", in AULIS AARNIO - ROBERT ALEXI and ALEXANDER PECZENIK: "The Foundation of Legal Reasoning", in *Rechtstheorie*. 12. 1981, pp. 423-448, esp. p. 435, cited by MARÍA JOSÉ FALCÓN Y TELLÁ: *Concepto y fundamento de la validez del Derecho*, *op. cit.*, last page.

Regarding “*voluntas legis*” and “*voluntas legislatoris*”, it is interesting to note how, historically, there has been an evolution with respect to the prevalence of the one over the other. While the Glossators limited themselves to delving into the literal tenor of the law, the early Commentarists assumed that the spirit or “*ratio legis*” should be the criterion of interpretation, rather than the letter of the law. At that time, this “*ratio*” was identified with the subjective will of the legislator. Hence, they spoke of “*ratio seu mens*”—reason or mind. However, later, in the XVth and at the beginnings of the XVIth centuries, the Commentarists considered the substantial content or the essence of the law through the objective prism of the search for the law’s final aim, rather than as a matter of the subjective profile of the legislator’s personality and intellect. They then began to speak less of “*mens legislatoris*” and more of “*mens legis*” or “*voluntas legis*”.⁴ That is, they shifted from giving priority to the “*animus*”, or intention, of the legislator to awarding it to the “*anima*”, or soul, of the law.

1.1.3. Equity, “*Animus*” and “*Anima*”

Both “*voluntas legis*” and “*voluntas legislatoris*” in principle refer to the goal of the law, the “what for”, to its intention. However, there also exists what could be known as its “because”, or its basis, essence, or underlying principle. This is referred to as the “*anima*” or the soul of the law. Equity is related to both these things. It is perhaps more connected with the “*animus*”, since this is more subjective, than with the more objective “*anima*”, for reasons already given. Overall, however, it concerns both because both make up the essence of “*ratio*”, as opposed to the letter or “*corpus*”.

What interests us here is simply differentiating between “*animus*” and “*anima*”. Though both allude to whatever is not the letter, the “*corpus*”, and though, in the discourse of jurists they are often handled as equivalents, in good, technical Jurisprudence, “*animus*” is intention, aim; “*anima*” is soul or spirit.

1.2. Equity and Concepts that Take Part in the “Application” of the Law

1.2.1. Equity and “Analogy”

Equity and analogy are interrelated, to such an extent that we might hold, on the one hand, that no legal analogy exists if it does not turn out to be equitable and, on the other, that one of equity’s characteristics is, like analogy, similarity or likeness. In analogy a similarity of cases is produced, on the plane of fact, and a “reason” identity, “*eadem ratio*”. In turn, the word “*aequalitas*” is, etymologically, found in the term “*aequitas*”. It is natural to think that analogy and equity are then somehow intertwined, given that the true basis of the idea of law—as MICHEL VILLEY has observed—is expressed as a relation,

4 PIER GIOVANNI CARON: “*Aequitas*” romana..., *op. cit.*, p. 100.

a proportion: “*analogon*”—according to ARISTOTLE—, “*aequum*”—according to the Romans.⁵

Further, both analogy and equity are used in law, backed up by some general principle of law—or simply, as the Classical Romans put it, by “*naturalis ratio*”.

However, though the two concepts are interrelated and have certain features in common, we must not forget that there are other aspects where they do not agree. Analogy and equity may be distinguished as much from a quantitative as from a qualitative viewpoint.

Quantitatively, equity brings with it a “restriction” of a text, while analogy allows for its extension to some case not originally contemplated in the text. While equity is justice in the specific case, an “adjustment” of abstract and general law to the peculiarities of the singular situation the law must be applied to, analogy entails the extending of a legal norm to a case not directly contemplated in the books, but one which bears a certain resemblance to a case recognized in law and which is, in its essence, identical—having the “*eadem ratio*”—, by way of which the existing legal gap is filled. Analogy, in fact, offers such a close similarity to extensive interpretation that it is often difficult to separate them, in practice. Equity, by contrast, always presupposes the adaptation of the genera to the species and, therefore, a restriction in the tenor, or the general mode, of the law.⁶

On the *qualitative* side, equity and analogy differ in that the former is, to a certain extent, a method of gap “heterointegration”—at least insofar as the judge, finding the regulation of the specific case unjust, in light of a free appreciation of the elements in the controversy, appeals to an outside element, one foreign to the legal system. Analogy, however, is a clear case of legal gap “autointegration”—since the judge, in having recourse to an analogous legal finding to cover the gap, moves entirely within the legal system.⁷

5 JUAN BERCHMANS VALLET DE GOYTISOLO: *El razonamiento jurídico: la analogía y la equidad. Discurso leído el día 17 de noviembre de 1997 en la sesión inaugural del curso académico 1997-1998, por el Excm. Sr. D. Juan B. Vallet de Goytiso-lo*. Madrid. Real Academia de Jurisprudencia y Legislación. 1997, pp. 60-61. Id, “Equidad y buena razón según el jurista gerundense del siglo XV Tomas Mieres”, in *Anuario de Derecho Civil. Instituto Nacional de Estudios Jurídicos*. 1977, pp. 3 ff. Id, *Metodología de la determinación del Derecho*. II. (Parte Sistemática). Madrid. Centro de Estudios Ramón Areces, 1996, pp. 178-183, 927-969 and 273-298. Id, *La interpretación según el Título Preliminar del Código Civil, discurso leído en la sesión inaugural del curso académico 1996-1997*. Madrid. Real Academia de Jurisprudencia y Legislación. 1996, pp. 93-121.

6 NASI: “Equità (giudizio di)”, in *Enciclopedia del Diritto*, XV, Milano, 1966, p. 141. MAGDI SAMI ZAKI: *Définir l'équité*, cit., note 73.

7 PIER GIOVANNI CARON: “*Aequitas*” romana..., op. cit., p. 83. JOSÉ CASTÁN TOBENAS: *La formulación judicial del Derecho*..., op. cit., p. 110.

Another distinctive difference between analogy and equity—also from a qualitative viewpoint—is that equity, though it generally supposes a more benign treatment of the specific case, in the sense of mercy and pity, may, should the circumstance arise, imply a stricter treatment than is implied in the literal tenor of the law. In contrast to this, analogy implies the existence of certain limits or boundaries in its application, that is, analogy may not be applied when it comes to giving an extensive interpretation to norms which demand any special rigour.⁸ Thus, for instance, criminal laws, or restrictive norms do not allow for analogy save when analogy might prove favourable to the accused—“*in bonam partem*”. This would be a case of analogy extension to extenuating or mitigating circumstances. Normally, however, with an essentially punishing type law, like criminal law, the sphere of application must not be widened by the use of analogy, and this by virtue of the “*favorabilia amplianda, odiosa restringenda*” principle—we must widen the favourable and restrict the unfavourable.

A further feature differentiating analogy from equity is that the former may not be put into effect when there exists a legislator’s will set against its use. In this sense, there is a “presumption” in favour of the *non-existence* of a legislator’s will against analogy’s use. Still, this would be a simple, relative presumption or “*iuris tantum*”—not an absolute or “*iuris et de iure*” one—since it might be a presumption destroyed by the concurrence of some evidence against it. This may come about, for example, because the legislator formally and expressly forbids analogy, as happens in Paragraph 2 of Article 4 of the Preamble to the Spanish Civil Code, after the reform of 31st May, 1974. There, analogical extension to criminal cases is expressly prohibited. The same, in those cases which from their origin had a fixed, previously conceived, life-span. As opposed to this, such a possibility of being expressly forbidden is not conceivable where equity is concerned. Can the legislator truly prohibit the use of equity? We hold this would be a “*contradictio in terminis*”. It would be like expressly allowing injustice, or expressly forbidding justice.

1.2.2. Equity and “Good Faith”

The concept of good faith is a good example of a “valve” concept, a maxim taken from experience, a legal standard, a flexible directive. Already in Roman law, the ideas of equity and good faith were related through the association of the “*bonum et aequum*”.⁹

Equity and good faith, however, are not the same thing, exactly. Perhaps the difference lies on the operative plane, both from the procedural and the practical point of view. Equity refers rather to the rule aspect of things, to the objective. Good faith moves more upon the plane of behaviour and ways of acting. We rule equitably, we act in good faith. While the former refers to

8 PIER GIOVANNI CARON: “*Aequitas*” romana..., *op. cit.*, pp. 101 and 106.

9 JOSÉ CASTÁN TOBEÑAS: *La idea de equidad*..., *op. cit.*, p. 86.

the rule as such, the latter takes place on the subjective plane, it affects the people who must act and who must carry any such rule out in practice.¹⁰

1.2.3. Equity and the “Nature of Things”

Observing facts leads to the idea of the nature of things. MONTESQUIEU’s first assertion in *L’esprit des lois* holds that “the laws... are the necessary relations deriving from the nature of things”. The nature of things stems from various factors. Equity is nothing but a return to the nature of things. Indeed, there are natural data which man might note but which he can neither change nor overlook. However, here we must emphasize that man dominates nature more and more. Thus, some classic examples of data which were traditionally in the nature of things, but which, today, are subject to all kinds of controversy might be: every man is mortal is something given in the nature of things, but it is also true that life expectancy increases all the time, and that there are deep-freeze methods to preserve human beings in the hopes that the evolution of science may one day revitalize them. The reproduction of the species presupposes the coming together of two individuals of different sexes. This might seem to be essential, in the nature of things, yet, more and more breaches are made in this field via experiments like cloning, cell manipulation, and the rest. An unarguable truth such as that a pregnancy lasts for nine months does not prevent science and technology from keeping the new-born alive after a very much smaller gestation period.

Man tries to go beyond the limits of nature. Further, each human being is a unique being, an unfinished project, with a perpetual becoming, where determinism and the laws of nature might be altered by our freedom to act in such and such a way. Nature too changes. Nothing is foreseeable. To regulate change and diversity is the aim of law. To adapt law to change and diversity is the goal of equity. The law goes forth by way of concepts, equity proceeds by going back to how things are in themselves, to the nature of a situation or of a relation.¹¹

Before going any further, it is as well to glance at what, historically, has come to be understood by “the nature of things”. What is the nature of things? As with equity and analogy, no one, single sense or meaning may be found—we can speak of the Greek, the Roman, the Medieval Canonical sense of equity, and the rest; there is legal analogy or “*analogia iuris*”, anthropological analogy, and so on. There exist, and, above all have existed, innumerable meanings of the expression “the nature of things”.

Sometimes, we speak of the “physical” nature of things, at others, of the “logical” or the “rational” nature, again, of the “ethical”, of the “metaphysical” or the “philosophical”, the “divine” or the “religious” nature of things. Here is not the place to go too far afield into the wide range of possible meanings

10 FRANCESCO GAZZONI: *Equità e autonomia privata*, op. cit., p. 292.

11 MAGDI SAMI ZAKI: “Définir l’équité”, cit., note 184.

of “the nature of things”, still, we might say, for example, of the “physical” nature of things, that it was what the Pre-Socratics were speaking of when they sought out the “*arche*” or principle of “*physis*” or nature. Again, the “logical” nature of things might be found in SOCRATES’ giving primacy to ideas over mere opinions, in PLATO, with his world of the Forms, and, more especially, in Rationalism and Idealism, when they gave absolute priority to logical and cognitive features. The “metaphysical-philosophical” concept of nature found its maximum expression in ARISTOTLE and might equally well refer to internal principles of generation, that is, matter and form, as to external or final principles of generation, to the essence of things. Finally, there were those who looked for the “ethic” in things, based on the conscience itself, and those who, on a “religious” plane, situated the nature of things, in the final analysis, in God, via the idea of the creation. Things are created following God’s image and, therefore, things partake of the divine nature, even if only in a limited way.

However, no matter which idea of the nature of things we choose, it is certain that it will clash with the idea as found in law, with that which is established by an abstract, legal norm. It does not matter whether it is an idea perceived through the senses -the material or physical nature-, or by way of the understanding -logical nature. It is of no importance if it be via philosophical reflection -metaphysical nature-, or through conscience -ethical nature-, or even by way of faith -religious nature-, the fact is it will not coincide with the legal idea. What is “by nature” is contrasted with what is due to “human convention”. To the “*rerum natura*”—the nature of things—is opposed the notion of “*nomos*”—human norms or conventions.

This is what happens in cases where equity is applied. On the legal plane, there exists a norm which is contrary to the laws of physics, those affect only the plane of facts, it is even contrary to moral laws, those belong on the plane of values. This happens when a norm is legally valid but it is either not effective and/or it is unjust. This is also when the judge, as the highest interpreter and imposer of the legal norm, must opt either for a literal interpretation of the unjust and ineffective law or must choose an equitable interpretation. Should he take the first option, we are facing the ordinary phenomenon of an ordinary, legal interpretation. If he opts for the second possibility, we are in the presence of a case of equity application. There, we must talk of a legal interpretation which goes beyond the literal interpretation indeed but which takes refuge in the essence of the law, in its spirit or in “the nature of things”.

Here, we shall offer some examples to see how the foregoing observations might be applied. There is, for instance, the case of legal regulations which go against needs demanded in equity by ecologists, seeking to protect the environment. There are those laws which are contrary to such an equitable desire as is the upholding in society of a pacifist set of laws against weapons in general, and against nuclear weapons especially—given their longer reach and greater destructive power. It may be that the existence of certain facto-

ries which contaminate the atmosphere is legal, as is also the existence of weapons, even nuclear weapons, with defensive aims in view.

Man, exercising his freedom and intelligence can transform nature. Sometimes these transformations represent progress. Nevertheless, at times, along the way, man may also breach the laws of nature, those of logic, and those of ethics. He may even break the laws God himself has set. He then definitely goes against the nature of things, breaking with the natural balance extant in creation. He then does not follow the order of things which he attempts to supersede, rather, he transgresses it. Man supplants God and the natural order and thereby provokes the first rebellion of nature itself—great disasters, deforestation, atmospheric balance breakdowns, increased global warming, and the rest. Then, it is Man who must suffer the consequences—the massacres of war, atomic bombs, and the like. Then it is man himself—in the figure of the judge, insofar as he is the institutionalized interpreter of a certain legality which might in fact be unjust—to whom the task of restoring the balance of things falls. To this end, it is sometimes necessary to disobey the legal norm in order to rescue the forgotten law of nature. Equity may thus act as a compensatory mechanism, as an escape valve suitably regulated so that the pressure cooker which is society—more especially society in today's world—might survive without exploding.

Two further instances might help bring together how what is understood as an equitable interpretation is a way of conforming to the nature of things. They are the cases of “robbery due to starvation” and the laws of war. At sometime, we have all thought of limit situations, where it is very difficult to judge whether a certain type of conduct, though “in principle” reprehensible (the unlawful appropriation of property not one's own, or robbery, let's say), might be—according to the circumstances of the case and to equity—legitimate. What happens when one steals to give food to a hungry child, in the purest ROBIN HOOD or JESSE JAMES tradition? In defence of this tradition, might we not hold that it is just to rob the Rich to give to the Poor? In these twilight zones, does equity have something to say or, on the contrary, must we apply the utmost rigour of the law without let?

Something similar happens in the case of belligerent conflicts, unfortunately so much the order of the day in our world. There we are often confronted by the terrible paradox that “only through war is it possible to avoid war”. We might recall, in this sense, the policy headed by GEORGE W. BUSH, the President of the U.S.A., after the September 11th, 2001 attacks which destroyed the Twin Towers, with the loss of thousands of human lives and of the security embodied in the “American Dream”. We might here consider how well the title of one of FRANÇOIS OST's works offers us a résumé in a maxim: “pas de liberté pour les ennemies de la liberté”—we allow no freedom to the enemies of freedom.

In wartime, there are other rules; these make the norms of peaceful co-existence inoperative. “Thou Shalt not Kill” is no longer an imperative. When

one kills in self-defence, in times of war, it is—if not justified, since killing is never a good thing—then at least legally excused. It is considered a lesser evil, before they kill you, and, therefore, is exempt from punishment. Still, in spite of the saying “all is fair in love and war”, not everything is “fair” in war. War has its own law: a “*ius in bello*”, certain practices and uses of war—above all how one should treat prisoners—and what means—like torture or genocide—are excluded. In this context, equity plays a determining role when, for example, judging events like the Nazi extermination camps or those occurring in ex-Yugoslavia. Equity teaches the importance of setting up such institutions as the International Criminal Court. However, even within this framework, the task of administering justice is in the hands of specific people who must see to it that the norm—in this case, International Law—be applied according to the reality of the specific case, that is, in accord with equity.

At times, interpreting legal cases according to equity is, rather than disobeying the norm, an instance of “*sui generis*” interpretation, one which adheres to the nature of things. It is to the judge, once again, that the difficult task of interpreting what should be understood by “the nature of things” falls. Neither must he lapse into an arbitrary and subjective interpretation.

ZAKI holds that, in equity, the decision branches out from the nature of things as from an “intrinsic piece of evidence”. What should be understood by this? Strictly intrinsic evidence implies the impossibility of any evidence to the contrary. For instance, no-one would doubt a pregnant woman had reached the age of puberty or an adolescent is lying if he claims to be the father of someone older than he is. When a verdict presupposes a flagrant denial of justice and shocks us deeply, no intrinsic evidence will be admitted—no matter how much that verdict may agree with the text of the law. The obvious lack of equity is a negation of the possibility of any intrinsic evidence. From this, we might derive the following affirmation: equity is a proof of intrinsic evidence, an “*a posteriori*” finding, taken from “the nature of things”, a solution not open to negation, falsification, or to being dismantled by any evidence to the contrary.

Nevertheless, there are some limits to the above:

- The possibility—let us say rather the likelihood—that different opinions may always exist at the time. No two people ever see the same thing in exactly the same way, in spite of its being one and the same thing. Though the nature of things tends to impose a certain uniformity and objectivity, experience shows that there will always be controversies. There are always different points of view and divergent opinions.
- The possibility of being fooled by false appearances.
- Ideological orientation even regarding the nature of things: though we do not set out from an idea of ideology in any strong sense—as a deliberately false vision of the world, in the Marxist manner—, it is a demonstrable fact that every human being, the judge just like the rest, is shot-through with personal convictions, visions of things, predeter-

- mined by various factors—his childhood or his education, say—which influence that vision and influence his interpretation of what is equitable and what agrees with the nature of things.
- Equity as “the just middle term”: equity à la Solomon—if we cannot know whose child it is, we divide the child in two and give one of the halves to each of the would-be parents—is obviously not the most equitable solution even if it is perhaps the most “just”, at least from a quantitative point of view. Should the legislator or the judge opt for the happy medium, in certain cases, this might be a limit to equity rather than a correct decision. It is necessary to get to the essence, to the heart, to the nucleus, of the matter, attempting to dispel doubt, in order to avoid falling into the very mistake which equity tries not to make. We must attempt to discover the real mother, as it were—the one who prefers the other presumed mother to take the child—before dividing the child in two.¹²

Nevertheless, just because the nature of things and equity may act together in a brotherly fashion does not mean that, like any two brothers, they do not have different features, though these may be very slight. This is what we should expect of any two beings—or any two concepts—which are not the same. As CASTÁN TOBEÑAS says, equity bears a very intimate relation to, but should not be confused with, the nature of things. The nature of things has to be appealed to in the formation of equity’s will, but it is not the only thing. The nature of things is something to be taken into account, still, it is not the only factor, nor does it make up the whole of equity itself. The nature of things alludes to the object upon which justice must fall; however, principle must set the guidelines.¹³

As regards the historical handling of the nature of things in equity’s judgment, one should point out, with CASTÁN, how its role was very important in Roman law, with that marvellous “spontaneity” of the Praetor, as against the Medieval interpreter’s practice, which always applied it to a pre-existing law or, at most, to some abstract concepts which had been taken from the reflexive study of the law by the Commentarist or the Glossator, in his study, but always with his back to reality. Where equity did indeed play a starring role, as regards the nature of things was, for instance, in certain branches of law like commercial law. There it showed great energy in adapting itself to the staggering changes in the instruments and uses of commerce. This was in direct contrast to the rigidity and the statism of other legal sectors such as civil law.¹⁴

12 MAGDI SAMI ZAKI: “Définir l’équité”, *cit.*, note 21.

13 JOSÉ CASTÁN TOBEÑAS: *La idea de equidad...*, *op. cit.*, p. 88.

14 JOSÉ CASTÁN TOBEÑAS: *La formulación judicial del Derecho...*, *op. cit.*, pp. 42-44.

1.3. Other Concepts from the Factual Plane Related to Equity

1.3.1. Equity and Situation—"Kairòs"

Situation ethics does not formulate norms of universal conduct, which are founded upon objective values, objectively known, open to application under all circumstances. It only deals with the specific case, only the concrete situation may serve as the basis of man's "ethical" action, his moral act. In contrast to traditional ethics, situation ethics respects the multiplicity and the richness of experience, without allowing any limits whatever. There one must pay attention to the situation to discern the criterion and foundation of the action. Other principles of action—history, nature, intuition, class solidarity, and a whole host of data which are often taken into consideration, even though they do not, strictly speaking, make up the formal, legal norm—are all left out since they do not form a part of the situation. In truth, the very idea of "situation" is ineluctably aporetic. The great difficulty in defining it philosophically resides in the fact that it is a notion which has not only arisen recently but which has had a long history in cultures far removed from our own.¹⁵

Already in Greece, "*epieikeia*" represented an emergent tension between "*Kairòs*" and the cosmological horizon of the "*nomos*". The former was the opportune circumstance, the singular and individual datum. The latter was the norm, an absolute and universal principle, constant and unalterable. As a tendency toward individual "*kairòs*", "*epieikeia*" could not be metaphysically placed except in the category of the "accidental"—to use the Aristotelian term—, of "casuality", of the "non-substantial", in brief, of the irreal. However, the Greeks did try to avoid the great danger inherent in such a conception, that of falling into "existential arbitrariness" or, as KUHN would say, into the "nothingness" which hides itself behind arbitrariness.¹⁶

1.3.2. Equity and the Spirit of the People—"Volkgeist"

It is in the Historical School of Law that we first encounter the definition of the concept of validity of law, in Continental Jurisprudence, as formulated by "positivist" legal scholars. This is in spite of the fact that, in a strict sense, positivism has never attributed to the positivity of law the same meaning which this same Historical School attributed to it. The validity of law goes from depending upon the justice of its content, as postulated in natural law, to rest—in positivism—upon the fact that such laws are an expression of the "sovereign will" of the nation. The nation is here the only legislative power which, because of its representative origin and nature, is in a condition to express such a will. Still, with the Historical School of Law, we find opposed

15 FRANCESCO D'AGOSTINO: *Dimensioni dell'equità...*, op. cit., pp. 197-200.

16 FRANCESCO D'AGOSTINO: *La tradizione dell'epieikeia nel Medioevo latino...*, op. cit., pp. 34-35.

to the idea of the legal phenomenon as a manifestation of the sovereign will of the nation or State, the concept of it as a spontaneous manifestation of a society's historical evolution. Law is thus considered, not as a mandate imposed by power on society, but as the expression of a sort of self-determination of society itself, as a particular moment or aspect of a society's history.

In contrast to natural law, which places the rationality of law within the idea of natural law, and also in contrast to legal positivism, which looks for the rationality of law in the idea of the general, national will, as representative of the sovereign will—superimposed upon empirical facts which are deemed of no significance in themselves, but which gain in meaning only via this representative will—the Historical School of Law, as the name suggests, transfers the search for legal rationality and validity to history. For this school, the possibility of law is not a fact which must be rationalized via any of the earlier methods of rationalization. It is a fact whose existence is its own *raison d'être*. We thus see how the concept of equity, to a certain degree, comes close to some of the presuppositions of law from which the Historical School of Law starts out.

The relation between the individual and society does not need to be rationalized, according to the Historical School. It is a concrete reality and not a mere representative form. It takes shape positively through time and it has an immanent rationality, and it is empirically verifiable. The legal phenomenon is considered from an historical angle of vision. Instead of speaking of natural or of rational law—or even of positive law as it is now understood—the Historical School deals with a “national” law. It is the law common to members of the same nation or people, formed by way of intuitive feeling in the “popular legal consciousness”, as taken up by PUCHTA and SAVIGNY, by way of the “*Volkgeist*” or spirit of the people.

This popular political consciousness is the foundation for the legal validity of norms. Custom, written law, and the other sources of law should not then be considered as sources of law's production, but only as sources of knowledge of a law whose validity is already in-place. The popular consciousness or spirit are those of the nation whose visible unity is seen in the State, and whose interpreters are the legal scientists.¹⁷ Equity, which is in their hands, plays an important role, for, what is equity but a reflection of the “spirit of the people” in the creation-interpretation-application of the law? It is up to the judge, and the legal profession in general, to articulate this popular consciousness. Equity is one of the main channels for this articulation.

1.3.3. Equity, Automatism, and Reflection

Concepts are a “pre-understanding” of things. The legislator invites the judge to “re-think” concepts—insofar as he is the interpreter and the applier of law.

17 RUGGERO MENEGHELLI: *Il problema dell'effettività nella teoria della validità giuridica*. Padova. CEDAM. 1975, pp. 29-47.

This is especially true of those concepts found in legal texts and which he must apply. This is the real sense of the moderating power of the judge.

Law, like the human body, works, in part, thanks to automatic pre-understandings of ideas—for instance, the concept of a movable and an immovable item which is the underlying principle in such relations as: what is an accessory?; what does usufruct imply?; what is property? and the like. However, there are good, automatic pre-understandings and there are others not so good. The first sort might be the legitimacy of natural children born out of wedlock, the seeing of them as equal to legitimate children, for example. It is with the not-so-good pre-understandings that the judge and equity have to deal. Thus, the one judging may attenuate the punishment or acquit one found guilty of being an accessory, despite the aphorism “*accessorium sequitur principale*”.¹⁸

1.3.4. Equity, Space and Time

We have seen how space and time, the coordinates by which the real is enclosed, play a leading role in equity, a role varying with the type of legal system and with the historical moment. There can be no argument here. Hence, it would not be amiss to dedicate a separate section to the roles space and time play in relation to equity. This is not to treat of the “praxis” of different times and places, to trace out the geography and time-line, but rather to reflect upon the “theoretical” connection, albeit succinctly, between the three poles: equity-space-time.

Space is occupied by hostile forces. Already in the Ancient World, the world had been seen as a flat disk, at its outer confines there existed an abysm, beset by monsters. We would have to wait for COLUMBUS to discover the American Continent before it was proved that the earthly globe was spherical in shape. When Man conquers a region, the first thing he does is to colonize it and set up certain guidelines or rules of conduct to oversee peaceful, societal co-existence. A legal system is established, that is, some law which rules over a specific place at a certain time. The place comes to make up, in traditional parlance, a “sovereign state”. This concept—being a historical one, as it is—is more and more undergoing a crisis, given the tendency to set up super-national organizations. We might mention, for instance, the European Union. The State marks out its territory through the establishment of frontiers—this too is a notion undergoing change, if we think of the European Union, once again. However, it is tragically in force in many other contexts, as a glance at the daily press or the headlines shows, witness the conflicts existing between the Israelis and the Palestinians. Further, the idea of frontiers is not such a closed one as at first sight may appear, as is reflected in the existence of international arbitration, of the International Criminal Court, or of the United Nations. Equity has something to say in this matter. It is

18 MAGDI SAMI ZAKI: “*Définir l’équité*”, *cit.*, note 218.

equity which determines what jurisdiction is applicable in international controversies and international relations. Thus, a contract, according to purely abstract, legal criteria, is subject to the law of the place where the contract is signed—which varies with the legal system and the nationality of the parties concerned. This is the “*lex loci conclusionis*”, the place of its execution, the “*lex loci solutionis*”. However, equity is also applicable when deciding which legal system is most suitable for each particular contract, according to its “centre of gravity”, according to the “nature of things”. Equity thus fixes upon which country’s laws the contract has the strictest, the most intimate, the most real ties to.

What might we say as to time? If everything changes, everything evolves, everything passes, but the law is made precisely to “fix, establish and detain” this “becoming” in time, what then? The law institutionalizes, it creates structures which survive in time beyond the lives of those who create those structures. The contract, going back to the example above, perdures independently of changes in the civil status of the contractors, of their enrichment or impoverishment, and the like. Parliament, as a democratic institution, perdures beyond the deaths of the first parliamentarians. With equity, everything is the other way about. Equity takes into account changes in situations, as a recipe against the unforeseen accidents of life.¹⁹

2. Normative Plane

Leaving behind the level of facts, we enter into the normative world. We shall tackle this world from a dual perspective, for greater clarity of exposition: from the objective lens, from the legal norm—in relation to the sources of law theme; and from the subjective lens—the legal relation, and subjective rights, as the positive pole of this relationship.

2.1. Objective Aspect: Equity and the Sources of Law

Indeed, there does exist a meaning of law as “objective law”. It pays to differentiate, within law, between objective law and subjective right—in spite of some, like KELSEN, who question this. The distinction is clear. Objective law is law understood as a norm of conduct, as “*norma agendi*”. For instance, we use the term law in this sense when we compare Spanish law with French law, also when we refer to civil law or to administrative law, as branches of the legal system. This law, in the objective sense, as a synonym for a group of norms, is usually written with a capital “D” in countries following the Roman tradition. This is because, in these countries, there is only one common term for this and for subjective right—written in Spanish as “*Derecho/derecho*”.

19 MAGDI SAMI ZAKI: “Définir l’équité”, *cit*, note 197.

As opposed to objective law, we find subjective rights. We understand by this the faculty to act under the protection of objective law. This is a “right”, as “*facultas agendi*”. This is what we mean when we say, for instance, “I have a right to life”, or when we speak of the Declaration of Human Rights, or of the rights collected in Title I of the 1978 Spanish Constitution. In these, and many other cases, we are dealing with rights (in Spanish, literally “*derecho subjetivo*”). In systems based on Roman law, to distinguish objective law from rights, the common word for both is written with a capital in the first instance, with a small letter, in the case of rights; thus, for rights, we find: French: *droit*, Italian: *diritto*, Portuguese: *direito*, and Spanish: *derecho*.

Here, we are dealing with law not rights. Still, where does this law spring from? What are its sources? The expression “sources of law”—law as a conjunction of norms—has two main meanings.

Firstly, as a “material” or real source, it is every power or social force with its own right to create norms—with “*potestas normandi*”. This sense of the word “source” answers the question “who establishes the law?”.

In the Spanish legal system, this question has a triple answer. There are three material sources of law: 1.- In legal norms the “State”, as a political organization—as primary, material source—or the Parliament, as organs given normative powers—as secondary, material source. 2.- In custom, the “people”, as a demographic element of the State, as the population of the country. 3.- In general principles of law, the “judges” and the “Courts”, as organs of judicial power, creators of such principles when they apply the law. At first sight, equity has to do with, or especially fits in with, this third type of source—given that it is judicial power which is encharged with applying equity. The link between equity and the general principles of law is also the most studied equity relation. In a later section, we shall refer to the relationship between equity and law—more especially, that between equity and natural law, and that between equity and custom, particularly via the concept of “good customs”.

Secondly, we find what are called the “formal” sources of law, such as the varied forms or ways of establishing norms to create positive law. This sense of the word “source” answers the question: “how, in what manner, is law created?”.

The answer to this question also takes a three part form: 1.- In law, or written law, this form is “reflexive” and “written”—“*ex verbis*” or “*ex literis*”. 2.- In custom, or consensual law, the form is “spontaneous” and “oral”. 3.- With the general principles of law, we find a mixed category. Sometimes, as with natural law principles, it is unexpressed and deduced, at others, as with positive principles, it is usually expressed and inductive.

In matters of sources, scholars must solve two problems: they must enumerate sources, that is, determine which sources are which, and they must put them into some hierarchy or, what comes to the same, establish an order of priority amongst them. Both problems may be set out and solved upon a

dual plane. There is “*de lege ferenda*”, that is, the “ought-to-be”, from which we might look for a better law than the one we have, and which we might work towards. Then, there is “*de lege data*”, those which, as it were, “are” in accord with pre-existing law.

“*De lege ferenda*” sources are the object of study by “legal philosophy” and are not circumscribed by any specific space-time coordinates. They consider what already exists and what might presumably exist. “*De lege data*” sources are the object of study of “legal technique” and are restricted to specific legal systems. There, one focuses on what now exists in such systems.

Below, we first look at “*de lege data*” sources, at what these sources are in current the Spanish legal system. However, given the philosophy of law perspective, we shall not limit ourselves to this, but will cite some other “possible” sources which are also related to equity, like legal “standards” or private autonomy. We begin with legal norms.

2.1.1. Equity and Law

There are, of course, opinions to suit all tastes. Some consider equity to be the true essence of law and, therefore, of rights. Others hold equity is law’s uttermost negation. In this regard, we recall the classic contrast, which is useful in orienting us, between positive law theorists, on the one hand, and natural law theorists, on the other.

While rigorous positive law defenders tend to deny legitimacy to the appeal to equity in order to settle legal disputes, upholders of a natural law and ontological idea of law, by contrast, tend to affirm equity’s legitimacy, always that is when it expresses the moral values they themselves hold.

Distinguishing between the existence of law “in a weak sense” and law “in a strong sense”, positive law advocates side with law in the strong sense and stick to the positive norm. Law in the weak sense is the sphere of equity. By contrast, embracing natural law ideas, equity corresponds to law in the strong sense, and the positive norm, written law, to law in the weak sense.²⁰

These days, the traditional natural-positivist, justice-legality, equity-law antitheses are synthesized in the counter posed terms individualism-communitarianism. Individualism is tied up with in-force legislation, with all its gaps and uncertainties, linked to outworn ideologies. For its part, communitarianism is coupled with desires for renovation, though not exclusively legal renovation. It wishes to overcome legal and dogmatic straight-jacketing and rigidity, on the basis of equity and justice as transforming elements in social relations. Faced with the demands for certainty and the legal security which comes united by law, they propose the search for material justice at all costs. Content must triumph over form.

At the end of the XIXth century, discourse on equity took on the guise of a political struggle, since the law-equity antithesis exactly reproduced, on

20 GIULIO M. CHIODI: *Equità. La regola costitutiva del diritto*, op. cit., pp. 38-41.

the legal level, the same contrast, on the political level, as that obtaining between conservatives and renovators. Equity is often used as an instrument by which an attempt is made to subvert the entire codified system and, with it, the society of which it is an expression, while opposing equity, in the name of positive law, is equivalent to upholding the complete legitimacy of Codification and existing society. We are dealing here with a debate, arising at the end of the XIXth century, between those in favour of Codification and those against, between the written law and “free” law, between the legislative formulation of law and the free formulation of law, between a capitalist society and another founded upon a socialist, communitarian basis, between a positivist and a meta-legal vision.²¹

2.1.1.1. *Equity and Positive Law*

By “law”, in the usual sense of the term, we understand the State legal norm which proceeds from legislative power. It is something having a reflexive and written character. It is generally codified in organized bodies which give it great legal security, the security of knowing with certainty which law is applicable, but which, at the same time—to the extent that this law is fixed once and for all, by means of “*ratio scripta*”—, petrifies in the face of social change, a change full of new cases and new needs. Thence arises the problem with gaps, where there is a lack of applicable law or where the law falls into disuse because some finding converts it into an unjust and inapplicable law.

When this happens, equity is seen as a remedy which the judge might apply when confronted by the imperfect or outmoded laws created by Parliament. Equity appears as an idea which is intrinsically set against positive law though it tries to save positive law by filling in the vacuum, the hole, the gap—this gap would otherwise be unsalvageable, it would open up a breach between existing positive law and social reality.

2.1.1.2. *Equity and Natural Law*

There is another conception of law, one which pre-dates positivism and codification. This is law as natural law. According to this classical vision of law, such a law would be more ample than the idea of law of today. It would include not only positive law but also another set of laws stemming from nature (natural law), from the divine (divine law), from moral law, and more. Today, law is generally seen in its positivist aspect only, as positive, State law, generally passed by the legislative power, in the hands of Parliaments and Legislative Assemblies. Still, it is more than this. The law, apart from positive law, comprises not only legal norms, general principles of law, and customs, but also natural law, a law valid for all times and places.

21 FRANCESCO GAZZONI: *Equità e autonomia privata*, op. cit., pp. 54-65.

2.1.1.2.1. Equity as Natural Law through a Judge's Interpretation and Application

RENÉ SAVATIER, as cited by CASTÁN TOBEÑAS, has come up with an acute comment on equity. He says: "Equity is nothing but natural law as interpreted by the judge".²² A great number of writers similarly place the essence of equity in natural law. We might take SAINT PAUL's definition of equity as that which "*quod semper bonum et aequum est*". The same idea is found in natural law thinkers like ARISTOTLE—when he holds, in the *Nichomachean Ethics*, that "the equitable is just, though not in the law's sense, but in the sense of being a rectification of mere legal justice". AQUINAS comes to a like conclusion when he affirmed that "the equitable is better than what is legally just, it is contained in natural justice". FRANCISCO SUÁREZ said "*est aequitas quod naturalis ratio suadet*". While amongst the XIXth century legal scholars, we find LAURENT, PORTALIS and GIORGI in agreement. In our times, there is ELÍAS DE TEJADA, for whom "equity is that higher justice which is not written into the positive norm; it is to step outside the positive norm to correct it by appealing to that which is above it: to natural law, inherent in natural laws". He elsewhere says: "in brief, equity is natural law itself". JUAN BERCHMANS VALLET DE GOYTISOLO agrees, when he compares natural law to equity's compass or guide, which, like a little red light advises us there is a natural law above positive law, but it needs the complement and the aid of an equity anchored in the reality of things, in order to avoid the judge's subjectivism and his arbitrariness when applying the law. Equity should be the main guiding criterion for Parliament too, at every moment. It should help public opinion or the judge's conscience.

2.1.1.2.2. Is the Universal and Unchangeable Character of Natural Law Compatible with the Individual and Specific Nature of Equity?

With respect to the traditional debate—now, it must be emphasized, largely superseded—between positive and natural law, there are two main options when studying the question. The first is so-called "*legal monism*". This denies any relation between the two types of law by holding that, in fact, only one of the two actually exists. This is the position taken by what are known as radical or extreme theories. There are, basically, two of these. There is extreme natural law, for which everything that exists, and the only thing that exists, is natural law. Then there is extreme positivism which holds the same as regards positive law. The second option in the debate is "*legal dualism*". This recognizes natural law alongside positive law. This thesis is taken up by so-called moderate theories. These, again, can be divided into two: moderate natural law theories and moderate positive law theories, depending on which hierarchy they defend—putting natural law above positive law, or the other way about.

22 JOSÉ CASTÁN TOBEÑAS: *La idea de equidad...*, *op. cit.*, p. 26.

In order to defend the possibility of equity's being sheltered in the recourse to natural law, it is obvious that we must reject extreme monist theories. For them, since unjust law would not be law, equity is not needed if it cannot be applied to something which has no validity. And, if true law is only law stemming from competent bodies according to a definite procedure, regardless of the justice or injustice of the law's content (formal validity), then equity would again not be necessary, a formal test of validity would suffice.

Therefore, in order to understand the role of equity, we shall have to look more at legal dualism, more specifically at moderate natural law. This is the line taken by certain writers like H. L. A. HART, who, although positivists, are moderate ones. They recognize the necessary existence of a minimum of natural law content in positive law. In this modicum of natural law we find such things as the proscription on the use of violence against people, the demand for truth, honesty, and respect for promises. This modicum also contains the forbidding of destroying things or the seizing of them to the prejudice of others. Thus, here we may admit an appeal to equity when these minimum demands are threatened.

HART wonders what would happen to harmful norms, those which violate these minimum natural law contents, as outlined above. According to him, the answer depends on whether we adopt a wide concept of law or a restricted one. A wide concept considers as law all norms which fit with formal validation criteria, so long as they do not go against these minimum natural law requirements. A more restricted idea of law would demand a more extensive moral review of the contents of norms.

HART, as a good positivist, inclines towards the more ample criterion. To take up the restricted view would be to automatically exclude harmful laws from the legal application field. When asserting that harmful law is no law at all, such law is being denied the possibility of interpretation or of application as law. Against this, it seems more correct to admit that it is law, but that it is unjust. Therefore, the best thing to do would be to say, not that anti-natural law is not law, but rather that it is law, but that, insofar as it is immoral, it should be modified by corrective mechanisms, like equity, when being applied.

In conclusion, to the question whether the universal and immutable character of natural law makes it compatible with the individual and specific nature of equity, we might answer in the affirmative. Not only is it compatible, but it is also natural law's exact complement. By way of the play of equity, the judge is permitted to adapt abstract law to the specific case, taking natural law as the mirror in which to see the circumstances of the case in the light of natural justice—as opposed to legal justice. If natural law is the supreme incarnation of justice, we might say equity is the method by which the interpreter measures the case in order to "adjust it to justice" and to ensure that justice is done. Just as Prometheus tried to bring fire to the Earth—an act for which he was punished and enchained to the rock by the gods—so equity

tries to bring natural justice nearer to earthly mortals. Through the judge's task of applying equity, natural law—which already at the “*ratio*” level should have inspired the legislator in his promulgation of the positive law—comes closer to life and renews the law.

2.1.2. Equity and Custom

2.1.2.1. General Considerations

In the Spanish legal system, custom takes second place, after written law, in the normative hierarchy. Custom—insofar as it is a spontaneous and oral kind of source—is of slow formation in the people's consciousness. It comes about through reiterated practice which is external to consciousness, uniform, generalized, and likely to continue into the future. Use is considered then as the external element of social customs. Together with this goes the conviction that such usage is legally binding and not merely a social use. It is not a rule of courtesy or of decorum, but it has an element internal to custom, also known as “*opinio iuris sive neccessitatis*”. It must be closer to social reality than to written law, which is created by an élite, even if this élite is chosen by the people.

Further, there is a prerequisite for custom. That is its “rationality”. It must not be “contrary to the ethical and to public order”—as it says in Article 1 of the Spanish Civil Code's Preliminary Title. It must approximate justice, the moral, in short, equity.

However, equity is set off from custom insofar as equity symbolizes the “individual”, as opposed to the “collective” character of custom. Equity is “justice in the specific case”, custom is “the reiteration of a social practice”.

Another difference is that the modern legislator more often “remits to equity” than he does to custom. This is, perhaps, due to a third distinctive note between equity and custom: custom is “slowly” formed, while equity is always ready to respond to needs and to the “speed” of history.

2.1.2.2. Equity, Public Order, and Good Customs

Equity may have most to do with the concept of public order and good customs. We have already seen that custom must not be “contrary to ethics or to public order”. The ideas of custom and of equity come together in the concept of public order and good customs.

Still, it may appear that “public order and good customs” might refer more to strictly legal matters—especially to contracts: “contracts have the force of law between the contracting parties so long as they do not go contrary to ethics and to public order”—than to legal norms. In the criterion where appeal is made to “public order and good customs” we note a typical “objective” prejudice, while the equity criterion clearly suggests a “subjective” bias. The former stresses attention must be paid to an immanent, “abstract” judgement, while the equity criterion takes on life only when attention is paid to the specific circumstances of each individual case. While public order and

good customs are “fixed” criteria, or at least possess a certain stability, equity is a “moveable” criterion and is always changing. Finally, it should be pointed out that a sentence based on good customs and public order can never be anything but “declarative”; a sentence founded on equity will be a “determinative” sentence.

The matter is not an easy one. Even the distinction between public order and good customs is a problematic question. There exist frontiers and limits to both ideas, of a terminological nature. Rather than truly substantial, at times, the two are considered to make up a tautology, and they vary from legal system to legal system. To such an extent is this the case that what in one system remits to public order may, in another, be remitted to good customs, and viceversa.

Above all, and as the first problem to solve, it must be deciding whether the two criteria—public order and good customs—fall on the side of the “legal system” or on that of “social reality”. We consider that, while the idea of public order can only be deduced from a legality analysis—the legal system—the idea of good customs, though it might be legally announced by some legal system, still rests, indissolubly, within the sphere of social reality, since the idea of good customs is undeniably of a social nature.

Now the question is to fix upon whether the idea of equity has more to do with the legal system, or more to do with social reality. Neither is this an easy task, given that, on the one hand, equity would not exist if it were not legally recognized by the legal system, as a mechanism for the application of norms—in this the concepts of equity and public order approximate one another. Still, on the other hand, it is no less the case that equity does not work upon the formal plane of legal norms, not even when such norms take the form of customs. Equity is rooted in life itself and is aimed at the satisfaction of life’s needs. In this way, the ideas of equity and of good customs approximate one another.

2.1.3. Equity and General Principles of Law

2.1.3.1. *The Conflict between the Concrete and the Abstract*

General principles of law are the basic ideas which underlie our positive law (written laws and customs) and, in the final analysis, where positive law gets its justice from. This is how the Spanish legal system understands things, according to article 1.4 of the Civil Code’s Preliminary Title, after the 31st, May, 1974 Reform. General principles of law are always indirectly applied through laws or customs and, occasionally, directly as the result of some flaw in those laws and customs. In this latter case, they are the legal system’s third and last source. They are called upon to redress legislated law’s gaps or legal vacuums and to consensually achieve the plenitude of the system.

Equity is placed in relation to these general principles. General principles show themselves via equity. We see how equity turns into reality the rest of

the system's informative function. This is described in the Spanish Civil Code's Article 1.4. It does this in such a way that equity is the duty of all judges.

However, equity may, when taken to its ultimate conclusions, collide with essential principles of law. That is, when it acts in its "second function" as an extra-legal solution to conflicts. Such principles are, for instance, those collected in the 1978 Spanish Constitution, like legal security and the forbidding of public power arbitrariness—Article 9.3—, or the equality principle—Article 14. Hence, it seems advisable to restrict equity's "second function" sphere.

Whatever the case, there are differences between equity and general principles of law. On the one hand, unlike the general principles of law, which is an "objective" idea, equity is the feeling for natural justice and so has a strong "subjective", intuitive, emotional and irrational component. General principles exist independently of any judge's personal ideas or convictions, though he is given a wide scope when applying them. Equity is not like this.²³

On the other hand, the difference lies in the fact that general principles are what is most "abstract" about State legal systems, while equity is the most "concrete". By remitting to equity, the law tries precisely to avoid the double logical procedure, involved in the specificity of the variety of cases being referred to the abstract—submission decision—and of the abstract of the norm being referred to the concrete fact species—consequence decision. The law wishes to delegate to the judge his power of applying his legal evaluation to the specific case, exactly the opposite of what it seeks when appealing to general principles.²⁴

A third difference between equity and general principles is found in the undeniable fact that, while the principles of law are a "source of law"—below written law and custom, according to the Preliminary Title of the Spanish Civil Code—, equity is not a source of law, but rather a "mechanism, a criterion, or a way of applying the sources of law" to legal rules. The principles take effect at the moment when law is "created", equity operates when the law is "applied". The former are constituted by a series of integrated rules within the legal systems normative items themselves. Equity constitutes a criterion or a legal instrument which may correct the norms when they are applied—among these applied norms we find those where the general principles of law are collected.²⁵

2.1.3.2. *Different Types of General Principles of Law*

2.1.3.2.1. *Naturalist Principles*

The idea of general principles of law so far given is an ample one. In itself, it includes "positive", and "extra-positive" -"extra-State" or naturalist- prin-

23 JOSÉ CASTÁN TOBEÑAS: *La idea...*, *op. cit.*, p. 23.

24 JOSÉ CASTÁN TOBEÑAS: *La idea...*, *op. cit.*, pp. 84-86.

25 NARCISO ANDRADA HERRERO: *La equidad como elemento...*, *op. cit.*, pp. 163-164 and 189-190. J. L. DE LOS MOZOS: "La equidad", *cit.*, p. 160. RENÉ DAVID: "La doctrine...", *cit.*, p. 134. PAUL FORIERS: "Reflexions...", *cit.*, p. 90.

ciples. The philosophical, or naturalist, and the positivist are the two traditional ways of looking at the principles of law. The positivist idea is connected with the Historical School of Law. For naturalists, law is what is just, for positivists, it is what is ordered. For the former, general principles of law come from a higher source that appears in the guise of Reason, Nature, or Divinity. They are arrived at by a deductive process. Positivists, in contradistinction, consider that the principles come from, what the Historical School called, the “Spirit of the People” (the “*Volkgeist*”). They are immanent to the legal system. They are obtained via a process of abstracting and comparing, which stems from the norms themselves. This process of getting at the principles is known in law as “*analogia iuris*”. For positivists, the way in which the naturalists think of the general principles is not valid law.

The naturalist idea is static. This is because the naturalist pyramidal basis is immutable, founded as it is on unchanging Nature, Reason or Divinity. As opposed to this, the positivist concept of the principles is dynamic, just as the “Spirit of the People”, from which the principles are taken, is dynamic. It varies with different countries and distinct historical epochs. Naturalism works via deduction—taken from Nature, Reason, or Divinity and arriving at the general principles. Positivism proceeds via induction. It begins with the “Spirit of the People” and arrives at the principles from there.

Should we take the naturalist course, CASTÁN TOBEÑAS holds, “equity and general principles of law would exactly coincide. Equity is natural law itself being applied to specific cases. Should one, contrary to this move, opt for the positivist way, equity might act as a legal hypothesis or, which comes to the same, as a suggested means of getting at the general principles of law which may make up the basis of law”.²⁶ In light of what has been said, equity might seem to have more to do with natural law principles, insofar as the allusion to justice goes. We should never forget that equity is an embodiment or an application of natural justice to the specific case. Still, as concerns the method (not the content) used by each of the two general principles of law modalities, equity would appear to be better adapted to the comparative and inductive method, taken from specific data, than to deduction from some general and abstract principle. Whatever the case, we would say that in the judge’s mind both processes—the inductive and deductive—do not show up as separate, stagnant, isolated compartments. They most likely mix together and interact. The judge, when applying equity, is guided, ultimately, by the idea of justice—and natural principles—while he never loses sight of the factual reality which is at the basis of his task.

2.1.3.2.2. Positivist Principles

The positivist idea of the general principles of law is what we find in the Italian legal interpretation of its 1865 Civil Code, and its 1942 Civil Code. Then,

²⁶ JOSÉ CASTÁN TOBEÑAS: *La formulación...*, *op. cit.*, pp. 110-112 and 128.

“general principles of the State legal system” were spoken of. The naturalist position, for its part, may be found in the Austrian Civil Code of 1811. In the Spanish Code, as DE CASTRO and ALBALADEJO have it, an ample concept is formulated. It takes in both natural principles and positivist ones.

– *Express Positivist Principles*

In turn, positivist general principles might be express or non-express. The former are explicit, expressly mentioned in a positive law, perhaps, the principle of good faith, taken up by the Spanish system when it says: “good faith is presumed and the burden of proof lies on whoever alleges bad faith”. These principles have less to do with equity, insofar as they are already part of the law, and play a similar role to any positive law.

– *Implicit Positivist Principles. “Analogia Iuris” as a Process and the General Principles of Law as the Result*

Non-express positive principles are those found in positive law but which are only latent or implicit. They require “*analogia iuris*” to make them patent or obvious when applied. This is nothing but a recourse to non-express, positive, general principles themselves.

In “*analogia iuris*”, rather than “*ratio legis*”, authentic general principles are created, but, even though this is the case, the two should not be confused. The difference between analogy, on its “*analogia iuris*” side, and general principles is a dual one. On the one hand, analogy is the recourse to general principles, the process of their creation and application, the legal life or elevator, while the principles are the material moved in this process. On the other hand, “*analogia iuris*” does not refer to all the general principles but only to positive and non-express ones. Thus, natural and express positivist principles are excluded here.²⁷

It is through “*analogia iuris*”, as an appeal to non-express, positivist, legal principles that the idea of equity may come in, always remembering the above-mentioned differences between analogical and equitable arguments. The “*iter*” to follow in these cases is as follows: First, one would go to analogy on its “*analogia iuris*” side, as a process through which a positivist and non-express, legal principle of law is made out, via a process going from the concrete to the most abstract. Next would come the general principle, thus created. This would make up an entity with a certain grade of abstraction. Finally, equity might come into play as an application mechanism of that general principle to the specific case. Equity would, in this way, validate an opposite procedure (from the abstract to the specific) to that of “*analogia iuris*”, which went from the concrete to the abstract.

27 MARÍA JOSÉ FALCÓN Y TELLA: “Los principios generales del Derecho y la argumentación jurídica”, in Various Authors: *Los principios generales del Derecho*. Madrid. Actas. 1993, pp. 125-145.

2.1.4. Equity and “Standards”, “Directives”, “Erfahrungssätze”, Maxims from Experience, Valve or Flexible Concepts, as Correction and Diligence. The Theory of Ronald Dworkin

There is an interesting feature of law, formed by indeterminate and flexible rules which the legislator or the system leaves up to the judge to concretize. The judge must fix its content. He must take that content from the realities of practical life, and he must take ethical criteria into account when he fixes what the content is. The result is the so-called “maxims of experience”—“*Erfahrungssätze*”, for the Germans, “*valve concepts*”, for some Italian scholars, legal “*standards*” or prototypes of behaviour, for the English legal scholar, and “*directives*”, for the French. Amongst many others, some studied above, in these standards belong ideas of: public order, good customs, rights abuse, good faith, correction, proper fatherly care, and the rest. These form part of the “equitable” sphere of law, not law in the strict sense. With regard to them, equity plays the part of completing the indeterminate norm. It gives to such norms a content adapted to the situation, in each particular case.²⁸

In Anglo-Saxon law, the distinction between strict and equitable law is shown clearly where equity takes on an important role vis-à-vis legal norms, in the legal “*standards*”. RONALD DWORKIN—professor of philosophy of law, first at Balliol, Oxford, then dividing his time between *University College*, London and *New York University*—in general criticizes the positivist idea of the legal system, especially his master’s, HART’s idea. HART conceived law as the conjunction of primary and secondary rules and also held a theory of the rule of recognition. DWORKIN strongly criticizes all that, more especially the theory’s ineptitude when it comes to identifying everything which makes up the law. He considers that the system consists of much else besides rules. There are also principles and policy directives—what he calls “*policies*”, and which cannot be caught via any rule of recognition.

DWORKIN maintains that—while norms are applicable in an “all or nothing” way—these other principles and directives have their own importance and weight. The “all or nothing” means that, if two norms enter into conflict, one of them will not be applicable and so invalidates itself. A conflict of principles, contrariwise, may be resolved by “compression” or “expansion”, depending on the weight of the principles involved, without the principles therefore becoming, in any case stemming from them, open to elimination from the legal system. The principles enjoy a flexibility in application which legal norms lack. The latter are governed by a disjunctive “either... or”, the former enjoy rather the coordinating conjunction “and”.²⁹ At first sight, then, it would seem that these

28 JOSÉ CASTÁN TOBEÑAS: *La formulación judicial del Derecho...*, op. cit., p. 107. Id, *La idea de equidad...*, op. cit., pp. 86-87.

29 JOSÉ ANTONIO RAMOS PASCUA: *La regla de reconocimiento en la teoría jurídica de H. L. A. Hart. Un intento de configurar el Derecho como sistema normativo autónomo*. Madrid. Tecnos. 1989, p. 203.

"policies" of which the philosopher speaks, insofar as they enjoy greater flexibility, are better adapted to the specific circumstances of reality.

Though DWORKIN does not expressly speak of equity, often, when he talks about the distinction between *"rules"* and *"principles"*, he does so regarding the idea of equitable decisions taking as decisions having more to do with the principles than with the rules. Despite DWORKIN's never openly referring to any equitable decision making procedure, then, or to the existence of a Court which should decide a case in light of equity considerations, it still seems quite clear that these types of decisions take into account legal material which is not made up legal rules. However, this is not to fall into the, even more, problematic enthusiasm of the realists, who make the trial depend upon the judge's intuition, leaving legal norms completely out of the picture.

In DWORKIN's opinion, there is nothing of the extra-legal in a judge or Court's ruling in the light of equity. In those cases, the judge rules in accord with justice considerations having to do with legally relevant, legal principles. As a result, there is nothing irrational nor intuitive about a Court's deciding a case by appeal to considerations of equity, if we take into account that, in these cases, judges are deciding with regard to legal principles. The only margin left open to discretion—where legal discretion comes into play—in these cases stems from the fact that various principles may come together in the resolving of any one single case. This is because such principles are not an "all or nothing" affair, as they would be were rules involved. Principles are applied gradually, in accordance with their weight and importance. It is when determining this weight and importance that a certain margin of freedom is allotted the judge. This is likewise what often happens in cases where equity is employed.³⁰

2.1.5. Equity and "Private Autonomy"

"Private Autonomy", as the possibility of holding legal business, implies—as it does with custom, as we have seen—a certain conformity to moral norms and to justice, in a word, to equity. The Spanish Civil Code establishes a private autonomy principle: *"the contracting parties may establish pacts, clauses and conditions which they consider suitable so long as these do not go contrary to law, to ethics or to public morality"* (Art. 1255).

In fact, the problem with private autonomy is that it ends up being confused with the more general problem that exists between the State and its citizens, the freedom-authority dialectic. This occurs even though one is on the private law and the other on the public law plane. This is a social-political, even more than it is a legal, matter.³¹

30 RICHARD WASSERSTROM: "Equity in the Philosophy of Law", in A. MORDECHAI RABELLO (ed.): *Aequitas and Equity...*, *op. cit.*, pp. 175-178.

31 Cf. FRANCESCO GAZZONI: *Equità e autonomia privata*, *op. cit.*, pp. 98-126 and 186-215.

There therefore exists here, on the one side, an “autonomous” activity of private individuals, and, on the other, a “heteronymous” activity of the legal system. This shows itself through specific, “*a priori*”, normative commands—via the sources of law, especially statute law—, as well as via the “*a posteriori*” pronouncements of the body charged with judging. That is, the judge’s pronouncements. Equity should preside over both spheres. Private autonomy should be overseen by equity to see that it does not overstep certain limits. In the “heteronymous” sphere, equity should have inspired the creator of law—that is, legislative equity—as also it should inspire the person chosen to apply that law—judicial equity. Though equity, as normally understood, belongs to the “heteronymous” side of law, we might still speak of a desirable tendency towards equity on the part of the individuals who draw up legal acts and business law, even if in a sense of equity not usually used. Generally, when talking of equity, we are referring to judicial equity and not to business equity.

Within business reality, we must remember that the term “business law”—and within that of the contract, as the main kind of legal business—in itself contains two different, and even opposed, conceptual moments. On the one hand, we refer to acts carried out by private citizens and, on the other, we allude to the law which governs such activity. The former belong to the autonomous sphere, the latter to the heteronymous. Seen from the former’s point of view, the act might be confused with a simple *de facto* situation, a simple act, not yet a legal act, one which produces no legal effects. It is the latter facet, the normative one, the legal regulation, which ends up by making the phenomenon a legal matter. It is this fact which allows for heteronymous State intervention, and for heteronymous legal norm application to any conflicts which might arise as a consequence of legal acts and business. That is, notwithstanding this is a case where private autonomy intervention is so characteristic, the State may still have some say.

By way of conclusion, we might affirm that equity intervenes in the private autonomy sphere: firstly, as a limit on the activity of the parties when carrying out business—the autonomous moment. Secondly, when the legislator regulates that act drawn up by the parties or when the judge applies the existing norm to smooth out possible conflicts between those individuals—a heteronymous moment. In each of these cases, the subject or actor using equity varies. These are: private individuals, the legislator or the judge, respectively.

2.2. Subjective Aspect

It might be said that the concept of equity is considered a judge’s “right” to go against positive law: a subjective right to go against objective law. Equity is thus framed at the subjective pole or extreme. This, however, is only half true. No equity can exist in a vacuum. It cannot exist before and at the margin of the legal norm. It is the law which empowers the judge, as the bearer of a function, to apply equity in the first place. He is a judge “at” or “according

to” law. It is the law which sets out the limits of equity, over against total legal arbitrariness. He is a judge “in accordance with” the law, not a judge “of” the law. Still it is true that the judge has a “right” or a power to employ equity when he judges. However, does this power exist before the law has allowed for the play of equity? From the natural law viewpoint, we might answer “yes”. From that of the positivist, the answer would be in the negative.

The most widespread tradition in the different European systems, from the high Middle Ages to the Declarations of Rights, such as the French or the English *Bill of Rights*, was to place subjective right as a nucleus of resistance to power. Contradiction broke out from the moment when the State came to impose its law—positive law—often in opposition to natural rights.³² In such cases, positive and natural laws clashed, what the legislator laid down and what the judge decided could come into conflict. It is then when one must plump for one of the two poles at stake: legality or legitimacy, law or equity. This subject crops up with respect to the abuse of rights, that is, where the law itself seems to shelter practices which go against the “ought-to-be”, such as human rights, as positive law’s historical conquest of a margin of freedom when faced with possible abuses going against the human being’s very essence. Below, we look at all this.

2.2.1. Equity and “Subjective Rights”, as the Content of the Legal Relationship

The legal relationship might be defined as “a legal situation where two or more persons are found with respect to specific goods or vital interests and which appears stable and organically regulated—institutionalized—as a channel for the carrying-out of a social function or an economic one, deserving of legal tutelage”. Just as occurs in the private autonomy sphere, and as the highest expression of this, the legal relationship must be under the tutelage of, or controlled by, law. Outside of the norm—if there is no written law—there is no legal relationship. It is law which lends legal value and legal effects to the social relationship. One might distinguish between the norm—as an efficient cause—distant from the legal relationship, and the facts and legal acts which have given rise to the norm—the immediate cause. This it is which puts the subjects of the legal relationship in contact, it creates a tie or connection between them which falls between power and justice. We might add law sets out to regulate the relationship of a specific “normative principle”, a “*finis institutionis*” or a “social function” of the institution, depending on the sort of legal relationship we are dealing with.

The legal relationship is connected to equity, at least in the following ways:

32 ANDRÉ TUNC: “L’équité en droit anglais et en droit américain”, in Various Authors: *Justice et équité, op. cit.*, p. 123. Id, “Aux frontières du droit et du non-droit: l’équité”, in *Jalons; dits et écrits d’André Tunc*. Société de Législation Comparée. 1991. Also in *L’Hypothèse du non-Droit*. Liège. 1977, pp. 281-298.

- It is rooted in concrete life, in the social relations from which it stems: it's "*origin*" lies in the facts.
- It is legally governed, it converts a "social" relation into a "legal" one, its "*essence*" is found contemplated in norms. These the judge may apply to the specific reality, in some case, via equity.
- It aims at the carrying-out of a "social function" or a "*fnis institutionis*". It is directed towards society. This social function must be in accord with equity in order for it to deserve legal consideration.

It has then its origin in life, its essence in law, and its goal is social, to ensure that the legal relationship be equitable.

Within the legal relationship, a legal power situation obtains. This is the positive pole of the relationship. A parallel situation of duty is also found in the relationship. This is the negative pole. In brief, according to CARNELUTTI, power might consist in: 1.- The power to do—*facere*: This is the facultative power. 2.- The power to command—*iubere*—in the abstract. This is jurisdiction. 3.- The power to command in a concrete instance. This is subjective right.

Together with these basic power situations, in the legal relationship, there is a whole series of secondary legal positions. There are legitimate interests, diffuse interests, and interim legal situations. These offer a certain resemblance to equity since they presuppose the existence of a situation of fact, of a specific life reality, which is perhaps less protected by the abstract norm than it ought to be, but which reflect justice in the specific case, that is, in equity; the fact deserves legal consideration.

The "*legitimate interest*" idea may be illustrated by an example. We might take the case of the competition for a civil law chair. Applicants have no subjective right to the position or, what is the same, to win the place. They are, however, holders of a legitimate interest in the competition's unfolding according to the observance of the formal rules governing such procedures: publishing the position, stating the application date, announcing specific requirements for the position, and so on. They also have a legitimate interest in the selection committee's impartiality.

These considerations are more proper to public law, still, legitimate interests may similarly be found in the private law arena. For instance, this is the case of any member with respect to any club. The member has no subjective right obliging the club's committee's to take decisions and make agreements according to his own personal interests. However, he does have a legitimate interest in seeing the rules which govern the agreements are followed—the calling of meetings, the "*quorum*", adequate information given members, and the like.

A concept somewhat different from the foregoing is that of "*diffuse interest*". Its peculiarity resides in the fact that the interest protected is not enjoyed by an individual but by a collective, and is common to all members of that collective. Further, and this is its second characteristic, it cannot rely on any specific body to defend those interests. In this it is unlike collective interests such as law-

yers' societies which have their specific organs of defence. Examples of diffuse interest are found in certain matters like the environment, health, consumer products, and so on. These interests are considered in the 1978 Spanish Constitution, under the section on "principles governing social and economic policy". These control health protection—Article 43-, recognize the right to enjoy the environment—Article 45-, or the defence of consumers and customers—Article 51. To a certain degree, what makes something "diffusely" protected is a question of equity, the judge puts it under legal protection.

Finally, we come to "*interim legal situations*", also known by some scholars as "*right expectations*". These are cases where there exists a subjective rights holder who is indeterminate and, while s/he remains so, the presence of such a holder must be argued for before some legal power. It may not be left in a vacuum. This holder is then an "interim" holder of the right, named by the Court. He is given the exercise and the defence of the subjective right, though this is limited to what is necessary for the maintenance of the power with the utmost integrity possible, and in favour of those who will one day be the definitive title holders. Examples of interim situations are: the rights of "*nasciturus*", or of the conceived but not yet born—Article 29 of the Spanish Civil Code; the rights of those who are absent or who have disappeared, until they are present or found. Again it is considerations of equity which allow the judge to oversee what is, from the formal-legal viewpoint, only an "expectation" of protection. Specific case justice, humanity, benignity, in short, equity, however, here advise protection.

It might appear that subjective rights and duties or obligations are non-empirical, special entities. That is, they cannot be verified as exterior realities can be, they cannot be tested like physical reality can be. In the main, contemporary legal theory confesses subjective right may not be fully identified with the holder's powers in fact. They also stress there is no identity between an obligation and the behaviour of the subject thus obliged.

Hence, some legal currents, like Legal Realism, have come to consider norms, subjective rights, legal obligations, as entities residing in some ideal or transcendental reality, independently of the realm of fact. Neo-empiricists schools—like Scandinavian Legal Realism with ROSS, OLIVECRONA or Analytic Philosophy—see idealist notions as permanent obstacles to those hoping to clear up legal discourse. However, even they admit that such concepts have a use in that they instrumentalize the social control task of the law. Such currents consider law would have less force if these indeterminate legal concepts were not included within the discourse of the legal professionals.

The concepts of subjective right or legal duty are said to lack any empirical reference since they cannot be defined in terms of experience. Modern legal theory gives these ideas an ultimatum, in a metaphor taken from Economics: "Any word which does not have funds in the coins of facts is thereby declared bankrupt". Nevertheless, in truth, these magic terms fulfill a truly remarkable, practical function. The psychological influence they have over those they are

aimed at is able to create in them certain stable and specific forms of behaviour. These forms are necessary for peaceful co-existence and the smooth running of social relationships. That is why equity can play an important role through building a bridge between them and reality.

2.2.2. Equity and “Human Rights”

Law makes up an order distinct from that of ethics. Ethics is typical of the human person and is found closely linked to what are known as “moral or spiritual rights”.

Within law we find objective law and subjective rights. Objective law leaves “subjective rights” to one side, rights which are typical of the subject having a title or a right at the active pole of the legal relationship.

Within objective law we find positive and natural law. Positive law puts natural law to one side. Natural law is specific to mankind or to the human species. It is to this that “natural rights” belong.

Within the idea of positive law, we encounter the idea of the legal system, though the two are not the same. The legal system leaves foreign law systems and comparative law out of account. It links the category of citizen and that of the historically so-called “rights of man and of citizen” to such ideas.

Neither is the legal system the same as a legal norm. To the legal norm is added the idea of the individual and “individual rights,” as the norm makes up a part of the whole which is the legal system.

Within legal norms, we find written law, custom, and general principles of law. To written law, as a species of the genus legal norm, belong those rights which have been recognized by it, both on the internal level—in the Constitution, at the highest level of expression—and on the international level, via international treaties. This is the most genuine and the most fitting for “human rights,” the bearers of which are mankind. What relation exists between law and human rights? It is clear: internal law par excellence, or higher hierarchical level law, the Constitution—on the internal plane—, and International Treaties—on the international plane—, by way of recognition and a guarantee of a series of rights of man and of human collectives, convert these into “human rights”. Human Rights then come to be recognized by certain legal systems, constitutionally proclaimed as such by internal constitutions and by international organizations.

In this respect, the question arises whether non-human subjects may exist, such as animals, as also trans- or super-humans, that is, collectives, like society, the nation, the people or Mankind, and pre-human subjects, like the embryo.

Human rights’ traditional or classical subject is man. Priority has been given, depending on the epoch, to citizens—in the French Declaration of the Rights of Man and of Citizens, rights recognized as opposed to the State—or to the individual—as with individualism where rights are recognized as against society.

Later, however, the subjects of human rights were extended to include collectives, like society—understood as civil society—, peoples or populations—that is, the demographic element within a State, in relation to the people's right to self-determination—, nations—as a cultural entity, made up of a language, a race, a common folklore, all which turns it into a single cultural unit. This is especially relevant to our times, with the re-emergence of separatist nationalisms, which have given rise to various conflicts. "Subjects" have also been extended to Humanity at large—an idea which encompasses the "global planet", with respect to globalization. Finally, we might mention as a "collective subject", the rights of the elderly.

This subject of human rights, let us call it an active one, demands justice, but this is no abstract and universal justice which International Human Rights Agreements and Declarations refer to. They refer to justice in a specific case, to equity. Never is the idea of rights so closely connected to concrete reality as it is in the case of human rights. These humans are specific humans, suffering specific breaches of rights, often very severe ones, often the most essential rights they have: the right to life, to physical integrity, and the like. However, before whom are their pleas made? Who is the addressee, or subject—let us say, the passive subject—who must guarantee these human rights are effectively observed?

At this other pole, the other side of the coin, the subject who guarantees rights to humans and human collectives has also varied greatly. Traditionally, when the State was the main subject of international law, under the title of sovereignty, the "*summa potestas*" linked with it, no international body could touch it. It was supreme in the internal sphere, where its decisions could not be gainsaid, and in the external, where no other State could mess with the business of any sovereign state—the doctrine of non-interference.

Today, the State has new functions, regarding human rights, in relation to equity. It no longer has only a negative function or an abstentionist function. It now no longer merely guarantees freedom—this was typical of the XIXth century rule of law state—. It also has a positive function, a guiding or interventionist function. As set out in Article 9.2 of the Spanish Constitution, there is a duty to "remove" obstacles which stand in the way of full human rights, and, more, to "promote" the most suitable conditions in order to attain the fullness of rights. This is the Welfare State.

There are other new subjects in the service of human rights. Amongst them, certain international organizations stand out, with the United Nations having the major role to play. These organizations undertake an important task as regards third or even fourth generations' rights, together with promoting co-operation and solidarity: rights to a clean environment, rights to peace are their concern. In a world so globalized as ours is, such rights can only be realized on a global scale, on the world stage, by such organizations. The tasks exceed the competence of any single State. International competences are found in such creations as the International Criminal Court, which may judge crimes

against Humanity which have not been taken up by the States concerned. This connects the Court to the spirit of earlier "*ad hoc*" Courts, and withal these are institutions of our world in the service of equity. They attempt to adjust abstract, cold norms, of International Agreements and Declarations about human rights, to the necessities of specific day-to-day concerns.

There is one category which should be singled out here, as the last rung, as it were, of this outline. These are what are known as "basic rights and public liberties"—according to the Spanish Constitution, First Title, Second Chapter, First Section. These are the most essential of human rights, the classically formulated political and civil rights—as against economic, social and cultural rights, which come in later sections. As they are precisely the most essential of human rights, they enjoy a special system of protection—rigid reform, organic law protection.

In this sense, we can see how the idea of human rights is an "open" concept, in continuous construction and transformation. There is thus a first generation of rights, the rights to freedom—those civil rights (of a private nature, amongst which the most salient are the right to life, the *sine qua non*, the right to privacy or to domestic inviolability), and political (having a public character, like the right to active and passive voting rights). The subject in these cases is basically the individual. Then there is a second generation of rights, rights essentially based upon equality—economic, social and cultural rights, like the right to strike or to form unions. The subject here is rather a collective one. There exists a third generation of rights. These are rights of solidarity and brotherhood—rights like the right to peace or to the enjoyment of the common heritage of Mankind. The subject in this case is the entire international community.

According to some writers, it is possible to even talk of a fourth generation of rights. These would be responses to the multiple "challenges" of technological society. Within this category would be encompassed rights related to biotechnology and the computer society—problems such as arise with human genes and the ability to create clones, sex changes, the right to die with dignity, or Internet use regulation. Some deny the status of human rights to these latter type of rights, some even to third generation rights, because of their lack of effectiveness, the difficulty of codifying them, the difficulty of satisfying them and of legally overseeing them, as also for the diffuse nature of the holder of such rights, which might allow us to better refer to them as synthetic rights or "collectivized, individual rights".

In conclusion, and though terminological matters are usually placed at the beginning rather than at the end, there is little left to do but point out again how often arguments over words cover up conceptual questions. It thus seems a good idea to carry out a parallel analysis of a series of concepts which are often taken as synonyms but which, in fact, have subtle differences. Hence, we shall be content if we can manage to some degree to clarify certain things which are not the same:

1. On the objective plane: law—as opposed to ethics and to other normative kinds of things governing human conduct; objective law—as against subjective rights; positive law—distinct from natural law; the legal system—in contradistinction to foreign law and comparative law; the legal norm—as a part, distinct from that whole which is the legal system; and the written law—as a species of the genus norm.
2. On the subjective plane: the person—distinct from the Creator; the active titular subject in the legal relationship—versus the passive subject; the human being—as opposed to any other natural species; the citizen—in contrast to the State; the individual—over against society; and man and human collectivities like society, the people, the nation or Mankind as a whole—as distinct from the State or from International Organizations.
3. On the mixed plane: spiritual and moral rights—as opposed to existential and biological rights; subjective rights—over against legal obligations; natural, innate, originary rights—contrasted with acquired or derivative rights; the rights of man and of citizen—fronting the State's power to act; individual rights—as against social rights—; and human rights.

Plane 1—that of the object—represents legality, form, abstraction, the cold and general norm. Plane 2—that of the subject—embodies life, content, the specific, reality, the living and the changing. Plane 3—and, within it, human rights—shows how it is possible to flexibilize and reconcile the other two earlier planes (1 and 2), join legality with life, form with content, abstraction and specificity, generality and variety, cold and hot, and how to convert into an act the justice contained “potentially” in the norm, transform rigour into humanity, arrive at the just, as adequated justice, as justice for the specific case. To achieve this, internal subjects -the State-, and international ones—The International Criminal Court, the United Nations—must all use equity in their proceedings.

Finally, we would like to point out how equity's workings are not incompatible with legislative equity, even where human rights are concerned. Thus, it can be said that the Universal Declaration of Human Rights, the Pacts and Agreements which oversee these matters, also apply equity in the elaboration and formulation of human rights. Another question is whether human rights are “discovered” (and so pre-existing) or whether they are invented (when positivized by the legislator). If the former is the case, as natural rights, it would mean they are a part of the nature of things, the naturally just's essence, and equity would take off from the abstract justice which creates them to the law which recognizes them. Then, the law could not do without them. If they are invented, that is, positivist rights, it would be the legal norm which creates them and, since it created them, it could also suppress them at some later time. In this case, equity would have something to say, it would re-establish the

natural order which had been breached. Thus, even should everybody agree to re-establish slavery, it would still be equitable to consider all men free and equal. Though a dictator should wish to engage in genocide by killing off those belonging to a certain ethnic group or type, equity would insist that human life is an inalienable value. Equity would act as a bridge between abstract justice and the positive law, to guarantee that the positive law could never go against natural law.

Following natural law advocates, natural rights and human rights, with all their differences, nevertheless have the fact in common that they are rights which belong to people as persons, irrespective of their being members of any specific body politic or their legal recognition. Law does nothing but recognize these rights, but they are in themselves pre-existing rights. In sum, legislators discover them, they do not invent them. As society does not create them, neither can it deprive citizens of them. They are inalienable rights. Society's part is not to enter into conflict with these rights, but to protect them. Since they bind the citizen as much as they do the government, should the latter violate them, it is not fulfilling its obligations and the people have the right to disobey any of such governments unjust commands and, even, to overthrow those governments. It does not matter whether the government has been elected by a majority, and democratic rules oblige the minority to submit to the majority's dictates. Natural rights or human rights to a certain degree break up the political explanation as to how things work in a democracy. The majority, popular sovereignty, or democracy may not decide as to who should be allowed human rights.

To such a point are we here confronted with natural rights, "*erga omnes*", that their defence might justify humanitarian intervention in those countries where they are not observed. This has already been done within modern international political experience. This intervention must be carried out by the international community, even if it does go against the State sovereignty principle. It must abide by certain procedures and guarantees, and be contained within certain limits.

2.2.3. Equity and the "Abuse of Rights" Theory, as the Limit in the Exercise of Subjective Rights

We have seen how subjective rights cannot be exercised in an unlimited way. Their use must be limited by a series of boundaries. Thus, without attempting to be exhaustive, we might point out as a first limit on rights that which is derived from the "good faith" stipulation. Subjective rights must be always exercised in good faith. Good faith is assumed. Beyond the limits of good faith, the act of exercising a right converts itself into something illegal. Connected to the idea of good faith, we find the idea of equity. Good faith is one manifestation of equity. However, we have already dwelt on this, and we would refer the reader back to the appropriate sections.

Other limits on the exercise of a right are those stemming from each right's own specific nature. So, for instance, a guaranteeing right would only be exercised when the guaranteed right is ineffective. This is rooted in the question of the nature of things and, amongst them, the nature of rights, as we have also already had occasion to observe.

A third limit is marked out by the possible abuse of a right. A right's exercise is limited where this becomes an abusive exercise of the right. We now turn to look at this specific case below.

From ancient times, there has existed a classical principle in law, following which "no man using his right does any harm to others" (*"neminem laedit qui suo iure utitur"*). According to this principle, the fact of acting in the exercise of a right excludes the illegal nature of the act and, consequently, the responsibility for any harm which may later come about.

However, this principle seems over general, even excessive. For example, in cases of the harmful exercise of a right, contrary to equity, when the harm is not accidental, but where there is intention or an aim to cause harm. GAYO, in Rome, already underlined the fact that we must not use our right to the harm of another—*"male enim nostro iure uti non debemus"*. He referred especially to the ban on mistreating slaves, in spite of the fact that, in Rome, slaves were considered things not people.

Still, it is in the Middle Ages particularly when a solution was offered to this problem, via the theory of forbidding "*acts of emulation*". By these are to be understood acts that, though carried out while exercising a right—normally a property right—are carried out not for one's own benefit but with an evil intention—"*animus nocendi*". Classical examples of this are: storing manure on your property with the only purpose of causing a bad stench in the neighbour's garden; or someone who builds a wall at the end of his property with the sole aim of depriving the neighbour of light or of blocking his view. In these cases, it may be clearly seen how there is a clash between the legal and the just—the legal allows us to exercise the right, the just would demand equity. Aiming to cause a nuisance to someone, just for the sake of it, is not equitable.

Acts of emulation theory presents grave limitations. On the one hand, the difficulty, even the impossibility, of proving "*animus nocendi*", since this belongs to the intentional, internal sphere of motives for acting, while the law limits itself to external behaviour, and cannot penetrate people's consciences. On the other hand, the desire to cause harm seldom shows up in isolation, in a pure state. It is usually accompanied by the seeking of some personal advantage, which makes it more difficult to demonstrate, though none the less reprehensible for that.

Owing in great part to these deficiencies in the Medieval theory of acts of emulation prohibition, the modern doctrine was later formulated. This is the doctrine of forbidding the abuse of rights. It is meant to be an objective theory. It holds that an abuse of a right takes place when the right is exercised in an "antisocial" way, that is, as against the end for which the right was conceived.

“Antisociality” presupposes an inhuman, not benign right’s use and, therefore, is not equitable. The idea of the abuse of right is thus a case where the judge, in the light of equity, has to overrule the pretensions of whoever exercises such a right, since, though it is legal and is a right protected by law, still its use in these cases runs contrary to “natural law” and to justice, the essence of law. In equity, the judge must overrule any pretensions which, while conforming to positive law, in the circumstances, also represent an abuse against another person. Though this person is not legally protected against the abuse, he should be, according to justice. The idea of antisocial intent in the exercise of a right is a clear example of a flexible concept, of the type we have seen above, and, as we also saw, is bound up with equity, since it leaves in the judge’s hands the specifying of what should count as such an intent.

Despite this more objective formulation, great legal insecurity is created given this need for the legal arbitrator to mark out when circumstances of the “antisocial” have arisen, when the legal norm itself cannot fix in any exhaustive fashion what the normal content of each subjective right might be. Whatever, it is difficult to prove the existence of abuse of rights in the terms defined.

At the level of theory, abuse of rights achieved its maxim expression with CALVO SOTELO in his 1917 thesis, entitled *La doctrina del abuso del derecho*. This has served as the basis for later sentences. The following are in line with his thesis as to what is needed for an abuse of rights to take place:

1. The use of an externally legal, or subjective, right. This prerequisite is the embodiment of legality in its most genuine sense.
2. Harm to a non-protected—by any specific legal prerogative—interest. This prerequisite is a reflection of social reality, a life situation, where suits are often presented which the law is not capable of resolving by itself.
3. The harm’s immorality or antisocial nature is shown in a subjective way—when there is an intention to bother, or the end pursued is not serious or legitimate—or in an objective manner—when there is an excess or something abnormal in the exercise of the right. It is with this prerequisite that equity is justified, allowing the judge a basis on which to settle the matter in an equitable fashion—forgetting strict legality, adequating the matter to the specific reality.

Abuse of rights has also been taken up by the French scholars PLANIOL, RIPERT and JOSSERAND. In general, experts insist on the need to distinguish between abuse of right in the strict sense and other types of civil misdemeanour: “responsibility by guilt”—since in cases of abuse there is harm, bad faith-; excess in the exercise of a right; the clash of rights—because, in line with prerequisite 2 above, the interest harmed is not protected by any specific legal prerogative; or objective responsibility.

Expert voices also criticize abuse of right as a category in itself. PLANIOL, for instance, holds it is inconsistent to speak of a right and of an abuse at the

same time. “The right ceases when abuse begins”, he says. To this objection, one might answer by saying no such inconsistency arises, since the abuse is “in accord with such a right, but is against the law in its entirety”. Here, the distinction between subjective right and objective law comes into play again. CALVO SOTELO himself points out how abuse of rights is nothing but a manifestation of the law’s smoothing influence via equity, as justice in the specific case, to avoid “*summum ius*” becoming “*summa iniuria*”.

3. Values Plane

We thus arrive at the third plane as specified in the three-dimensional theory of law: the plane of values. We leave behind both facts, facticity—the empirically verifiable—, and the letter of the positive law—the normative—, and we reach a terrain, whose existence has often been denied, given its intangible nature, but whose existence within the human being, at any rate, plays an important role. We refer to the spiritual plane. A series of pertinent notions might be made out here, all having to do with equity, such as values—justice, equality, freedom, legal security; the virtues—prudence, clemency, indulgence, mercy, humanity, honesty, generosity, wisdom, charity, kindness; the feelings—love, understood rather in its spiritual sense, as “*agape*”, or happiness; beliefs—the “religious” amongst them; intuition or instinct— with regard to the subjective and objective aspects existing in judge’s equity, and the subject which confronts him, the sentence or his legal argument.

3.1. Equity and “Values”

3.1.1. Equity and “Justice”: Some Types of Justice in relation to Equity

The justice we light upon at the opening of our discussion on the plane of values is a value sought by equity and related to it. Indeed, there is a link between the ideas of equity and justice in many of their manifestations: such as distributive justice, commutative justice, rectifying justice, particularizing justice, natural justice, egalitarian justice, justice as a virtue or integral justice, amongst others.

Equity is justice given life. The just, as normally understood, expresses rectitude in a general manner. It is schematic and rational, in the way laws are made. The equitable, by contrast, expresses the just in its concrete, spontaneous, complete and living reality. Strictly, equity does not go contrary to law, against what is legally just. It does not judge the law, nor does it modify it. It only judges in the specific case, marginal with respect to the law. Equity does not argue any defect in the law for the specific case. It limits itself to showing up some limit in its field of application, throwing into relief that the specific case the law wishes to judge does not fall within that law’s field. Thus, then, equity does not mitigate the rigour of the law, since, in any strict sense, it does not apply to it. What equity does is prevent someone from being rigorous

and unjust when attempting to apply the law in an over-general and too strict manner, when a particular case falls outside what has been generically foreseen in the law.³³

Equity's relation to justice is a complex one, shown in diverse ways. Equity may be seen as invoking the idea of justice understood as "relative" or "comparative" justice. It metes out equal treatment to what is equal and unequal treatment to what is different. This is generally known as "egalitarian" or "leveling" justice, and was of extreme importance in classical Roman law.

Still, equity might also be considered as the weighing-up of strict law, in a way already mentioned, which is translated into justice for "the specific case" or "singularizing" and "individualizing" justice. This is justice in its Greek sense, understood as "*epieikeia*".

Fourthly, equity might be considered in relation to justice as the remission of justice imparting criteria which do not rest upon written law, but upon natural, moral reason, and the like. In a certain sense, equity comes to be equated with "natural" justice.³⁴

FRANCISCO SUÁREZ offers three versions of justice: "legal" justice (the making of law for the common good); "commutative" justice (the legislator's having the power to command and not go beyond his limits, so that he has to command only what he may and only who he is entitled to command); and "distributive" justice (which the law lays out in a general way and which is applied proportionally).³⁵

However, that equity is a manifestation of justice does not imply it may not be distinguished from justice. What are their different characteristics?

Law is a "science". Justice is a "virtue".³⁶ Equity is a "fact". A man who knows the law is a lawyer. He who desires to do justice is upright. Whoever practises equity is fair. Law is about ratiocination. Justice concerns the conscience. Equity presides over conduct. The law is intellectual. Justice is moral. Equity is civil. Equity is nothing but the realization of justice. Justice is naught but the realization of law. Law is neither more nor less than the realization of man's social nature.³⁷

33 FRANCISCO PUY MUÑOZ: "Equidad", in *Gran Enciclopedia Rialp*, 8, p. 709.

34 F. CAPILLA RONCERO: "Equidad", in *Enciclopedia Jurídica Básica*, Madrid, Civitas, II, p. 2833.

35 ARISTOTLE: *Retórica*. Translation into Spanish by ANTONIO TOVAR. Instituto de Estudios Políticos. 1971. I. 13, 30. NARCISO ANDRADA HERRERO: *La equidad como elemento...*, *op. cit.*, pp. 50-53. CHRISTIAN NILS ROBERT: "Nais-sance d'une image: la balance de l'équité", in Various Authors: *Justice et équité*, *op. cit.*, pp. 53-65, esp. pp. 63-64.

36 ORAZIO CONDORELLI: *Scritti sul diritto e sullo stato*, *op. cit.*, pp. 312-317.

37 ROQUE BARCÍA: *Filosofía de la lengua española. Sinónimos castellanos*. II. Madrid. 1865, pp. 93-95. Cited by JOSÉ CASTÁN TOBEÑAS: *La idea de equidad...*, *op. cit.*, pp. 16-17.

Justice resides more with the legislator's task, equity is the concern of the judge -though we have seen there is legislative equity too. Justice alludes to the "legislator's" aspirations to form and proclaim essentially legitimate norms, while equity consists in the "judge's" choice of a norm as a just one in order to deal with a specific case at law.

There are other differences between the ideas of justice and equity. Justice is an "absolute", it has a metaphysical character. Equity is "relative" and "experimental". It has a contingent character. It moves when opportunity beckons. If justice is the law of necessity, then equity is the law of the suitable. Only "God" is absolute and perfect justice. Mere mortals, condemned to practise a proportional and relative justice, must do so with the aid of equity.

However, equity is not something distinct from justice, it is an ontological dimension of justice itself. Equity is a special point of view on justice. Rightly does GÈNY call equity "a branch broken off of the great tree of justice". Equity is a branch of justice or its unravelling. It integrates positive justice, turning it into "integral" justice. All equity is justice, but justice does not always have the finer points of equity.³⁸

3.1.2. Equity and "Legal Security": Are the Two Ends of the Spectrum Reconcilable or Conflicting?

With legal security, as ORTEGA Y GASSET said, we are dealing with "knowing what to stick by beforehand", it is the being able to foresee the future legal consequences of our acts. Often, legal security is set up against justice. Thus, whenever there is more security, more generality, more mechanical application of law, the less will there be of justice, equity, benignity for the specific case. In that event, it is necessary to opt to award one of the binomial poles preference over the other. GOETHE and RADBRUCH chose security. For them, it was security which counted, injustice was preferable to disorder. This would be the greatest injustice, since, when law loses its force, force takes the place of law.

GUSTAV RADBRUCH considered the existence of natural law, but not in the classical way as universal and invariable law, but rather as, with STAMMLER, "a law having a changeable content". Further, "if nobody may unequivocally and with universal validity know what is just, there must be someone who will order what the law must be". What is important is that law should guarantee peace, order and legal security. As GOETHE says, "what is important is what gives us tranquility". To make a, not quite accurate, parallel with Kelsen, we might say that the basic norm in RADBRUCH would be of the type: "In a community, when a supreme power exists, whatever it orders must be obeyed".

38 JOSÉ CASTÁN TOBEÑAS: *La idea de equidad...*, op. cit., pp. 79-82. Id, *La formulación judicial del Derecho...*, op. cit., p. 157. MARCELIANO ISÁBAL: "Equidad", cit., p. 407.

Nevertheless, later in his work, this author gave more and more importance to the other binomial pole, to justice.³⁹

Legal security and justice form a pair. They are two poles of a contrast. Often, justice comes in inverse relation to legal security in such a way that the greater the justice, the less the legal security, and vice versa. Why this is so is because justice, understood as equity, implies approaching the specific case to humanize the law and prevent it from committing the greatest injustice by being interpreted in its absolute or strict sense. We thus achieve justice in the specific case, but also generate the greatest legal insecurity. On the other side, legal security brings with it generality, as much subjective as objective. It is generality for those at whom it is directed and regarding the conduct regulated. It is only thus that we can know what to expect beforehand, still, perhaps we might lose a little justice in the sense we have looked at if we take the peculiarities of the specific case less into account.

At basis, the opposition between strict law and equitable law bears a correspondence to the antithesis between the principle of security and that of adaption. They are two contradictory demands, two warring poles around which legal thought has always orbited. The debate between the partisans of strict law and those of equity, in recent years, has taken on the form of a discussion as to what weight to give “rules” vis-à-vis “standards” and “directives”. Some opt for rules without demur, because these offer legal security. The majority, however, consider rules and principles must be reconciled. According as the typical predominates over the individual, or vice versa, so should the equal treatment awarded rules predominate, or unequal treatment foreseen for principle. A total rule of equity would mean the disappearance of the law. It would be dissolved in ethics and politics, while losing its rationality, precision, stability and security, all of which are essential to its objectivity. However, the absolute dominance of law, with no discretion left the judges whatever, would also be the death of equity. No specific cases could be decided according to justice. An equilibrium must be found, a centre of gravity between the two opposed poles. This centre of gravity never ceases to vary. It is a problem for legal policy which cannot be resolved in the abstract, with firmly fixed conclusions. It all depends on the legal situation in each country with respect to the particular social-political circumstances.⁴⁰

39 GUSTAV RADBRUCH: *Introducción a la Ciencia del Derecho*. Spanish translation by RECASÉNS SICHES. Prologue by FERNANDO DE LOS RÍOS. Madrid. Revista de Derecho Privado. 1930, pp. 31-32. GUSTAV RADBRUCH: *Arbitrariedad legal y Derecho supralegal*. Buenos Aires. Abeledo Perrot. 1946, p. 35. Also in *Süddentsche Juristen Zeitungs*, 5, August 1946; and in the 2nd ed. of the *Filosofía del Derecho* by GUSTAV RADBRUCH. Cited by MARÍA JOSÉ FALCÓN Y TELLA, in *Concepto y fundamento de la validez del Derecho*, op. cit., pp. 113-115.

40 JOSÉ CASTÁN TOBEÑAS: *La formulación judicial...*, op. cit., pp. 131-135. GIULIO M. CHIODI: *Equità. La regola costitutiva del diritto*, op. cit., p. 26. ANTONIO

3.1.3. Equity, "Equality", and Difference

Equality is the primary value for the Social State. This is not the civic equality of the Liberal State, under the rule of law, with its "formal" character as equality before the law, but a "real" equality. It is not simply a question of treating everyone as equal, but also of treating the unequal unequally, in proportion to their inequality. It is a compensatory equality, the equality of opportunities which only an interventionist State can in any way provide. Such an equality, more especially in its formal guise, is recognized in the Spanish Constitution in Article 14. There it affirms: "*the Spanish people are equal before the law, no discrimination in terms of birth, race, sex, religion, opinion or any other condition or circumstance, be it personal or social, shall prevail*". Amongst these last might be located those coming from the new formula regarding territorial laws.⁴¹

Three different ideas come together here: "equal" treatment; "proportional" treatment; and "equitable" treatment. Equal treatment is a desirable idea when everyone is effectively placed in a position of equality—"equal treatment of equals". However, people are not equal amongst themselves, neither are they set in a position of equality by nature—as regards talent, beauty, intelligence, will power, wealth or luck. While it is true there are skills and gifts which may be developed, the position at the "starting post" often clearly reveals disadvantageous placing. This is a notable, obvious fact. If we are different in needs, abilities and talents, in general, equal treatment will be inadequate and would do nothing but contribute to the perpetuation of inequalities. Hence, we should endeavour to allot adequate treatment suitable for "different" individuals. Adequate treatment would come to be "proportional" treatment, matching inequalities. One instance of this sort of treatment is seen in the proportional taxation principle. There, those with a higher contributive capacity are required to pay more than those with a lesser income, proportionate to their earnings. The more they have, the more they pay. All proportional treatment passes through a metrical quantification and measuring process. It is mathematical where benefits or advantages are measured and quantified so that they might be distributed adequately.

However, even so, proportional treatment is not the only sort of adequate treatment. "Equitable" treatment may also prove adequate, nevertheless, it is not synonymous with "proportional" treatment. Equity takes in values, not simply numbers. This is clearly seen in ideas of equity which, like the Jewish or the Islamic, are anchored upon the plane of values, having an obvious axiological content. Such a method would, for instance, be adequate in the case of bankruptcy or when it comes to distribution of goods in restricted situations, as are often to be found in cases of war. Then, equitable treatment would be

FALCHI: *Intorno al concetto scientifico di diritto naturale e d'equità*. Bologna. Zamornai et Albertazzi. 1903. Perugia. Tip. Perugina. 1910, pp. 35-36. Also in *Rivista di Filosofia e Scienze Afinità*, 1903, II.

41 JOSÉ CASTÁN TOBENAS: *La idea de equidad...*, *op. cit.*, p. 43.

more suitable than proportional, mathematical quantification criteria. When we are not dealing with attempting to square balance of payments, but dealing with human beings, with persons, as opposed to our first case—where “units of measurement” were taken, and all are considered equal and interchangeable—, now, we find a diametrically distinct situation. We are faced with people all of whom are unequal, yet all of whom require adequate treatment, one which goes beyond cold proportional, calculation, and which implies making value judgements and meting out equitable treatment. Insofar as man is an individual, his purely quantitative aspect may be considered. He is “one”, of equal value with the other individuals, in terms of measurement. As a person, each man and every woman is a comparable world, not an interchangeable one. This world is open to values and, as such, must be assessed in accord with equity considerations.

Equitable treatment goes beyond parity, uniform, unitary, homogeneous treatment. It also goes further than any proportional treatment. A key concept here is that of “positive discrimination”, as distinct from “negative discrimination” or discrimination period. Positive discrimination is that which, though it breaches the equal treatment principle and even the proportional treatment doctrine, does not go contrary to equitable treatment. It consists in dealing unequally with someone in order to remedy an initial situational disadvantage. It goes so far as to not only equalize the unequal, but to allow the initial, disadvantaged situation to win out. Thus, for example, it ensures that women will enjoy certain privileges in certain sectors of public life, establishing that a certain percentage of candidates must perforce be women, in order to compensate for the “handicaps” they might have in their private lives as a result of maternity or of their having a heavier family charge. It is to compensate the difficulty they experience in reconciling their family to their working life. Without such positive discrimination, women would represent a minority in certain work situations, as well as having their work choices limited. The subject is much debated. Here, we note it as an example of the questionable, subjective, open nature of the role equity might play in relation to equality.⁴²

It might be pointed out, with regard to the principle of equality, that it cannot be understood in its strictly liberal version, that is, as a pure demand for legal generality and universality. Any such equality would not be equality but rather identity. What forbids the equality principle, as regards equity, is not differentiation but unjustified differentiation, that is arbitrariness or discrimination. To deal out different treatment to any one case demands what the Italians call “*ragionevolezza*”. It is true that to know what is reasonable brings in its wake a tremendous subjective burden. For a judgement on what is “reasonable” to turn out to be warranted, three precepts must be contrasted: the general norm;

42 Cf. DIDIER TRUCHET: “Égalité de traitement et d’équité”, in THIERRY LAMBERT : *Égalité et équité, op. cit.*, pp. 83-93. In the same work see also ROSELINE LETTERON: “L’action positive en faveur des femmes”, esp. pp. 79-80.

the presumably discriminatory norm; and the constitutional norm outlawing discrimination. It must be ascertained whether a pertinent nexus exists, logical and proportionate, between the, constitutionally legitimate, end pursued and the differentiated regulation. In no case must a political pronouncement be formulated, regarding adequation or opportunity, for this would give rise to a clear abusive and improper use of equity.

The ideas of equity and equality often appear linked together in positive law. However, they are different notions. Equality is contained in law. Equity is found beside the law. Equity, even today, is located outside positive law, outside objective law, since it is an eminently subjective notion. Unlike equality, equity is not a norm. It is something alien to the norm. Therefore, its analysis does not belong to legal science so much as it belongs to moralists or theologians, for example. Equity is not part of the content of the norm. It is on the plane where norms are discussed, it is of a rhetorical and argumentative nature. Though equity does appear in the written texts, this does not imply that it should be a norm, since equity does not contemplate any form of conduct or forms of punishment should it not be fulfilled. Equity looks more to the result of the work of interpretation than to the work itself. Applying equity, we are given notice that the application of a norm is a correct application. This is not, however, because it conforms to the norm. It is because it conforms to justice. There is no general definition of equity, because it is a value judgement which revolves around the practical effects of the application of a norm, to a great extent, within the social, political context. Equity is like a label, like a moral judgement applied to some practical decision. Equity is not bound up in the legal rules application, but in the discourse concerning its effects. It contributes to presenting the chosen solution as the best possible, as the “good solution”, to adopt DWORKIN’s terminology. In this sense, equity might be analyzed as a rhetorical argument.

Norms are not univocal. The interpretations they are open to are very varied, and they are all valid if they are issued by a body competent to apply norms. Equity is nothing but an indication of the options possible, showing preference for a specific interpretation, that which is considered the most just. In other words, invoking equity is not enough to legitimate a decision. A conviction that the just verdict is the one invoked is all-important. This is the goal of rhetoric here, to describe the logical rules in such a fashion that the listeners should be convinced. Equity is not effective and irrefutable unless a suitable legal argument be used, a convincing rhetorical speech. This idea is present in the key contemporary work on rhetoric by CHAÏM PERELMAN and LUCIE OLBRECHT TYTECA, *Rhétorique et philosophie* (1952), and, above all, in their *Traité de l’argumentation*. What is equity’s place in rhetoric? On the one hand, it comes into play “in the application of the equality principle”, that is, in the execution and interpretation of norms. On the other, equity affects feelings.

As far as legal argument goes, equity is considered a “commonplace”. Rhetoricians, since ARISTOTLE, understand a commonplace as that concept and those values which are unanimously allowed in specific contexts. To the legal

scholar, a commonplace is a common reference point for all and is absolutely incapable of being contested. The existence of commonplaces in argument does not imply the parallel non-existence of other points of friction and disagreement, as PERELMAN shows. Such disagreements prevent the fall into inertia and possibilitize change and the innovation or the repeal of solutions reached, that is, as against the usual, the common, the habitual.

Equity is precisely an idea which allows one to explain and to justify repeal, change, “positive discrimination”, that which is called an equitable conception of equality; equity legitimates the interpretation of the rule as regards an unusual, specific situation; it underlines the existence of a particular case and brings an acceptable, reasonable answer to the specific case.

Another important point regarding equity and equality is the existence of many types of “listeners” at which the rhetorical judgement—wherein the equitable argument is wrapped—is aimed, and whom equity tries to convince. One might imagine, in effect, some “universal audience”; still, it is often difficult to frame an argument directed at such. Hence, one chooses an argument to appeal to a “specialized audience”. This is a set of listeners made up of experts and those well acquainted with the question. However, one might opt for a “non-specialized audience”. Those to whom legal norms are addressed, in most cases, resemble a non-specialized audience, society at large. When alluding to the “equitable conception of equality”, one aims at this type of general audience.

The following conclusions arrived at on the link between equality and equity may be noted: equality is the content of a norm, and also constitutes an argument aimed at a specialized public, above all; equity refers exclusively to the practical effects of norm application, and it is particularly aimed at a non-specialized public. Consequently, we are not dealing with two mutually exclusive or contradictory ideas. They are complimentary in the discourse of law, rather than in its application. Equity should not be considered a source of law, as some complement to make up the deficiencies of the positive law. We have already seen that equity never constitutes a norm. It is a reflection upon the axiological dimension of law. This is what leads to its effectiveness. That is why, though it does not constitute a norm, it may be analyzed by legal science.⁴³

3.1.4. Equity and “Liberty”

The Spanish Constitution expressly mentions four higher values and these are placed in the following order: “liberty, justice, equality, and political pluralism”. “Liberty” mainly belongs, as its name suggests, to the Liberal State or the *Rechtsstaat* in its XIXth century guise. There, we find a “negative liberty”, proper to a “guarantor State”. Everything is allowed which is not specifically forbidden (“*Quae no prohibita permissa intelliguntur*”). As against this, we

43 CHRYSTELLE SCHAEIGIS: “La fonction rhétorique de l’équité”, in THIERRY LAMBERT: *Égalité et équité. Antagonisme ou complémentarité?*, op. cit., pp. 13-21.

find the liberty of the Social State. This is a “positive liberty,” proper to a “tutor” or “gendarme State,” wherein all is prohibited unless expressly permitted (“*Quae no permissa, prohibita intelliguntur*”).

Liberty is a presupposition underlying a judge’s exercising equity in his legal work. Judges are independent, irremovable and only subject to the empire of the law. The same could be said of legislative equity. The only restriction on equitable law creation is respect for the majority principle which presides over the work of Parliament, as a consequence of exercising the vote, which is nothing but a demonstration of popular sovereignty. The ruler must be free—though no libertine—when executing the law. Should he abuse his power, he may be disobeyed—whence, phenomenon like civil disobedience—or substituted by a better ruler, following the rules of the democratic game. Finally, an individual may not use equity according as his conscience dictates, if he is not free. We thus lead up to our next section, equity and virtue. There we clearly see how both of these call for liberty, as the essential breeding ground where each may develop.

3.2. *Equity and Human “Virtue”*

We shall begin with a brief look at the idea of virtue, before tackling the way equity and the exercise of virtue are intimately intertwined. Liberty is necessary for virtue to develop, it is a pre-condition of virtue. The same is true for equity. Each human being is free to choose virtue or vice. It makes no sense to speak of a virtuous man and then to think of one who is obliged or forced to do good.

A second characteristic of virtue is its firmness. One isolated act is not enough for us to be able to talk of virtue. Virtue is a habit. In the same way, equity should be an habitual practice of the judge—at least, tendentially, in an ideal world.

Virtue presupposes a “good” habit. Good habits are called virtues, while bad habits are known as vices. The same favorable emotive charge, or positive connotation, is excited by equity. An equitable judge is a good judge; whoever acts contrary to equity is a bad judge.

Might we say that virtue belongs to the human being in general, while equity is a virtue proper to the group of humans encharged with applying the law, the judges? In part, this is so. However, we must not forget that, while judicial equity is the most extensive kind of equity, it is not the only sort of equity there is. The subject of equity may also be the legislator, when making the law; the ruler when executing it; or, even, the individual when faced with his own conscience. In this final case, that of the virtuous individual, we come closest to the ideas of both virtue and equity.

Virtues might be considered the just medium in all situations—“*in medio consistit virtus*”. Equity also implies an idea of moderation, equanimity, balance, deep consideration.⁴⁴

Having said all this, we should now concentrate on some of the virtues most concerned with equity. To that end, nothing more is required than to draw out the distinction between intellectual virtues—or dianoetic—and appetitive virtues—or moral. The former refer to the intellect, the most typical trait of the human, that which distinguishes man from other living beings; the ability to reason. Amongst these virtues, those which stand out are prudence, wisdom, and faith. As to the affective virtues, which are related to human appetites, they also merit some classification according as we refer to the rational element—the Will—and here we find such virtues as charity and justice, or to the irascible element—for instance, strength as opposed to temerity—or to the concupiscent appetite—that of the senses—, such as moderation. Outlining this general classification of the main virtues, below we attempt to group them together, more especially those having to do with equity.

3.2.1. Equity and Prudence—“*Gnomé*”

Equity, especially in its Greek meaning, as “*epieikeia*”, or justice in the specific case, is closely related to “*gnomé*”. This is one of the forms of prudence, according to ARISTOTLE, an idea taken up by AQUINAS. We shall develop this relation a little further.

In the *Nicomachean Ethics*—Book VI, 11, 1143a 19-23—ARISTOTLE defines “*gnomé*” as that virtue by which judges choose to become sympathetic judges—“*eugnomon*”—and to possess judgement. “*Sugnomé*” is what is characteristic of the equitable (“*epieikes*”). The equitable man is thus a man with a sympathetic judgement on certain things. In order to understand what ARISTOTLE says about “*gnomé*”, we must first make allusion to the difference he makes between legal justice and “*epieikeia*”, in Book V. Legal justice refers to what is suitable in the general run of cases, while “*epieikeia*” concerns the “specific, singular application”—“*directivum*”—of justice in a specific case. Similarly, “*synesis*” refers to a correct judgement—“*iudicium rectum*”—as regards what is sought in most cases. “*Gnomé*” refers to some suitable judgement as concerns justice in a concrete case—“*directivum*”.

In the *Treatise on Prudence* in the *Summa Theologica*—2a-2ae, q. 48, a.1—, AQUINAS considers “*gnomé*” a part of prudence. He thus distinguishes between: “*eubolia*”, as the giving of good advice; “*synesis*”, as a judgement in accord with the common rules of conduct; and “*gnomé*”, where it is advisable to distance oneself from common rules.⁴⁵

44 FRANCESCO D'AGOSTINO: *Dimensioni dell'equità...*, *op. cit.*, p. 63.

45 MARCEL DUBOIS: “The Virtue of Aequitas...”, *cit.*, pp. 147-149. AGUSTÍN SQUELLA and ABEL GONZÁLEZ: *Dos concepciones de la equidad*, *op. cit.*, p. 33.

3.2.2. Equity, Mercy, and Compassion. Equity and Absolution, Forgiveness, and Pardon

Equity, especially in its Latin sense, approximates the ideas of mercy and compassion. Still, are these equivalent concepts? SENECA's *De Clementia* is essential here. For SENECA, mercy and compassion are similar but not identical things.

Mercy has overtones of weakness, of small and cowardly souls like those possessed by the elderly or by women—as he sees things. There are not a few feminists and even men who do not agree with this traditional tendency to make the elderly, women and children into a category of the weak. For instance, we need only look at the case of war. For SENECA, these tremble at the sight of others' ills. They would open the prison gates, if it depended on them, and their eyes would brim with tears at the sight of suffering. They would never take into consideration the reason why the prisoners are in the cells in the first place.

Compassion does not have this pejorative overtone. It is not weakness of soul, sentimentalism, rather it follows the dictates of reason—“*misericordia non causam, sed fortunam spectat; clementia rationi accedit*”. It is unlike mercy, a sickness of soul from which we should flee, it is in keeping with steadiness and firmness of the soul.

An example of *misericordia* for SENECA would be the pardon or amnesty. This implies leaving unpunished what deserves to be punished. Clemency, however, would be allowing someone to go unpunished because you do not consider he merits the punishment, given his special circumstances, that he was drunk, for instance, that he acted to protect his honour, to keep his word or out of any other just motive.

Clemency, understood as moderation, as a virtue contrary to “*crudelitas*”, to ferocity and mad rage—not to “*severitas*”, however—, is the closest idea to equity. Equity usually means moderating. This, however, does not prevent equity from sometimes demanding a stricter treatment than that stipulated in the letter of the law.⁴⁶ SENECA goes so far as to compare the principle with a doctor, since both cure ills, one the sickness of the soul, the other, of the body, and they must always heal with moderation and clemency, avoiding anger.

3.2.3. Equity, Honesty, and Generosity

The ideas of honesty and generosity are clearly bound up with the case of unjust accumulation of wealth. If anyone gratuitously obtains—through bad faith, or by accident, or by error—an economic advantage he does not deserve and which does not correspond to him, he should give back the property thus obtained as behoves all honest men. In these cases, to return the unjustly obtained

46 FRANCESCO D'AGOSTINO: *Epistola...*, *op. cit.*, pp. 115-134.

is an honesty obligation. Such an action is the right thing to do, the honest, the just, the reasonable, the decent thing to do.⁴⁷

However, should the person who has enriched himself unjustly then “sacrifice” himself beyond what the law requires or beyond what is reasonable, if he is magnanimous, lavish with gifts and, not limiting himself to simply giving back the unjustly obtained, but rather adds to it liberality and largesse and rewards other men, forgetting about himself and his own interests, then we are in the presence of generosity.

With which of the two cases does equity have to do? With both. However, it has especially to do with generosity, since the idea of honesty is already implicit in that of justice. This is because justice is nothing but the giving to each his own, and that is one demand made of honesty as regards exact justice. What by all accounts should be avoided is the generous but arbitrary use of legal discretion. There should always be honesty. There should also always be generosity, but only up to a point. It exceeds this point when it becomes excessive magnanimity.

3.2.4. Equity and Other Virtues: Humanity, Wisdom, Charity, and Gentleness

There are other virtues which should accompany the equitable man and the judge too who applies equity when judging a specific case. Some virtues and attributes the man and equitable judge should display are: wisdom, charity, gentleness, humanity, courtesy, balance, thoughtfulness, we could go on adding to the list.

Wisdom is the virtue properly speaking which should be stressed. The more learned the judge, the more and the wiser will be his use of equity, and the less there will be of the arbitrary in his carrying-out of his role. As regards charity and gentleness, these are rather moral qualities, though they also contribute to the right use of equity. Humanity, finally, is but the compendium of all the other qualities. In the last era of the Empire, the Romans, under the influence of Christianity, in Post-classical Roman law, spoke of equity as “*humanitas*”. It is not our aim to write a treatise on virtue here. We simply wish to draw attention to the narrow gap which separates the notions of equity and of virtue. This is especially easy to appreciate with respect to some of the classical virtues.⁴⁸

3.3. Equity and “Feeling”

3.3.1. Equity and Love—“Agape”

One of the sentiments Mankind never ceases to cling to is love. It is held that love, together with hatred, is one of the motors which moves the world. The judge may, being human, feel this complex love-hate emotion when car-

47 RALPH A. NEWMAN: “The General Principles of Equity”, in RALPH A. NEWMAN (ed.): *Equity in the World's Legal Systems...*, *op. cit.*, pp. 600-602.

48 BRENDAN F. BROWN: “Equity in the Law...”, *cit.*, pp. 205-206.

rying out his task. It is obvious that to be led on by hatred at the moment of issuing a verdict is completely contrary to the spirit of equity. However, what shall we say about love? Might the feeling of empathy and tenderness toward one of the parties influence the decision of the judge, or must he always be an impartial onlooker, cold, objective, and distant, as he goes about his duty? Should human sentiment and love inspire the judge when dictating sentence? What kind of love would this be, when we speak of the right use of equity? Would it be human love?

As opposed to love as it is conceived of by the modern pagan, “*eros*” or “*philia*”, there is to be found love in the sense of “*agape*”. This is a love which is pure, spontaneous, unmotivated, creative. It is not swayed by the beloved objects qualities. “*Agape*” is a disinterested love. It is a love wherein the lover does not seek his own good, but rather that of his neighbour. “*Agape*” does not start out discriminating between people deserving of love and those who are undeserving, between friend and foe. It is directed at both. “*Agape*” is not weak or passive; it is an active love. At basis, this sort of love rests upon the idea that all men are brothers and equally worthy of justice. It is not a prejudiced love, but a “free” love, understood as “the power to do what we ought to do”, and not understood as libertinage. This is the kind of love which should preside over equity, a disinterested love. It is never a love enmeshed in the passions.

3.3.2. Equity and Happiness

As its final and ultimate goal, equity must tend toward the achieving of happiness. Just as the Prince or Medieval governor was required to obtain public welfare and the general well-being of the community of his subjects, so too in the modern rule of law the judge, chief applier of the law in our times, must endeavour to favour his fellow citizens. The way to do this is to apply equity to legal norms. This prevents an abusive exercise of power and stops the absolute manner of applying law from becoming absolute injustice—“*summum ius, summa iniuria*”. In turn, the way to arrive at this objective is to ensure a strong current of various virtues in the person of the judge, virtues like prudence, mercy, indulgence, honesty, generosity, and the rest. The result: society’s happiness or, should one prefer, the general welfare. This brings us to the prickly subject of means and ends. Equity is one of the ways or means of reaching happiness, the final goal at which every society and all human beings aim.

3.4. Equity and “Beliefs”: Equity and “Religion”

Within the judge’s conscience—a judge with religious beliefs—when giving his verdict there may arise some dichotomy between the eternal and divine law sphere—religion—and positive law. In such cases, the question emerges as to which will prevail. The answer varies according as we treat of the prob-

lem historically—looking to the past, dynamically—or statically—concentrating on the present or today.

From the historic angle, we see how two orders were at play: the religious and the secular. A fusion took place between them in a dual sphere. First, there was the axiological plane, that of legitimacy. Secondly, there existed the factual plane, that of efficacy.

On the plane of legitimacy, in effect, the power or authority of the governor was anciently upheld by appeal to the theory of the divine origin of power, what might be called “a theocratic basis of power.” This is already present in Eastern Empires, the Persian, for instance. It is patent amongst the Roman Caesars, the Germanic Kaisers or the Medieval Kings. These last being a kind of Vicar of Christ—the King was King by the grace of God.

On the efficacy plane, we see too how law and religion appeared as historically fused. Obedience to the authority thus legitimated is nothing but efficacy, and this was assured as it inspired fear of the divine legislator’s power. In this sense, FREUD, in *Totem and Taboo*, or DURKHEIM, in *The Elementary Forms of Religious Life*, deal with this matter and connect it to obedience to the King being a form of obedience to God.

Nevertheless, from a static perspective, in modern societies, we find a clear separation between law and religion. Now it is held that a norm is valid when it has been created by a competent authority, following a correct procedure. A secular, rational and scientific, setting-out of the question has been opted for. The law is distanced from the obscurantism—as modern thought sees them—which led to religious beliefs and confused man-as-believer with man-as-citizen. This turn, this methodological purity, can be observed, for example, in HANS KELSEN’s *Pure Theory of Law*. It is a rewriting of the Medieval theory of the two swords: “Render unto Caesar that which is Caesar’s and to God that which is God’s”.

In sum, from the historical point of view, religion and law were fused together in the most basic forms of society, via “legitimacy” and “efficacy”, and they were separated in modern societies, as concerns their formal “validity”.

Hence, as we are in a modern society, at first sight it would appear we should give priority to the legal norm over the religious—in case of an antinomy arising in the judge’s conscience when sentencing. That is, we should offer a secular answer to secular matters and disburden ourselves of the weight of old religious survivals. If the future has overtaken the religious outlook on secular affairs, it seems we too should move with the times.

Still, there are those who do not consider progress can graphically be represented always by a straight line and, forgive the redundancy, by progress. It is not a question of any straight line from which from left to right, from past to future, we see traced out ascendant movement, from the less to the more, from the worst to the better. Quite the contrary. Some graphically represent progress as a series of circles and buckles where movements of going and returning to what went before may be discerned. There might be a pendular mo-

tion where situations of religious values loss is made up for by other returns to a strong religiosity.

Further, there are not those lacking who see progress as a zigzag line. In the long run, things do get better, but they are prevented from doing so in the short term, or even the medium term. Movements of involution occur. Thus, for example, the Renaissance, as the name suggests, represented a return, a rebirth, of values and the culture of Classical Antiquity. These had been hidden, as if buried, in the culturally obscurantist period which was the Middle Ages.

In brief, were the secular way not the predominant today, it might not be considered the best. Novelty, like youth, is a value which time itself takes care to undermine. What is new today becomes the old-fashioned tomorrow. That is why the individual, personal decision of the judge is left open to his own choice when passing sentence. He decides which is best, and what ought to preside in case of conflict, the religious or the legal norm.

Global, macro solutions do not seem valid here. What counts are individual, specific, personal decisions, and that is precisely what equity consists in: justice in the specific case. We are all alone when it comes to our conscience. It is not enough to shield oneself behind the fact that others or the fashionable opinion of the moment advise such and such a way of behaving, if our conscience clearly rejects that way. Each is his own judge and each must decide at every moment if—faced with a law which religion condemns but the system permits, or even orders—we ought to arise and disobey, or whether we shouldn't: "*C'est à vous de choisir*!" Even should the religion be the dominant religion which condemns, it is still a religion we may have filtered through our intelligence and conscience to make it our own.

3.5. Equity, "Intuition" and "Instinct"

The judge often feels towards those he is judging sentiments of humanity, empathy or identification. The judge feels solidarity for the judged. Equity, as an amorous passion, it carries out a fusion of two beings, making them one, like some truce or ceasefire in the war of all against all—"*bellum omnium contra omnes*". The subsequent danger is that of falling into sentimentality, where the equity judgement becomes relative, depending on each person's sensibility. This might lead to excessive benignity or, at other times, to extreme severity, all varying with the humour, taste, convictions and ideology of the judge. A liberal judge formed in the classic school, where autonomy of his will is given pride of place, when making up contracts, will give less importance to the evils of the contractor who has been exploited, for instance, than a judge open to social solidarity considerations.⁴⁹

49 MAGDI SAMI ZAKI: "Définir l'équité", *cit.*, note 122 ff.

3.5.1. Which Comes First, the Judicial Sentence or its Legal Argument?

Many of the scholarly community, suffering somewhat in modern times, subordinate equity's application and, in general, the elaboration of the law to psychological, intuitive and irrational factors. This is exactly the case with English equity and the role conscience plays there. This is contrasted with the rigour of *common law*—“*equity acts on the conscience*”. It is also the case with the German Free Law School or Free Jurisprudence, and with all those movements with a subjective leaning which rely on the legal-psychological, and which are to be found in abundance in North America. These would convince us that the judge decides more according to feeling than to judgement, more according to instinct and intuition than to rational trains of reasoning. They suggest reasoning only appears when the judge argues, or legitimates, his legal argument. The process is more of an enthymeme than a syllogism. The judge—they hold—, insofar as he is human, first forms an opinion in light of the circumstances of the case, and only then, at a later point in time, seeks some legal category wherein he can lodge his decision. He does not reason and then decide. He decides and then he reasons.

On the role of intuition in equity, specifically, and in the judicial sentence, more generally, the doubt arises whether such becomes operative only in the process of “discovering or obtaining” that sentence, or whether it also plays a part in the “justification or argument”. In other words, does intuition in fact suggest—even should suggest—to the judge which decision to take, from the very start, or does it, rather, act entirely differently, that is, as a means of justifying what Courts actually do? In the first supposition, intuition is not a bad thing in many cases. What is more important, however, is: what role does intuition play when it comes to justifying judicial sentences? In such cases, we should have to say that—if we let ourselves also be guided by intuition then—it would prove difficult to later apply the same sentence, in a general and abstract manner, to logically analogical cases in future. This is because our sentence would lack rational argument being, as it was, obtained intuitively. The judge would then be using mere impressions and subjective appreciations, and these are very difficult to universalize and to give an objective standing. Only the deciding judge's personal prestige could somehow “save the game”. However, then we should be faced with the “argument from authority”, and today the greatest authority is to be conferred on what is said—the internal logic of what is said, the rational arguments used—and not on who says it. Any rather unskilled person may, in certain circumstances, issue a reasonable judgement and, on the down side, wise men may err. Highly trained people, in some situation, may come to an erroneous verdict, though this is not usual and though, in most cases, a strong professional background is the best guarantee of impartiality and good judgement. Indeed it horrifies the legal conscience in this the XXIst century to think that sentences are 100% irrational. Such would be sheer arbitrariness, not equity.

Still, one must recognize the part played by intuition in at least the following: the selection of relevant legal materials and texts which might be applicable to the case in question; the judge's interpretation of these texts and materials; the evaluation of the facts.⁵⁰ On the other side, the objective aspect of equity is revealed in the selection and in the verification of the facts; in their legal classification; in the respect awarded the defence's rights; in the obligation to justify the sentence; in the possibility of appealing to a higher Court when sentences are considered contrary to equity. The lack of reasons for reaching a verdict, in a specific sense, the insufficiency of the verdict, its contradiction, all these things may be controlled. Any legal affirmation may be dismantled by some evidence or by a contrary argument, though discretionary limits are wider in equity sentences than in those based solely on written law. In equity, there is a certain intuitive and psychological component. This is not open to verification. Things in equity are not true or false or they are only up to a point; they are rather legitimate or not, in accord with justice or not.⁵¹

Along with every judge's individual conscience, his intuitions and feelings, there is also a collective legal conscience, that of an entire people. Along with the psychological factor, there is also the sociological. The popular legal conscience influences the judge's individual conscience by way of his "cultural" conscience; the judge is born in a determinate place and at a specific historical time. These influence his make-up as a human being and, later, his exercising of his legal task. This is so because we are not dealing with two separate and distinct compartments, but of one single individual. From all these ingredients, we construct the whole man.⁵²

Together with the psychological and the sociological elements, we find a political element in the judge's work, as he decides according to equity. Perhaps, they may be classified under the head of sociological factors, but, in any event, they make up a very specific sort of sociological factor.

Finally, there is a decisive rational factor in equity's judgement which prevents it from turning into pure sentimentalism or political chicanery, especially in democratic systems and in States under the rule of law. *The judge fills up the law with his spirit, but he also fills it up with the spirit of the law.* Legal discretionary powers must never become legal arbitrariness. As greater skills, capacities, more studies, prudence and experience come together in any country's legal profession, so too does the intellectual and moral level of any one judge increase, and, with it, the less danger there is in entrusting him with the mission of judging according to his feel for equity.⁵³

50 RICHARD WASSERSTROM: "Equity in the Philosophy of Law", in ALFREDO MORDECHAI RABELLO (ed.): *Aequitas and equity...*, *op. cit.*, p. 165-173.

51 MAGDI SAMI ZAKI: "Définir l'équité", *cit.*, notes 122-176.

52 JOSÉ CASTÁN TOBEÑAS: *La idea de equidad*, *op. cit.*, pp. 65-72 and 22-24.

53 JOSÉ CASTÁN TOBEÑAS: *La formulación...*, *op. cit.*, pp. 136-137.

North American Realism comes down to a few behavioral foresight techniques, based on observation of behavior as a fact. As OLIVER WENDELL HOLMES has it: law is the “*prophecies of what the Courts will do specifically*”. Just as KELSEN was inspired by Kantian Philosophy, so Realism is the reflection of Pragmatism. Nevertheless, in truth, the foresight Realism seeks is not as certain as that, and the predictability of law is unfounded. Often judges’ verdicts are mere intuition, where the judge first finds the result and only then goes on to argue for it.

Some objections have been raised to this idea, along lines similar to those aimed against the Scandinavian Realism School, as exemplified in the views of ALF ROSS. In this same sense of a lack of certainty, it has been pointed out that no sentence can supplant a norm, that would be to mistake the weather forecast with the next day’s rain. How could there be a judge who takes valid law for his guide at any given moment, and, at the same time, should himself act to create the law in that case? In truth, to make legal predictions, one would have to carry out interviews, polls, surveys, but, with which judges? Should it be with all judges, or only with the highest ranking ones? Moreover, how could one be reasonably sure that those judges would not change their opinions after the survey? Further, in order to see what is law, other bodies, besides the magistracy would have to be considered, and other data, like that the citizens do not complain about, nor the press. We should also have to consider that executive and legislative powers have not taken measures to annul in the way of any Court-made pseudo-law.

The above described Realism also falls short in not considering the possibility that the Court behaves in a specific manner, but that, at the same time, this behaviour might well be illegal. Such a possibility may arise in times of crisis, when Courts might have to act under the influence of outside pressure of a political nature. Think, for example, of the German National Socialist case. Also, what of the case where the same question receives a certain answer from 50% of the judges and exactly the opposite answer from the other 50%? Could we say a legal norm is 50% valid? Its efficacy might be limited by such an eventuality, but it seems odd to say the same goes for its validity. On the other hand, we might ask whether a notion of valid law should be held when it is the judges who attempt to find it, but some other notion when lawyers and legal scholars seek it out.⁵⁴

54 OLIVER WENDELL HOLMES: *La senda del Derecho*. Buenos Aires. Abeledo Perrot. 1959, pp. 29-30. JEROME FRANK: *Law and the Modern Mind*. Gloucester. Peter Smith. 1970. KARL N. LLEWELLYN: “El Derecho y las ciencias sociales, especialmente la sociología”, in *Lecciones y Ensayos*, 4-5, pp. 29 ff. *Jurisprudence. Realism in Theory and Practice*. Chicago. Chicago University. 1962. FELIX S. COHEN: *El método funcional en el Derecho*. Buenos Aires. Abeledo Perrot. 1962, pp. 52, 53 and 65. ROSCOE POUND: “Law in Books and Law in Action”, in *American Law Review*. 1910. AULIS AARNIO: “On the Truth and Validity of Interpretative

3.5.2. Subjective and Objective Aspects of Judge's Equity

On the other side, as the judge, being human, does not only think and act in terms of law, the doubt arises as to exactly how we might differentiate between his legal and his extra-legal activities. We could never be sure, even in any particular case, what the psychological work carried out in the judge's mind was, as distinct from the norms he felt were "socially binding". It might even happen that, at the time immediately prior to his handing down a verdict, he changes his way of thinking. Uncertainty increases when it comes to a panel of judges or if we have to deal with more than one national legal system. Subjectivism is so rife, EKELOF holds, that not even when we have the judge's written formulations might we know whether the rule in question was or was not a decisive factor in the case. It will always be very difficult for the judge to distinguish between legally binding rules and those maxims which make up legal strategy, those which he usually takes note of. Indeed, a suitable decision is often first arrived at, and only then arguing for it legally takes place.

What should we base ourselves on to find out whether the judge feels himself "legally bound"? Might it be a clearing of the voice, a tremor or sigh when judging? As a further theoretical difficulty, we might ask what exactly is added to the word "observed" when we add the adverb "effectively"? Can we, by any chance, observe the law "ineffectively"? More, it is not necessary for the judge to obey the law because he feels "bound to", he may obey it out of fear or indifference. Even though he may feel obliged, this may not be enough, since he might, in spite of feeling that way, refuse to obey the law.

Statements in Legal Dogmatics", in AULIS AARNIO—ROBERT ALEXY—ALEXANDER PECZENIK: "The Foundation of Legal Reasoning", in *Rechtstheorie*, 12, 1981, pp. 430-431. GEORGE CHRISTIE: "The Notion of Validity in Modern Jurisprudence", in *Minnesota Law Review*, 48, 1964, p. 1071. All of them cited in our book: *Concepto y fundamento de la validez del Derecho*, op. cit., pp. 226-257.

Chapter 10

Equity in the Different Branches of the Legal Order

1. Equity in Civil Law

1.1. *Equity in the Preliminary Heading (Título Preliminar) of the Spanish Civil Code of 1889, before the 1974 Reform*

Equity has its function as much in private as in public Continental law, more especially, in public international law.¹ Taking Spanish law as our example, in private law² equity was included in the old Article 6 of the Preliminary Heading of the Civil Code, before the 1974 Reform.³

The 1851 Civil Code blueprint did not carefully regulate sources of law. In Article 12, it limited itself to stating that “*the judge who refuses to sentence, using as excuse the silence, obscurity or insufficiency of the laws, shall fail in his responsibility*”, and, in Article 13, that “*judges are forbidden, in the carrying-out of their duties, to have recourse to general and reglamentary legal provisions*”. The 1889 Civil Code kept this ruling, in its Article 6, Paragraph 1º, Article 12 of the 1851 text, which dealt with the inexcusability of a refusal to sentence. This refusal has a long tradition in Spanish law.

1 Cf. MALCOLM COPE: *Equity: Issues and Trends. The Importance and Pervasiveness of Equitable Doctrines and Principles in Modern Private, Commercial, and Public Law*. Sydney. Federation Press - Center for Commercial and Property Law. Queensland University of Technology. 1995; DE CUPIS: “Precisazioni sulla funzione dell'equità nell diritto privato”, in *Rivista di Diritto Civile*, 1971, I.

2 Cf. concerning other legal systems, CHOUCRI CARDACHI: “Aperçu sur le rôle de l'équité en droit civil comparé”, in *Scritti in Onore di Gaspare Ambrosini*, I, Milano, 1970, pp. 251-276; ALÍPIO SILVEIRA: *Conceito e funções da equidade em face do direito positivo (especialmente do direito civil)*. Sao Paulo. 1943.

3 DE DIEGO: “El artículo 6º del Código civil y el llamado Derecho judicial”, *Discurso inaugural del curso académico 1940-41, de la Real Academia de Jurisprudencia y Legislación*. Madrid. 1942; JOSÉ LUIS DE LOS MOZOS: “La equidad en el Derecho civil español”, in *Revista General de Legislación y Jurisprudencia*, CXXI, II, 1972.

There are other references to the use of equity in the Civil Code. They may also be found in special laws.⁴ In regional law, equity is clearly alluded to in the Regional Codes (*Estatutos de Autonomía*) governing Catalonia and Aragon.⁵

1.2. *Equity after the May 31, 1974 Reform of the Preliminary Heading of the Spanish Civil Code*

The 17th March, 1973, Base Law, drawn up to bring the Preliminary Heading modification to a close, in its Base II, Section Two, established that “*within what is necessary with respect to legal security, equity shall preside over norm application, but Courts may only found their decisions on it when the law expressly allows it*”. Still, when writing out Article 3, Section 2 of the Heading of the Code, all mention of the “necessary” respect for legal security was cut out.

In current Spanish civil law, equity appears, included in Article 3.2 of the Civil Code, according to the wording which was given by Decree, the 31st May, 1974. It is to be located within the Chapter given over to legal norm application—immediately after the regulation of interpretation criteria for norms.⁶ In line with the precept “*equity must be considered in the application of norms, even if Court findings may only—and in an exclusive manner—rest on equity when the law expressly allows it*”. Before this Reform, no similar, generic regulation on equity had existed in the Spanish Code. This, however, had been no obstacle for its legal textual consideration and for its application by the Courts.

4 Cf. ARTURO GALLARDO RUEDA: “Equidad”, *cit.*, pp. 633-634. ISABEL RUIZ-GALLARDÓN: *Una aproximación a la equidad desde la Teoría y la Dogmática jurídicas*. Prologue by LUIS DíEZ PICAZO. Servicio de Publicaciones. Facultad de Derecho. Universidad Complutense de Madrid. 2002, pp. 181-191. JOSÉ LUIS LACRUZ BERDEJO: *Elementos de Derecho civil, op. cit.*, pp. 170-173. RENÉ DAVID: “La doctrine, la raison, l’équité”, *cit.*, p. 142. NARCISO ANDRADA HERRERO: *La equidad...*, *op. cit.*, pp. III-VI, 165-177.

5 MARCELIANO ISÁBAL: “Equidad. Derecho civil”, *cit.*, pp. 411-412.

6 Cf. JOSÉ ANTONIO DORAL GARCÍA: *El Derecho nuevo y la equidad. Sobre el artículo 3.2 del Código Civil: Lección inaugural leída por el profesor José Antonio Doral*. Pamplona. Universidad de Navarra. 1997; LUIS PASTOR RIDRUEJO: “Introducción de la equidad en el Título Preliminar del Código Civil”, in *Estudios de la Academia Matritense del Notariado*, I.I, Edersa. 1977; JOSÉ J. PINTO RUIZ: “Sentido de la equidad en el Título Preliminar del Código Civil”, III, in *Ciclo de Conferencias sobre el Nuevo Título Preliminar del Código Civil*; RUIZ VADILLO: “La interpretación de las normas jurídicas en el nuevo Título Preliminar del Código Civil español”, in *Documentación Jurídica*, 4, October-December, 1974; FRANCISCO SOTO NIETO: “La interpretación de las normas en el nuevo Título preliminar del Código Civil”, in *Revista General de Legislación y Jurisprudencia*, April, 1979.

According to Article 3.2 of the Code, equity has a dual function. Firstly, it is a justice in the specific case, by way of being an interpretive criterion. Here it falls together with other criteria which are included in Article 3.1, in the sense expressed in the Outline of Motives of the 31st May, 1974 Decree. In this first function, equity is the following:

1. Something necessary. It means taking into account the peculiarities of the case, the *presumed facts*, in the task of subsuming, inherent in all interpretation.
2. Something rather more debatable and problematic. Equity here also is involved in the decision concerning *consequences*, when determining which consequences go with the case as subsumed under the law, thus moderating those literally made provisions for under the law where these might seem excessively rigorous, so much so that they may even prove harmful. We said this second possibility is more problematic. This is because it could lead to an effective emptying-out of norms. Hence, it must be handled with caution.

The second function mentioned in Article 3.2 of the Code is that of exclusively serving the legal sentence. This is only permissible when the law expressly allows it. It thus must be taken in a restrictive sense. It should be so taken in part also because this function is already developed through the free play of the general principles of law.

Further, and though this is not mentioned in Article 3.2, equity must also be used in private law where *contracts* are dealt with.⁷ First, equity acts as a limit which the autonomous free will when making contracts cannot exceed. Secondly, it serves as an interpretive canon when dwelling on the consequences of the contract. And, finally, it is an integrating canon. However, in spite of equity's importance in the law dealing with obligations and contracts, it does "not only" operate in this patch within private law, nor yet "in all" of it. In the realm of obligations and contracts, legal security also demands that certain parts or institutions pertaining to them should belong to strict law, this is to ensure the legality of transactions. To this end, the precise and the previous knowledge of the applicable norm must perforce be known. This is especially true for the institutions aiming at facilitating and insuring such transactions—letters of exchange, bearer's titles, and the rest—and at fixing credit founda-

7 BIANCHI: "Dell'equità nei contratti secondo il patrio codice civile", in *Filangieri*, 1884, pp. 385 ff.; N. COVIELLO: *Dell'equità nei contratti*. Napoli. 1896, in *Studi Napolitani*. 1895. FRANCESCO GALGANO: "Equity in Italian Contract Law", in A. MORDECHAI RABELLO (ed.): *Aequitas and Equity...*, *op. cit.*, pp. 313-317; Id, "Diritto ed equità nel giudizio arbitrale", in *Contratto e Impresa*. Padova. 1991, 2, pp. 461-478; REINHARD ZIMMERMANN: "Good Faith and Equity in Modern Roman-Dutch Contract Law", in A. MORDECHAI RABELLO (ed.): *Aequitas and Equity...*, *op. cit.*, pp. 517-583.

tions—Registry Law. These institutions require certain external and visible forms, easily recognizable by third parties. To ensure them, a certain rigidity is called for. Legal security, indeed, must prevail over both justice and equity as regards many other norms and institutions. This is the case, for instance, with the fixing of age limitations for legal responsibility, prescription or end-date for rights, and so on.⁸

2. Equity in Administrative Law

In administrative law (part of public law), there are two things which are the same as in private law. These two should be pointed out as being important insofar as equity is concerned.⁹ These are: excess or “deviation of power”—equivalent, in private law, to “abuse of power”; and “discretionary powers”—these might be compared, in the public sphere, to the role played by “private autonomy” in private law.¹⁰

As the Spanish Law Bulletin (*Boletín Oficial del Estado*—BOE) shows, administrative law makes up the most contingent legal sector, consonant with the continuous changes in social life, which the Administration must regulate. It must possess the requisite normative powers to solve the specific problems which arise—as regards urbanism, public disasters, and the like. These are concrete situations whose remedy requires that means and adequate laws must be passed to deal with them. According to CARL SCHMITT’s original expression, these are very different to properly normative laws which are issued to regulate typical, general situations.¹¹

We thus see how equity appears in administrative law with a highly restrictive role to play, not to mention a completely negative one. Before, the idea of equal treatment was the prevalent one. This outweighed equitable distinction. In administrative law, however, equity is rife because of this branch of law’s peculiar characteristics. Administrative law is less perfect in its system-

8 JOSÉ CASTÁN TOBEÑAS: *La formulación...*, *op. cit.*, pp. 136, 152 and 86-91.

9 SALVATORE ROMANO: “Equità (dir. priv.)”, *cit.*, pp.103-105.

10 Cf. PAUL LEGATTE: *Le principe d'équité, défendre le citoyen face à l'administration*. Presses de la Renaissance. 1993; SCAVONETTI: “L’equità nella Pubblica Amministrazione”, in *Studi in Onore di Francesco Cammeo*, II. Padova. 1933, pp. 505-514; RENATO SCHIAVINA: *L’equità nei principali ordinamenti giuridici: con particolare riferimento al diritto amministrativo*. Firenze. Nocchioli. 1964; CAMMEO: “L’equità nel diritto amministrativo”, in *Annuario della Regia Università di Bologna*. 1924, pp. 14 ff.; PAUL CINTURA: “L’usage et la conception de l’équité par le juge administratif”, in *Revue Internationale de Droit Comparé*, 3, 1972, pp. 657-676; MICHEL COMBARNOUS: “L’équité et le juge administratif”, in Various Authors: *Justice et équité*, *op. cit.*, pp. 77-87; V. P. FRYDMAN: “Les considérations d’équité en droit administratif français”, in *Droit et Démocratie, Justice, médiation et équité*. La Documentation Française. 1992.

11 ISABEL RUIZ-GALLARDÓN: *Una aproximación a la equidad...*, *op. cit.*, p. 199.

atization, but, at the same time, it needs an ample normative, creative faculty, which it may externalize through legal-administrative regulations. These allow for a direct and mediate form of legal precept formulation. With these highly negative antecedents, equity's reception by the Supreme Court's Administrative-Contentious Board traced out the following pathway. In the Sentence of the 14th April, 1905, it said "*the Courts must attend to the law they consider applicable, setting aside any rule or consideration of equity, which may never serve as the basis of their resolutions*". The rigour of the letter over the spirit of the law, without possibility of any extensive opening up, was recognized in the Sentence of the 21st June, 1905. The rigour of the law was insisted upon again in the Sentence of 5th April, 1906. Opposing this inflexibility, an opening seemed to be made towards the spirit of humanism and charity—towards equity, in a word—with the Sentence of the 22nd January, 1907.

We should therefore distinguish between the active Administration's discretionary power, through which an opening might be offered to equity—though this must never degenerate into arbitrary power, into abuse and excess of power—and the rigidity of the Courts of Administrative-Contentious Jurisdiction: "*because the active Administration may base its resolutions on such feelings as are so worthy of respect; but, the Court is forbidden them, it must come to its resolutions, contrariwise, by cleaving to, and tempering its sentences with, the full rigour of the law*" (STS, 5th April, 1906).

2.1. Equity and Discretionary Authority

Doubtless, Public Administration and its characteristic manifestations exclude that freedom which we normally attribute to private autonomy. The idea of freedom is shown in Public Administration via the idea of discretionary authority. This discretion—like that of the judge's in questions of equity—is not limitless, it is subject to conditions and to boundaries, so that it does not fall into arbitrary power, into excess or abuse of power, into injustice.¹² To such an extent is the idea of equity bound up with limits on the exercise of discretionary authority that some people identify any breach of equity with an excess of power. The exhortation to the good administrator—"*onere di buona amministrazione*", as the Italians say—is no other than to employ administrative equity. This is a limit on discretion, it is similar to the obligation of the equity judge to use equity in a specific sense and within certain confines, without falling into arbitrary equity or the arbitrary employment of equity.¹³ There should be freedom in judgement, but not arbitrariness. There should be discretionary authority, but not excess or abuse of power.

12 RESTA: "Equità e discrezionalità della Pubblica Amministrazione", in *Studi in Onore di M. de Francesco*, II. Milano. 1957.

13 RENATO VECCHIONE: "Equità (giudizio di)", *cit.*, p. 630.

However, the distinction between equity and discretion is obvious. While equity tends to widen individual rights, administrative control tends to restrict and diminish the sphere of individual rights, in the interest of public order or the common welfare.¹⁴

Of special importance in administrative law is the frequent use of indeterminate legal concepts. These aid in the equitable application of the law. These are such notions as a fair price, public utility, emergency, public order, exceptional circumstances, and the like. In these flexible, legal ideas, there is a fair solution uniqueness, their employment in specific circumstances means that they may only apply but to one concrete instance; the concept used either fits or it does not, the price set is either fair or it is not fair, and so on. This is another difference between equity and the discretionary solution.¹⁵

2.2. *Equity and Excess or Diversion of Power*

Excess or diversion of power—equivalent in the public sphere to what is abuse of power, in the private—would be the negative side of the problem, the obvious negation of equity. Such excess of power comes about precisely when discretionary authority falls into arbitrary power, when liberty becomes license.

Given the Administration's lack of submittance to formal law, it is essential that the exercise of discretionary authority—peculiar to the Administration's functioning—be at the least subject to the limits set out in the Constitution and limned by the general principles of law. These latter come into play in cases where decisions go beyond the constitutional or are not considered in the Constitution, and so produce a "rights injury". The competent Courts should then intervene to reduce the excess of power to within its proper limits.

In sum, the Administration's use of equity in the development of its normative and discretionary powers should only reach so far as the judge's equitable application of the law, on behalf of the weakest party in any relationship, that is, the one being administered to, the one who is too weak to protect himself, and who requires legal help.

The responsibility for good administration, equitable administration by the Public Administration, implies that—when it may choose between various courses of action to achieve a desired end—it should only employ those means which cause least harm to that public. More, it must follow the general principle "in similar circumstances give similar rulings", as a brake on the Administration's discretionary powers. The part to be played here by precedent laid down in comparable cases is important. Precedent helps maintain a ge-

14 NARCISO ANDRADA HERRERO: *La equidad como elemento...*, *op. cit.*, pp. 204-208.

15 ISABEL RUIZ-GALLARDÓN: *Una aproximación a la equidad...*, *op. cit.*, pp. 200-210.

neric identity which might act as a substantial criterion in future cases, where circumstances are analogous, by virtue of the principle that when the legal reasoning is the same, the same ruling should be imposed—“*ubi eadem ratio iuris, ibi eadem iuris dispositio*”.¹⁶

3. Equity in Criminal Law

Criminal law is one of the branches where equity has most made itself felt. That is, equity understood as the sense of humanity and kindness, as in the individualizing of criminal punishment to adapt it to the specific subject it is aimed at, the whole evolution from draconian law, with its demonstrations of extreme severity, to a criminal law more in accord with the specific circumstances surrounding the crime, making transferable to this field the saying whereby: “there are no diseases, only sick people”. In the new criminal law this translates: “there are no crimes, only delinquent people”. This evolution has found embodiment in a series of measures: the switch from people being open to arrest on vague charges to crimes having to be “on the books” to be considered crimes; the transition from the lack of typification to the criminal legality principle; from a retributive end proper to punishments—the traditional sort of punishment—to a preventive goal, more in line with the modern idea of deterrents; from capital punishment—the star punishment until the abolition movement—to the depriving of liberty, its present-day substitute. All these show a tendency towards the humanization and personalization of punishment. Other changes have been: from legal analogy—taking into account only the objective aspects of the crime—to “anthropological” analogy—the taking into consideration that we are always dealing with different criminals—, which pays greater attention to subjective aspects, looking at the criminal himself; an evolution where the state of necessity plays a key role when defining such things as robbery when one is starving; an evolution where pardon and amnesty play a stronger role in aid of the condemned. In short, there has grown up, in some countries, a criminal law more ruled over by benign interpretations of laws, inspired by such principles as “*in dubio pro reo*” or the maxim “*favorabilia amplianda, odiosa restringenda*”. Along with these goes that so decisive *dictum* of the non-retroactive nature of law, especially of laws which are restrictive of rights or unfavourable to rights. We have achieved a criminal law where there is a presumption of innocence, a limit to preventive detention, and reparation or compensation measures available to those who have suffered in cases of judicial error. All of the above are manifestations of equity in a law which, from the XVIIIth century

16 ANDRÉS OLLERO: “Equity in Spanish Law?”, in RALPH A. NEWMAN (ed.): *Equity in the World's Legal Systems...*, *op. cit.*, pp. 386-392.

on, has gone from harshness and extreme severity towards humanity and a more modern treatment in criminal punishment.¹⁷

Would it be correct to say that criminal law has been equitable in all times and places? History teaches us that this is not at all the case. Often, the law has been guided more by the instinct for vengeance on the part of victims and public opinion, which, at all costs, attempts to attain security for persons and their property, through harsh punishments, in an inquisitorial system proper to Absolutist States. The ideas of humanization and personalization are recent ideas in criminal law. They begin to gain ground from the XVIIIth century on when a series of modern institutions grew up which tended to prevent abuses and to enshrine equity. Below, we analyze some of these.

3.1. *From the Lack of Typification to the "Nullum Crimen, Nulla Poena sine Praevia Lege Poenale"*

A key institution in criminal law, one essential in the service of equity, is the principle of legality itself. It was mentioned in the XVIIIth century by BECCARIA in his work entitled *Dei delitti e delle pene*, and could be summed up in the classical aphorism: "*nullum crimen, nulla poena sine praevia lege poenale*". That is, "no crime, no punishment without a prior criminal law". According to the saying, nobody can be condemned for something which has not been classified as a crime at the moment of its being carried out. This principle is also found in relation to the non-retroactive principle as regards punishment for acts which have only later become considered crimes. Criminal laws cannot be applied backwards in time. This represents a point in favour of legal security. It allows us to know what we should adhere to beforehand. This is a requirement of all law in general and of criminal law in especial, given that in the latter we are dealing with a field of law which may impose restrictions on freedom.

It might seem that the principle of criminal law would not allow any judge to take equity into account, insofar as strict law must be observed, even should that prove contrary to the demands of humanity and leniency. Nevertheless, to the extent that it offers a system of guarantees as opposed to arbitrariness, equity may still express itself through such a principle.

3.2. *From the Retributive Aim of Legal Punishment to the Preventive Aim of Deterrents*

There exist two main kinds of sanction: punishment and deterrents. The first considers primarily logical aspects of law. The latter obeys a dynamic out-

17 Cf. ALÍPIO SILVEIRA: "Funções e limites da equidade no direito penal", in *Revista de Derecho Penal*, 1, pp. 39 ff.

look and rather takes account of final, or teleological, aspects. Punishment reflects abstract justice, deterrents, equity.

With punishment, the basis and the justification are free will and guilt, as the governing value judgements. Given that Man is free, he can be guilty. This is the idea of moral imputability. You can impute responsibility for his acts only to a free person. Against this, the deterrent is based on determinism and on social necessity. The crime is here conceived of as something inevitable, not freely done. For the idea of guilt as a basis for punishment, the notion of danger is substituted. This is not a value judgement but a probability estimate. Instead of speaking of moral imputability, it would talk of social responsibility. Though, as a predetermined and unfree being, man cannot be judged guilty of his acts and so punishable, still, somehow, his existence in society demands that someone must answer for these acts.

The justificatory idea for punishment is justice, the giving to each his own. What underlies deterrents is the notion of security, the prevention of a repeat offence. Punishment is based more on the objective side of things, the crime, considered, in turn, from a legal viewpoint, as an infraction of a legal norm. The deterrent emphasizes the subjective. It looks more at the delinquent and, as for the crime, rather at its social aspect, that is, crime as a disturbance of the social order.

As to function, punishment looks rather at the sense of the thing, the “why” of sanction, while deterrents consider the end, the “for what” of punishment. We say that the purpose of the former is basically retributive, while that of the latter is preventive. Punishment is in theory repressive, it calls for expiation and revenge. It is the *lex talionis*, the idea that one evil is wiped out by another, that “he who lives by the sword shall die by the sword”, as summed up graphically in “an eye for an eye, a tooth for a tooth”. As opposed to this, deterrent, as the name implies, fixes its gazes upon security.

In principle, punishment looks to the past, deterrents to the future. There is punishment in the former because there has been a crime (“*punitur quia peccatum est*”), in the latter, it is imposed so that no crime will be repeated (“*punitur ut ne peccetur*”). However, if we move beyond these abstract ideas and look at positive Spanish law, for instance, we find Article 25 of the 1978 Constitution stating that “*punishments depriving anyone of his freedom and deterrents will be aimed at re-education and at social reinsertion*”. Here we see accentuated the future-looking character of even punishment.

Various theories are used to back up punishment and deterrents. Those underlying punishment are “absolute” theories. They are called thus since for them punishment is an end in itself. The theses backing deterrents are known as relative theories. Here punishment is a means to an end.

The main absolute doctrines are those of KANT and HEGEL. For KANT, punishment is an ethical necessity. It is a categorical imperative. Even should society cease to exist, it should punish the last criminal before it disappears, else it will become an accomplice in the crime. In HEGEL, punishment is a

logical not an ethical necessity. It is a consequence of his own dialectic method. In this, there is first a thesis (the law), then its antithesis (the crime) and, as a synthesis, punishment. Punishment is the negation of the negation of the law. These absolute theories generally come linked to religious outlooks on life.

Relative theories attend to deterrence and they subdivide into general deterrence theories and special deterrence theories. General deterrence doctrines are aimed at the generality of people, at society as a whole, and use intimidation, psychological coercion. Special deterrence aims directly at the active author of the crime, at the criminal. In turn, there are religious and secular versions of the theories. The former seek the correction or moral amendment of the criminal. We find this expressed in KRAUSE's *"Besserugs Theorie"* or in the Spanish Correctionalist School of F. SILVELA, C. ARENAL and P. DORADO MONTERO.

As concerns the secular branch, according to the type of delinquent, three different goals are sought with deterrents. If we are dealing with the "occasional" law-breaker, the end pursued is to intimidate, on an individual basis, that is, persuade the law-breaker thus not to commit another crime. Should it be a "state" criminal (a *"Zustandverbrecher"*), the aim is re-education, re-socialization and social reinsertion. Finally, should we be handling an "habitual", incorrigible criminal, the emphasis is firmly laid upon his "inoculation", that is, preventing him from causing any further harm to society. This would happen were we to confront what LOMBROSO called "the born criminal", *"l'uomo delinquente"*. Still, there are not lacking those who, like CONCEPCIÓN ARENAL, above cited, consider that such born criminals do not exist, that man is a being always open to betterment, that it is one thing not yet to have been corrected, and another, very distinct, to be incorrigible.

Along with the absolute and relative theses, a third type, eclectic theories, are to be found, a mixture or unifying of the first two. These consider that no one solution exists and differentiate between various stages when punishment takes effect. They see it acting in three stages: first, there is the legal norm, the legal threat, made by the legislator; next, there comes the state of application of the sanction or the realization of justice, this is when the judge sentences; the final stage is the carrying-out of the punishment, at the hands of the prison authorities. A different function and aim is allotted each of the main stages involved in punishment. General deterrence is the aim of the first phase. Retribution corresponds to the second. Special deterrence is the goal of the third. Thus, we see how the different punishment functions appear according to the phase we have reached. At times, conflicts may arise between the first and the third goals, between what is useful for the collective in general and what is good for the specific criminal.

Having now seen the main theories underlying ideas of punishment and ideas of deterrents, this might be the place to point out how these theories have given rise to clashes among different schools. Thus, the so-called Classi-

cal School has traditionally been the defender of punishment while the Positive School is the modern advocate of deterrents.

Coming down from the high fields of theory, where we have been moving so far, we reach reality. There, the situation is as follows. As deviations from the ideal in each of the types, first we see how absolute theories may give rise to a purely automatic application of the law. This may reach to an almost mathematical, and hardly equitable, way of imposing punishment, a sort of geometric “*more*”. General deterrence might produce penal terror, via the imposing of draconian punishments, in the style of Enlightened Despotism (“everything for the people but without consulting the people”). Insofar as special deterrence goes, the typical deviation is the treating of the criminal as some kind of guinea pig, the perfect breed for all sorts of experiments.

Also on the reality plane, one might offer a critique of all the different constructions outlined. Thus, for instance, absolute theories make no sense when applied to occasional crimes. Nor do they put a stop to delinquency. On the other side, they presuppose the myth of an absolute order’s existence, a metaphysical place where Man is made for Saturday, and not Saturday made for Man. Again, it is not reasonable that punishment should only consist in doing evil.

Criticisms of general deterrence doctrines are that they might come to intimidate those who do not need intimidating. This is the case with the death penalty or capital punishment. With their executions, they have a demoralizing effect on the entire population, even though they may achieve their general deterrence aim.

As regards special deterrence, it can be objected that, there, the principle of legal security, so important to the rule of law, is put in jeopardy. Indeed, how far are we justified in punishing? For what, and at which society, are we aiming? Are we not risking the totalitarianism of the majority? Moreover, special prevention demands having great resources to hand. It presupposes, however, that we should consider traditional methods like prison use, often but schools for criminals. In this sense, to avoid these drawbacks, respect should be the order of the day in prisons, insofar as this is possible, and a due regard for prisoners’ basic rights, for example, by allowing prison visits, setting up open systems in which prison time may be done, taking into account things like the sexual needs of prisoners, and the rest.

Though these special deterrence theories are humane, in that they are directed at the specific man and not an abstract being, still, they do not alter his selfhood, his unique life. On the contrary, they highlight the ideology of differentiation, the difference between black and white, the good and the bad, forgetting that what usually obtains is some middle term and some range of greys, that things are not good or bad in themselves, but rather depend upon the colour of the lens through which they are observed. To this, it should be added that, when “re-educating”, the principle of ideological freedom—recognized in Article 16 of the 1978 Spanish Constitution, for example—should not be under-

mined. This is to prevent whatever type of religious or ideological creed from being imposed as a dominant system. No matter how convinced we may be that our own ideas are correct, we cannot, we must not, force others to share them. In a man's heart, he must be free and autonomous.

Again, it is not always necessary to resocialize the criminal. This is so of the occasional delinquent, the passionate criminal, white collar criminals, with their already perfect socialization, who commit economic crimes, things like tax dodging, currency smuggling, and the like. Even should re-education and social reinsertion be necessary, they are not always possible. They presuppose the criminal's strong will power and good intentions to live in conformity with the law of society and not according to his own law. At times, the criminal does not co-operate and it is impossible to get any good results by coaxing him.

3.3. *The Humanization of Punishment: From Capital Punishment to Prison Sentences. The Elimination of Inhumane Punishments in Modern Criminal Law*

Capital punishment—as the death penalty came to be called—was *the* punishment before the abolition movement which proposed privation of freedom as its substitute, from the XVIIIth century on. It is odd to see how, until then, the majority of pre-Enlightenment minds, including those within the Church, were in favour of capital punishment. The origin of this punishment is lost in the darkness of time. There are prehistorical, pictorial representations of capital executions. In Rome, from crucifixion to the throwing of Christians to the circus beasts, it was a punishment which was the order of the day. It was even accompanied by additional cruelty and savagery, as can be seen in local practices and in barbarian parts. The Inquisition itself used this type of punishment, joining torture to it, as a way of proving supposed crimes. One has to await the great utopias until, in the XVIIIth century, voices are raised against this inhuman institution so contrary to equity.

Some of the main arguments flourished for and against capital punishment are as follows:

1. The historical argument used in its favour was its great rootedness in time. In contra, we find the argument that justice is not a question of quantity or mere reiteration, but one of quality, and that, in fact, the history of punishments is often more dishonorable than the history of the crimes themselves.
2. The retributive argument—the gist of which is whoever commits a crime must pay, an eye for an eye, a tooth for a tooth. This however meets with the objection that retribution is not always possible: certainly not in the case of rape or in the case of rebellion, for instance.
3. The preventive argument—the death penalty has a deterrent effect on would-be new capital crimes. It is empirically proved that this does not work with those prime groups of people for whom the death penalty is

applicable—blood crime perpetrators, since most of them are driven by the passions of the moment, they kill in the heat of an argument and have no time to rationalize over what their punishment might be, therefore they do not feel dissuaded by the death penalty. The others might be psychopaths, like JACK THE RIPPER, who feel no psychological pressure as to punishment, since they are sick; or they are professional killers like the “JACKAL” who see death as a hazard of the trade. Then there are authors of political crimes, like terrorism. For them, the death penalty may prove the path to glory, it converts them into martyrs, immolated for a better land. Here, we might think of the Communards, of JOAN OF ARC, or the last executions under FRANCO. Far from dissuading, the death penalty leads to a whole wave of later terrorist attacks.

4. The utilitarian argument: the death penalty is of no utility whatever. It does not correct anyone. It simply puts an end to the criminal who often was not incorrigible but rather someone not yet corrected. The only thing it does for the population at large is to arouse in it a mixture of unhealthy and morbid emotions when they contemplate the execution, or, in the best of cases, and for those who need no intimidation, it produces a demoralizing effect. In the executioner, it creates an amoral figure who “gets used to” his job, a thing which under normal circumstances he himself would fight against: the act of killing.
5. The humanitarian argument. This has deep roots in Western Christian Culture and sees life as sacred and something not to be disposed of by mere humans, not even when one’s own life is concerned, as is the case with suicide.

All these considerations make of capital punishment an obsolete institution, one which should be abolished—either “*de iure*” or “*de facto*”. In most modern, Western countries it has indeed been abolished—though, of course not in some States of the United States. Article 15 of the 1978 Spanish Constitution upholds the right to life and forbids capital punishment. Though, at the end of Article 15, there is a reference to a possible exception to the ban on the death penalty in the case of military laws in times of war, still, it is true that, currently, no such exception is considered, not even in times of war. In effect, the abolition of the death penalty, in Spain, is total.

Other very severe punishments do still exist. They include: forced sterilization of the mentally deficient, such as were used as “eugenic” measures in Nazi Germany; lobotomy, a surgical operation meant to get rid of aggression by operating on the brain, but which leaves the patient in an almost vegetable state; or castration, for example, in the case of repeat rapists. All these are instances of highly repressive criminal law which are contrary to all ideas of humanity, an idea over which should preside the spirit of equity.

3.4. *The Individualization of Punishment*

Today, the idea of equity has inspired the individualization of punishment through two scientific categories: the notion of harm and that of danger. This only came about after the initial stage of ancient legislation with its punishments based on vengeance, repression and atrocious sanctions had been overcome. Thus, currently, science and equity meet in criminal punishment. This is achieved via rehabilitation of the criminal, which is at once medical and ethical. In the dialectic which joins them, equity plays the part of inspiration. It is the force which accelerates scientific individualization and which moderates the said individualization.

In this dual role, equity points out the objectives—reform, resocialization, or intimidation, and so on—and the methods of punishment—for instance, the abolition of the death penalty, parole or probation, suspended sentence. Sanction is placed at the service of the criminal's rehabilitation and social reinsertion. In this sense, the general tendency for the classic punishment of privation of liberty is replaced by deterrents which limit or restrict liberty.

Equity also serves as a limit on clinical science. Often, science and equity come to contradictory conclusions. When this happens, priority is usually given equity over science. Equity imposes limits on science in a dual way. Sometimes it puts up obstacles to certain procedures and treatments. At others, it upholds institutions which science has condemned. The first can be seen in the case of castration or sterilization. Equity opposes these. They imply an attack upon individual freedom and dignity.¹⁸

In applying criminal law, it is essential to carry into effect what today is called "individualization of punishment", analyzing the prime circumstances of the guilty person and his guilt, circumstances which may be aggravating, attenuating, or even exonerating of all guilt.

The legal margin for fixing punishments is total as regards faults falling within legal limits, and relative, as concerns punishments established for crimes.¹⁹ Equity is completely excluded in the legal typification of the facts in criminal law. Interference there would suppose an opening-up of legal discretion and arbitration, going beyond what circumstances might advise.²⁰ In this sense, so-called "judicial fictions" are excluded.

Judicial fiction is distinct from a legal fiction. The latter is generally of an inoffensive nature. A judicial fiction is, however, used as a means of grounding a Court sentence. In this context, the fiction means that a supposed element of fact, from which the judge derives a judicial consequence, it is made up, that is,

18 RAYMOND GASSIN: "Equity in Criminal Procedure", in RALPH A. NEWMAN (ed.): *Equity in the World's Legal Systems...*, *op. cit.*, pp. 573-580.

19 CARLOS M^a ENTRENA KLETT: *La equidad y el arte de juzgar*, *op. cit.*, pp. 68-69.

20 RENATO VECCHIONE: "Equità (giudizio di)", *cit.*, p. 630.

it is declared by the judge as present in the case though he knows in fact this is not true. In this way, the judicial fiction covers up the truth and, therefore, is reprehensible, save for its being justified by reasons of equity and, even then, it must only be used with extreme caution. Judicial fiction has often been used in judicial sentencing, for instance, when the judge wishes to arrive at an exoneration of responsibility.

3.5. *From Legal Analogy to Anthropological Analogy. From the Crime to the Criminal. Describing the Extenuating Circumstance by Analogy*

The configuration of analogy in criminal law has undergone an evolution thanks to equity. It has gone from giving pride of place to analogy in the legal sense, what is normally meant by analogy, to giving a starring role to so-called “anthropological analogy”. To understand in what this latter type of analogy consists, we must call upon the distinction made above between punishment and deterrent, as types of sanction. Anthropological analogy finds its place with deterrents. There, through ideas of “danger”, “social defence” and “opportunity”, the judge may punish by analogy a fact not designated a crime in the law. He may do this based on the danger the offender represents by what he has done— this is the constitutive function of analogy. He might omit punishing for a fact considered a crime should such danger be lacking—this is the extinguishing role of analogy.

It can be observed how, in this evolution of analogy in criminal law, we have gone from prioritizing the objective, the crime, to giving pride of place to the subject, the criminal. We go from punishment, as a blind sanctioning mechanism, to a rigorous individualization of penal treatment, via deterrents. Punishment limited itself to imposing similar sanctions for similar crimes, it ignored the fact it was always dealing with necessarily diverse individuals. Now we no longer deal with what penal infraction has been committed and then automatically assigning the corresponding punishment. Rather, we analogically evaluate the criminal subject—on the basis of the criterion of what social hazard he represents—with a view to imposing some deterrent. Analogy is not among the objective factors—crimes—but among the subjective—the criminals’ personalities.

Analysis should be guaranteed by medical procedures, not by legal mechanisms—“*eadem ratio*”. It investigates “similar criminal personalities”, “identical danger factors”. This is what has become known as “anthropological analogy”, as distinct from legal analogy, or just plain analogy. Anthropological analogy is especially needed in connection with those delinquents incapable of feeling the psychological pressure which stems from punishment, as normal people do. In any case, the arbitrary must at all costs be avoided by the anthropologist when deciding which medical criteria to follow up, in carrying out the judge’s ulterior decision.

Another problem analogy presents in criminal law comes from the fact that its exclusion is not absolute, it does not take in all criminal norms. It has a general, not a universal, character. Thus, analogy “*in bonam partem*” is admitted, that is, analogy favourable to the prisoner. One example of this favourable analogy, in Spanish law, is called “*atenuante por analogía*” (extenuation by analogy), and appears in the Criminal Code, where, after listing causes of extenuation of criminal responsibility, the Code refers to “*any other circumstance of analogical significance other than the aforementioned*”. Other sorts of norms open to “*in bonam partem*” analogy are those considered to be justification causes. The generic denomination is used to encompass crime exclusion causes, for lack of some item or other—fact, lack of legality, guilt—, imputability exclusion causes, and exclusion of punishment causes.

As much anthropological analogy—as opposed to legal analogy—as extenuating circumstance by analogy are examples of analogy which may aid the prisoner, as does “*in bonam partem*” analogy. They are instances of equity in a dual sense: in the Greek, as individualized penal treatment, as justice in the specific case, and in the Roman-Canonical tradition, as humanity and benignity, helping avoid the excessive rigours of the law.

3.6. *Equity and State of Necessity. Justified Theft*

There are certain specific cases where modifying circumstances, limiting criminal responsibility, are especially clear. Equity is patently reflected in these cases. This is true of equity in relation to the so-called state of necessity, and, more specifically, when “justified theft” occurs.

Stealing is generally admitted to be an illegal act, it is punished with severe or less severe sentences, depending on the different legislations in force. It is an illegitimate act, it is contrary to justice. Then, what can be said of those cases where the theft is due to a special circumstance of need which would appear to make it not only legally excusable, but even morally justifiable? What if we should steal to feed ourselves or to provide for our families, rob to satisfy basic needs like the need to eat? In these cases, the question falls directly within the sphere of equity. It might well be that in the abstract stealing is bad, but what happens in these specific cases where the ethical motive at the very least sets us a situation in which there is a conflict of duties?

3.7. *Forgiveness—Pardon and Amnesty—and the Legal Mechanism for Granting a Pardon*

The institution of the pardon comes from two different sources: “gracious indulgence”, reflected in the pardon, or else from opportunist, public co-existence motives, often of a political cast, via the government pardon, or what is called “amnesty”. In both cases, the spirit of equity beats. Though for some pardon has no affinity with equity, approximating it more to charity or po-

litical prudence, they would seem to be wrong. Whatever the case, equity, charity and prudence are all virtues with a clear family resemblance.

Within the pardon, as an institution, though it is not identical, we find the “right of grace”. This shows itself basically in three different situations, two public, the third of a private kind: 1.- Via the legislative function, this is called the law of amnesty; 2.- Through a public body’s decision to waive fines, obligations or loans; 3.- As a private individual’s giving up his particular, legitimate right, for instance, by way of writing off a debt. Of these three situations, the first is the only one of relevance to penal effects. The second has a more administrative cast, and the third is of a private nature, essentially to do with obligations. In the first, the cause promoting it is the rectification of the reigning law, to avoid an excessively harsh application of that law, which could be contrary to equity. This could be, for instance, that the circumstances on which the norm was based have changed. Whatever the reason, we are here faced with a “right” to grace, that is, a grace bestowing faculty and not an obligation on the part of whoever awards the pardon. The Spanish Constitution ties the right of grace to the figure of the King.²¹

According to CONCEPCIÓN ARENAL, we should not confuse either equity or justice with pardon. Justice “does not pardon, does not concede it; it is applied to fulfill a duty”. They are wrong, she adds, whoever found the right of grace on the equity to moderate the rigours of cruel laws. “Cruel laws must be abolished, not palliated with the possibility of either applying them or suspending them”.

GANIVET detests abstract, intellectualizing justice and places on the pardon the aim of establishing true justice. Punishment, from this point of view, is an answer to the desire for revenge and expiation of guilt, a rapid reflex to the offence received, the blow of human anger, in the final analysis, the ire of God—if, that is, God gets angry—or the ire of nature. The final, definitive justice, however, is the pardon—be it human or divine. Punishment not followed by pardon—think of the father-son relation—is not properly speaking punishment. It is hateful barbarity. However, if you are going to pardon, why then punish? Would not then pardon be gratuitous and lose all merit? For it to gain in value, there must be a price paid in acquiring it, it might be compared with sweat and suffering. This is not so. We should never deceive ourselves; punishment satisfies the offender, not the one offended.²²

21 NARCISO ANDRADA HERRERO: *La equidad como elemento...*, *op. cit.*, pp. 208-216.

22 JOSÉ CASTÁN TOBEÑAS: *La idea de equidad en las letras españolas*, *op. cit.*, pp. 65-69, 115-116 and 134.

3.8. “Benigna Interpretatio” (Mild Interpretive): The Principle of “In Dubio Pro Reo” and the Principle of “Odiosa Restrīgenda, Favorabilia Amplianda”

One demand of equity is the “*benigna interpretatio*” of any norm, especially if this is a criminal norm—“*in poenis benigniorem esse interpretationem faciendam*”. Still, what is the “benign”? The Romans held, when in doubt, the most benign meaning should be admitted. The problem lies in knowing what the “most benign” means, since what benefits one often harms another. Regarding the above, there are two equally vague and general ideas; the “hateful” and the “favourable”. These juggle together in the rule holding that the hateful should be restricted and the favourable amplified—“*odiosa restringenda, favorabilia amplianda*”. One more example of the same idea of benignity being applied to criminal law is contained in the adage “*in dubio pro reo*”, when in doubt, favour the accused.²³

3.9. The Presumption of Innocence, the Limits of Preventive Detention, and Compensatory Means of Correcting Judicial Mistakes

The presumption of innocence rests upon the idea that everyone is innocent until proven guilty. This is a relative presumption or “*iuris tantum*”, that was first established with utmost clarity in BECCARIA’S treatise *Dei delitti e delle pene*. It is opposed by absolute presumptions, those which allow of no proof to the contrary, “*iuris et de iure*”. The presumption of innocence, however, is embodied in a series of guarantees the accused enjoys: in principle, the public and open nature of his trial, the short spell of his preventive detention, the right of the accused not to answer any questions, the choice to remain silent, the right to a lawyer. The presumption of innocence is an almost universal one. It appears, for example, in Article 24 of the Spanish Constitution. However, this was not always so. In primitive legislation, dominated by a mystic mentality—think of the Court of the Spanish Inquisition—the accused was presumed guilty and it was up to him to prove his innocence. Such inquisitorial, accusatory systems were based on the idea of vengeance. This was present in most ancient laws, those of Greece, of Rome, and in Feudal law. The accused had the burden of proving his innocence. It is only from the XVIIIth century on, and after the French Revolution with its criticism of the *Ancien Régime*, that the situation changed.

Something similar happened with preventive detention. Depriving people of their liberty for a time during the trial is no doubt useful. It stops the accused from running away or from trying to destroy evidence of his guilt. It likewise prevents the accused from committing another crime, where we are dealing with an habitual criminal. This last instance is a case of preventive detention as

23 JOSÉ CASTÁN TOBENAS: *La idea de equidad...*, op. cit., pp. 47-49.

a deterrent. However, the drawbacks to the system are no less than its advantages. It goes against the presumption of innocence. It imposes a punishment on someone even though we do not know that he is really guilty. It creates a public opinion which stigmatizes the accused. And, in any event, it is a form of pressure to get a declaration of guilt or a confession to the crime from the accused. All these are signs of how this measure negates equity. Under primitive, inquisitorial systems, arrest and detention were the rule and liberty the exception; equity was an alien idea to them. Things changed profoundly from the XVIIIth century on. Preventive detention was not abolished but it was at least limited to the strictly necessary. Today, most Western countries consider these measures somewhat exceptional. Many countries use various procedures and techniques, such as confinement to certain areas, final liberation after a certain time, or periodic presentation by the accused, with the object of adapting the measure as far as possible to an equity-style preventive detention.

In spite of the many precautions and guarantees which might be put into effect to prevent the condemning or imprisoning of innocent people, sometimes these measures prove ineffective. Then, it is necessary to repair the damage done. For a long while, such reparations were only available to those who were unjustly condemned. Recently, some systems have allowed the light of equity to progress and have guaranteed injustice reparations even in cases of the preventive detention of innocent people. In most ancient legislations, judicial errors were solved via the sovereign's exercise of the "right of grace". This occasionally punished the judges who had handed down the unjust sentence, at the same time. Besides the revision of the sentence, a very old institution, we find, as regards equity, "*indemnification*" for the innocent victim. This is very consonant with what equity requires. The first instance of this measure may also be traced to the XVIIIth century, towards its end in fact, still, it is only from the latter half of the XIXth that the problem attracted the serious attention of legislators.²⁴

3.10. *The Principle of Non-retroactivity for Unfavorably Penalizing Legal Provisions or Legal Provisions that Unfairly Restrict Certain Rights*

Basically, this theme is regulated in the Spanish legal system by Article 2.3. of the Preliminary Heading of the Civil Code—whose content was affected by the Reform of that Heading, 31st May, 1974—and in Article 9.3 of the Constitution.

Article 2.3 positivizes non-retroactivity of new laws as a general principle. It states: "*laws shall not have a retroactive effect unless the contrary is clearly designated*". Legal scholars have usually considered this article as an interpretation norm aimed at judges and magistrates. Article 2.3 admits of exceptions. It works only if the legislator does not set forth the contrary.

24 RAYMOND GASSIN: "Equity in Criminal Procedure", *cit.*, pp. 552-573.

The Spanish Constitution's Article 9.3 establishes that "*sanctioning law non-retroactivity, not favourable to, or restrictive of, individual rights*" is guaranteed. Most experts understand that, in contrast to Article 2.3 of the Civil Code, the Constitutional norm is directed especially at the legislator. This could be a possible case of legislative equity. In both specific spheres, the legislator lacks freedom; the norms governing these matters are, under pain of unconstitutionality, necessarily non-retroactive.

The nature of the non-retroactive principle is, therefore, a double one: as a legal range norm, in the Civil Code, one not binding on the legislator; but, also, as a Constitutional norm possessing a content which not even the legislator may go against.

The following conclusion may be drawn from an analysis of Article 9.3 of the Spanish Constitution:

- By "*non-favourable, sanctioning laws*", we may understand penal laws in the strict sense, but also administrative sanctioning laws. This can be deduced from the Spanish Constitution's Article 25.1. The text says: "*Nobody may be condemned or sanctioned for acts or omissions which, when produced, did not constitute a crime, fault or administrative infraction, according to the legislation in force at that moment*". We are dealing with fixing the unfavourable, non-retroactive law, or "*in peius*", allowing for, "*a sensu contrario*", the favourable, retroactive law, or "*in bonus*". This is the case, for instance, with all concerning extenuations, exonerations, or the Spanish Constitution's Article 15, where capital punishment is abolished.
- It is debated what should be understood by "*restrictive laws on individual rights*". Firstly, the question arises whether the word "*laws*" only refers to legal norms, or whether it also takes in reglamentary range norms. Secondly, the Constitutional Court affirmation seems to suggest that we understand by "*derechos individuales*" (individual rights) only those set out in Section 1^a, Chapter II of the Preliminary Heading of the Spanish Constitution. That is, "*basic rights and public liberties*".

The basis of non-retroactivity is found linked, among others, to the principle of legal security. It attempts to assure we know beforehand the consequences of applying laws to future conduct, something we can have already to hand. It is also linked to the principle of legality, especially as a principle of penal legality. Regarding acquired rights, it has obvious relevance, as having ties to the dignity of persons, the principle of equity, the guilt principle, and the principle of equality.

3.11. Compensation for Responsibility and Compensation for Crimes

Both compensation for responsibility and crime compensation are key institutions as concerns equity. The problems of compensation in criminal law affect the fixing of one or other punishment or, in some extreme cases, affect the

non-existence of any crime. This is the case with careless conduct compensation as between the active and the passive subject of the crime. Compensation exists in the *lex talionis*, but not in Roman law. Where Court sentences appear excessive, and to make the system more flexible, an attempt is made to reduce penalties. This is especially true in the case of traffic accidents. The behaviour of the parties concerned is compared—that of the agent, the victim, and even any third party—to determine the contribution of each in producing the accident. The agent should not be treated too harshly if his conduct in itself did not produce the result, but was overridden by the conduct of the other party. The Constitutional Court Sentences 1/1994, 27th November, 1993, and 51/1994, 25th October, 1993 clearly show this. On occasion, as a consequence of this case law, the use of compensation has been abused, especially in the lower Courts where no clear Constitutional Court ruling has been handed down, concerning how to implement responsibility compensation. This carries with it the risk that carelessness may turn into open impunity and legal insecurity. Faced with this situation, the Supreme Court, via recourses, has tried to solve the problem.²⁵

Compensation for crimes does not present fewer problems. We find two crimes of the same or a similar nature, committed by different criminals, and in a generally reciprocal way. Legal professionals are loath to allow both offenders to be let off, via this legal measure, though they do recognize it as an extenuating circumstance, in the case of the person responding to the aggression, and even, in his case, as a reason for exoneration. Where there exists no “*animus iniuriandi*”, the evaluation of the agent’s conduct might be different.

4. Equity in the Philosophy of Law

From moral philosophy’s return in the 1950s to the beginning of the 60s, the outlook for ethical and political philosophy was especially tranquil. This calm was due to a wide census surrounding meta-ethical skepticism, with philosophical positions like moral emotivism, subjectivism and relativism. An exception to all this was to be found in utilitarianism—as the search for pleasure or well-being, accompanied by a series of empirical calculations which would allow those states to materialize. However, the tranquility on the philosophical horizon was replaced, in the 60s, by a detailed questioning of the predominant meta-ethical and utilitarianism currents. The new movement, lead by JOHN RAWLS, in the Anglo-Saxon tradition, defended rationalism and cognitivism in matters of justice. He reopened a democratic, public discourse, in dialogue with other possible options and projects. The reaction to this liberal movement did not take long to appear. In the 80s, there was a strong attack on RAWLS’ views by diverse Anglo-Saxon writers who were known as “communitarians”. They set out to offer an alternative to the liberal proposal, retaking up

25 ISABEL RUIZ-GALLARDÓN: *Una aproximación a la equidad...*, *op. cit.*, pp. 212 ff., esp. p. 217.

ethical visions deriving from HEGEL and ARISTOTLE. Perhaps, the authors with most weight and influence representing this theoretical stance were the north Americans ALISDAIR MACINTYRE, CHARLES TAYLOR, MICHAEL WALZER and MICHAEL SANDEL. The discussion centred around “atomism”, which defended the importance of the individual as regards society, and “holism”, which brandished arguments in favour of society over the individual. Liberal theorists did not wait long to criticize these communitarian standpoints. After almost fifteen years of intense debate, the liberal versus communitarian arguments today seem to have been overcome, by and large, given place to current hybrid tendencies.²⁶

The concept of equity on the plane of values, of moral philosophy, has much to do with the idea of justice. We have dedicated an earlier section to justice and its relationship to equity. There, however, we looked at justice mainly in its classical version, speaking of distributive justice, egalitarian justice, commutative justice, natural justice, humanitarian justice, and so forth. We shall not go over these again. Here, we intend to take a glimpse at some modern ideas of justice as they appear in the works of legal philosophers at the present time. We refer to: justice as fairness in the work of JOHN RAWLS, the recently deceased Harvard professor; the thought of the German philosopher JÜRGEN HABERMAS; at the theory of one of the leading exponents of Anglo-Saxon thought, RONALD DWORKIN; and, finally, in our last section, a kind of hold-all section, at other important contemporary ideas of justice, like those of NOZICK, POSNER, SADURSKI or MARXISM.²⁷

4.1. Jürgen Habermas and Discourse Ethics

Many contemporary debates on justice try to extract “substantive” principles of justice. The great merit of the German philosopher JÜRGEN HABERMAS, in his prolific output, is to have tried to follow a purely procedural path towards justice, by way of his idea of Discourse Ethics or an Ethical Discourse, which implies the existence of a real, continuing and sincere dialogue, which he calls “the ideal speech situation”, which bring with it conditions of liberty and

26 RONALD DWORKIN: *La comunidad liberal*. Preface by DANIEL BONILLA and ISABEL CRISTINA JARAMILLO. Universidad de los Andes. Siglo del Hombre Editores. 1996, pp. 17-40.

27 GEERT DEMUIJNCK: *Les conceptions de l'équité dans la théorie économique et la philosophie politique*. Lille. Laboratoire de Recherches Economiques et Sociales. 1998. RAINER FORST: *Kontexte der Gerechtigkeit: politische Philosophie jenseits von Liberalismus und Kommunitarismus*. Frankfurt am Main. Suhrkamp. 1994; RICHARD WASSERSTROM: “Equity in the Philosophy of Law”, in A. MORDECHAI RABELLO (ed.): *Aequitas and Equity...*, *op. cit.*, pp. 163-179. TOM CAMPBELL: *La justicia. Los principales debates contemporáneos*. Translation into Spanish by SILVINA ÁLVAREZ, from *Justice*. Barcelona. Gedisa. 2001.

equality to generate a “communicative rationality.” He has built up his theory through many works. We would especially point out his: *Knowledge and Human Interests* (1971), *The Theory of Communicative Action* (1984 and 1987), and, more recently, *Between Facts and Norms* (1996).²⁸ The important thing to ask is not what we find at the end of the communicative path. This would be to prejudge the results of the real, deliberative dialogue. In HABERMAS, we find a theory of justice which is formal, which is mainly aimed at the question “what is justice?”, rather than at the question “what is just?”. It is a pure, procedural theory, a method which allows communities to transcend their own culture and arrive at universal norms of justice. Further, HABERMAS holds that some societies, such as post capitalist, pluralist democracies, approach ideal dialogue situations already.²⁹ Here, legal philosophers like RAWLS stand out. RAWLS himself postulates an unreal and a-contextual ideal. Some unexpected substantive ingredients of HABERMAS’ theory arise from RAWLS, such as a compromise between political freedom and social equality. This, according to HABERMAS, stems from the fact that equal and equitable participation in the type of dialogue where communicative rationality takes place presupposes a fair quota of social and economic equality.

A potential contradiction in HABERMAS’ theory might be the combination of radical, participative democracy and a legal veto. Insofar as a system of institutionalized, legal control in the guise of Constitutional Courts exists, justice is taken from the procedural norms of deliberative democracy. It is interesting, having reached this point, to outline HABERMAS’ view regarding constitutional justice, that is, as concerns those questions about what is right and what not, as these are taken from the normal, deliberative, democratic process of party politics, elections and legislative decisions, in an open public discussion, and transferred to the Courts, in particular to the Constitutional Courts, in order to decide on them. This constitutional jurisdiction in an ideal democratic society perhaps would not be necessary. However, given the flaws in the ideal speech situation, HABERMAS gives an important role to real life, as a control over possible mistakes and existing injustices, in real democracies and, on the other hand, also as a precondition of the democratic process, urging legislators to bear in mind, from the very outset of their deliberations, the

28 JÜRGEN HABERMAS: *Conocimiento e Interés*. Madrid. Taurus. 1989. *Knowledge and Human Interests*. Boston. Beacon Press. 1971. Translation into Spanish by MANUEL JIMÉNEZ REDONDO, JOSÉ F. IVARS and LUIS MARTÍN SANTO, revision by JOSÉ VIDAL BENEYTO; Id, *Teoría de la acción comunicativa*. I and II. Madrid. Taurus. 1987. Translation into Spanish by MANUEL JIMÉNEZ REDONDO. *The Theory of Communicative Action*. Boston. Beacon Press. I. 1984. II. 1987. Id, *Facticidad y validez*. Madrid. Trotta. 1998. Translation into Spanish by MANUEL JIMÉNEZ. *Between Facts and Norms*. Cambridge. Polity Press. 1996.

29 TOM CAMPBELL: *La justicia...*, *op. cit.*, p. 223.

normative content of constitutional principles. The admission of constitutional justice, by HABERMAS, is made with care.

For HABERMAS, it is impossible to have a real perspective on the nature of human existence from the point of view of the natural sciences, and it must be understood from an internal or participatory angle—something close to MAX WEBER's idea of interpretive understanding—“*verstehen*”. It is not enough to understand “rationally”; one must understand as a participant. Neither are empirical methodologies enough for the social sciences because they may give an “explanation” of reality which would serve to dominate human beings by making them believe that the version these give is the only possible version and that humans have no choice but to adapt themselves to it. We know that people have an autonomous capacity and cannot—or rather should not—be manipulated and controlled. In the legal sciences, as an example of a social science, everything, or almost everything, is defensible so long as it can be defended by argument. This is not arithmetic reasoning and it is not binary, as in “all or nothing” exclusive arguments, proper to the natural sciences, where two and two always make four.

HABERMAS seizes on “language” as Man's distinctive capacity. It permits us to appreciate human society. He shows himself in favour of dialogue, of critical reflection, of what he calls “an ideal speech community”. This is a prerequisite for successful communication and for the justification and legitimation of what is discussed. This focus leads to a kind of ideal type of “communicative rationality”, where people struggle to reach agreement on truth and justification under conditions of no coercion, and where participation is open to all equally. The search for knowledge calls for a “compromise” to establish an “agreement” which transcends mere beliefs. Justice comes as a natural corollary, being a prerequisite of communicative rationality, given that dialogue implies the equality of the participants in it. In this way, truth and justice go hand in hand as indispensable presuppositions of dialogue.

Following JOHN SEARLE's Speech Act Theory and other philosophers of language since WITTGENSTEIN, HABERMAS explores the idea that speaking is a “strategic” sort of action, where “criticizable” affirmations about the world may be made. These may have or may not have “validity” depending on whether they might be defended. Some conditions necessary for communicative action to be “rational” are that the linguistic expressions must have an identical meaning for the different speakers, making them interchangeable amongst speakers, and not merely subjective, this would transcend the purely individual sphere. Further, terms must bear a constant significance. On the other side, the participants must accept responsibility for the positions they take up, pledging to accept only valid claims and the practical consequences of the agreement. Those who take part in the dialogue must be sincere, tell the truth, seek a non-forced agreement, and believe in the normative correction of their assertions, in a context where they share a common language and seek to coordinate their actions. In the ideal dialogue situation, the individual

who treats others as a means to reach his own ends and particular interests is excluded, even though such are common in the real world. In HABERMAS' scheme, certain forms of speech are favoured: telling the truth, for instance, and seeking justice when this is done in good faith and sincerely, as against any idea of interested persuasion and deceit. Might this not leave an opening for a certain degree or minimum content of natural law—in HART's terminology—in a discourse which at first sight would seem to be purely procedural, isolated from substantive material content?

Only those norms which attain the approval of all participants in the practical discourse may be affirmed valid. This situation is known as counterfactual, in the sense that it does not exist completely in fact, but is rather a regulative ideal. Unlike KANT's conception, and, at basis, that of RAWLS, for whom the procedure that takes the decisions may be carried out by one single person, for HABERMAS, the process is inevitably "interpersonal", a socialized version of discourse. Along the lines of HEGEL and MARX, HABERMAS seeks for rationality in the development of human society. Knowledge and justice are not individual achievements. They are enmeshed in social development. In this context, HABERMAS speaks of the "discursive formation of the will". This is an "empathetic" consideration. A norm is just if it is universalizable in the sense that all may desire that it be obeyed in every similar situation. This is not a particularly original idea. It already occurs in KANT's universalizable principle. The truly original thing about HABERMAS' thought is that it has combined a social and normative theory with a realist-sociological theory which, from tip to toe, makes for, what the author calls, "facticity". Force in itself is never enough, there must exist an agreement as to what force might be used and then enforce it.

4.2. John Rawls and Justice as Equity

Justice as equity is the theme tackled by American legal philosopher JOHN RAWLS in *A Theory of Justice* (1971) and developed in his later writing.³⁰

30 JOHN RAWLS: *Justicia como equidad. Materiales para una teoría de la justicia*. Translation and preface by M.A. RODILLA. 2nd ed. Madrid. Tecnos. 1999; Id, *La giustizia come equità: saggi 1951-1969*. A cura di GIAMPAOLO FERRANTI. Napoli. Liguori. 1995. In a shortened versión also in *Journal of Philosophy*, 54, 1957, pp. 653-662; Id, *Teoría de la Justicia*. Translation into Spanish by MARÍA DOLORES GONZÁLEZ SOLER. 2nd reprint of the edition of 1979. Madrid. Fondo de Cultura Económica. 1993; Id, *La justicia como equidad. Una reformulación*. Edited by ERIN KELLY. Barcelona. Paidós. 2002; ANDRÉ CLAIR: "L'affirmation du droit: Reflexions sur la 'Théorie de la Justice' de Rawls", in *Rivista Internazionale di Filosofia del Diritto*, 67, 4, October-December 1990, pp. 537-575; BRUNO DE FILIPPIS: *Il problema della giustizia in Rawls*. Napoli. Ed. Scient. Italiane, 1992; RAUL V. FABELLA: "Rawlsian Nash Solutions", in *Theory and Decision*, 30, 2, March 1991, pp. 113-126.

RAWLS bases his work on procedural equity from an “original position”. This is RAWLS’ version of the state of nature invoked by the classic social contract theorists. In this “original position”, all causes of partiality are eliminated. He thus arrives at an impartial and equitable state. We speak here of procedural equity because what determines the just result is the procedural equity followed in order to arrive at it. In other words, it is supposed that an equitable negotiation will produce equitable results. The method to be followed is “reflexive equilibrium”, which consists of selecting one’s strongest and most deep-seated moral convictions as provisional points of departure, and then working over whatever principles justify these intuitions retrospectively. So, for instance, we attempt to justify our conviction that slavery is evil via the fundamental idea of the equality of all men. We must always be open to revise our original intuitions, since they might be distorted, and thus, through a reflexive process, going back and forth, during which principles are developed and revised, tested and polished up, we arrive at a reflexive balance and at some “meditated convictions on justice”. A coherent synthesis must be achieved of the principles chosen in the original position and of the meditated, moral judgements.

To this moral correction theory of RAWLS, it might be objected that moral intuitions which one works over are not reliable in themselves as pure data, and it is debatable that these perceptions approximate moral truth. Moreover, there are as many perceptions and moral truths in existence—and ideas of equity—as there exist individuals. RAWLS answers these objections by saying his theory of justice refers to the sense of justice most deeply-rooted in modern, liberal, democratic societies—of Western type societies, like the U.S.A. He defends the possibility of arriving at a certain degree of consensus, in spite of differences, in what he calls a “well-ordered society”.

To reach equity, people in the original position must be free and equal, that is they must not be pressurized or subjected to some prior limitation, they must be independent and autonomous. RAWLS denies that the participants will be egoistic, and presents them rather as mutually disinterested, with human desires for their own welfare, of course, but without that bringing with it any envy, or desires to prejudice or harm other people, this would be in their own interests.

RAWLS considers justice a virtue of social institutions. It is not justice as a specific virtue of people. The theory of justice as fairness is a political, not a metaphysical, theory. The author’s idea of justice is based on the following principles: 1.- Everyone who participates in a practice has an equal right to the same freedom as all the others, compatible with an equal right for the rest; 2.- Inequalities are arbitrary unless they are deemed reasonable to the good of all, and on condition that the positions and charges to which they are attached, or from which they might derive, are open to all. These principles describe justice as the synthesis of three ideas: liberty, equality, and compensation for service contributing to the common good.

The second principle looked at defines what types of inequality are admissible, as exceptions to principle one. By inequality we should understand nothing but the differences existing among people. People taking part in a game do not protest because they play in different positions, nor because there are different public charges, such as Presidents, senators, governors, or judges. Each of these positions has its specific rights and duties. The sort of inequality which we should oppose, says RAWLS, is that which does not imply an advantage "for all of us". Everyone must benefit from the inequality for that inequality to be acceptable. Inequalities are unjustifiable where they give disadvantages to some and advantages to others.

Further, any position enjoys special rewards, positions must be won through equitable competition, where participants are judged on merit. If certain advantageous situations prove "inaccessible", those excluded from them have every reason to feel themselves unjustly treated. No rational person should feel despised when he sees others occupy better positions than his own, unless he has grounds for believing this state of affairs is the result of an injustice. The idea of the impartial distribution of benefits and of charges is essential.

On the other hand, possessing an ethic should imply the recognition of impartially applied principles, as much insofar as one's own conduct is concerned, as concerning that of others. It should not recognize principles used for pursuing one's own interests. A person whose moral judgements always coincide with his own interests may well be considered as having no morality whatever. These ideas, already familiar since the Greek Sophists, consider the acceptance of the principles of justice as a compromise among people endowed with approximately equal powers which, although they might impose their will upon one another, for the sake of peace and safety, and in view of the equality of force they share, prefer to submit themselves to a "pact between interested, rational subjects"—to the degree this leads to what they all most desire—and to reach an agreement on a balance of interests.

In RAWLS, justice is conceived of as the practical virtue to be pursued by beings who have overlapping interests in competition, and with ambitions which conflict, and who try to look out for their own rights at the expense of those of others. In a community of Saints, it is difficult to come across any disputes concerning justice; all adapt themselves altruistically to one common goal, the Glory of God. Questions of equity arise when free people, all of whom have no authority over one another, embark upon common enterprises and establish and recognize rules amongst themselves which define and determine a respective quota of benefits and charges. The parties concerned see a certain practice as legitimate when none of them has the feeling that someone else is exploiting him, and when no-one feels obliged to accept any pretensions he does not view as legitimate. People involved in a just and fair practice should be able to openly confront and maintain their respective positions, whatever they might be, and all should accept the set-up. The idea of mutual recognition of principles on the part of free people, each having no authority over

the others, is basic in the idea of justice as fairness. So, in ordinary language, equity is above all applied to practices in which one chooses to participate—for instance, games or the job of judge. Justice, in practices not of one's choosing, such things as slavery. Though RAWLS speaks of "justice as fairness", this does not imply the two are the same thing, similarly, one might speak of "poetry as metaphor" and not mean they are identical notions, though they may coincide. If "*justice as fairness*" is an interesting topic, a step further would be to speak of "*rightness*" as equity.³¹

In the game that is equity, there exists the duty to "*play fair*". Thus, in general, you cannot back out of an obligation, denying the justice of the practice, only when it is your turn to obey. If someone is going to refuse to do something, he should, insofar as is possible, warn everyone of his intentions beforehand, hence cutting himself off from any benefits which might derive from that practice. A "*free rider*" is someone who has his own way and, should he be in a union, would enjoy the advantages of union action but refuse to accept any duties, such as paying the union dues. The duty to "*play fair*" is closely related to other "*prima facie*" duties, like the duty to be trustworthy or grateful. The recognition of the "*fair play*" obligation is a necessary part of the criterion for recognizing "the other" as a person with interests and feelings similar to one's own.³²

RAWLS' most obvious theoretical innovation is his idea of the "original position" behind the "veil of ignorance". Equity is the objective which marks out a society as a well-ordered one. Still, equity is, in principle, already there at the beginning and characterizes the "original position". For ARISTOTLE, equity has no need to appear initially. Equity is justice realized in full only in the act. RAWLS' view is completely different. Equity is the beginning and the end. The original position defines a situation among members who find themselves in a situation of equality. This is what makes such a situation equitable.

The two principles underlying JOHN RAWLS' idea of justice as fairness are: the principle of "equal liberty", and that of "difference". We have already looked at these. These principles are found in a serial or lexical order—the right word would be "lexicographical". That is, it is an order where the first principle must be completely satisfied before passing on to the second, the second before the third, and so on, successively. No new principle can be put into play unless all those preceding it have been completely satisfied already, or else deemed inapplicable. Any type of reasoning which implies a balance of gains and losses for different people, any society which does not assure liberties, and basic civil and political rights, is excluded. Such cannot be negotiated or waived. Justice must have priority.

31 SEBASTIANO MAFFETTONE - SALVATORE VECA (a cura di): *L'idea di giustizia da Platone a Rawls*. Laterza. 1997, pp. 319 ff., esp. p. 333.

32 JOHN RAWLS: *La giustizia come equità. Saggi 1951-1969*. A cura di GIAMPAOLO FERRANTI, *op. cit.*, pp. 70 ff.

A lexical order never compares principles with each other. Those coming before have an absolute value over those which follow, and this allows of no exceptions. Hence, according to the lexical order, there is a first principle: the greatest equal liberty for all. This refers to the basic liberties of any society: political and civil liberties; and, a second principle: a) equal *fair* opportunities, united with b) the principle of difference. In truth, these are the three postulates of the French Revolution: liberty, the first principle; equality, the first principle, and part a) of the second principle; and fraternity, which is part b) of the second principle. Liberty and equality are two clear Rawlsian principles. Fraternity is expressed in reciprocal social esteem and presupposes the feeling of civic amity and social solidarity.

The tension between the two principles of justice is already present in the idea of equity, as a condition which imposes upon all equally, and which also devolves upon each the need to treat every individual with due regard to his needs and interests. In the original position, individuals do not distinguish themselves from others. However, in effective, social life, everyone is entirely a single entity. Equity governs the step from the formal identity of all to the specific, substantial individualization of each one.³³

4.3. *Ronald Dworkin and Taking Rights Seriously*

The Anglo-Saxon legal philosopher RONALD DWORKIN, though he never refers to the idea of taking a decision in equity directly, or to a Court which makes its findings in the light of equity considerations, clearly considers this possibility when he refers to the formation of sentences and legal findings which are more based on principles and standards than on rules and legal norms. In this case, the legal tools would be these principles, rather than legal norms. DWORKIN, however, never falls into relativism or absolute subjectivism, and he does not attribute an excessive role to intuition. He holds there is nothing extra-legal about the judge's decision based on equity—in what he calls principles regarding justice. There is nothing irrational nor intuitive about them. When faced with the same case where various legal principles may be applied, the principles applicable do not exclude one another, in an all-or-nothing way, as happens when there is a conflict of norms, rather, the form of applying principles is relative and more complex, in relation to the weight and importance of the principles at stake. These may co-exist together to a greater or lesser degree, while none need be left entirely out of play.

According to his famous phrase, justice is based on rights and rights are “triumphs”. Wheresoever a basic right is applied, nothing should be allowed to stand in its way. DWORKIN places his emphasis on equality, he puts this

33 ANDRÉ CLAIR: “L’affirmation du droit: réflexions sur la Théorie de la Justice de Rawls”, in *Rivista Internazionale di Filosofia del Diritto*, IV, 1990, pp. 545-564.

before liberty, and his fundamental moral principle is “equal consideration and respect”. He maintains that law contains “principles” as well as rules. The principles are not distinguished by their greater generality or vagueness, but by the fact that, in legal reasoning, they have a certain “weight”, not an all-or-nothing effect. That is, giving reasons for a particular decision, these principles offer a specific force to the reasoning, though they do not thereby conclusively determine the case in question. Principles operate in legal argumentation especially where “hard” cases are concerned—that is, cases which are not clear-cut. There, there are no relevant rules which are not ambiguous or else the rules produce results unacceptable to certain basic principles of justice. These principles encompass rights whose normative hierarchical standing is higher than those of the common positive law. Should these principles be accepted, then judges have a sufficient basis upon which to arrive at correct decisions, in accord with equity, in every case, no matter how difficult such cases may be. DWORKIN holds judges, when determining what principles of law there are and what weight to award them in specific cases, decide according to their own personal judgements what exactly the law is. Their task is not merely limited to complementing the already existing law. Following DWORKIN, there exists one “correct answer” for hard cases. This is by way of an ideal which we must try to approximate in an objective fashion. The process involved is similar to that of writing a “chain novel”, where a group of writers, taking account what has been written before, develop a new and fully-coherent chapter. They then pass on the baton to the next author. Each author is limited to an extent by what preceded his contribution, still, he also enjoys a fair margin of freedom. From this, the conclusion falls out that the idea of equity, and the legal enterprise in general, must be coherent. This means that judges may appeal directly to principles of justice and equity in order to see, amongst various, alternative decisions, which best suit existing law, choosing from them which is the “best possible decision”, in the same way in which each of our hypothetical authors in the “chain novel” tries to write the best chapter he can.

For this London-New York professor, the ultimate, basic right is the right to “equal consideration and respect”. This is a right different from real “equal treatment”, a term which he uses to refer to those situations where each person ends up receiving and having the same quantity of a valuable good being distributed. Justice implies the right to be treated as an equal, not the right to equal treatment. This former principle is found in the very essence of the concept of justice, by means of an abstract principle which may be satisfied via many different, specific, political ideals. These might be egalitarianism, meritocracy, general utility, or Rawlsian fairness, amongst others. Equity consists in this, not in distributing goods unequally because some citizens are held to deserve more consideration than others, but in accounting no-one more noble or in any way superior to his fellows, in stressing we are all worthy of being treated with equal consideration and respect.

DWORKIN rules out various types of equality. He discards “welfare” equality, since there is no practicable and acceptable way to measure welfare. Equality “of satisfaction” must go too, because it depends on tastes and individual goals. These are morally arbitrary and controversial. It would be especially inequitable to take expensive tastes into consideration. Equality “of achievement” is likewise excluded since it is relative to subjective factors like individual preference and ambition, and it would be highly inequitable to take note of unusual ambitions. On the other side, he shows himself in favour of “distributive” resource equality, easily measurable and controllable by way of market mechanisms. Such an equality should not take pure luck into account, not even that which is at work in natural endowment distribution, what the writer calls the “non-sensitive to special gifts” provision, however, not for that is it sensitive to personal ambition. We will not be compensated for expensive tastes, nor for those gifts we possess which are below par, but we will be protected against circumstances which might gravely affect us adversely and against serious incapacities. All of this is to take place via an “equitable” agreement similar to that reached by the hypothetical survivors of a shipwreck, hurled upon a desert island which has an abundance of resources, and where there are no native peoples. The fair division, in these circumstances, would be that which passes the “envy test”. This test sees whether anyone would prefer a different lot from that which the draw has given him. If he would, the test has failed, if not, it is successful.³⁴

DWORKIN sets out from the idea of equality as equality of resources. Resources are necessary to satisfy basic needs, but, at the same time, they are scarce. Individual life is good to the extent that, in an autonomous manner, the challenge of skillfully obtaining resources is met. The “envy test” is one parameter serving to measure how far the challenge has been overcome. It implies that each person taking part should ask himself whether he is content with the resources he has received during the distribution, one has been carried out through the “Walras auction”—named in honour of the investigator who thought it up, LEON WALRAS. This auction, a thought experiment in an ideal world, may only finish when no person bidding remains envious of the resources any and all of the others control of all resources available. The test must be applied throughout the history of any society, that is, in a diachronic fashion. For instance, should we ask Mary if she envies Peter, she will prob-

34 RONALD DWORKIN: “What Is Equality? Part II: Equality of Resources”, in *Philosophy and Public Affairs*, 10, 1981. Id, “In Defense of Equality”, in *Social Philosophy and Policy*, 1, 1983. Id, “Why Liberal Should Believe in Equality?”, in *New York Review of Books*, 29, 1, 1983. Also in *A Matter of Principle*. Cambridge. Harvard University Press. 1985. Id, “What Is Equality? Part III: The Place of Liberty”, in *Iowa Law Review*, 73, 1987. Id, “What Is Equality? Part IV: Political Equality”, in *University of San Francisco Law Review*, 22, 1987. Id, *El imperio de la justicia*. Barcelona. Gedisa. 1988. Spanish translation by CLAUDIA FERRARI, revision by ERNESTO ABRIL: *Law’s Empire*. London. Fontana. 1986. Id, *Ética privada e igualitarismo político*. Barcelona. Paidós. 1990.

ably answer “yes,” since, at that moment, Peter has more than she does. On the other hand, if it is made clear to Mary the type of life Peter lives and has lived, in comparison with her own, which has lead him to have more resources (his work decisions, his free time with family and friends, and the like), she might well reply that she does not envy him in the least and would therefore consider their respective amount of resources about equal.

In the “*Walras auction*,” the auctioneer gives to each of the shipwrecked who arrive on the island an equal number of counters which they may use, perhaps shells. The counters serve to acquire any goods desired. Later, the auctioneer divides up the available resources by lot. Here “opportunity costs” come in. Given that, in human life, time and incomes are limited, the value of the alternative chosen is measured by comparing the decision effectively taken with that which was passed up. The decision is the right one if, according to the parameters of each individual, it proves more valuable than the options rejected. It would be the wrong decision if it proves less valuable. In DWORKIN’s formulation, State intervention must be limited to form the “correct circumstances” background for the process to be possible under conditions of liberty and equality. From his liberal perspective, all forms of State paternalism must be rejected. This idea is found in the distinction between negative and positive freedom, first put forward by ISAIAH BERLIN, at a lecture in Oxford, in 1958.

What role does luck play here? For DWORKIN, there are two sorts of luck: “option luck” and “brute luck.” When, for example, I go strolling down the street and a meteorite smacks down into my head, we might say that I had bad luck of the “brute” kind. Similarly, if an accident caused me to lose 95% of my mental capacities, we could say I had bad luck of the brute variety, again. However, if I had been offered insurance against the possibility I should be left incapacitated by an accident and I had not taken out the insurance, choosing rather to invest in high risk bonds, and then I was left incapacitated, then, bad brute luck would, for me, also turn into bad option luck, because I did not take up the insurance. Unequal distribution of resources and personal skills must be located in the brute luck sphere, since no-one chooses to be born ugly, silly, or incapacitated. Still, our bad or good brute luck may be neutralized or potentiated *ad infinitum* through the options and choices each of us goes for when giving direction to our lives. Here “emotional” intelligence plays a much greater role than any intelligence quotient. What is important is the ability to manage our lives and our emotions well.

In the *ideal-ideal* world, the principles and parameters which should mark out the system, whereby we carry out the “auction” above referred to, would be: the principle of “security,” in line with which the system must include norms that reduce people’s liberty to maintain the lives of others, and allow them to keep control of the resources they have acquired; the principle of “abstraction,” which sets out that goods must be auctioned in the most abstract way possible. Thus, rather than auction a field sown with wheat, steel, or furniture, an uncultivated field should be auctioned, iron and wood should be auctioned.

Our experiment also requires the principles: of “correction”; “of authenticity” (or the possibility of forming an authentic personality with views of one’s own, as regards affairs of conscience, religion, work, interpersonal relations and the like, before the auction gets underway; also, the possibility of changing these opinions); of “independence”, which cuts out social prejudice consequences from the auction (that is discrimination due to race, gender, sexual orientation, and the rest). As against this ideal-ideal world, in the *ideal-real* world there is a lack of equality, shown in a lack of resources and of liberty. Finally, in the *real-real* world there are situations of enormous inequality and a dearth of commitment to others, on the part of citizens and political leaders. Here, in this world, the principle of “*victimization*” rules. A person is a victim when the value of his freedom is less than that which it would have been in any “defensible” distribution, proper to the ideal-real world.³⁵

Though DWORKIN does not set it out thus, this departmentalizing of worlds into the *ideal-ideal*, the *ideal-real*, and the *real-real* has a great deal to do with justice and equity. Justice, as an ideal, functions rather in the first two worlds, and it is when we approach more the real-real world that we see the need for the abstract ideal to be converted into “fairness”, adapted to the specific realities of life.

4.4. Other Conceptions Regarding the Same Theme: Nozick, Posner, Sadurski, Marx, Young

Apart from the theories canvassed, there are other ideas of the just and the equitable in contemporary legal debate. Amongst them, the theory of justice as “a title”, or an entitlement, as it were, can be seen in ROBERT NOZICK—in his work *Anarchy, State and Utopia* (1974), a 70s classic, published three years after RAWLS’ *A Theory of Justice* (1971). There he shows himself an advocate of the libertarianism of the minimalist State, with his rampant “*laissez-faire*”, all very much in tune with the new right-wing politics of MARGARET THATCHER and RONALD REAGAN.³⁶ Rights, like justice, are, in NOZICK’s terminology, questions of “*entitlement*”, a term referring to the fact of being in possession of powers or rights. Entitlements do not depend on the grace or favour of others. They are duties owed to whoever has a title to rights and who may demand them because they are his due. Here, rights are especially connected with the analysis of “formal” justice. This sort of justice may be defined as the treating of persons according to their existing positive rights, rights which are socially recognized. Question of “material” justice are dealt with apart, have recourse to something other than the appeal to rights. A bridge linking formal and ma-

35 RONALD DWORKIN: *La comunidad liberal*, *op. cit.*, pp. 55-110.

36 ROBERT NOZICK: *Anarchy, State and Utopia*. Oxford. Blackwell. 1974. There is a translation into Spanish by ROLANDO TAMAYO Y SALMORÁN: *Anarquía, Estado y Utopía*. México. Fondo de Cultura Económica. 1988.

terial justice is the recourse to the idea of human rights. This would allow the extension of the justice as “formal justice rights” hypothesis to include material justice. Amongst these entitlements, or rights, where the idea of justice is expressed, NOZICK especially treats of property or “tenures”, by which he means possessions.

Another contemporary theorist of justice is RICHARD POSNER. His work follows the traditional utilitarian line. He presents his theory of justice as “efficiency”. In his book *The Economics of Justice* (1981), it emerges that his interest in justice mainly has to do with the application of the law’s “rentability”.³⁷ He offers an economic idea of justice which compares it to economic efficiency, though he never falls into the extremism of reducing justice to just profits in the maximizing of wealth. POSNER’s theory’s main achievement is the application of a sort of individual economic theory to the content of legal doctrine in such areas as the law of damages, contractual law and criminal law. He offers, like NOZICK in this, an enthusiastic defence of libertarian capitalism.

POSNER defines “efficiency” as the “total satisfaction of those preferences which are backed up by money”. In these terms, an efficient society is one where goods are in the hands of those with the ability and the desire to pay the highest prices for them, since these will be the people who most value them.

Maximizers of wealth project themselves through a system of rules and sanctions administered by judges and lawyers. Citizens break the law when the economic benefits one might receive outrun the advantages to be had by respecting the law, and submit their disputes to litigation if they hope thereby to obtain more economic benefits than the equivalent legal fees come to. The Courts, for their part, decide cases coming before them in the most economically efficient way, applying the most severe sanctions to the most economically destructive behaviour. They adjudicate rights to those litigants who are willing to pay the highest price for them in a free market, and they decide upon responsibility and damages in a way which ensures resources go to those who have the greatest ability to capitalize on them. Whichever party most values a right will always pay more for such a right, or its benefits, accordingly to that party the Courts adjudicates that right.

Another idea of justice, as this concerns the subject of equity, is that where justice is seen as “merit”. This is a very old idea, and anciently it was said that to be just was to give to each his just deserts—the “*suum cuique tribuere*” of the Roman “*tria iuris praecepta*”. There has been a recent return to the idea that merit is an essential component of the idea of justice, given the limits of utilitarianism. The enthusiasts for the theory of merit might be traced from ADAM SMITH and IMMANUEL KANT, up to JOHN STUART MILL and HENRY SIDGWICK. A special mention should be made of the Australian-Polish philosopher, now living in Italy, WOJCIECH SADURSKI, and his *Giving Deserts*

37 R. A. POSNER: *The Economics of Justice*. Cambridge - Massachusetts -. Harvard University Press. 1981.

Its Due: Social Justice and Legal Theory. His theory of the “equilibrium” of duties and benefits hypothesis, of which justice consists, rests upon the central notion of merit.³⁸

According to the theory of merit, justice—and equity—are achieved when there is a balance or proportion between the distribution of that which is well deserved—that is, which is positive—and that which is not deserved—the negative, especially via the administration of awards, punishments and suitable compensation. Although the term “*desert*” may be used in a broad sense, in the theory of justice here outlined it is to be understood as “moral merit”, in a dual sense: as a counterweight to conventional or “institutional” merit, in the sense in which it presupposes no pre-existent social norms or distributive rules; and as a contrast to the “natural”, that is deserts which accrue neither by choice nor by human intervention, those obtained through a sort of blind chance, and which require no effort whatever. Many merit theories also demand merit be linked to goodness, to morally commendable motives. This is not SADURSKI’s case. He demands no individual, moral merit in his theory. He only calls for a beneficial effect upon society, though this is not his essential purpose. What SADURSKI does require, so that we might speak of merit, is behaviour which must in some way be “burdensome”, that is, it must involve an element of “sacrifice”, work, risk, responsibility or bother.

The theory of desert does not prevent us from viewing justice as a “distribution” model nor as a possible “rectification” of injustice, with respect to the idea of human dignity. Alleviating basic needs might be a question of justice—and of equity—where needs are unmerited. That is, they are not the result of any immoral or thoughtless choice on the part of whoever is suffering from them. On the other hand, the theory of deserts might explain that when—through intelligent choice and people’s effort—the fruits of their labours greatly “exceed” their level of deserts, this apparently inequitable situation should be recompensed. The idea is that the equilibrium between every member of society’s duties and rewards must be the same. Thus, someone born with important disadvantages should be compensated with rewards which make his position approximate to the utmost the position of other, non-disadvantaged people, in the same way that the thief who steals should be deprived of the goods he has stolen, thus returning him to the same position as that of someone who has stolen nothing.

The problem resides in the insuperable theoretical and practical problems which exist when it comes to measuring desert. It requires considerable knowledge of the inner workings of the mind and of people’s emotions should we try to measure their merits. Those who criticize merit theories of justice also allege that these tend to confuse the moral with the legal, creating an unjustified and coercive interference in the life of citizens. Further, institutionalizing

38 WOJCIECH SADURSKI: *Giving Desert its Due: Social Justice and Legal Theory*. Dordrecht. Reidel. 1985.

reward for desert undermines the bases on which merit is acquired. People would behave in a meritorious fashion just to get the rewards, that is out of self-interested motives. In the same way, the conduct of someone abstaining from committing a crime simply out of fear of punishment would not be considered meritorious. The problem comes down to whether we admit prudential conduct as a basis for desert, since avoiding sanctions and trying to obtain remuneration might be considered common examples of equitable and prudential behaviour. Another prickly difficulty for SADURSKI's theory of desert is that effort is not always the same as a charge since the latter may be welcomed and enjoyed. To get over this hurdle, the writer appeals to the concept of the choices the "average person" would make, that is, the majority of individuals in society.

Another important idea of justice—and equity—is MARX's justice as a "*critique*" of a situation of exploitation. Most contemporary theories of justice have their origins in the U.S.A. This explains the predominance in them of liberal, capitalist ideas, and the Marxist affirmation that justice is intrinsically a bourgeois, capitalist, individualist idea is well-taken. From that angle, the socialist theory of justice critiques the idea of received justice, calling it ideological, an artifact at the service of dominant class interests, bourgeois interests. It is beneath ideas like this, that are presented as universal and immutable, that there lies a reality of domination. Bourgeois justice is but a deliberately deformed idea of that unpleasant reality. It is an ideology, part of the "superstructure", an instrument of exploitation which alienates the dominated class, the proletariat. Justice, for MARX and ENGELS, is nothing but the glorified, ideologized expression of existing economic relations.³⁹

Nevertheless, the recent debate on MARX and justice takes up the question of whether, at a deeper level of analysis, there might be some normative ideas of legal justice which would be characteristically socialist, which would tackle some of those values that could only be realized in a socialist society. More specifically, it is held that socialist societies approximate the principle of "*distributive*" justice: from each according to his ability, to each according to his needs, a maxim MARX himself adopted in the *Gotha Program*, a sort of communal egalitarianism.

Everything depends on whether we adopt a "strong" version of Marxist dialectic materialism or a "weak" version. The strong holds that all ideas of justice—since they are instruments of the bourgeois class—should be rejected, and the only important thing is the economic infrastructure. The weak version allows socialism to express its own counter-values to capitalist justice.

The Marxist idea of justice might be approached by an analysis which distinguishes between formal justice and material justice as contrasting concepts. Thus MARX differentiates between a formal justice—a legal concept, in conformity with prevailing norms, as a justice of a specific system or "internal" jus-

39 KARL MARX: *Obras escogidas*. Madrid. Fundamentos. 1975.

tice, the which consists in the efficient application of the system's norms—and an “external” justice system. This latter may serve as an instrument to critique the other. At first view, a system is unjust unless it efficiently applies the rules regulating it. From another angle, justice is not something relative to a specific system. It is an “absolute ideal”. Its light may be shed to criticize all the different systems. In accord with the first model, a society is unjust to the extent that it does not coherently apply its own norms. In this sense, justice is a morally neutral concept, a formal justice. It restricts itself to verifying its own coherence from the “internal” point of view, to adopt HART's terminology. Still, there is a material idea of the just, a justice with content, one which is not morally neutral. This justice allows us, from an “external” observer's stance—the Marxist, for instance—, to criticize societies, and capitalist systems, and to conceptualize law as a phenomenon typical of those systems which might disappear with the disappearance of social classes, achieved via the revolution and the setting up of a communist society. According to this idea of the just and the equitable, rights are instruments which legitimate possibly antisocial behaviour and which are assuredly self-interested. This is justice as “critique”, proper to Marxism.

However, reality has revealed the communist idea to be utopian. As a utopia, it works by giving priority to equality over liberty, the liberal capitalist prime value, society over the individual, and where the most important vector would be distribution according to need and a contribution according to ability. Contrary to “distribution following merit”, the capitalist ideology—where social inequalities are explained by appeal to the different value of the contributions made by those who take part in production and its financing, where those who triumph in the system of free trade and private property “deserve” greater profits because of their intelligent decisions, their hard work and their greater skills—, the socialist alternative offers distribution according to social needs. Whether we call these improvements which communism promises in questions of justice and equity—or call them the demands of simple humanity, community and self-realization—, the truth is that it prioritizes the needs of all considered as beings of equal value, whose sufferings are accounted equal, regardless of social class or wealth. The communist ideal is one impregnated with the discourse of justice and equality.

Finally, we might make mention of the conceptions of justice developed from the liberal, *feminist* perspective. These have been voiced from the XIXth century on, as a question of gender, of the equality of rights between men and women. More, postmodernist feminists point to the existence of multiple gender perspectives, there being important differences to mark when considering women of distinct races, classes, and circumstances. We find, for instance, CAROL GILLIGAN's famous thesis. She distinguishes between the masculine vision of justice, where emphasis is placed on norms and rights, and the feminist perspective, which centres more on interpersonal relationships. Here, what is important is to maintain good relations and not, primarily, which rights

have been violated; humanity must triumph over justice and not the other way about.

Another important voice in this debate is the contemporary feminist IRIS MARION YOUNG, who sets out her views in her most important work *Justice and the Politics of Difference* (1990).⁴⁰ There, she signals two social conditions which define justice. They are oppression—the institutional limit on self-development—and domination—the institutional limit on self-determination. Injustice comes about when domination leads to oppression. Oppression, as much as domination, are both well exemplified in racism and sexism. Oppression divides into five important types or categories: exploitation—taking up the Marxist idea; marginalization—of those with no work or no house, or who suffer from some mental illness; powerlessness—applicable to those who have work but whose experiences of work are a flagrant negation of their freedom to be themselves and develop their abilities, for instance, the case of the non-professional, ordinary worker; cultural imperialism—when the culture expresses the ruling group’s vision, as if it were the only possible vision; and violence—when force is used to humiliate and terrify the victims, be it physical or psychological violence, as, for example, domestic violence.

Certain unacceptable dichotomies have to be overcome. Thus, we must get rid of that idea which opposes the *private* sphere, a “woman’s place”, to that of the *public* sphere, reserved for men. This is unacceptable given that oppression is as much a characteristic of the private as of the public world. Another otiose dichotomy is that between *feelings*—private and female—and *reason*—public and male. This is not only because reason is influenced by feelings, but also because, as cognitive theories demonstrate, reason also influences the sentiments, and we only feel things we have previously thought, so much so that changing our thoughts may have an effect on our emotions and feelings, causing a modification in both.

For YOUNG, it would be a mistake to look for “impartiality” as a virtue. When we are impartial, we separate ourselves from our own situation and from the peculiarities of our own selves. This is the very opposite of equity as justice in the specific case. It is part of the false belief that the moral is the universal, that is, the case where justice is but an abstract idea. A completely detached person is an empty person, more amoral than moral. I am myself and my circumstances, as ORTEGA Y GASSET said. As against RAWLS’ idea of the “original position”, behind the veil of ignorance, the fact is that “the vision embracing all points of view converts into a vision from no particular point of view whatever”. It is like trying to describe the “normal man”, the average man. What would such a man really be like?: neither tall nor short, neither clever nor stupid, neither good nor bad; a neutral man. In the same way as “normal-

40 I. M. YOUNG: *Justice and the Politics of Difference*. New Haven. Princeton University Press. 1990. There is a Spanish translation by SILVINA ÁLVAREZ: *La justicia y la política de la diferencia*. Madrid. Cátedra. 2000.

ity” does not exist, as FREUD said—it is rather an ideal to hold onto—, so too is reality plagued with differences and peculiarities. Moreover, in practice, impartiality is condemned to failure since it overlooks all inequalities and oppressions to which the dominated are subject. YOUNG’s alternative to impartiality is justice, precisely understood as equity. She proposes “affirmative action” programs which seek to award priority in employment to black people or to women so they might be better represented. All this means for YOUNG that the problem is not discrimination, but the oppression linked to it. Equality of treatment, understood as an absolute non-discrimination, would be equality as sameness, as assimilation, as homogenization, overlooking group differences which may make affirmative measures necessary. Non-discrimination should not be seen as an end in itself. It is only one possible means of achieving greater justice and equity.

5. Equity in Political and Constitutional Law

Many matters might be discussed when taking on the theme of equity in the field of political and constitutional law. Below we outline but three: equity and the division of powers; equity and the principle of legality; equity and civil disobedience. In all three, we are faced with legal principles and areas which represent equity law as opposed to strict, written law.

5.1. *Equity and the Division of Powers Principle*

The crisis facing sovereignty in its absolute or pure state comes about, in great part, because of the intermediary effect of the division of powers principle which received its classical formulation in LOCKE and MONTESQUIEU. From the concentration of power in the hands of the monarch or the people, as the sovereignty idea would have it, an idea giving rise to many abuses alien to the spirit of equity—as, for instance, with the Enlightened Despot’s “everything for the people, but without the people”—things passed on to a limitation of power, through the distinction made between legislative, executive and judicial power. For a unity of power was substituted a system of checks and balances on power. Now, no longer did one single State will dominate, but various wills balancing out each other. This made the legal framework more inclined to equity, in order to prevent any one power’s going beyond its confines in the exercise of its functions, it could be held back by the other powers.

In theory, in the State under the rule of law, the three powers in play are in equilibrium, with a certain predominance of the legislative, Parliament being the body which, in theory again, directly represents the people. Nevertheless, in practice, in interventionist States, as distinct from what occurs in Liberal Democratic States, the executive predominates, and has great normative power. A further feature of current rule of law is the intensification of the presence

of jurisdictional bodies, with new and rather specialized powers. There is, for instance, often a Court which has Constitutional jurisdiction. This Constitutional Court helps enrich the schemata of powers, but it also brings with it the danger of interfering with the legislature and the judges (what might be called the “War of the Courts”). So, “*self-restraint*” is needed in the development of its duties, it must adapt these to equity.

The division of powers principle has evolved since LOCKE’s day. In the following way, GARCÍA-PELAYO synthesizes the contrast between the classical model and the division as it is seen in the modern Social Democratic State. Firstly, on the “*axiological*” side, in the classical formulation, liberty was the main value, this tried to stop State action through self-limitation of its powers. In today’s Social State, liberty finds itself articulated along with other values, such as economic security, and this comes about by concerted action by all the State powers together.

Secondly, as far as “*organization*” goes, the classical arrangement answered to a division of tasks, each function fell to a different body, the one most suitable, given its structure. Parliament drew up the laws because, as MONTESQUIEU said, “*deliberer est le fait de plusieurs*”. The executive, applied the laws, since “*agir est le fait d’un seul*”. On the other hand, in the Social Democratic State, one sole power fulfills many functions and also the same function may be carried out by the different powers. Thus, a part of legislative activity is realized by the government through legal decrees and legislative decrees. Indeed, it even handles the majority of formal legislation, that is, though approved by Parliament, the legal projects have their origin in plans drawn up by the government. In turn, the judges, in their role as overseers of the constitutionality of the laws, are involved in a great deal, considering they are theoretically more than “*la bouche que prononce les paroles de la loi*”, according to MONTESQUIEU.

Finally, from the “*sociological*” angle, each power was traditionally based on the autonomy of the bearers of that power (the monarch, the executive; the nobles and the Third Estate, the two Houses; and the Guild of the Robe, the judicial). However, since the French Revolution, the Administration grew up as an autonomous power, with a *per se* sociological reality, a species of “*Beam-tenstand*”, or Estate of Bureaucrats, who stay at their posts even though the make-up of government and of Parliament change. Together with this fourth power, there have also arisen political parties and special interest organizations. There is also the novelty that, as government and Parliament members might belong to the same political party, their independence has become only relative.

5.2. Equity and the Principle of Legality

Perhaps the most important Article in the 1978 Spanish Constitution, as regards the rule of law, after Article 1.1, might be Article 9 and its three sections. In Section 1, we find: “*Citizens and public powers are subject to the*

Constitution and to the rest of the legal system". This is the broadest embodiment of one of the basic rule of law pillars, the principle of legality.

We might understand—in a wide and somewhat improper sense, as used on the Continent—by the rule of law ("principle of legality," "*due process of law*", or "*regne de la loi*") a State where law is held to be the supreme source of the legal system. This is against English-style law, "case law", where that is the main source of the system, and where but one sentence in one case by any level Court serves to establish law.⁴¹

In the strictest sense, the principle of legality has various manifestations: 1) As the principle of criminal legality, as we have seen. This is the non-retroactive effect and the requirement that crimes appear "on the books", set out in the Spanish Constitution in Article 25.1; 2) As the principle of administrative legality. According to this, Public Administration and executive power activity, in general, cannot be arbitrary. It is subject to the law. The Spanish Consitution specifically refers to this in Article 103.1. There it sets out that "*Public Administration shall serve the general interest with objectivity and act in accord with principles of efficacy, hierarchy, decentralization and co-ordination, subjecting itself fully to the written laws and the legal system*". Article 106.1, in part, says: "*the Courts control the reglamentary power and the lawfulness of Administration acts, also these are subject to the ends which justify the said behaviour*". There is also Article 54, concerning the Public Defender. It points out "*he may supervise Administration behaviour, reporting it to the Houses of Parliament*"; 3) Finally, in its most typical sense, the legality principle presupposes the legislative powers submission to the Constitution. The Constitutional Court over-looks that this shall be the case.⁴²

The law implies legal security, still, sometimes, there is an excess of "statism" in what has already been codified in writing, in disregard of the changing reality of social life. The law does not go against equity, but it may need its help. The legality principle is consistent with the rational legitimacy of which MAX WEBER speaks. This means simply that laws not men rule. Likewise, this goes for the legal security principle and the hegemony of Parliament, in the classic division of powers scheme. The legality principle might appear a principle at odds with equity. Legality is general and abstract, it demands obedience to forms. Equity is concrete and looks to contents. Legal demands pit the coldness of the law against the warmth of life.

The apparent contradiction is only that, apparent. Because legality also means guarantees, respect for the Constitution—the constitutional legality principle—or the Administration's subjection to the law—the Administration legality principle—or criminal typification of crimes—the criminal legality

41 FRANÇOIS NIVET: "Équité et légalité", in Various Authors: *Justice et équité*, op. cit., pp. 157 ff.

42 GARY L. McDOWELL: *Equity and the Constitution. (The Supreme Court, Equitable Relief and Public Policy)*. Chicago. University of Chicago. 1982.

principle—and all this, besides ensuring obedience to forms, is also a guarantee of respect for freedom and the struggle against the arbitrary. In fact, judges, the supreme administrators of legal equity, are only limited in their independence by their subjection to the law. The legislator, when he draws up laws, must make use of legal equity, must issue just norms, must make them subject to constitutional principles. In this way, equity must often act to mitigate the rigour of the law, always so long as the judge, legislator or citizen using equity, does not go beyond his purview and always acts within the framework of the legal, the written law and the Constitution. Equity cannot judge the law, it must judge according to the law.

There are two basic versions of the legality principle in the Western constitutional tradition. The first, in the phrase coined by GÜNTHER WINKLER, is known as “*negative Bindung*” or negative binding. Here, the law is the limit or border restricting the legitimate activities of the other powers. The other is positive binding or “*positive Bindung*”, where the law is the principle, the basis or the legitimating presupposition for how the powers act. In negative binding, all is permitted which is not forbidden. The only tie to the law lies in not breaking it. As EISENMANN puts it, in the absence of law, there can be no illegality. In “*positive Bindung*”, however, legality is conformity to law and not only not going against the law. Turning EISENMANN’s argument upside-down, we might say where the law does not exist, there is no legality. Negative binding refers to material, positive, formal law. This presupposes the existence of a space outside the law (“*Gesetzesfrei Raum*”, as OTTO MAYER has it), which might be taken up by the other powers; there, where such spaces exist, it is not the other powers which occupy them, but rather, Parliament is called upon to produce suitable laws to fill the spaces up with law. After some hesitation—the draft project of the Spanish Constitution, 5th January, 1978, considered a mixture of both versions—the Constitution went for “*positive Bindung*”. Should it have accepted the other system, equity’s role might have been greater.

In its Article 9.1, the Spanish Constitution theoretically set out a triple scheme: citizens’ submission to the law; Parliament’s submission to it; the other public powers’ submission to the law.

As regards the other public powers’ submission to “*the Constitution and the rest of the legal system*”, it might not be amiss to underline this express mention to the Constitution. We see clearly that, though it is part of the legal system, it occupies the preeminent position there. The Constitution is established also as the source of directly applicable law. The use of the term “legal system” is equally noteworthy. Though it only means the positive legal system—as opposed, for instance, by the German formula which speaks of “law and rights”, separately—it does appear to allow for the admittance of natural or “super-

positive" law. It includes *besides general principles of law, as informing the legal system, through principles of law, equity*.⁴³

5.3. Equity and Civil Disobedience

Here, we shall consider civil disobedience as "the conscious and intentional breaking of a legal norm, as having a public and collective nature, as, in principle, being peaceful, as *appealing to ethical principles, to reasons of conscience*, with legal system innovation and reform in view". It is an idea about which no absolute agreement exists, but which is generally accepted as outlined by the majority of writers, especially in the English-speaking world, where the phenomenon has been much studied.

It might not be pushing reality too far to consider civil disobedience as an equitable application of law rather than as an open, pure infraction of it. This conclusion may be arrived at using any of the two main meanings of equity as usually defined in either Roman-Canonical law or Ancient Greek practice.

According to the Roman-Canonical idea, equity is humanity, benignity, mercy when applying the law, lessening its rigour and humanizing it to prevent the aphorism "*summum ius, summa iniuria*" from coming true. It is a conception of equity which goes into the material aspects of law, into its very content.

Contrariwise, the Greek idea of equity, as "*epieikeia*", makes us focus on the merely formal or external aspects of law, while equity is justice in the specific case, the adapting of law, abstract by definition, to singularities, without entering into any knowledge of whether this is more or less benign, better or worse, from the content point of view.

Whichever of these two meanings we adopt, we may relate it to civil disobedience. It might happen that whoever civilly disobeys is doing nothing but asking for an equitable application of the law, in any of these two senses. In some cases, there is a law which is too strict, which, if applied mathematically, would cause injustice. In other instances, the law is too general and there is a certain group, a minority, which requires that justice be adapted to the demands of their peculiar situation.

In both events, the disobedient judges that justice as an absolute should turn into fairness, justice for the specific case. Sometimes this requires a sweetening of the law, at others it calls for making an exception to the law. It is true that, if what we are looking for is a rigorous application of the law, in these cases, we must admit the norm has been infringed. However, if we are not speaking in absolute terms, but rather in relative ones, if we do not look only rigidly ahead, but rather open up our field of vision, if we do not argue for "all-

43 Cf. MARÍA JOSÉ FALCÓN Y TELLA, "Constitución española de 1978 y Estado social y democrático de Derecho", in Various Authors: *El Estado de Derecho en la España de hoy*, Madrid, Actas, 1996, pp. 169-213.

or-nothing”, but admit grading, then, we might say that what we have done is simply an equitable application of the law. It could be objected that, in the case of these equitable applications of the law, there is then no real violation of the law and, hence, we cannot truly speak of any civil disobedience. The fact is, in reality, the frontier separating law-breaking from the non-application of law for reasons of equity is uncertain ground, its confines are poorly defined, it is a zone of quicksands where the one who judges must act with care and stealth, of course, but also with flexibility, keeping his balance, seeking out the happy medium, between disobedience pure and simple and equitable disobedience, or, in 90% of cases, civil disobedience.⁴⁴

6. Equity in Financial and Tax Law

Equity also has some say in Financial and Tax Law.⁴⁵ Sticking particularly to the Spanish system, questions of equity are fundamentally of two kinds: one, the constitutional principles as regards tax and, two, the main interpretation theories surrounding tax norms.⁴⁶

6.1. Constitutional Principles in Tax Matters

Taxation might be defined thus: “a *pecuniary levying by the State or other public body with the aim of financing public expenses*”. Spanish constitutional principles relative to this are especially found in Article 31, Chapter II, Title I, concerning “*rights and freedoms of the Spanish people*”. It reads as follows:

44 Cf. MARÍA JOSÉ FALCÓN Y TELLA, *La desobediencia civil*. Prologue by FERNANDO GARRIDO FALLA. Madrid. Marcial Pons. 2000, esp. p. 233. There is an English translation by PETER MUCKLEY: *Civil Disobedience*. Prologue by MARTTI KOSKENNIEMI. Leiden-Boston. Martinus Nijhoff Publishers. 2004.

45 MAX FRANK: “Dépenses fiscales, transferts explicites de l’Etat et équité”, in *Recherches Economiques de Louvain*, 42, 2, 1976, pp. 81-109; ALFONSO UTRILLA DE LA HOZ: *Las respuestas del federalismo fiscal a los problemas de la equidad territorial*. Madrid. Facultad de Ciencias Económicas y Empresariales. Universidad Complutense. 1990; LINA U. TUKAN: *Equité et nouvel ordre économique international*. Nice. Université de Nice. Institut du Droit de la Paix et du Développement. 1986; ROBERTO TAMAGNO: “Equidad tributaria”, in *Enciclopedia Jurídica Omeba*, X, pp. 437 ff.; RATTI: “Riduzione ad equità del contratto rescindibile e variazioni del potere di acquisto della moneta”, in *Banca, Borsa e Titoli di Credito*, 1959, II.

46 Cf. FERNANDO PÉREZ ROYO: *Derecho financiero y tributario. Parte general*. 10th ed. Madrid. Civitas. 2000, pp. 33-55 and 87-90; JUAN MARTÍN QUERALT - CARMELO LOZANO SERRANO - GABRIEL CASADO OLLERO - JOSÉ M^a TEJERIZO LÓPEZ: *Curso de Derecho Financiero y Tributario*. 10th ed. Madrid. Tecnos. 1999, pp. 128-144 and 195 ff.

- “1. *Everyone will contribute to public expenses according to economic ability through a just tax system, based on principles of equality and progressive taxation which, in no case, will include confiscation of goods.*
2. *Public expenses are an equitable outlay of public resources and their collection and expenditure answer to criteria of efficiency and economy.*
3. *Only personal and estate duties may be levied according to law”.*

In these three sections, we find the constitutional principles concerning taxation embodied. They include both the “*substantial or material*” questions as to the collection of tax revenue—economic ability principles, of equality, generality, progressive taxation and the non-confiscation stipulation—and the “*formal*” character of the tax system, as regards normative production in tax matters—the legality tax principle. The substantial principles are a reflection of equity in tax affairs—apart from the few tinges of the general. The formal principle of legality goes rather contrary to equity. The express mention of equity, made at 2, of the aforementioned Article 31, should be underlined, this is material justice to which public expenses must answer.

6.1.1. Fundamental Principles

6.1.1.1. The Principle of Economic Capacity

This is the basic rule regarding the share or distribution of the tax burden: contribution should accord with economic capacity—“*Leistungsfähigkeit*”. This capacity is shown in such things as rents received or monetary income, estate possession, consumption, goods acquisition, and the like. Measuring capacity is a reflection of equity in tax matters.

The economic capacity or contributive principle fulfills three essential functions: the *basis* of tax collection, as the Constitution has it: “*a logical demand which obliges the search for wealth to look to where that wealth is to be found*”; the *limit* of the legislator’s taxing powers; and the *program* or orientation the legislator must have in view when using his power to raise taxes, all within the goal of rent redistribution and the attainment of material equality.

6.1.1.2. The Principle of Equality

This is not merely formal equality in the eyes of the law (the Spanish Constitution’s Article 14), but also effective and substantial equality (Article 9, *ibid.*). This is achieved through a series of fiscal measures, tending to correct real inequalities, such as, for instance, the progressive taxation, 1990, referred to below. The Spanish Constitutional Court Sentence of 26th April, holds: “*Not every inequality of legal treatment represents an infraction of Article 14... but such an infraction is involved only when inequality leads to a difference in situations which might be considered as the same situations and when all objective and reasonable justification is lacking*”. Differentiation is not disallowed but discrimination and privilege are, insofar as these are arbitrary differentiations. Again, we see equity at work.

6.1.1.3. *The Principle of Generality*

The principle of generality regarding tax payments—which might be identified in the words “*everybody will contribute...*,” at the beginning of Article 31.1.—is a consequence of the economic capacity and equality principles. This represents a struggle against privileges. Nevertheless, it does not mean fiscal benefits and exemptions may not exist. What is not permitted is, following the generality rule, exemptions—or any other sort of measure—“*intuitu personae*,” that is of a personal kind.

Though generality is a characteristic of law (and concretization is of equity), this does not rule out the compatibility of an equitable side to the principle of generality. Of course, the principle itself demands impersonality and abstraction, still, this is not incompatible with a personalized treatment, always so long as this does not run counter to the principle of equality. Forbidding “*intuitu personae*” measures is to outlaw the arbitrary, not to rule out equity. The principle of generality in legal matters is one thing, a sort of limit on legislative norms, the application of equity to the norms is quite another and, in spite of the generality principle, this the judge may do. In conclusion, we might state the principle does not necessarily imply any impediment to equity, as at first sight may appear. Perhaps, “*a priori*,” the principle of Generality concerning taxation might be less equitable, but, in any case, it is no obstacle to the play of the other substantive principles which do reflect equity.

6.1.1.4. *The Principle of Progressive Taxation*

Progressive taxation means that the more each person earns, the more he must pay. Whoever has more should contribute a higher proportion than those with less. Let those pay more who have more! This principle is a clear manifestation of equity and is tied in with the development of modern day tax systems. These assign the Public Tax Collector a redistributive function. The idea of redistributing the share of the country’s wealth via a system of progressive taxation is a patent example of equitable treatment. Over against an abstract and general justice—the generality principle—we find an individualized justice, justice with equity.

6.1.1.5. *The Principle of Non-Confiscation*

Given the possible *abuses* to which the progressive tax system might lend itself, a “tag” is introduced at the end of the Spanish Constitution’s Article 31.1. This tag states the system will never reach to confiscation under any circumstances. As some kind of *guarantee* to the tax-payer against the tax people, this principle might be seen as a reflection of equity. It is of ideological and political, rather than legal, value since it confuses two planes together. These should be kept legally separate. One is the regulation of contributions to the public expenses and the other is the regulation of property rights, contained in a later Article (Art. 33). Any such confiscation of property or annulment of property rights may be considered unconstitutional.

6.1.2. Formal Principles: The Principle of the Legality of Taxation

Having looked at the substantive criteria underlying the Spanish tax system in relation to equity, we should now consider the formal rules for establishing taxation. These rules are basically grouped together under the principle of the legality of taxation itself. This is closely linked to legal security. According to this principle, also known as the principle of the law's dominion over taxation matters, a formal law must be passed to set up the tax system.

The basis of this principle might be summed up in the American sentiment of the Revolutionary period, now popularized as "*no taxation without representation*". It demands the self-imposition and the consent to taxation through parliamentary representation. Its non-observance was one of the causes of the revolt of the colonies against the Motherland, England. One might equally quote the French Declaration of the Rights of Man and of Citizens. This mentions the right of the citizenry to approve of contributions via their representatives. The significance of the principle is that it serves as much as an individual guarantee against political power as an institution in the service of the collective interest. It assures democracies, through Parliamentary approval, the contributor's representation in the decision to impose taxes, Parliament being the body reflecting popular sovereignty since it is chosen by universal suffrage. Besides this democratic or representative demand, we should also mention it is a guarantee of equality, though this should be understood less in the equitable and material sense and more in the sense of a formal equality, of a uniform tax system throughout the national territory. Finally, the principle of legality of taxation serves legal security or legal certitude, when allowing the contributor to know with enough precision the extent of his fiscal obligations.

We have already spoken of equity and its relation to legal security. Suffice it here to point out that both the demands of certitude and those of the principle of legality have a formal slant, opposed to the ends of equity, which seeks material justice. It pits diversity against unity. However, this does not imply that a certain formal framework cannot serve as a guarantee, in its turn, against the possible arbitrariness of other political powers, which might also be guarantees of justice.

6.2. Major Interpretive Theories Regarding Tax Regulations

Taxes are a burden upon the tax-payer, hence they have a poor press. Hence, also, laws impose taxes, tax laws. They are considered "odious" or restrictive laws, a limit on individual freedom. That is why the Spanish Supreme Court says such norms should be interpreted restrictively or, at the most, must be the object of literal interpretation, according to the aphorism "*in dubio contra Fiscum*", parallel to "*in dubio pro reo*", in the criminal law.

As opposed to this way of looking at things, some scholars have advanced the contrary opinion. They argue that the principle "*in dubio pro reo*" of crimi-

nal law refers to the weighing of the evidence, rather than to the interpretation of the norm. On the other hand, they hold the aphorism “*odiosa restringenda*”, following which “hateful” laws should be applied restrictively, must refer to the *interpretation results rather than the criteria and presuppositions made prior to their development*.

One approach, opposed to the above, which we might call a “Tax Collector favourable” interpretation, is that which basically turns on the subject of tax exemptions. When reviewing norms setting out exemptions, exceptional rather than general norms—to draw a parallel with the ban on using analogical extension to exceptional norms—, one comes to the conclusion that such norms, favourable to the contributor, should be interpreted with restrictive criteria, and this favours the Tax Man. This is contrary to equity.

We looked at restrictive interpretation and how equity normally reveals itself through interpretations of this kind earlier. Equity does not usually go with extensive interpretations. Still, we have already seen that the rule is not the restriction nor the extension in itself, rather what should be prioritized is what equity advises. In many cases, this will be concretization, however, on occasion, it might consist in giving a wider interpretation, in the same way that substantial equity normally implies a sweetening of the law but, should the case arise, equitable treatment may lead to greater rigour. There is an exception to every rule. Equity is no exception to this.

7. Equity and Labour Law

Equity has also given rise to scholarly treatment in the field of labour law.⁴⁷ Here, we look at some of the main examples of equity in this field.

The *worker*, as the subject of labour relations, has been accorded an increasingly equitable treatment in labour law. Thus, groups, initially, especially sensitive or disadvantaged, like women, minors and foreigners, have been open to reglamentation which has tried to adapt general norms to their special situ-

47 GIUSEPPINA NALETTO: *Analogia ed equità nel Diritto del Lavoro: Profili storici*. Padova. 1991; IOLANDA PICCININI: *Equità e diritto del lavoro*. Padova. CEDAM. 1997; RASSELLI: “L’equità nel regime giuridico dei rapporti di lavoro”, in *Studi in Memoria del Prof. Pietro Rossi*. Siena. 1932, pp. 443 ff.; UMBERTO ROMAGNOLI: “L’equità nei conflitti di lavoro: elementi per un bilancio consuntivo”, in CENTRO NAZIONALE DI PREVENZIONE E DIFESA SOCIALE: *L’equità, op. cit.*, pp. 97-109. Also in *Politica del Diritto*, 5, 1974, pp. 51-62; E. ROMANO: “Il giudizio d’equità nel nuovo codice di procedura civile e le controversie del lavoro”, in *Il diritto fascista*, 1942; MARÍA ESTHER TALAMANTES PERALES: *Someras consideraciones acerca de la equidad en la jurisdicción del trabajo*. 1947; JAVERT DE SOUZA LIMA: “A equidade no Direito do trabalho”, in *Revista Forense de Rio de Janeiro*, October 1949; NICOLA PICARDI: “L’equità ‘integrativa’ nel nuovo processo del lavoro”, in *Scritti in Onore di Salvatore Pugliatti*. II. Milano. 1978, pp. 793-816.

ation. The general principle of non-discrimination against the female sex, especially as regards salaries, maternity protection, regulation and bans on child labour, control of foreign labour, refugees, exiles, and the stateless are all good examples of this.

On the other hand, *work contracts and their drawing-up* are more and more flexible and humane, more equitable. Work hygiene and safety norms, company medical programs or job mobility, regarding where one works, are all relatively recent advances. The list of what today is becoming commonplace and which was unthinkable in the not so distant past is a long one. It includes, in no special order: open contracts, offering some stability rather than precariousness of employment; turning temporary contracts into permanent ones; employment opportunities for the socially marginalized, the handicapped, and so on; re-training programs; control over the number of hours in the working week; number of days-off per week; guaranteed, paid annual holidays; payment in place of days-off; shift work, the speed at which work must be done; flexible hours; overtime rates. The list is a long one. All reveal a more humane treatment of workers than the past afforded.

The *good faith* requirement, so closely linked to equity, plays an important role in labour law and is shown, for instance, in the obligation to confidentiality. There are other, many, indications of worker protection in labour relations: multi-employment regulations; exclusivity pacts; legal control governing inventions and intellectual property; the minimum wage; the possibility of earning more than one wage; dividends; bonuses; profit-sharing, flexible wage-scales; commissions; workers' compensation, and a long so on.

Further, *management power* and the power to give orders have their limits in the principle of equal treatment and the ban on discrimination. In spite of the presumption in favour of the legitimacy of orders and their non-fulfilment being the exception, orders regarding private conduct also have their limits. The worker has the right to privacy and the dignity of labour should be respected, as against such things as sexual harassment by bosses or colleagues. As concerns contract continuity, certain situations are regulated, such as temporary or permanent incapacity, imprisonment, forced or voluntary leave, especially leave to take care of children or of family members. Dismissal has a special place in labour law. This is particularly true of "disciplinary" dismissal. There is the possibility of reviewing firings as improper or unjustified, illegal as to the way they were carried out, or as to their justification. There exist the possibilities of compensation, readmission, and other measures. In case of the worker breaking a contract, dismissal becomes regulated under such concepts as "leaving without giving previous notice", "leaving with giving notice", "leaving without giving notice and without just cause", and the rest. Also regulated by equity are *other causes of termination of contract*, be they for contract expiry, disappearance or incapacity of one of the parties to the contract, retirement, company take-over or merger, and the like.

The law further deals with states prior to having any work contract. It handles the finding of employment, offers public employment, creates employment for the incapacitated, protects immigrants. It gives worker training, professional training, apprentice contracts, hands-on experience, scholarships, study awards, and much else.

The right to *strike* is regulated, requiring strikes be agreed on and warning be given, with minimum, essential services being kept up, and adequate, prior advertizing that a strike will take place. The right to *unionize* is also controlled; this includes the right to join a union and the right to set up a union, according to representative and democratic principles.

In all these cases, via equity, in both its legislative sense and, later, when it is applied by the judge, we find provision made for the legal protection of workers, as the most unprotected party in the labour relationship. Special care is taken to prevent child exploitation, unemployment, and subhuman working conditions, such as those the Industrial Revolution employers set up, with mass-production techniques, and the like, all of which violated the equity principles of the dignity and equality of all.

In labour law interpretation and application, judges should be governed by such guidelines as the principle of the lesser norm, the most favourable norm, the acquired, most beneficial conditions, or the principle of “*pro operario*”. These principles represent equity as it plays its part in labour law.

Finally, we would mention how, in collective labour conflicts, and as a means of resolving them, there remains the possibility of third party intervention, arbitration. The settling of disputes may be through such an intermediary. Arbitration may be voluntary or enforced. As in international law, so in labour law, when a commission is set up, equity plays a starring role.

8. Equity in International Law

8.1. Reference to Equity in Article 38.2 of the Statute of the International Court of Justice

Within all the branches of law, international law—be it public or private—is one of those which most often invokes equity, especially in regard to the principle of reciprocity. This is seen as much in legal as in arbitration interventions. Independently of this, equity appears clearly evidenced in such matters as diplomatic immunity, often extended to cover the defence and refuge of affairs of a private nature.

Section 2, Article 38 of the Court of the Hague’s Statute—after listing sources of law in the foregoing paragraph,⁴⁸ and reproducing Article 38 of the Per-

48 OLIVIER PIROTTE: “La notion d’équité dans la jurisprudence récente de la Cour Internationale de Justice”, in *Revue Générale de Droit International Public*, LXXVII, 1973, pp. 93-135, esp. pp. 103, 114 and 134.

manent International Court of Justice Statute, precursor of the present Court, only surviving from 1922 to 1946—points out that “*this provision shall not prejudice the power of the Court to decide a case ex aequo et bono, if the parties agree thereto*”. SOERENSEN, who studied this formula for the Committee of Ten, which wrote the Statute, considers the expression “*ex bono et aequo*” a substitute for “principles of justice”, which, in turn, would be identified with equity. However, there are not lacking those who, like the judge Sir ROBERT JENNINGS, consider there is a difference between procedures applying equity principles and conflict resolutions “*ex bono et aequo*”. The former require legal training. Solutions “*ex bono et aequo*” do not. ELIHU LAUTERPACHT says the former case would be a decision “*within the law*”, the latter, outside the law, though in both cases the subjective and discretionary element is important. This involves not merely applying the law, but the parties creating it. This has important, practical consequences. The Court can apply equity principles, insofar as this is part of the law, without the consent of the parties involved. This consent is required by the “*ex aequo et bono*” provision, according to Article 38, Paragraph 2 of the Statute.⁴⁹

In the 1937 resolution made by the International Institute of Law at Luxembourg, it was affirmed:

- “1°. *That equity is normally inherent in a healthy application of the law, and an international judge, the same as a national one, is called upon by his very profession to take equity into account, insofar as equity is compatible with the law;*
- 2°. *That the international judge cannot be inspired by equity when dictating his sentence, if this is not linked to the law in force at the time, unless all parties award him express and clear authorization to this end*”.

The first case, here, sees the resolution referring to equity “*infra ius*” or “*secundum legem*”, with an interpretive character. The judge, from a variety of possible applications and interpretations of a positive rule, must choose that which best suits the individual situation of the parties at litigation, within the limits of the positive law. In this first sense, equity does not constitute an independent basis for the decision, and the judges may make use of it even though they are not expressly authorized to do so.

The second point made by the Institute’s resolution is less clear, especially as regards the proviso “*if this is not linked to the law in force*”. This is the situation with equity “*contra legem*”. The resolution makes no allusion to the third form equity might take, equity “*praeter legem*”.

49 YEHUDA Z. BLUM: “The Role of Equity in International Law”, in ALFREDO MORDECHAI RABELLO (ed.): *Aequitas and Equity...*, *op. cit.*, pp. 229-265. See also, in the same book, RUTH LAPIDOTH: “Equity in International Adjudication”, pp. 239-269.

In sentences handed down 20th February, 1969—*cases of the continental platform in the North Sea, in its delimiting of States whose coasts are adjacent or opposite each other*—and 22nd December, 1986—a *case of the border controversy between Burkina Faso and the Republic of Mali*—, the Court of the Hague case law made use of interpretive equity or “*secundum ius*”. In the sentence delivered 5th February, 1970—the case of *Barcelona Traction*, between Belgium and Spain, with the personal vote of Judge GERALD FITZMAURICE—it applied equity “*praeter legem*”; in the three cases, it employed equity without the express consent of the States involved. That is, for the Court, neither the application of equity “*secundum legem*” nor equity “*praeter legem*”, called for the prior consent of the States involved. Equity “*contra legem*” enjoys scant popularity in inter-State practice, in resolving international disputes. To date, in no dispute submitted to the Court for resolving has any use been made of the terms set out in Paragraph 2, Article 38, that is to say of “*ex aequo et bono*”, according to “*contra legem*” equity. The kinds of equity really operative in international law are: equity “*secundum legem*” and “*praeter legem*”.

In conclusion, from an examination of professional opinion and international texts, we find that the role of equity in international law is also a dual one: 1.- Normally, it is inherent in the healthy application of the law, having to be taken into consideration by the international judge, insofar as it is compatible with the law; 2.- It may act as inspiration for the international judge when dictating sentence, even when it is not tied to the law in effect at the time, if it is expressly authorized by the parties, as happens in arbitration.

8.2. International Arbitration

In international law,⁵⁰ especially in international public law, equity finds its

- 50 EDWARD McWHINNEY: "Equity in International Law", in R.A. NEWMAN (ed.): *Equity in the World's Legal Systems...*, *op. cit.*, pp. 581-589; MASAHIRO MIYOSHI: *Considerations of Equity in the Settlement of Territorial and Boundary Disputes*. Dordrecht. Boston. M. Nijhoff. 1993; MICHEL MOUSKHÉLY: "L'équité en droit international moderne", in *R.G.D.I.P.* Paris. 1933, p. 347; ORFIELD: "Equity as a Concept of International Law", in *Kentucky Law Journal*, November 1929, pp. 31 ff.; and January 1930, pp. 116 ff.; PEACE PALACE (Hague. Netherlands): *Le rôle de l'équité en droit international: bibliographie*. La Haye. Academie de Droit International. Centre d'Étude et de Recherche. 1972; OLIVIER PIROTTE: "La notion d'équité dans la jurisprudence récente de la Cour Internationale de Justice", in *Revue Générale de Droit International Public*, LXXVII, 1, 1973, pp. 92-135; PAUL REUTER: "Quelques réflexions sur l'équité en droit international", in *Revue Belge de Droit International*, 15, 1, 1980, pp. 165-186; SHABTAI ROSENNE: "Equitable Principles and the Compulsory Jurisdiction of International Tribunals", in *Festschrift für Rudolf Bindschedler*. Stampfli. Bern. 1980; Id, "The Position of the International Court of Justice on the Foundations of the Principle of Equity in International Law", in ROSENNE: *An international Law Miscellany*, 1993; CHRISTOPHER R. ROSSI: *Equity and International Law: a Legal Realist Approach to International Decision-making*. Irvington. New York. Transnational Publishers. 1993; GAAFAR ABDEL SALAM: "L'équité comme méthode d'interpretation du droit international", in *Revue Egyptienne de Droit International*, 29, 1973, pp. 233 ff. GUSTAVO SANTISO GALVEZ: *El caso Belice a la luz de la Historia y del Derecho internacional*. 2nd ed. Guatemala. Secretaría de Relaciones Exteriores. 1941; GEORG SCHWARZENBERGER: "Equity in International Law", in *The Year Book of World's Affairs*. London. 1972, pp. 346-370. NORMAN DE MATTOS BENTWICH - ANTONIO SÁNCHEZ DE BUSTAMANTE Y SIRVÉN - DONALD ALEXANDER MACLEAN - GUSTAV RADBRUCH - HERBERT ARTHUR SMITH: *Justice and Equity in the International Sphere*. London. Constable & Co. 1936. New Commonwealth Institute Monographs. EYAL BENVENISTI: "The Role of Equity in International Law: Equity and the Apportionment of Shared Water Resources", in A. MORDECHAI RABELLO (ed.): *Aequitas and Equity...*, *op. cit.*, pp. 269-291. LUIS AYCINEMA SALAZAR: *La equidad en el Derecho internacional y la controversia sobre Belice*. Guatemala. "Luz". 1952. Thesis; S. BILGE: "Le nouveau rôle des principes équitables en droit international", in *Festschrift für Rudolf Bindschedler*. Bern. Stampfli. 1980, pp. 105 ff. GERARDO BROGGINI: "L'equità nell'arbitrato commerciale internazionale", in *Rivista Trimestrale di Diritto e Procedura Civile*, 1994; EDITH BROWN WEISS - JACQUES-YVES COUSTEAU - RENÉ-JEAN DUPUY: *Justice pour les generations futures: droit international, patrimoine commun et équité intergenerations*. Paris. Sang de la Terre. 1993. In *Fairness to Future Generations: International Law, Common Patrimony and Intergenerational Equity*. New York. Transnational Publishers. 1988; MONIQUE CHEMILLIER-GENDREAU: "Equity", in *International Law Achievements and Prospects*. Paris. UNESCO. Dordrecht. Netherlands. M. Nijhoff. 1991, pp. 271-282; CHENG: "Justice and Equity in International Law", in *Current Legal*

maximum expression, its clearest exposition, in arbitration.⁵¹ International arbitration may be defined as that procedure which has as its goal the settling of disputes between States in a definitive and binding fashion. States are the subjects of international law, disputes are settled via bodies chosen by them, and are resolved either by the application of international public law or, as the case may be, when the parties concerned expressly agree so, through recourse to equity. The Courts are empowered to decide issues through equity, through the use of “*ex aequo et bono*” litigation.

Despite the above, “*ex aequo et bono*” may even be applied, without the consent of the disputants, when a special “*ad hoc*” Court is set up. Its special character resides in its being set up exclusively for the case in question, and after it has been made manifest that no law is applicable to the issue being dealt with. This implies the establishing of enforced arbitration amongst the parties in disagreement, who must abide by the arbitration.

Equity should not be confused with a contractual *transaction*, either tacit or express. Whenever a dispute arises, at least at the beginning of the dispute,

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- Problems*, VIII; V. D. DEGAN: *L'équité et le droit international*. The Hague. M. Nijhoff. 1970; CATHERINE DELAUNAU: *Territoire, partage international des ressources et équité*. Paris. Innovative Justice. 1995; CHARLES DE VISSCHER: *De l'équité chez le règlement arbitral ou judiciaire des litiges de droit international public*. Paris. Pedone. 1972; CHARLES MANGA FOMBAD: “Equity in Current International Practice”, in *Revue Égyptienne de Droit International*, 45, 1989, pp. 1-27. THOMAS M. FRANCK - DENNIS SUGHRUE: “The International Role of Equity as Fairness”, in *Georgetown Law Journal*, 81, 3, March 1993, pp. 563-595; FRANCIS GALL: *Belize: Tierra nuestra*. Guatemala. Edit. José de Pineda Ibarra. Ministerio de Educación Pública de Guatemala. 1962; PROSPER WEIL: “Le droit international en quête de son identité: cours général de droit international public”, in *Recueil des Cours. Hague Academy of International Law*, 237, 6, 1992, pp. 13-369; KARL STRUPP: “Justice internationale et équité”, in *R.C.A.D.I.*, La Haye, 1930. III; Id, *Le droit du juge international de statuer selon l'équité*, Paris. Recueil Sirey. Vol. 33. III. 1930, pp. 357-481.
- 51 YILMA MAKONNEN: “Western Attitudes to International Equity”, in *Annuaire de l'Association des Auditeurs et Anciens Auditeurs de l'Académie de Droit International de La Haye*, vol. 42/43. 1972-1973, pp. 82-103; DUMITRU I. MAZILU: *Echitate si justitie*. Bucaresti. Editura Stiintifica. 1972; Id, *Echitate si justitie in viata internationala*. Bucaresti. Editura Politica. 1979; ULRICH SCHEUNER: “Decisions ‘ex aequo et bono’ by International Courts and Arbitral Tribunals”, in P. SANDERS (ed.): *International Arbitration-Liber Amicorum for Martin Domke*. The Hague. M. Nijhoff. 1967, pp. 275-288; J.-P. BROUILLAUD: *Le juge amiable compositeur*. Thèse. Paris. Presses Universitaires du Septentrion. I. 1995; LOUIS B. SOHN: “Arbitration of International Disputes ‘ex aequo et bono’”, in P. SANDERS (ed.): *International Arbitration-Liber Amicorum for Martin Domke*, op. cit., pp. 330-337; Id, “The Role of Equity in the Jurisprudence of the International Court of Justice”, in DUTOIT - GRISEL (eds.): *Mélanges Georges Perrin*. Lausanne. 1984, pp. 303 ff.

neither party is inclined to give the other its due, in accord with the norms of strict justice. Rather, they demand, at such a time, a solution which meets their own interests and wishes, quite the contrary to any respect for reciprocal interests. In these cases, what arises is not a solution in equity, it is an obligatory transaction.

Where we do indeed find a show of equity is in the case where concurrent State competencies exist. Territorial relations between States come under this head, in regard to sovereignty. Principles ruling over such cases pursue the following guidelines: 1.- No State may assert its sovereignty over any territory to the exclusion of the activities of other States; 2.- Good faith possession is equivalent to entitlement whenever this is accompanied by the continuous and peaceful exercise of sovereignty—the principle of effectiveness. Examples of this occurring are the well-known *Deserters of Casablanca* case which resulted in the Sentence of the 22nd May, 1909, handed down by the Permanent Arbitration Court. Along similar lines, we might mention the important sentence given in the case of the North Atlantic fishing rights which arose between the U.K. and the U.S.A. From such cases, we can see that either States are competent to set up their own lines of behaviour—these should be inspired by the basic good faith principles—or behaviour should be laid down, in relation to the *de facto* situation, by the rules of international law. This latter may always be assisted by principles of equity.⁵²

The doctrine of arbitration and friendly settlement, in international law, is embodied in a renunciation of *objective law and of the subjective rights derived from it*. The parties aspire to a right. This is not incompatible with their renouncing the benefits of law. The parties give up their rights, as these are protected by law, but they do not yield up their rights as these arise from “the nature of things”. They renounce the judicial apparatus, in its positive guise, to submit themselves to a “fiduciary act”, to friendly settlement, to arbitration. This has to establish their natural rights, directly, first hand. *They renounce positive equity but not natural equity*. There are certain limits to this natural equity as administered by the arbiter: it must respect international public order, something which varies from country to country. That is, certain things are forbidden in one country and not in another: so, in Iran, pork and wine are prohibited, though not in Greece. However, there are also “universal” prohibitions, these admit of no exceptions. They are so-called “evil” things, contrary to the nature of things. They are the only limit on natural equity. Thus, the sale of weapons of mass destruction, corruption, white slavery, slavery, social segregation and other practices incompatible with human dignity are forbidden by natural equity.⁵³ This is because arbitration is not arbitrary.

52 NARCISO ANDRADA HERRERO: *La equidad como elemento...*, *op. cit.*, pp. 278-291.

53 MAGDI SAMI ZAKI: “Définir l'équité”, *cit.*, note 266 ff.

8.3. The Theory of Just War

The question of the possible justification of war often arises. It is not necessary to say much about the arguments against wars, since everyone knows of the great amount of destruction and misery wars occasion. It is more interesting to tackle the question of whether there are any possible motives or circumstances which could turn war into something excusable. This section is given over to analyzing what reasons there might be which would justify war.

First, we should be clear of the difference between “law in war” (*ius in bello*)—a collection of norms regulating how war should be fought, making wars conform to law—and “the right to go to war” (*ius ad bellum*). This is the ability to declare war and to make war. A justification of war must take in both aspects, nevertheless, it is the latter which should be dealt with most here, that is, knowing when it is legitimate to start a war.

The origins of the right to go to war date back to very ancient times. Ancient peoples already knew institutions like alliances and truces. For a long time, however, the rules concerning war were generally carried on via consensual channels, even if some primitive legislations did consider certain norms of war. The central idea was discrimination against the foreigner, the “barbarian”, thus it was with Rome. The Romans did know of the laws of warrior honour. Still, we have to wait for the French Revolution, and the conceptual generalization as to the practice of waging war, in order for there to be, for the first time, a reglamentation concerning war, written down, through International Conventions. This codification movement became consolidated only after two world wars. It is sufficient to cite here the Geneva Conventions and that of the Hague. These deal with the treatment of prisoners of war, the protection of civilians, the safeguarding of cultural artifacts in times of war, and so on.

What is most interesting is to examine whether there exists any “subjective right” of States to declare war. In the Modern Age, for instance, in the Spanish School of the XVIth and XVIIth centuries, there were people like FRANCISCO DE VITORIA who attempted to justify war by making a link between “*ius gentium*”—or “*ius inter gentes*”—amongst peoples, in the universal community.

Another factor to take into account, when studying possible justification of war, its equity, is the fact that coercion is an essential element of the legal rule. One thing constituting law is its voluntary fulfillment or, failing that, the imposition of a substitute by way of sanction. Still, how is this possible in international law which lacks binding force as regards subjects? The States each maintain their sovereignty, and there is little one can do with them but make recommendations. Without any international authority, and some international institutions, similar to internal legal systems—though today, there are already such things as the International Criminal Court—, it would not seem too much, though only after trying first all diplomatic channels, to recognize a right to go to war, even if it is only in self-defence.

Thoroughgoing pacificism is something unrealistic. It is fine in theory, though almost impossible in practice. Man is a being in which evil dwells. This leads often to conflicts, injustice, the violation of human rights. Such things also happen with countries, where often the most powerful and the richest subject to their wills the poorest and most defenseless. To such a degree does this occur that even institutions so much in favour of defending peace as the Churches see no incompatibility in principle between the profession of the soldier and the profession of the Christian faith.

It is something else if, later, the war be unjust in form or in the methods it develops. However, as an ultimate recourse, there at least exists the right to prepare to defend oneself against possible aggression—defensive, not offensive, war. We might think of the Cold War situation, at the worldwide level. There, confrontation went on for years between the Western block, led by the U.S.A., and the countries of the East, with the U.S.S.R. at their head. The international order allows States to do “outwardly” what they have to “inwardly” forbid their own nationals from doing. An entirely different question to that of defensive war legitimation—already coming to be accepted in international law—arises in our own time with regard to the justification of a “preventive” war, by some States, which anticipate possible conflicts and terrorist attacks. On this point, the international community is divided.

A justified war is not the same as the “just war”. In its strict sense, as an historical example of war, the latter is a special category. The justified war is a genus in which the latter might be found, as a kind of species. Not every war is justifiable, or even justified, nor does every justifiable war belong to the “just war” category. The doctrine of the “just war” appears in the work of a series of thinkers who have developed the presuppositions and requisites of such a war. A rapid backward glance would show us that the “just war” idea stems from classical thought—from ARISTOTLE and CICERO—, that it received acceptance in the Middle Ages—in SAINT AUGUSTINE and AQUINAS—and from there came to the Modern Age, basically to the Spanish School of the XVIth and XVIIth centuries—with VITORIA, SUÁREZ and MOLINA.

Norms involved in making up what should be the “just war” are: 1.- The cause must be just. 2.- War must be the last resort. 3.- The war must be declared by a competent public authority. 4.- There must be a reasonable expectation of victory. 5.- The government taking on the war should be free of hatred, cruelty or desire for vengeance. 6.- There must be due proportion between the good sought and the evil that will be caused. 7.- The war must be conducted correctly, using suitable means.

We are dealing with instances contrary to justice in the abstract whether we treat of the just war case or of justified war, in a wider sense. Justice in the abstract defends peace at all costs and is against any hint of violence. We are closer to equity, justice in the specific case, and this is closer to any specific international situation where, should the need arise, it would be advisable to use

force. It is essential to study the concrete case in detail to see if the use of force is in fact justifiable.⁵⁴

9. Equity in Procedural Law

9.1. The Right to a Due Process of Law

The subject of equity in procedural law has spawned a great deal of literature.⁵⁵

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- 54 Cf. our work, *La desobediencia civil*, *op. cit.*, pp. 110-116. JOSÉ CASTÁN TOBENAS: *La idea de equidad en las letras españolas*, *op. cit.*, pp. 131 and 155.
- 55 CAPPELLETTI: "Il giudizio di equità e l'appello", in *Riv. dir. proc.*, 1952, II, pp. 141 ff.; CARCATERRA: *Le decisioni di equità nell'art. 114 del Nuovo Codice di Procedura Civile*. Bari. 1941; FERNANDO HENRIQUE CARDOSO: "La demanda de equidad", in *Foro Internacional*, 36, 4, October-December 1996, pp. 788-791; FRANCESCO CARNELUTTI: "Lequità nel diritto penale", in *Rivista di Diritto e Procedura Civile*, 1935, I, pp. 105 ff.; Id, "Lequità nel giudizio penale", in *Giustizia Penale*, 1945, III, pp. 7 ff.; Id, "Preclusione dell'offerta di riduzione del contratto ad equità", in *Rivista di Diritto Proc. Civile*. 1953. II; Id, "Ancora sull'offerta di riduzione del contratto ad equità", in *Rivista di Diritto Proc. Civ.*, 1954, II; Id, *Teoría General del Derecho*, Madrid, Revista de Derecho Privado, 1955, 3rd ed.; Id, "Appunti sull'arbitrato di equità", in *Riv. dir. proc.*, 1955, II, pp. 173 ff.; Id, Review to DE MARINI: "Il giudizio di equità nel processo civile", in *Rivista di Diritto Proc.*, 1958, pp. 427 ss.; Id, "La equidad en el juicio penal", in *Cuestiones sobre el proceso penal*. Buenos Aires. 1961, p. 281; Id, "La Corte Costituzionale come giudice di equità", in *Rivista di Diritto Proc.*, 1963; C. M. DE MARINI: *Il giudizio di equità nel processo civile. Premesse teoriche*. Padova. 1959; FORTUNATO: "Natura dell'offerta di 'reductio ad aequitatem' e limite per farla valere nel processo", in *Giur. Compl. Cass. Civ.*, 1951, II; FURNO: "Appunti in tema di arbitrato e di arbitro", in *Rivista di Diritto Proc.*, 1951, II, pp. 157 ff.; Id, "Sul regime di impugnazione delle sentenze equitative", in *Giur. it.*, 1952, I, 2, col. 39 ff.; Id, "Inammissibilità dell'appello contro la sentenza pronunciata secondo equità a norma dell'art. 114 c.p.c.", in *Giur. Compl. Cass. Civ.*, 1954, V, pp. 203 ff.; Id, "Invalidità ed impugnazione delle sentenze equitative ex art. 114 C. Proc. Civ. processualmente illegittime", in *Giurisprudenza Italiana*, 1954, IV, col. 1 ff.; J. R. XIRAU: "La funzione giurisdizionale e l'equità", in *Studi di Diritto Processuale in onore di Giuseppe Chiovenda*, Padova, 1927, pp. 837 ff.; MAX VOLLKOMMER: *Formenstrenge und Prozessuale Billigkeit. Dargestellt am Beispiel der prozessualen Schriftform. Zur Überwindung des Formalismus in der Rechtsprechung*. München. Beck. 1973; VECCHIONE: "Ancora della impugnazione della pronuncia secondo equità processualmente illegittima", in *Rivista di Diritto Proc.*, 1957, pp. 587 ff.; Id, "Condizioni e mezzi di impugnazione delle sentenze pronunciate secondo equità", in *Giur. Ital.*, 1954, I, 1, col. 703 ff.; Id, "Impugnazione del lodo di arbitri di equità", in *Foro Pad.*, 1955, I, col. 1079 ff.; Id, "Sulla impugnativa del lodo di arbitri di equità", in *Rivista Diritto Proc.*, 1956, II, pp. 187 ff.; Id, "Impugnativa del lodo degli arbitri di equità e giudizio di equità nei termini della legge", in *Foro Pad.*, 1959, I, col. 557 ff.

For example, we find the question of equity's judgement and a fair trial.⁵⁶ Article 10 of the Universal Declaration of Human Rights, 1948, like internal Constitutions—the Spanish, in Article 24, 1978—speak of the “*right to a fair trial*”. This right does not refer to substantive equity, conceived of as a corrective or complement to the rule applied in a trial, but to a procedural equity, what is called “*a due process of law*”, a trial with all the formal guarantees given the deliberative proceedings, like the impartiality of the judge, in the principle of contradiction. It is a kind of procedural theory which foreshadows RAWLS. In order to guarantee an equitable solution at the end, previously, the correct procedure must have been followed. Though a fair trial is no absolute guarantee, a sufficient condition, for a just sentence—a “*conditio per quam*”—, it is indeed a necessary for obtaining a just sentence—a “*conditio sine qua non*”. The right to a fair trial in no way depends upon the partiality, or the spiritual generosity of a magnanimous judge, like Judge MAGNAUD. It is not a question of love here, of throbbing hearts—of material contents—going beyond the legal duties. The fair trial is rather a demand for procedural guarantees, for form, and this normally does lead to equitable results. It all consists in following certain principles like equality, understood as proportionality. The Court at Strasburg is there to watch over the right to a fair trial, and over human rights in general, and over our basic liberties, to prevent them from being attacked by State interference. Perhaps the old adage: *May God save us from the equity of Parliaments*, should be replaced by a more up-to-date one: *God save us from the Court of Strasburg's equity*.⁵⁷

9.2. Equity and the Right to an Appeal

What basically distinguishes equity's judgement from the legal judgement is that the legal judgement must suit itself to the observance of objectively identifiable, positive, legal norms and so is naturally subject to “*revisio in iure*”. This refers to not only the interpretation and the application of law, but also to the appreciation and evaluation of the facts. In contrast, the judge's equity judgement acts according to that judge's own conscience and with no obligation to strict observance of the norm, hence removed from the possible later revision by some superior judge.

The sentence given in equity may not be overridden. The judge of equity might apply a legal norm, but he applies it to the specific case. Though he may apply it badly, his decision cannot be subjected to the judgement or to the revision

56 CARLO MARIE DE MARINI: *Il giudizio di equità nel processo civile; premesse teoriche*. Padova. CEDAM. 1959; DENTI: “Contributo allo studio del giudizio di equità nel processo civile”, in *Studi nelle Scienze giuridiche e sociali*, XXVII. Pavia. Tip. Bianchi. 1944; DEODATI: “Alcune considerazioni sopra un'unica Corte regolatrice nella capitale del Regno y sui giudizi di equità”, in *Temi Veneta*. 1878.

57 DENIS SALAS: “L'équité ou la part maudite du jugement”, *cit.*, pp. 113-117.

sion of another judge. The “specific” nature of equity’s judgement is to be found in its not being possible to submit it to any intrinsic, logical verification. It is for a specific case, and a specific judge gives a specific judgement on that case. He takes his cues from analogical cases, general laws and from general legal decisions. Any case which gives rise to an equity’s judgement can be submitted for retrial, but it may not be submitted to any ulterior correction verification of the first trial. This brings us to the motives underlying sentences in equity. Should the equity’s judgement be considered a subjective judgement, then there is a logical incongruency in delving into the motivation for the sentence and in trying to give it some objective justification, since it is by nature subjective.

The exceptional, irregular and creative (non-repetitive), character of equity’s judgement means it cannot be measured, it need only remain within procedural and constitutional boundaries. We shall come back to this. We can only ask of the judgement that it be in keeping with the circumstances of the specific case, that it not be pure intuition, nor purely arbitrary—“brain-born” equity. Equity’s judgement cannot be irrational, though it is not subject to external rules. It has its own internal rules: rationality, and in keeping with the facts, with procedural norms and with the limits which prevent it from ceasing to be equity and turn into the arbitrary. While the judgement at law is the objective norm, the law prevailing over the judge, in equity’s judgement, is really the judge prevailing over the legal norm. Although the rule governing equity does not count on external evidence, that being formulated in the Code and open to ulterior legal jurisdiction, as an internal rule, there is much which ensures its responsible use. It is closely monitored by the judge’s own moral responsibility which is more binding than ought else, since the judge must answer to a “hypothetical” natural law. As with the Carmelites, rules do not govern them, it is they who govern the rules. Equity guards over the law and it is not the law which guards over equity.⁵⁸ Equity’s judgement should not be confused with a fair trial. Equity would prove a problem were it only studied as part of legal argument or of the politics of law. Seen from such a perspective, the moments when equity could emerge are minimal. It is in the trial itself that equity comes into its own.⁵⁹

Sentences handed down in a fair trial may not be appealed against, following a fair trial’s guarantees. Sentences—having recourse to equity or similar resources—which are delivered on the basis of substantive, legal norms can be appealed against. Non-equitable behaviour on the part of any public body—the Administration, for instance—can be appealed against. If the institution goes beyond its discretionary powers and abuses its power, it can be appealed against. No other judges can control any individual judge’s conscience, but they may control the methods he uses, in order to guarantee that a trial will be fair. No trial can be declared null and void by appealing to equity as regards the content

58 FRANCESCO D’AGOSTINO: *Dimensione dell’equità*, op. cit., pp. 47–57.

59 FRANCESCO D’AGOSTINO: *Dimensioni dell’equità*, op. cit., pp. 187–190.

of the trial, if their are procedural—"in procedendo"—irregularities then sentences and trials can be declared null and void. The judge's decision is not open to revision.⁶⁰ Equity's judgement is of a civil, procedural nature, and should not be confused with civil equity.⁶¹

The power to declare "null and void" watches over the exact application of the law. No appeal to declare "null and void" not expressly backed up by an article of law should be rejected.⁶² What the judge decides, the conscience he has, cannot be evaluated by any other judge. As against the common opinion that "*nemo iudex in causa propria*", when it comes to questions of conscience, the only judge is oneself. Equity cannot be invoked before the Supreme Court, claiming that the spirit in which it was created informed the applicable legislation to cases similar to those debated because "*the current Administration based its resolutions on those sentiments so worthy of respect, but the Supreme Court is forbidden to do so, tending, on the contrary, to temper its findings according to the rigours of the law*" (STS 5th April, 1905).⁶³

9.3. The Problem of the Jurisdiction of Equity

In general, the question we take up here is the following: is the substantive recognition of equity as a norm or objective criterion enough for equity's aim to be fulfilled, or is it necessary, or when less suitable, to establish special jurisdictions for equity? Historically, just such jurisdictions have been found in England, with the Chancery and, later, in the "*Courts of Equity*" which followed. This was as opposed to the jurisdiction of the Courts of Law that applied "*common law*". Something similar occurred at Rome, with the formal procedures and the institution of the Praetor.

These historical precedents—in light of the idea that the tendency of ordinary judges to apply technically well-formed law, at times, seems to frustrate or sterilize the spirit of equity—might lead one to push for the existence of special jurisdiction of equity. Still, today, the basis for having Courts of Equity is rather a slim one, given the tendency to widen the field of the legal arbitrator, in the laws and in ordinary jurisdictions. In Spain, for instance, the Supreme

60 DI STASO: "I presupposti e il fondamento giuridico dell'azione generale di rescissione per lesione. La disciplina privatistica dei negozi usurari nel c.c. vigenti. Poteri del giudice e offerta di 'reductio ad equitatem'", in *Giur. Compl. Cass. Civ.* 1949. I; DIENA: *Della equità nell'interpretazione delle leggi e dei contratti e della Corte di Casazione unica*, Venezia, Tip. Fontana, 1879; VALLEBONA: "L'equità integrativa in cassazione: a proposito della determinazione giudiziale del periodo di comportamento", in *Rivista Italiana di Diritto del Lavoro*, 1987, II.; RENATO VECCHIONE: "Equità (giudizio di)", *cit.*, pp. 630-635.

61 GAZZONI: *Equità e autonomia privata*, *op. cit.*, pp. 130-144.

62 VITTORIO SCIALOJA: *Del Diritto positivo e dell'equità*, *op. cit.*, p. 25.

63 MARCELIANO ISÁBAL: "Equidad", *cit.*, p. 411.

Court and especially the Constitutional Court, to a great extent, supplement the function Courts of Equity used to perform.

Another drawback with Courts of Equity is the difficulties and problems their organization implies. Such Courts' outlooks may be vary varied. There is the *administrative*, found frequently in the U.S.A. There are the *popular Courts*, where those presiding are not robed judges, but ordinary people; *Technical-professional Courts* or *high jurisdiction Courts*, when jurisdiction is awarded "*ad hoc*" to magistrates or to the Supreme Court and the Constitutional Court. Popular Courts offer some advantages as approximating closer to popular feeling. Technical-Professional Courts are advisable, given their superior preparedness. The Constitutional Court fulfills an important function, as, in theory, a body of highly qualified judges, and as the final appeal Court to prevent clear injustices.

It must be admitted that, in jurisdictions of equity, there is a strong tendency to give preference to non-toga wearing judges, insofar as the task here is to directly formulate the law rather than apply a law already formulated by the legislator. It is not a matter of stepping coldly on the scales of justice with already crystallized formulae, it is a question rather of directly taking the pulse of social life, with its sentiments, aspiration, and conflicts. Rather than searching for learned judges, experts in yesterday's law, what are called for are living judges, those who strongly feel the interests which the law of tomorrow must take care of. The need is for the creation of certain jurisdictions of equity in the service of a justice, if the expression may be allowed, "*less just but more adjusted to reality*". While the original legal feeling is passionate, partial and subjective, the refined legal sentiment of the career judge is more objective. Spontaneity is lost, rigour is gained. One must pick one or the other, or, best of all, some median term.⁶⁴

10. Equity in Canon Law

It is a widespread belief that canon law is quite unlike the normative systems of the majority of modern States. Its true specificity resides in the fact that here the legislator does not aim for "plenitude", he does not expect the system to cover all eventualities. Canon law is limited to regulating a certain number of situations only, it does not envisage potentially governing everything like States' laws do. Canon law is limited because it is only a sort of half system

64 PIERO CALAMANDREI: "Il significato costituzionale delle giurisdizione di equità", in *Archivio Giuridico*, LXXXV. 2. 1921. There is a Spanish translation: "El significado constitucional de las jurisdicciones de equidad", in CALAMANDREI: *Estudios sobre el proceso civil*. Buenos Aires. 1945. From the Italian edition: *Studi sul processo civile*. II. Padova. 1930-56, pp. 1-56. Also in PIERO CALAMANDREI: *Opere Giuridiche*, vol. III, Napoli, 1968, pp. 3-51. JOSÉ CASTÁN TOBEÑAS: *La formulación...*, *op. cit.*, pp. 137-142.

in the service of an end which goes beyond itself, the eternal well-being of souls—"salus aeterna animarum".

Canonical equity too has its own particular nature when compared with civil equity, natural equity, philosophical equity and Roman equity. We have already looked at canonical equity in bygone times in its various guises as "*temperantia, humanitas, asperitatis remissio, caritas, misericordia, benignitas*". Here we shall be mainly dealing with equity as regulated by the *Codex Iuris Canonici* and in its relation to dispensation, so important in canon law.⁶⁵

65 Cf. CHARLES LEFEBVRE: *Les pouvoirs du juge en droit canonique*. Paris. 1938; Id, "Le consentement matrimonial et l'équité canonique", in *Mélanges de Sciences Religieuses*. Lille. t.3, 1946, pp. 125 ff.; Id, "La théorie du domicile et l'équité canonique", in *Eph. Theol. Lov.*, 18, 1946, III ff.; Id, "Théorie des preuves et équité canonique", in *Ephemerides Iuris Canonici*, 2, 1946, pp. 282 ff.; Id, "Équité canonique et manifestation de volonté", in *Actes du Congrès de Droit Canonique*. Paris. Letouzey. 1947, pp. 339-347; Id, "Le rôle de l'équité en droit canonique", in *Ephemerides Iuris Canonici*, 7, 1951, pp. 137 ff.; Id, "La doctrine de l'Hostiensis sur la préférence à assurer en droit aux intérêts spirituels", in *Ephemerides Iuris Canonici*. Annus VIII, 1952, I, pp. 24-44; Id, "'Aequitas canonica' et 'periculum animae' dans la doctrine de l'Hostiensis", in *Ephemerides Iuris Canonici*, 8, 1952, pp. 305-321; Id, "La notion d'équité chez Pierre Lombard", in *Ephemerides Iuris Canonici*, 9, 1953; Id, "Équité", in *Dictionnaire de Droit Canonique*, V, Paris, 1953, pp. 394 ff.; Id, "Épikie", in *Dictionnaire de Droit Canonique*, Paris, 1953, pp. 364-375; Id, "Hostiensis, maître de l'équité canonique", in *Ephemerides Iuris Canonici*, 28, 1972, pp. 11-30; Id, "Equity in Canon Law", in R. A. NEWMAN (ed.): *Equity in the World's Legal Systems...*, *op. cit.*, pp. 93-111; Id, "Récents Developpements des Recherches sur l'Équité Canonique", in *Proceedings of the VIth International Congress of Medieval Canon Law*. Città del Vaticano. 1985, pp. 363-376; S. D'ANGELO: "De aequitate in Codice iuris canonici", in *Periodica de Re Morali, Canonica, Liturgica*, 1927, pp. 210-124. Also in *Apolinaris*, I, 1928, pp. 377 ff. Id, "De aequitate in Codice Iuris Canonici (Excursus ad can. 20)", in *Apolinaris*, 1928, pp. 363-383; ANDREA RUSSO: *Lequità e i diritti soggettivi nell'ordinamento canonico*. Catania. Scuola Tipografica Ospizio di Beneficenza. 1959; FERNANDO DELLA ROCCA: "'Equità' (diritto canonico)", in *Novissimo Digesto Italiano*, VI, Torino, 1960, pp. 624 ff.; DE NAUROIIS: "Le rôle du principe d'équité dans les droit canonique et français", in *Revue de Droit Canonique*, 1979, pp. ff.; OLIVIER ÉCHAPPÉ: "L'équité en droit canonique", in Various Authors: *Justice et équité, op. cit.*, pp. 7-17; PIO FEDELE: "Generalia iuris principia cum aequitate canonica servata", in *Studi Urbinati*, 1936, pp. 51-111; Id, "Certeza del diritto ed aequitas canonica", in *Lo Spirito del Diritto Canonico*. Padova, 1962, pp. 197-293; Id, "Nihil aliud est aequitas quam Deus", in *Eph.i.c.*, 1964, pp. 189 ff.; Id, "Equità. Equità canonica", in *Enciclopedia del Diritto*, XV, Milano. Giuffrè. 1966, pp. 147-160; A. FLEURY: *Le droit canonique, un droit de l'équité*. Paris. Memoire de Licence de la Faculté de Droit Canonique de l'Institut Catholique de Paris. Multigraphié, 1984; EUGEN WOHLHAUPTER: "La importancia de la equidad en la historia del Derecho en España", in *Investigación y Progreso*, 1, October 1930; Id, *Aequitas canonica. Eine Studie aus dem Kanonischem Recht*. Paderborn. 1931. Review by RIAZA, in *Anuario de Historia del*

10.1. The Regulation of Equity in the *Codex Iuris Canonici*

What role does equity play in contemporary canon law? To answer, two successive Codifications—known to the Catholic Church in the XXth century—must be examined. They are the 1917 and the 1983 Codes. We must also examine the time lapse between them and what occurred then.

The 1917 Codex awarded a very modest place to equity. Still, scholars, after 1917, have tended to esteem it. Equity's role, especially canonical equity, has been considerably revised by Vatican Council II, as a consequence of the ecclesiastical renovation this Council represented. Paul VI, in a speech before judges of the Court of la Rota in 1973, attributed to canonical equity a starring role in the Church's make-up and in its pastoral duties. We are dealing with a "spiritual attitude of the soul" which should, of necessity, possess the ecclesiastical judge. John Paul II, in his speech given when he presented the new 1983 Codex, referred to legislation which has love as its first commandment. However, despite these declarations of principle, the new Codex contains even fewer canons given over to equity than its 1917 counterpart. References to equity there are scarce indeed and more of a moralizing than a legal character.⁶⁶

Regulations concerning equity are found in the current 1983 *Codex Iuris Canonici*, under canon 19. This reads:

"Si certa de re desit expressum legis sive universalis sive particularis praescriptum aut consuetudo, causa, nisi sit poenalis, dirimenda est attentis legibus latis in similibus, generalibus iuris principiis cum aequitate canonica servatis, iurisprudentia et praxi Curiae Romanae, communi constantique doctorum sententia".

Today's canon 19 was the old 20, in the annulled *Codex Iuris Canonici* of 1917. In both, we find the same underlying idea, only the terminology is different: "*expressum legis*", in place of "*expressum praescriptum legis*"; "*universalis*"; instead of "*generalis*"... Only one deep difference may be found, in the introduction to custom, after the law and before the recourse to analogy, as also in the fact of naming case law amongst supplementary sources of law. In order of priority, the sources, in line with canon 19, are as follows: law—either universal or particular—and custom, as main sources; later comes analogy, general principles of law, to be observed with canon equity, case law,

Derecho Español, VIII; Id, "Aequitas canonica", in *Görres-Gesellschaft zur Pflege der Wissenschaft im Katholischen Deutschland Veröffentlichungen der Sektion für Rechts- und Staatswissenschaft*, 56 Heft, 1931, pp. 59 ff.; Id, "Der Einfluss naturrechtlicher und Kanonistischer Gedanken auf die Entwicklung der englischen Equity", in *Acta Congressus Iuridici Internationalis*, II, Romae. 1935, pp. 437-467.

66 OLIVIER ECHAPPÉ: "L'équité en droit canonique", in *Justices, cit.*, pp. 10-16.

praxis, and jurisprudence. It is an open question whether the supplementary sources follow the hierarchical order in which they are mentioned.

Turning now to the subject of equity, the following observations might be made as regards canon 19. Firstly, we should note we are dealing with a case of “*aequitas scripta*”, invoked in the law, not what is known as “*aequitas non scripta*”. While the former has only an interpretive part to play, the latter has a *supplementary* function, where any applicable law is lacking, and we can come to speak of equity here as being a source of law.

Secondly, we should make clear the relation existing between the “*generalibus iuris principia*” and that equity canon 19 would refer us to. Canon scholars on the whole consider such a recourse a necessity for general principles of law to be interpreted with benignity, with indulgence, with mercy and Christian charity, taking into consideration the good of the Church and the well-being of souls.

Certain writers have attempted to link the canon 19 canonical equity not only to “*generalibus iuris principia*”, but also to “*leges latae in similibus*”. Should this interpretation be pursued, equity would go from being a purely interpretive criterion to become a true source of law. This is found as regards the distinction between natural principles of law and positivist principles of law, express or not express. It is through this latter that equity would encounter the “*analogia iuris*” entrance, as a recourse to non-express positive principles. Equity could here intervene in the elaboration of these principles and in their application to the specific case.⁶⁷

10.2. Equity and “Dispensation”

In the theory of dispensation, the doctrine of equity is deeply involved, as we see in ARISTOTLE and AQUINAS. As ALFONSO DE CASTRO says, Chapter V, Book I, of his *De potestate legis poenalis*, in the same way as divine and natural laws have no binding force in certain cases, neither do human laws always have effect, nor do they obtain in all places the same binding force. Often their interpretation or their exemption is called for. It is his opinion that, where the question is clear, each one may interpret the law or dispense it on his own authority, without having to appeal to any superior.

As AQUINAS adds, between the case of the absolute wickedness of the law *in general*, which would automatically result in its being generally declared wicked, and its inapplicability, and the case where the law is not iniquitous in a general way, but rather is only so should it be applied *to this particular case*, it is in this latter context that he asserts the need to appeal to a superior to obtain “*dispensatio*”, the “*relaxatio legis*”, the attenuating of the law for the specific facts of this case, a measure which would not imply a general declaration of

67 PIO FEDELE: “Equità canonica”, in *Enciclopedia del Diritto*, pp. 147-159, esp. pp. 156-159.

the law's harmful nature.⁶⁸ The basis of dispensation in canon law resides in the fact that *God has not wanted to force Man to do the impossible*.

11. Equity in Commercial Law

Classic commercial law theorists—we might mention BARTOLO, SALICETO, TARTAGNA, ROMANO, BALDO, ANGELO, DECIANO, IMOLA, SOCINO, FULGOSIO and, later, SCACCIA, ANSALDO, CASARREGIS, ROCCO or AZZUNI—all agree that equity cannot be riled out as a significant factor in the life of commercial law. The problem is not really the admission or exclusion of equity, it is its characterization, because what the authors cited will not admit is “brain bred” equity, “pie-in-the-sky” equity, “*ex proprio capite*” equity, or, as the Spanish might put it “*bursalis*” or “*rudis*” equity. Equity cannot be simply an individual intuition concerning what is just. For some, commercial equity must be conceived of as “*epieikeia*”, that is, as justice in the specific case. Others try to assimilate it to “*aequitas mercatorum*”, to “*aequitas canonica*”, or be it to the application of the norm “*dulcore misericordiae temperata*”. On the other hand, commercial law contains a certain, important dichotomy in the following types of equity: “*aequitas constituta (scripta)*—*aequitas inconstituta (non scripta)*”.

For FIGA FAURA, the correct characterization of commercial equity might be found if we start of from the formula “*known truth and good faith retained*”⁶⁹

11.1. The Principle of the “Known Truth”

In a civil trial, the burden of proof is on he who avows his right, that is on whoever affirms something, not on he who denies. The result is not the discovery of the truth, but a dialectic exercise where he who makes an affirmation is the winner if he can prove it and the loser is whoever does not achieve this. As opposed to the axiom “*veritas disputando invenitur*”, the result of the dialectic discussion in no way guarantees the truth of what is stated contra-

68 A. McCOY: “Canonical Equity versus the Proliferation of Dispensations and Privileges”, in *The Jurist*, 23, 1966, pp. 95-102; V. DEL GIUDICE: “Privilegio, dispensa et epicheia nel diritto canonico”, in *Annali della Facoltà di Giurisprudenza dell'Università di Perugia*, 1926, pp. 48-55; also in *Scritti in memoria del prof. Francesco Innamorati*, Perugia, 1932, pp. 227-281. PIER GIOVANNI CARON: “Aequitas’ romana...”, *cit.*, p. 73. FRANCESCO D’AGOSTINO: *La tradizione...*, *op. cit.*, pp. 96-101 and 156-163. CHARLES LEFEBVRE: “Equity in Canon Law”, in RALPH A. NEWMAN (ed.): *Equity...*, *op. cit.*, pp. 93-94.

69 LUIS FIGA FAURA: “Las equidades (con especial atención a la equidad mercantil)”, 7, *La equidad mercantil*, in *Homenaje a Juan Berchmans Vallet de Goytisolo*, II, Madrid, Fundación Notarial Matritense, 1988, pp. 311-341.

dicting what is not proven. Hence, the civil trial might be seen as a tournament, a pure game. In games, in any game, everything is pure play except the conflicts the game gives rise to as to its rules and the behaviour of the referee.

Transferring all this to the commercial world, we may define commerce as a game, though the applying of the rules of this game is not itself a game, nor can any admit this who play the game. From whence the “commercial estate’s” resistance to anything which might convert the commercial process into a mere dialectical game. Neither lawyers, nor procurators, nor rules of the game come into play. The judge, without submitting himself to any rule whatever, must find out the truth. The judge, in the classic commercial trial is no mere passive spectator who must limit himself to reaching a verdict according to what the various parties allege and prove. He is the protagonist and the master of the whole process.

11.2. *The Principle of “Good Faith Retained”*

For FIGA FAURA, the formula “good faith” as a compound expression has lead to confused formulations and contradictions as a consequence of the extraordinary, and almost exclusive, attention paid the adjective, and the concomitant overlooking of the noun. For him, all doubts, vagueness and imprecision regarding the concept could be dispelled if we spoke only of “faith”, with no adjectives nor additives. The word “faith” is equivalent to hope, expectation, trust concerning another’s behaviour. In merchant traffic, it is essential, not simply from the ethical viewpoint, from the angle of justice, but also for the smooth functioning of the trader’s activity, the protection of trust and of expectations when new operations are undertaken. Therefore, it is not just a question of obliging people to keep their given word. It is a matter of achieving the goal of trust, of expectations aroused by the concluding of a contract or the birth of certain credit relations.

To determine what good faith demands the uses of traffic must be considered. This is precisely what the last word of the phrase—in classic commercial law—“good faith retained” means. *An expectation is justified and, hence, cannot be frustrated when that which is expected is the usual thing.* A generalized, ordinary merchant practice should be taken into account for the simple reason that is what everybody does.

Commercial equity is not then set up as an evaluative criterion, nor is it but an arbitrary intellectual game. It simply consists in the inquiring contestation of the truth of a legal relationship and in the application of that to a corresponding norm, where there is a certain expectation based on the existence of a generalized commercial usage.⁷⁰

70 RENÉ DAVID: “La doctrine, la raison, l’équité”, *cit.*, pp. 143-146.

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